

History of England

From the Fall of Wolsey
to
the Death of Elizabeth

Volume X

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CHAPTER XIX

The impunity with which Elizabeth's Government was able to insult and provoke the Catholic Powers of Europe is the most anomalous phenomenon in modern history. The population of England was less than half the population either of France or Spain. The nation was divided against itself, and three quarters of the Peers and half the gentlemen were disaffected. Yet the intricacies of the political situation protected the Queen not only against active resentment from abroad, but from the conspiracies of her own subjects. Everywhere, indeed, there was paradox; everywhere contradiction and inconsistency. In the struggle for existence men snatch at the first weapon that comes to hand, and cannot look too nicely at the armoury where it has been forged. Catholics and Protestants where they were a suffering minority clamoured alike for liberty of conscience; alike where they were in power they proscribed every creed but their own. The obligations of loyalty varied with the creed of the sovereign. The English Bishops who composed the Homily on Wilful Rebellion, fed the armies of the Huguenots and the Prince of Orange with contributions collected in the English churches. The Catholics who on the Continent preached the Divine right of Kings, believed in England that they might lawfully be deposed by their subjects. Princes were not more consistent than their peoples. Elizabeth was half a Catholic in theory; in practice she was the most vigorous of Protestants. The Court of France was one month the ally of the Papacy, and the irreconcilable enemy of heresy; in the next it was seeking alliance with England, stretching out its hands to the Princes of the religion, and thinking only how befit to take advantage of the distractions of the Low Countries, and annex Brabant and Flanders to the French crown. But phenomena like these occasion no surprise. They explain themselves on the common principles of human nature, or in the divisions of opinions and parties. The anomalies in the position of the English Queen were so singular as to be without precedent or parallel.

From Philip, the most orthodox of princes, and the Spanish nation, the most passionately Catholic in the world, some kind of principle, some uniformity of action, might have been looked for with certainty; yet Philip was compelled to be the chief supporter of a heretic Power, by which he was himself insulted and despised. If he attempted to interfere to change the government in England, France stepped to

Elizabeth's side and threatened him with war. If he stood aside to let the Catholics rebel, the Catholic element in France was ready with its offers of help to secure the profits of the anticipated revolution, and Philip, through fear for his Netherlands, was forced back upon his sister-in-law's side, was obliged to stand between her and the Pope, and to perplex the whole Catholic world by an irresolution not less marked and far more mischievous than the vacillation of Elizabeth herself. Again and again he had tried to extricate himself from his dilemma, but the strange eddy was always too strong for him. Had there been no France, the English Catholics would have found an instant ally in Spain, and Mary Stuart would have found a champion. Had Mary Stuart been unconnected with France, the difficulty would have been greater but still not insurmountable. And again, had there been no Spain, the French would never have submitted to be driven out of Scotland, or would have found an easy means to revenge themselves in the intestine divisions of England. But as with the calms in the Northern latitudes, which are caused by the conflict and counterpoise of opposed atmospheric currents, the mutual jealousies of the two Powers left Elizabeth more free to settle her own difficulties than if the "ditch" which divided England from the Continent had been the Atlantic itself. She had the advantage of the neighbourhood without its evil, for her disaffected subjects, instead of trusting to their own energies, built their hopes on assistance from abroad which never came. She had robbed Philip of his money, imprisoned his ambassador, destroyed his commerce, assisted his subjects in rebellion, and invaded his Indian colonies; yet to keep her on the throne continued the same necessity to him as when ten years before he had rejected the entreaties of De Feria and De Quadra to make himself master of England by force.

The immunity indeed could not last forever. If the Reformers were finally crushed on the Continent, the turn of England would come in the end; and had Elizabeth understood the situation as completely as Cecil understood it, she might have struck boldly into the quarrel, and perhaps turned the scale conclusively over all Western Europe. But for such a policy she wanted courage, and probably she wanted inclination. She dipped into the whirlpool and drew out of it, she hung on the edge and promised and broke her promises, and sent help to France and Flanders and denied having sent it, and did all those things which in common times would have most exposed her

to danger with least profit to herself. Yet here too, strangely, her star was on her side. This very conduct answered best for her own purposes, since it enabled Philip to hope to the last that she would go back to the principles of the old alliance and the old faith, and so furnished him with an excuse to himself for his own inaction. Thus time was gained, and time was everything for the consolidation of English freedom. Catholicism in England was still to appearance large and imposing, but its strength was the strength of age, which, when it is bowed or broken, cannot lift itself again. Protestantism, on the other hand, was exuberant in the freshness of youth; if a branch was lopped away another more vigorous shot from the stem; the sap was in its veins; it would bend to the storm and gather strength from the blasts which tossed its branches. The Catholic rested upon order and tradition, stately in his habits of thought, mechanical and regular in his mode of action. His party depended on its leaders, and the leaders looked for guidance to the Pope and the European Princes. The Protestant was self-dependent, confident, careless of life, believing in the future not the past, irrepressible by authority, eager to grapple with his adversary wherever he could find him, and rushing into piracy metaphorical or literal when regular warfare was denied him. Life and energy were on the side of the Queen, and every year that she could gain was a fresh security for her; while the convenient season for which Philip waited, though it arrived at last, arrived too late, when the hand which should execute his behests was shaking in decrepitude.

These reflections, however, if sound at all, are but wisdom after the event. We must return to England in the opening of the year 1570, when the vitality of Protestantism was still unproved, and the future was vacancy peopled only with its million possibilities.

The rebellion, ill concerted and ill managed, had exploded without effect, but it had left the Catholics weaker than before, embittered more deeply against Elizabeth's government, and only resolved to renew the experiment with a clearer understanding among themselves. The conspiracy, as the Regent Murray said, had its branches over the whole island; and were the Queen to be taken off by an assassin, as Murray had been, there was no force anywhere which could save the country from immediate and universal anarchy.

Conscious of her danger, and conscious, as she recovered her equanimity, that she must find some better guarantee for her safety than

the hanging of landless labourers and poor artisans, Elizabeth drew February an address to her subjects, in which she explained the principles of her past government, and appealed to their consciences to say whether on the whole she had deserved their disaffection. The thoughts were her own, the language in part or wholly was Cecil's.¹ A printed copy was sent to every parish in England, to be hung up in some public place where every one could see it, and read aloud in service time from the pulpit.

She spoke briefly of the insurrection. She thanked her people for their general loyalty; but "for their better understanding," she desired to add some few words of reply to the calumnies which were spread abroad against her administration. "She had desired," she said, "to have the obedience of her subjects by love and not by compulsion, by their own yielding and not by her exacting: she had never sought the life, the blood, the goods, the houses, estates, or lands of any person in her dominions:" she had been careful for the maintenance of order and law, yet with so little severity that "the Judges had in no age before given fewer bloody judgments:" there had been no civil wars in England like those which were desolating the neighbouring kingdoms; no needless foreign wars, no impoverishing of the subject by "taxes, assises, gabels, or other exactions:" she had incurred expenses in the defence of the country against intended invasions; yet she had been more careful of her subjects' treasure than even Parliament itself had required her to be; the ordinary revenues of the crown had sufficed for the ordinary government, and she invited them generally to contrast "the security, tranquillity, and wealth which they enjoyed, with the continual and universal outrages, bloodshed, murders, burnings, spoilings, depopulation of towns and villages, and infinite manner of exactions, in France and the Low Countries."

So much as to the general management of the country. There remained to be considered religion, on which her rule "specially from abroad had been most frequently and maliciously impugned." It was true, Elizabeth admitted, that "the external ecclesiastical policy of England differed in some respects from that which was established in other countries, and occasions had been sought to trouble weak consciences on this ground." Simply, however, she declared that "she had neither claimed nor exerted any other authority in the Church

¹The MS. is corrected throughout in Cecil's hand. The body of it had been probably written at his dictation by a secretary. — Domestic 8., 1569, 1570, Rolls House.

than had attached from immemorial time to the English crown, although that authority had been recognised with greater or less distinctness at different times. The crown challenged no superiority to define, decide, or determine any article or point of the Christian faith or religion; or to change any rite or ceremony before received and observed in the Catholic Church. The royal supremacy in matters spiritual meant no more than this, that she being by lawful succession Queen of England, all persons born in the realm were subjects to her and to no other earthly ruler. She was bound in duty to provide that her people should live in the faith, obedience, and observance of the Christian religion; that consequently there should be a Church orderly governed and established; and that the ecclesiastical ministers should be supported by the civil power, that her subjects might live in the fear of God to the salvation of their souls. In this, Christian princes differed from Pagan princes, who, when they did best, took but a worldly care of their subjects' bodies and earthly lives.

"And yet," she said, "to answer further to some malicious untruths, she never had any meaning or intent that any of her subjects should be troubled or molested by examinations or inquisitions in any matter of their faith, as long as they should not gainsay the authority of the Holy Scriptures, or deny the articles of faith contained in any of the Creeds received and used in the Church: they might retain their own opinions in any rites or ceremonies appertaining to religion, as long as they should in their outward conversations shew themselves quiet and conformable, and not manifestly repugnant to the laws for resorting to their ordinary churches."

"So far and no farther the crown of England claimed authority over the Church; and if any potentate in Christendom, challenging universal and sole sushould condemn the English Princess for refusing to recognise that superiority, Elizabeth said she would be ready, in any free and general assembly, where such potentate should not be only judge in his own cause, to make such an answer in her defence as should in reason satisfy the university of good and faithful Christians; or, if she failed to satisfy them, as the humble servant and handmaid of Christ, she would be willing to conform herself and her policy to that which truth should guide her into for the advancement of the Christian faith and concord of Christendom: she would admit as truth, however, only that which Almighty God should please to reveal by ordinary means in

peaceable manner, and not that which should be obtruded upon her by threatenings of bloodshed and motions of war and rebellion, or by curses, fulminations, or other worldly tyrannous violences or cruel practices.

"With this general statement her subjects ought to be contented. She had done nothing which could justly offend them, and she intended to do nothing. Inasmuch, however, as some kinds of her people had been encouraged in disobedience by an opinion evil conceived of her lenity, she must and would, for the future, make use of the sword of justice against the obstinately disaffected. There should be no inquisition, no examination, no violence done to conscience in matters of faith; and those who would outwardly conform should enjoy the fruits of her former accustomed mildness; but sedition and rebellion should be speedily and promptly repressed."

The allusion to "curses and fulminations" might seem prophetic. That Elizabeth had not been formally excommunicated had been one of the difficulties which had embarrassed the Northern insurgents. An English gentleman instinctively recoiled from the name of traitor; and so long as he was unabsolved from his oath of allegiance, the most earnest Catholic could not feel with certainty that he was released from his obligation of obedience. The Popes would long before have relieved their consciences could they have followed their own discretion; but the Catholic Princes, and especially Philip, were not so blinded by fanaticism as to sanction so audacious a precedent. Charles V. had refused to recognise the excommunication of Henry VIII.; he had received English ambassadors, and gone back into an alliance with the English, as if Paul III. had been but a mortal like himself. Philip had been less openly disrespectful to Paul's successors; but he had escaped only by preventing them from forcing him into the same situation, and by interposing to prevent their often-meditated violence. Many reasons made him unwilling to quarrel with Elizabeth. Many reasons made him reluctant, even if an opportunity should present itself, to permit her to be deposed by revolution; and as a sovereign, he declined to recognise even by silent acquiescence the insolent pretensions of the Roman Pontiff.

Confronted, however, by the avowed embarrassment of the English Catholics, privately instigated by the Cardinal of Lorraine, and perhaps believing that by the open exercise of his authority he might put an end to the vacillation of the Great Powers, and

unite France and Spain upon what, by the voice of their Church, would be consecrated into a Crusade, Pius V. determined to wait no longer for Philip's approbation. The Earls of Westmoreland and Northumberland had themselves written to desire him to speak out in their favour. On the 25th of February, therefore, suddenly, that there might be no remonstrance, he drew up a Bull, by which he declared Elizabeth to be cut off, as the minister of iniquity, from the communion of the faithful. He released her subjects from their allegiance, and he forbade them, under pain of incurring the same sentence as herself, to recognise her any longer as their sovereign.²

Deeply though Elizabeth had injured the King of Spain, the Pope was conscious that it would be vain for him to hope that the Bull could be published in Flanders. Philip, he was well aware, would entreat or command him to restore the levin bolt to his spiritual armoury. He therefore sent it to the Cardinal of Lorraine, to be issued at a favourable moment; and, ignorant as yet of the completeness of the collapse of the insurrection in England, or believing that the work could be recommenced from the Scottish Border, he wrote at the same time a letter of encouragement and gratitude to the two Earls. It was couched in the usual language of the Apostolic missives. The Pope expressed and assured them of the peculiar love with which he regarded his English flock. "He was grieved," he said, "that during his Pontificate, the venom of heresy should have been spread so widely over the Christian Commonwealth. He had prayed to Peter, however, not to desert his forlorn bark on the stormy sea on which it was tossed; and Peter, he did not doubt, would come to the help of his faithful servants. Many a time that precious boat had seemed to be on the verge of destruction; yet, by the power of the Lord, the raging waves had been stayed, and the ship had come out from persecution, strengthened by the violence which had threatened it with ruin. It might be that the Lord Jesus Christ, who made old things new and new things old, had resolved to build again the Church of that realm by the hands of the two noblemen whom he was addressing — men illustrious alike in their blood and in their zeal for the faith, who had endeavoured to save themselves and their country from the foul tyranny of female sensuality.¹ They had desired to submit themselves again to the Holy Apostolic See. He applauded in the Lord

²Bull of excommunication against Elizabeth, February 25, 1570: MS& Domestic, Rolls House. Printed by Camden, Burnet, etc.

their pious purpose as it deserved. He gave them his blessing. He received them under the shelter of his authority. He exhorted them to be constant and to persevere. He was assured that the Almighty Lord, whose works were all perfect and who had moved them to the defence of the Catholic faith, would give them the aid of His powerful arm. Should they lose their lives in His service, it was better for them to pass at once into Paradise through a glorious death, than to be the mean slaves of a licentious woman, and lose their immortal souls. The Bishops who had been flung into dungeons rather than forsake the truth, had followed in the footsteps of the blessed Thomas of Canterbury. Let the Earls also imitate that admirable saint. They were his beloved children in Christ, and he prayed them, for no perils by which they might be threatened, to desert the cause which they had taken in hand. The God in whom they trusted, the God who cast Pharaoh and his chariots into the sea, was able to de- 1 "De la subjection de la torpe y feminil incontinentia." stroy the might of their adversaries. The Pope himself would not only move the Princes of Christendom in their behalf, but would send them at once all the money which he could provide, and in this and all other ways would assist them in their holy purpose to the utmost of his power." ³

The letter never reached its destination, but fell into the hands of the Spaniards. The Bull was carried to Paris, and lay waiting for the moment when it was hoped that a war would break out between France and England, and that Catherine de Medici and the King would give their sanction — without which even the Cardinal of Lorraine was afraid to act — to the publication of it before the world.⁴ The opportunity might easily be near; the attitude of the

³La carta que su Santidad escribio a los Condes de Northumberland 6 Westmoreland, February 20, 1570: MS. Simancas.

⁴Philip, who was generally credited with having advised Elizabeth's excommunication, was more than innocent of it. He was surprised, displeased, and suspicious, believing that it was connected in some way with a design on the part of the French Government to make an attempt upon England. Don Guerau sent him a copy of the Bull. "The instrument which you have forwarded to me," Philip wrote in reply, "the instrument declaring the Queen of England deprived of her realm, was the first which I had heard about the business. His Holiness took the step without communicating with me, and I assure you I am not a little surprised at it. Knowing as I do so intimately the condition of that realm, I could have given him better advice than others whose counsels he seems to have followed. He is zealous, and perhaps thinks that only this was wanting to bring about what he desires. I shall be very happy to find that he is right, but my fear is that not only the effect will not be favourable, but

French Court towards England had varied during the past year between almost a declaration of hostilities and almost friendship. So long as Mary Stuart and the English Catholics were coquetting with Spain, the French Ambassador had held aloof from the conspiracy; when it became clear that Spain did not mean to interfere, the place of protector of the oppressed was again open with its contingent advantages. France could make use of the resentment which would be provoked naturally by the apathy of Alva and Philip, and the death of Murray had created a fresh chance for the recovery of French influence in Scotland. The Huguenots were not expected to rally from the effects of Moncouth. The Guise influence was in the ascendant, and Catherine leant as usual to the policy of the predominant party. Accordingly, during the first weeks of the year, the despatches of Sir Henry Norris from Paris were filled with warnings of approaching danger. Elizabeth was to be punished for the encouragement which she and her subjects had given to Coligny. "The open talk at Paris was of war with England, for the release of the Queen of Scots and the toleration of Papistry." The Queen Mother told Norris "that she thought God had sent the beginning of a rebellion to warn his mistress how she assisted rebels against their princes; if the first lesson sufficed not, she must look for sharper scourges. An army was to be thrown across the Straits, which the Duke of Anjou was to lead, and the Duke was to be rewarded with the hand of the Queen of Scots. The success of Bothwellhaugh had been so encouraging, that the Cardinal of Lorraine engaged a party of assassins to attempt a similar service on Elizabeth. He offered Alva a share of the enterprise, and requested him to make a diversion in Scotland, while Anjou moved on London and Tutbury.

That Alva would accept a second part in such a business was exceedingly unlikely. The marriage of the Queen of Scots and the Duke of Anjou was one of the most alarming spectres in Philip's imagina-

that so sudden and ill-advised a measure will only embitter men's humours there and drive the Queen to extremities." — Philip to Don Guerau, June 20: MS. Ibid. To his ambassador in Paris, Philip expressed himself yet more vehemently. "The Pope," he said, "should have consulted me before taking this step. I cannot but feel uneasy that it was concealed from me. It means mischief, and we must get to the bottom of it. We must find out especially what the French are after — their usual tricks no doubt. If there be anything of this kind, we may credit it to the Cardinal of Lorraine, whose actions show that you have done him no injustice in the opinion which you have formed of his character." — Philip to Don Francis ile Alava, June 26: Teulet, Vol. V.

tion. Don Guerau, however, suggested that, under shelter of the expected French enterprise, the Duke might attempt the surprise of Tutbury on his own account; it was of great importance that the Queen of Scots at liberty, and equally so that she should not be the hands of the French.⁵ He had ascertained that she was left to herself between two o'clock at night and nine the following morning; and if Alva would send a ship well manned to some secluded spot on the east coast, with a sufficient number of horses, means could be found, with the help of Leicester, whose service it seems had been secured by Chapin,⁶ to carry her off to the sea.⁷ With a view to an underplot of this kind, and to throw Catherine off her guard, Alva did not answer with entire coldness to the Cardinal of Lorraine's proposals. Sir Henry Norris intimated his fears that there was danger from Flanders as well as from France, unless in some way the Queen of Scots could be got rid of. "I pray you assure yourself," he wrote to Cecil on the 9th of March, "that except they fail of their purpose, they intend the ruin of her Majesty; as you tender her Majesty's preservation, let the Queen of Scots be removed out of the country."⁸

Don Guerau had been scrupulously secret about the intended escape; but a hint of the plot reached Cecil from Paris. On enquiry at Tutbury, suspicious "practices" were discovered among the servants, and the guard at the castle was instantly doubled. The locks were taken from the Queen's door, that her rooms might be examined at any hour of the day or night, if "sudden danger should chance;"

⁵"Parece cosa muy convenient procurar la libertad de la Reyna de Escocia, porque con tenerla presa tiene creydo la Reyna de Inglaterra que ningun Principe Catolico le hara guerra por no poner en peligro la dicha Princesa; y asy tambien es mejor que su libertad no sea por via de los Franceses ni venga a poder dellos, por lo que ban mostrado desear de casarla con el Duque de Anjou; antes seria muy al proposito que viniese en poder de su Magd. porque se casase a su voluntad, pues para el bien de la religion y seguridad de los Payses Baxos y de V. M y la navegacion importaria mucho." — Don Guerau to Alva, March 7: MS. Simancas.

⁶Don Guerau, speaking of some one who was to be sent first to survey the ground where the relays of horses were to be placed, says: — "Puede traer una carta del Marquis para el Conde de Leicester para procurar la dicha facultad." Leicester had perhaps deceived Chapin, in order to learn his secrets and betray them; or, as usual, he may have been making his game for all contingencies. No one can tell. Only whenever we come upon his name in these underground passages it is always connected with infamy or treachery of some kind

⁷Don Guerau to Alva, March 7.

⁸Norris to Cecil, January 2, January 27, March 1, March 9, March 15; Norris to Elizabeth, February 5, March 9: MSS. France, Rolls House.

and a significant intimation was given to her, that if she tried to fly it might be dangerous.⁹ Elizabeth herself, too, prepared for the worst. Though knowing nothing of the excommunication, she had reason enough to believe that the warnings of Sir Henry Norris might be well founded. There was a general impression that on the events of the year that was opening the fate of the Reformation depended — and with the Reformation, her own throne. La Mothe Fnelon continued to demand the release or the restoration of Mary Stuart, and it seemed only too likely that a declaration of war would follow unless the Government gave way. The treasury was poorly provided. Elizabeth shrunk from encountering a Parliament with no husband at her side, and with the succession still unsettled; and without a Parliament she could neither raise a subsidy nor confiscate the estates of the Northern Earls, who could now be only reached through an Act of Attainder. Sir Thomas Gresham, however, was able to raise a loan in the City. The Spanish treasure was untouched, and could be used in extremity. Every serviceable ship was sent to sea; the musters were called into training on the whole south and west of England; the arms and horses looked to; and officers were chosen who were known as haters of Popes and Papistries. Before March, La Mothe reported that a hundred and twenty thousand men could take the field in different parts of England at a few days' notice, and could be relied upon to defend the country from a French invasion.¹ The defeat of Leonard Dacres came opportunely to strengthen the impression of the Queen's resources; and thus supported, she felt herself able to reply with dignity to the French demands. She was called upon to restore Mary Stuart: she answered with an unexaggerated sketch of Mary Stuart's history. "She went over the old ground of the usurped title, the unratified treaty, the marriage with Darnley, and the unceasing intrigues in England. She came next to the murder, of which the Queen of Scots was accused by her subjects of having directly procured; and finally to her flight into England; where, as her murdered husband was Elizabeth's nearest kinsman, an examination into the circumstances of his death was absolutely unavoidable. The Queen of Scots had consented after some objections, and Elizabeth had promised that if the charge against her proved to be unfounded, her accusers

⁹John Bateman to Cecil, March, 1570: MSS. Queen of Scots. 1 Depeches de la Mothe Fenelon, February, 1570.

should be punished, and she herself should be restored to her estate. The evidence, however, proved so unexpectedly weighty, that the Queen of Scots herself put an end to the enquiry, and refused to allow it to be prosecuted further. Elizabeth had forborne to use the advantage which was thus placed in her hands. She had stood between the Queen of Scots and the infamy with which she would have been overwhelmed had the proofs of her guilt been published, and, in return, the Queen of Scots had stirred up an open rebellion, professedly in the interests of religion, but aimed in reality against Elizabeth's throne and life. This person she was now called upon to set at liberty, or restore to her throne; and to do so would be an act of dangerous folly, which no indifferent person should in conscience require. She would not," Elizabeth said distinctly, would not be herself the author to hazard person, her state and honour, the quietness of her realm and people, without further consideration how in doing it she could maintain her crown and public peace among her subjects. She dared to appeal to the judgment of any prince or potentate in the world that would profess indifference in judgment: the Queen of Scots herself, and her most affectioned friends, could not think her to deal therein unreasonably." i Could the French Government have answered that the Queen of Scots was a slandered woman; that Elizabeth's pretended care for her honour was but a contrivance to give countenance to accusations which would not endure investigation, they would have replied, that her injustice was aggravated by her hypocrisy; they would have dared her to produce the socalled evidence before the eyes of Europe, that she might herself receive the infamy from which she affected to be shielding Mary Stuart. Was the truth as the defenders of the Queen of Scots maintain, such a challenge would have been more fatal to Elizabeth than the landing on her shores of all the legions of Alva and Anjou; but this could not be; Catherine de Medici had perhaps learnt by this time that Alva's legions would not be at her service, that the Catholics were for the present crushed, and that as against France, they would stand true to their own sovereign. She therefore confessed, when Sir H. Norris read the letter to her, that she had nothing to reply to it. She still hoped, she said, that the Queen of Scots might be allowed to leave England, or might be eventually reestablished in her own country; but both she and Charles admitted that they could make no further unconditional

requests in her favour.¹⁰ If the Queen of England could discover any terms consistent with her own safety on which the restoration could be effected, that they would themselves become securities terms should be observed; but Charles declared positively that he did not mean to interfere, and Catherine afterwards in private spoke even with greater friendliness.¹¹

"The unaccustomed smooth speech," the change of note so sudden and so entire, led Norris "to suspect false dealing. The English Government was not lulled into false security, but continued their preparations for defence, while the Protestant congregations raised subscriptions to support the Huguenots. Large sums of money continued to be sent to the Admiral, the privateer fleets were let out again, and the English ports were reopened to the Rochelle cruisers. Coligny, who had been wounded at Moncoutour, was once more in the field at the head of an army, and whether the Court was sincere or not in its present moderation, Elizabeth was able to feel that from France, while its present mood lasted, she had nothing to fear, although that mood would probably continue until it had been seen whether, through the death of Murray, the French party would recover their ascendancy in Scotland. There it was that she found her chief ground for uneasiness, and the necessity, or what appeared to her a necessity, for an evasive and shuffling policy. The natural, and at first sight the most prudent, course for her would have been to declare for the young King, to acknowledge, once for all, that the Queen of Scots had lost her crown by her own fault, and to refuse to allow the question of restoration to be any more reopened. But in doing this she must have been prepared — either, as she had proposed in the autumn, to replace the Queen of Scots as a prisoner into the hands of the Protestant party (and in their present state of disorganisation Mary Stuart would either be murdered by them immediately or at no distant time would be set at liberty), or else to keep her permanently in England, to be a perpetual occasion of internal trouble. She might have made up her mind to this last alternative, could she be assured that the House of Lorraine would not regain their ascendancy at Paris; but it was unsafe to calculate on French policy for two months together. It was always possible that the fanatically Catholic element in France might obtain the complete control of the govern-

¹⁰Norns to Cecil, March 15; Norris to Elizabeth, March 17: MSS

¹¹Instructions to Sir H. Norris: Conway MSS., 1570, Rolls House. vol. x.

ment. France and Spain might then be brought together by the Pope, and the Queen of Scots would be a pretext for a joint declaration of war. The Scotch nobles who were on the Queen's side would become permanently hostile to England, and throw themselves wholly on the French alliance. To keep Maitland, Argyle, and the Gordons therefore in dependence upon herself; to prevent them from joining with the Hamiltons, who were and always would be the determined enemies of England; ¹² to discover at last some possible compromise by which she could reconcile impossibilities, by which she could replace Mary Stuart yet leave her powerless for mischief, with merely the outward insignia of sovereignty — this was the solution of the problem which commended itself to Elizabeth, as that which, on the whole, promised best for English interests and for her own safety. It was because she had been baffled on this very point when she hoped that she was about to succeed, that she was so much irritated in the past summer with the Earl of Murray and the Convention of Perth. She had allowed herself, apparently without Cecil's knowledge, to correspond in secret with the Earl of Argyle and with Maitland; to encourage them both in upholding Mary Stuart's cause, as she had done before when Mary Stuart was at Lochleven, and to persuade them to trust in her rather than in France. Her secret purposes must remain always extremely obscure. It is possible that she was deliberately dishonest; but, beyond doubt, she led the Earl of Argyle to believe that in thwarting Murray, and in keeping up a party in opposition to him, he was but fulfilling the Queen of England's wishes.¹³

¹²The Hamiltons, though nominally on Mary Stuart's side, were as usual working rather for themselves than for her, and were looking steadily on the possible reversion of the Scotch crown. Mary Stuart had named Chatelherault Regent in her absence; but Chatelherault and his family were contemplating the contingency of a fresh enquiry into the Darnley murder, which might terminate both in the Queen and the young Prince being set aside, and in their own establishment upon the throne supported by France. "In case," Chatelherault said in a commission which he sent to France and Spain, — "in case all were not dissolved which proceeded of the Earl of Murray and his complices, and thereby the Queen's Grace was not found worthy (as God forbid) to brook the government, the Prince will not succeed as it is supposed, since the right of the Crown comes only by her Majesty to him, and therefore will appertain to the said Duke and his successors." Commission from the Duke of Chatelherault to the Kings of France and Spain, June, 1570: MSS. Scotland, Rolls House.

¹³Argyle himself told Randolph "that in all things he had done in defence of the Queen his mistress, since the time of her imprisonment in Lochleven, he did it by such advice as the Queen of England had given him, which had caused him since

A dread of war, a hatred of expense, a sympathy for a sister sovereign, a dislike of rebellion however necessary or defensible, an intellectual pleasure in a subtle and intricate policy — all these elements worked perhaps together in Elizabeth's mind, and made her persist in a line of action which she could pursue only in the teeth of her own promises. The effect so far had been a dangerous conspiracy at home, a partial insurrection, and the murder at last of the best friend that she possessed out of her own kingdom. The position was at present complicated by the presence of the refugees on the Border, for whom in the friends of Mary Stuart she had provided only too efficient protectors, while there was another peril which she might have foreseen but which she apparently overlooked. The union of parties which she was trying to bring about in the interests of England, might be effected with equal likelihood in the interests of France. If after the experience of the rebellion she still persisted in endeavouring to thrust the Queen of Scots back upon them, the Protestant noblemen might anticipate her, as Maitland endeavoured to persuade them to do at York, by themselves inviting the Queen of Scots' return. Scotland would at least escape the civil war which was otherwise inevitable. The demand of a united people, supported as they, would be by the French Court, Elizabeth would be unable to refuse. And she would then lose the chance of exacting conditions for her own security.

In the anarchy which followed the murder of Murray, the English fugitives were undisturbed upon the Border. Leonard Dacres joined them after his defeat, and the Earl of Westmoreland, with all the help which the Buccleuchs, the Homes, the Kers, and the Maxwells could give him, was threatening to return into England and rekindle the insurrection. Scotland was without a government which could either restrain them or be held responsible to Elizabeth; and unless Elizabeth was roused at last to a more definite policy, it was not unlikely that Chatelherault might be accepted as Regent by all parties, and the young Prince be sent across to Paris.

that time to have lost the friendship of others that were very dear to him, even the Lord Regent's self, whose death he minded to see revenged so far as justice and law required." "I see," continued Randolph, "that both he and the Lord Boyd take great heed of the Queen's Majesty's words, and by such talk allure many to their purposes who were not long since of another mind." — Randolph to Cecil, February 27, 1570: MSS. Scotland.

To prevent this at least, to keep the Protestant leaders together, yet still without power to take the one step which would have recovered their confidence, Randolph at the beginning of February came down to Edinburgh. He was sent, as he bitterly said to Cecil, to feed an angry and anxious party "with bare words." On the instant of his arrival he was beset with questions as "to what was to be done with the Queen of Scots." He found those from whom he most expected support, possessed with a conviction "that she would some time be sent home against their will;" and he was forced to see that "until they could be assured that it should pass her power to do them evil, there could be no good assurance of their hearts towards England."

1

Had Scotland remained as he had known it ten, years before — a country without a people, a country of noblemen and gentlemen, where the Commons had no existence except as servants or retainers or dependants — the shot which killed Murray would have killed the Reformation. The first champions of the cause, the Lords of the Congregation, were divided, distracted, bankrupt in fortune and principle, and with little heart to continue the struggle; but it was not for nothing that John Knox had for ten years preached in Edinburgh, and his words been echoed from a thousand pulpits. The murders, the adulteries, the Bothwell scandals, and other monstrous games which had been played before heaven there since the return of the Queen from France, had been like whii-1 winds fanning the fire of the new teaching. Princes and Lords only might have noble blood, but every Scot had a soul to be saved, a conscience to be outraged by these enormous doings, and an arm to strike with in revenge for them. Elsewhere the plebeian element of nations had risen to power through the arts and industries which make men rich — the Commons of Scotland were sons of their religion: while the nobles were splitting into factions, chasing their small ambitions, taking securities for their fortunes or entangling themselves in political intrigues, the tradesmen, the mechanics, the poor tillers of the soil, had sprung sud- 1 Randolph to Cecil, February 7, February 22: MSS. Scotland. denly into consciousness with spiritual convictions for which they were prepared to live and die. The fear of God in them left no room for the fear of any other thing, and in the very fierce intolerance which Knox had poured into their veins they had become a force in the state. The poor clay which a generation earlier the haughty baron would

have trodden into slime, had been heated red-hot in the furnace of a new faith; and Randolph, though at first he could ill realise the change, found himself in an altered world. With Murray was gone all that was conciliatory, all that was gentle, all that was chivalrous in Scottish Protestantism. It was shaped by Knox into a creed for the people — a creed in which the ten commandments were more important than the sciences, and the Bible than all the literature of the world; narrow, fierce, defiant, but hard as steel, and with strength enough to prevent Elizabeth's diplomacies from ruining both herself and Scotland.

The first public act of Randolph was to take part in a mournful solemnity. The body of the Regent Murray was brought from Linlithgow to Leith, and thence on the 14th of February to its resting place in St. Giles' church. The country for the moment forgot its feuds to pay honour to the noblest of Scotland's sons. Lords and gentlemen, knights and citizens, all who were able, came together to take part in the sad procession. The standard was borne by Grange. Five earls and three barons carried the coffin, and behind was a train of mourners "in such sorrow" as Randolph "never saw." Three thousand people were in the church, and the funeral sermon was preached by Knox. His text was "Blessed are the dead which die in the Lord." His words have not been preserved, but in all that iron crowd there was not a man but was in tears.¹⁴ His words, whatever they were, augured ill

¹⁴Something of what Knox said may be conjectured from a prayer with which he closed a second sermon in the same place on the following day. "Oh Lord, what we shall add to the former petition we know not: yea alas, oh Lord, our own consciences bear us record that we are unworthy that Thou should'st either increase or yet continue Thy graces reason of our horrible ingratitude. In our extreme miseries we Thou, in the multitude of Thy mercies, heard us; and first Thou us from the idolatry of merciless strangers; and last from the yoke of that wretched woman, the mother of all mischief; and in her place erect her son; and to supply his infancy Thou didst appoint a dued with such graces as the Devil himself cannot accuse or justly convict him; this only excepted, that foolish pity did so far prevail in him concerning execution and punishment which Thou commanded'st to have been executed upon her and upon her complices, the murderers of her husband. Oh Lord, in what misery and confusion found he this realm! and to what rest and quietness now by his labours suddenly he brought the same, all estates, but specially the poor Commons, can witness. Thy image, Lord, did so clearly shine in that personage that the Devil and the wicked to whom he is prince could not abide it; and so to punish our sins and ingratitude, who did not rightly esteem so precious a gift, Thou hast permitted him to fall, to our great grief, in the hands of cruel and traitorous He is at rest, oh Lord, and we are left in extreme misery. Be us, and suffer not Satan utterly

for compromise. To him and to the Scotch Commons Mary Stuart was simply a wicked woman, whose rights, could they have been accurately ascertained, were a short shrift and six feet of rope. The nobles had tough consciences and had estates to lose, and as Elizabeth had prevented them from hanging the Queen, her restoration did not seem impossible to them. The Commons, however, would as soon be subject to Satan. Few or none of the Lords cared in their hearts to see Mary Stuart again among them; and as there was a sincere desire to save the country from bloodshed, they were willing, in the first emotion which followed Murray's death, to come to any settlement which Elizabeth would allow to endure. Smaller jealousies and smaller aims were laid aside. Maitland, after the funeral, came down from the castle, and was acquitted by acclamation of all charges against him, and a private meeting was held at Dalkeith, at which Argyle was present, to determine whether another Regent should be chosen in Murray's place. Randolph was sent for and required to say what Elizabeth wished. He was unable to answer. Was the Queen to return? He could not tell. Would Elizabeth recognise James? He was forbidden to make a positive statement. The Lords

to prevail against Thy little this realm. Neither yet, oh Lord, let bloodthirsty men come to their wicked enterprises. Preserve, oh Lord, our young King: be an infant give unto him the spirit of sanctification, with increase of the same as he groweth in years. Let his reign, oh Lord, be such as Thou may'st be glorified and Thy little flock comforted by it, seeing that we are now left as a flock without a pastor in civil policy, and as a ship without a rudder in the midst of the storm. Let Thy providence watch, Lord, and defend us in these dangerous days, that the wicked of the world may see that as well without the help of man as with it Thou art able to rule, maintain, and defend the little flock that dependeth upon Thee- And because, oh Lord, the shedding of innocent blood has ever been and yet is odious in Thy presence, yea, that it defileth the whole land when it is shed and not punished, we crave of Thee, for Christ Thy Son's sake, that Thou wilt so try and punish the two treasonable and cruel murders lately committed, that the inventors, devisers, authors, and maintainers of treasonable cruelty may be either thoroughly convicted or confounded. Oh Lord, if I hv mercy prevent not, we cannot escape just condemnation, for that Scotland hath spared and England hath maintained the life of that most wicked woman. Oppose Thy power, oh Lord, to the pride of that cruel murderess of her own husband; confound her faction and their subtle enterprises of what estate and condition soever they be; and let them and the world know that Thou art a God that can apprehend the wise in their own wisdom, and the proud in the imagination of their wicked hearts to their everlasting confusion. Lord, retain us that call upon Thee in Thy true fear. Let us grow in the same. Give Thou strength to us to fight our battle yea, Lord, to fight it lawfully, and to end our lives in the sanctification of Thy holy name." — Works of John Knox, Vol. VI. pp. 569, 570.

were in no humour to be trifled with. Maitland repeated his conviction that the Queen would be restored. Argyle had received letters from her which pointed to the same conclusion. The meeting broke up without a resolution, but Morton, who had succeeded Murray as the political leader of the Protestants, wrote to Elizabeth to say that unless she could resolve one way or the other, all Scotland would cry "France," and the influence of England would be irrevocably lost.¹⁵¹⁶

Compelled in this way to commit herself more deeply than she had intended, Elizabeth relaxed something of her excessive caution. She herself, or Cecil for her,¹⁷ directed Randolph to tell Morton and his friends "that she remained resolute in all things which concerned the maintenance of the true Christian Religion among them, the preservation of their King" — she had never used the word before — "and consequently of their own particular states and degrees." "She desired them not to be perplexed with reports of devices for the Queen's restoration;" "she would consent to nothing till she might first understand their intentions for themselves." It had been intimated to her that if a new Regency was to be appointed in the King's name, the only possible rival to Chatelherault would be his old antagonist the Earl of Lennox. He was a Catholic, but as the King's grandfather and the prosecutor of Bothwell, his goodwill could be depended upon; and she said that if it was absolutely necessary to choose some one, she would not refuse her sanction.³

At the same time, as an indication of further intentions which she did not care to explain, she said that the state of the Border was intolerable and at all hazards must be immediately looked to. She would not allow her own rebellious subjects to use the shelter of Scottish territory to make war upon England; and unless the Scotch Council "saw the matter redressed," " " "she would reform it herself in such sharp manner as the offenders should repent themselves, and be unable to commit the like again."

¹⁵Depeches de la Mothe Fenelon, March 13.

¹⁶Morton, Mar, Glencairn, Cassilis, Ruthven, Lindsay, Ochiltree, and Glamis.

¹⁷Elizabeth to Randolph, February 27: MSS. Scotland. The draft of the letter is in Cecil's hand throughout. ® Lennox was in London, begging hard to be allowed to return to Scotland in any capacity. He expected, and Lady Lennox expected, that the Prince would be murdered, and they were both anxious that, if possible, he should be brought to England. — Lady Lennox to Cecil, February, 1570: Cotton MSS., Calig. C. 1.

Elizabeth had created the party by whom Westmoreland and Dacres were now supported. Sir Robert Constable's treacheries had come to nothing, and she had a plausible excuse to undo some part at least of her own work. If she sent troops across the Border to break up the nest of marauders at Fernihurst, she would virtually break the power which the Protestant noblemen had most occasion to fear. She dared not interfere avowedly in their favour for fear of a rupture with France. She intended to confine her actions behind the plea of her own defence. She was entitled to deal with the existing nominal government in Scotland for purposes of ordinary justice. She instructed Randolph therefore to require the Council to maintain the peace of the Border and the existing treaties with England, and to offer them the assistance of her own forces if their own means were insufficient. She told him to point out to Morton that, "whereas he had asked for help from England against the faction in arms against the King, she was content to give him what he wanted. The form would be different, but the result would be the same; the persons of whom she complained being notorious enemies of the young King, and of the nobility adhering to him. Morton would perhaps enquire whether she intended to take full part with them and declare herself a party to the maintenance of the King in his present state. In that case Randolph might tell him that if he would consider, the effect of his desire must needs follow. It might not be expressed in words that the army came to maintain the King, yet it would suppress those who were the King's adversaries. There were considerations which made it undesirable for the Queen of England to take upon herself, in words, the office of a judge, and pronounce by a formal act on the lawfulness of the Queen of Scots' dethronement. It was enough for her that Scotland had appointed by Parliament a *de facto* government for itself. England would not intermeddle so far as to say that Scotland was right or wrong in what it had done, but so far Randolph might promise, that if the noblemen who had hitherto been favourable to the English alliance would assist in executing the law against the rebels and their maintainers, the Queen of England would identify her cause with theirs against any who on that ground should seek to oppose them." 1

As usual, when action became imperative, when it was absolutely necessary to do something or to lose the game, Cecil carried his point. The substance of these directions had been drawn up in a private

conference on the 16th of March, by him and Bacon, and although the Queen was as far as ever from the only course which could give peace to Scotland or security to herself, enough would be done to enable the King's friends to hold their ground. The soldiers who had been so hastily dismissed after the suppression of the rebellion were again collected, of course at an in Instructions to Randolph, March 18: MSS. Scotland. creased expense. Four thousand men were to assemble at Berwick by the second week in April, and Sussex was ordered up from York to take the command. He was directed to put himself in communication with Morton and Mar, and having obtained their consent in the King's name, he was to cross the Border, seize Westmoreland, Leonard Dacres, and the Nortons, or force them to leave Scotland, and was to inflict condign punishment on the Border chiefs who had assisted them in their inroads into Northumberland.¹

It was not, however, without efforts almost desperate that Elizabeth's consent had been obtained to these measures; nor till the troops were actually over the Border could Cecil feel assured that the order would not be revoked. The English Court below the surface was seething with intrigue, and the base influence of the Queen's favourites was at work perpetually to undo or neutralize the counsels of her statesmen.

On the breaking up of the conference at Dalkeith, Mary Stuart's friends had been as busy as the King's. The temper of Scotland was in many ways unfavourable to the English alliance. The demand for the extradition of the refugees had touched the pride of the country; and in the general ill-humour, to invite or sanction an English invasion would be construed into national treason. So long as Elizabeth withheld the recognition of James, she deprived Morton of the solitary pretence with which he could accept the assistance of the detested Saxons, and she took from him and his party the only ground on which they could confidently rely upon her promises. They knew, and all Scotland knew, that Elizabeth was not Cecil. They knew that she had a perpetual secret leaning to a weak and yield 1 Instructions to Sussex, March, 1570: MSS. Border. ing policy, and they had seen, in her treatment of Murray, with what indifference she could fling over her most faithful adherents, if it became convenient to disown and desert them. Randolph was obliged to report that "the remedy offered by his mistress was so little accounted as though she was not worthy to be esteemed a friend;" and meanwhile Argyle and Mait-

land, pretending still, and not without reason, that they and not the Protestants were those whom she really favoured, were flying about the country with Westmoreland and Dacres in then' company, holding meetings in Mary Stuart's interest. Although Charles IX. had told Norris that he did not mean to interfere, he told the Scots that he would abstain only while Elizabeth abstained. M. de Virac came to Dumbarton with money and promises, "scattering doubt, division, and uncertainty." The refugees professed to represent the English aristocracy and the political sentiment of England, and a paper of conditions was circulated calling itself the opinion of the Peers, on the measures to be taken for a general settlement of the whole island. A complete amnesty was to be proclaimed for the late rebellion; the Queen of Scots was to be restored and accepted as Elizabeth's successor; while the religious differences were to be composed by universal toleration, to which the Pope and the Catholic Powers might be expected to consent.¹⁸

Such terms could not have been enforced, even in Scotland, till many a homestead had been made desolate. Darnley's ghost still wandered unrevenged. The murder at Linlithgow was fresh, and these were not wounds to be skinned over with pleasant remedies. A black banner was hung out in Edinburgh, on which again, as at Carberry, there was wrought the figure of the King under the tree, the infant James with clasped hands lifted up to heaven, and beside them "the Regent in his bed as he died with his wound open."¹⁹ But the politicians could not understand the times. Among men who had lands to forfeit or to gain, who had Court favour to aspire to, or schemes to gratify for national greatness or glory, the cry of the hour was for a "composition;" and foremost among the advocates of the Queen's restoration was Maitland of Lidington. There had been a moment after Murray's death when a word from Elizabeth would have recalled Maitland to her side and Cecil's; but that word had not been spoken. He was deep in the English conspiracy; deep with Norfolk, Lumley, Arundel, Southampton, with all the leaders of the Catholic reaction. He had set his heart on the recall of Mary Stuart. He believed that he could unite Scotland in her favour, and backed as she already was in England, that he could extort at last

¹⁸Questions to be proposed if the Pope's Holiness and the foreign Princes will thereto agree, April 3: MSS. Border.

¹⁹Randolph to Cecil, March 1: MSS. Scotland.

the fulfilment of his old proud passionate hope — the establishment of a Scottish sovereign on the throne of the Edwards. Had Elizabeth acknowledged James as her successor, he and all Scotland with him would have been entirely satisfied; but Elizabeth had refused to hear of it, and as she would not accept the son, she should be compelled to endure the mother. If Pope, Priest, and Mass Book came back in the process, Pope, Priest, and Mass Book would not be a price too dear. How had Maitland become so changed — Maitland, who had once worked side by side with Knox, and had been Murray's nearest adviser, — Maitland, the pupil and admirer of Cecil, the chief political instrument of the first revolution which had brought the English to Leith? It was a question which his old English friends could not too often ask him, and which he himself never adequately answered. He had married one of the "Queen's Maries," Lord Fleming's daughter, to whom he was passionately attached, and through whom he had been brought in connexion with the great Catholic families. But a wife's influence, however tender, would not have weakened the brain of such a man as Maitland; and the explanation must be looked for in the constitution of his character. Through all his changes he was always pursuing one object — the union of the crowns under a Scottish sovereign: whether that sovereign was Arran, Mary, James, or again Mary, mattered little. After the Bothwell marriage he had believed Mary to be ruined. He had expected that Elizabeth, for her own safety's sake, would have acknowledged the little Prince. When he found himself mistaken, when he found the English Queen weak, hesitating, uncertain, and the English nobility ready, on the other hand, to overlook Mary's misdemeanours and accept her, notwithstanding, as heir presumptive, he believed evidently that Elizabeth's star was setting, that in her vacillation, she was going the road to certain perdition. The exceptional confidence with which Elizabeth treated him led him to suppose that he saw deeper into her tortuous ways than other men. He assured himself that, sooner or later, she would yield to pressure and let Mary Stuart go. In yielding he knew that she would be destroyed; and he set his hand, therefore, to assist his mistress towards the passionately coveted object of his and her ambition.

And, perhaps, another influence was not without its effect upon him. He was too thorough a man of the world to view with anything but dislike the assumptions of the rising Kirk. "To the philosopher,"

says Gibbon, "all religions are equally false;" "to the statesman all are equally useful.' But the statesman makes it a condition of his patronage that the clergy shall confine themselves to their own province as moral and spiritual teachers. If they become aggressive; if they meddle with government, pretending to be interpreters of the will of God; above all, if they have power to make themselves practically troublesome, the complaisance of the statesman is rapidly converted into enmity.

Nothing but accident could at any time have brought together men so essentially different as Knox and Maitland. They represented the very opposite poles of Scottish character. "The will of God" was to Knox the supreme and solitary guide. To Maitland it seemed, from words which he let fall in his confidential hours, that God was "ane Bogill of the nursery." Each crossed the other's path at a thousand turns. When he could knead the other ministers like clay, Maitland had ever found Knox inflexible. He could not deceive him, for Knox with mere earthly eyes could see as far or farther than Maitland, and Maitland who, if heaven was empty, acknowledged the divinity of intellect, came soon to detest what he could not afford to despise. These, or something like them, were the keys to the conduct of this remarkable man. His health was gone, his body was half paralysed, but his wit remained as keen as ever; and from this time till his death he became the chief adviser of the Scottish Queen in her English prison, and the mainstay of her party throughout the island.²⁰ Randolph, hardly able as yet to realise the change which had passed over him, addressed him on the old terms, appealed to his friendship, and reminded him of the especial reliance which Elizabeth placed in him. Maitland was aware that she trusted him, and intended to make use of her weakness. While Morton was addressing her through Randolph and Cecil, Maitland approached her through Leicester. "He wished," he said, "to explain to her distinctly the condition of Scottish parties. There were two parties there — the King's and the Queen's: the first was composed of a certain number

²⁰Randolph's account of him at this period is interesting. "I doubt nothing of him now," he wrote, "so much as the length of his life. He hath only his heart whole and his stomach good; with an honest mind much more given to policy than to Mr. Knox's preaching. His legs are clean gone. His body so weak that it sustaineth not itself. His inward parts so feeble that to endure to neese he cannot for annoying the whole body. To this the blessed joy of a young wife hath brought him." Randolph to Cecil, March 1.

of the Nobility and the Commons whom, as he understood, the Queen of England was advised to support; the other consisted of the heads of all the greatest families in the country, confident in the goodness of their cause, and assured that all Kings allowed their quarrel and would aid them accordingly. A second division had been created by the death of the Regent, grounded upon the regimen of the realm. The nobles who had deposed the Queen claimed to govern in virtue of the commission which was extorted from her at Lochleven; but even among those who had been hitherto for the King there were many who thought it neither fit nor tolerable that three or four of the meanest sort among the Earls should presume to challenge to themrule of the whole realm; or that the first in next of blood, the greatest for degree and should be passed over, the meaner to command, the greater as private men to obey. This was against all reason and all precedent; and the Queen's party was thus increased with part of the King's. Public feeling was decisively declaring itself on her side, and yet her friends now understood that English troops were coming into Scotland to suppress them They would of course, in that case, apply for help to France. De Virac was waiting at that moment for their resolution, and there could be no doubt what that resolution would be. The slightest of the evils which would follow would be a heavy expense to England; and he wished to lay before her Majesty a few simple facts. She desired to retain Scotland at her devotion; it was an honourable object and not to be disallowed. But the road to that devotion did not lie through the support of a faction. The Scots were not so fainthearted, but they had courage to provide for their safety. Force would accomplish nothing, while, by way of treaty, Elizabeth might bring all parties to accord, pacify the country, and deserve and win the gratitude of the whole country. They would then think no more of France, and the fire of the civil war which was on the point of bursting out would be extinguished." 1 Leicester before this letter arrived had been at work on another part of the same policy, endeavouring to persuade the Queen to liberate Norfolk and restore to the Privy Council the party opposed to Cecil, who had fallen into disgrace in the autumn. Anticipating, like Maitland, Elizabeth's fall, he was preparing for the evil day by scheming with La Mothe F to do 1 Maitland to Leicester, March 29: MSS. Scotland. some service to her expected successor. In all his projects Cecil was his perpetual obstacle, and to injure Cecil

in the estimation of his sovereign was his constant but unsuccessful effort. To raise a feeling against him among the people, a story was circulated by himself or by one of his agents that Cecil and Bacon had proposed to murder Norfolk in the Tower, and would have done it but for his own interference.²¹ He complained to the French Ambassador that Cecil was watching for an opportunity to drive him from the Council as he had driven Arundel and Lumley,²² and that he held the Queen enchanted with jealous fears of the Queen of Scots. Unable to shake Cecil's credit, Leicester had been more successful in inducing the Queen to recall Lord Arundel. Times were changed since Fitzalan had been Leicester's rival for Elizabeth's hand, since he had called Amy Robsart's shadow out of the tomb to wave Leicester back from his presumption. Fitzalan's hopes had long been buried, and his passion and his ambition had been turned upon political and spiritual intrigue. His name appeared conspicuously in the depositions of the prisoners examined after the Northern rebellion,²³ but he had been too prudent to commit himself to open treason. He was able to represent his share of the conspiracy as part of an honest policy conceived in Elizabeth's interests, and Elizabeth dared not openly break with the still powerful party among the nobles to which Arundel belonged, who professed to desire nothing more than the restoration of the Queen of Scots, her recognition as heir presumptive, the removal of Cecil from office, and a return to a better understanding with the Catholic Powers. With Arundel was recalled also his son-in-law Lord Lumley, and they both of them lost not an hour in renewing their treasonable communication with Don Guerau and La Mothe F. They spoke in the same language which they had used before the rebellion. They meant to overthrow Cecil and Bacon, release the Duke of Norfolk, marry him to the Queen

²¹ Chester to Cecil, March 3; Examination of Robert Spence, March 7: MSS. Domestic, Rolls House.

²² "Sans ce que Cecil le guettoit pour le desarijonner, ainsi qu'il avoit desarjonne les autres principaulx du Conseil." — Depeches de la Mothe « Fenelon, March 27.

²³ Confession of Christofer Norton and Captain Styrlay April, 1570: Domestic MSS. i If they could not move the Queen by fair means, they said "qu'ils en essayeront quelque autre plus violent; car desirant, comment que soit, pourvoir aulx desordres de ce Royaulme, et au faict de la Roïne d'Escosse, et du Due de Norfolk, et encores plus expressement s'ilz peuvent aurent le moyen au restablissement de la religion Catholique, pour lesquelles quatre choses ils veulent tout hazarder." — March 27, Depeches de la Mothe Fenelon. Don Guerau wrote to Philip on the same day exactly to the same purpose. » Ibid,

of Scots, and restore the Catholic religion.¹ The Duke of Norfolk was to be liberated as soon as possible and sent down to the Eastern Counties among his own people; and, meanwhile, Cecil should not be allowed to trouble Scotland. The fugitive Earls should remain there till France or Spain or both would send them assistance; they would then come back over the Borders, and England would rise to receive them.²

These were the men whom Leicester had brought back to Elizabeth's side, and their first effort was to impress upon her the necessity of taking the advice of Maitland, and of abandoning the hope of extricating herself by force from the combinations which were threatening her. France and Spain, they told her, did not mean to endure any longer the insolence of the pirates and the English sympathisers with the Protestant insurgents. She must set her house in order, make up her differences with the Queen of Scots, and pardon the Northern Earls, or she was lost.²⁴

Elizabeth listened with outward acquiescence. If she acted with Cecil, she talked, except at great and trying moments, in the language of his opponents. She apologised to Arundel for her severity towards him. She spoke of releasing Norfolk. She said she would think again before Sussex should cross the Borders. "The Queen," wrote La Mothe, "agrees at heart with the nobles, she is well disposed towards the Catholics, and many times has refused to listen to the sinister advice of their enemies; if she could she would live at peace with all parties in her realm."²⁵

But the Catholics would not leave her alone or give time to her yielding humour to settle into purpose. They forced La Mothe, against his better judgment, to threaten her with war. The Cardinal of Lorraine's assassination plot was whispered abroad to frighten her. She was herself to die as well as Cecil. The Queen of Scots was supposed to be at work on the same project. The Queen of Scots had found one bravo to kill Murray. It was reported that she was looking for another to kill Elizabeth; "she was as willing to have the end of the one as she was of the other."²⁶ Elizabeth might have despised

²⁴Depeches de la Mothe Fenelon, March 27.

²⁵"Ceste princesse n'a le cœur ny l'intention, esloignée de celle de sa noblesse, ny n'est mal affectonnée a ses subjectz Catholiques, pour lesquels elle resiste assez souvent aux conseilz que leurs adversaires contre eulx, affin que avec les uns et les autres elle puisse tegne en paix." — Depeches, April 18.

²⁶Randolph to Cecil, April 14: MSS. Scotland.

mere rumours, but the outward acts of the Queen's party in Scotland were provoking and defiant. While she was pausing over the orders to Sussex, a great convention was held at Linlithgow: Chatelherault presided; Argyle, Huntly, Sutherland, Athol, the heads of the great families of whom Maitland wrote, were all assembled; and with singular imprudence Lord Fleming introduced among them the English refugees. Northumberland was in confinement at Lochleven, but of the rest not one was absent. Dacres and Westmoreland "sat in Council" as representing the wishes of England; De Virac was present for France; and Sir John Gordon was sent to Elizabeth, in the name of them all, to request her to give them back their Queen, and to protest against the violation of Scotch territory by an English army.

Elizabeth was touched to the quick. She could have borne the remonstrances of the Scots. It might be necessary to restore Mary Stuart — it seemed that she was slowly making up her mind to it,²⁷ — but the Lords at Linlithgow were not to suppose that they might maintain her revolted subjects in arms, assist them in open invasion, and parade their insolence before the world.

The four thousand men were by this time collected at Berwick. Sussex had gone up to take the command, and had written to Morton to learn what part he intended to take. It would have been death to Morton, in the existing excitement, had he seemed to an English inroad, unless it was undertaken to maintain the King. The irritation was so violent at Edinburgh that Randolph had been obliged to leave the town and join Sussex, and Morton could only say that till Elizabeth was pleased to declare her purposes with less obscurity he could do nothing.²⁸ She had been on the point of revoking Sussex's commission, but in her anger at the convention it had been allowed to stand, and Sussex, sending to Morton to say that in what he was about to do he intended merely to chastise such of the Borderers as had made incursions into England, prepared to execute the Queen's original commands. "Before the light of the coming moon was passed" he proposed to leave a memory in Scotland, whereby they and their children should be afraid to offer war to England.²⁹

²⁷ La Mothe writes, "qu'elle est bien disposée envers sa personne et sa vie, comme je crois qu'elle n'y a eu jamais mauvaise intention, et que même elle goute aucunement sa restitution et ne la rejette tant qu'elle •ouloit." — *Depeches*, April 18.

²⁸ Sussex to Elizabeth, April 10: MSB. Border.

²⁹ Sussex to Cecil, April 10: MS. Ibid.

A messenger from the Lords came to say that "if he entered in hostile manner they would not allow it; his mistress might not take upon herself to order the realm of Scotland." They had written again to Elizabeth, and they required him to hold his hand till an answer could be returned. Sussex,, anxious to recover his credit for energy, declined to wait till his mistress had changed her mind. He replied that "he neither dared nor would forbear to use her Majesty's forces against her rebels wheresoever they might be, or against those who had broken the peace, burned and killed her Majesty's subjects, and taken and destroyed their goods. His proceedings should be rather an execution of justice worthy to be allowed of all Scottishmen than a troubling of the amity; and if any of their Lordships took arms in defence of their persons and brought themselves within the complice of their wickedness, he would nevertheless pass forward in the performance of the Queen his Sovereign's just intentions." ¹³⁰

Despatching a courier with copies of this correspondence to London, he arranged the details of the invasion. The soldiers were Southerners. The Border levies, exposed as they would be to after vengeance, be relied upon to do the intended work with effect. Seven hundred men were sent to Carlisle, to Scrope, and a thousand to Sir John Foster on the Middle Marches; the remainder were kept at Berwick with Sussex himself and Hunsdon. The line was to be crossed the same day and hour at three different points. Sussex was to march direct to Kelso and follow the line of the Teviot upwards. Foster was to enter half way between Carlisle and Berwick, and Scrope was left to his discretion, to go where he could inflict greatest injury. On the evening of Monday, the 17th of April, the two noble-men left Berwick. They halted at Wark till daybreak the following morning, when they burned Kelso, and then passed up Teviotdale in two bodies on either side of the river, neither castle, tower, nor town undestroyed came to Jedburgh." Every stone building, large or small, was blown up with powder and left a pile of ruin, while Leonard Dacres and Lord Hume hovered about at a safe distance, but did not dare to approach. At Jedburgh they were joined by Foster, whose track from the Cheviots had been marked by the same broad belt of desolation. The next day the whole body moved up the glen to Fernihurst. They found it deserted, the laird and his gay

³⁰Petition of the Lords at Linlithgow, April 16: MSS. Scotland.

lady, the refugees, and the thousand Border thieves who had nestled 1 Sussex to the Lords in Scotland, April 17: MSS. Scotland.

43 in its outhouses, being all flown or hiding among the cliffs which overhang the banks of the Jedd. With powder and pickaxe they “rent and tore” the solid masonry, till not a man could find shelter from the rain among the ruins; and thence, still sparing nothing but the earth cabins of the poor, they advanced to Hawick. At Hawick the inhabitants, “like unjust men” (so Hunsdon called them), had stripped the thatch from their houses, and had set it on fire in the street, so that the soldiers could not enter the town, and were obliged to sleep “uneasily” — they had no tents with them — in the open air. On Thursday morning they finished the work which the people had begun, by burning everything that was left; after which, while Foster was making an end of “the towns and villages” adjoining, Sussex and Hunsdon, with two or three companies of horse, rode out to Branhholme to do vengeance on Sir Walter Scott of Buccleuch. The Scotts were so powerful that Branhholme had been a kind of sanctuary. They found it “a very strong house well set with pleasant gardens and orchards about it well kept,” a little island of beauty in the surrounding black desolation. Buccleuch had anticipated the invaders by himself applying the torch, and “the woodwork was burnt to their hand as cruelly as they could have burnt it themselves;” but the place would still serve the purpose of a fortress; Sussex therefore laid powder barrels in the cellar, and of the present “house” there are but a few fragments which survived that desolating visit.

From Hawick the soldiers spread in parties about the country, converging back upon Jedburgh and Kelso, and thence at the end of the week they returned to Berwick, not a Scot having ventured a stroke to save his property.

Scrope meanwhile had been no less active. Buccleuch and Fernihurst were the chief offenders on the east Marches. Scrope’s duty was to inflict chastisement on Herries and Maxwell. On the Tuesday night he crossed the Esk and began his work at daybreak on Wednesday, at Ecclesfechan. After destroying this he burnt the country to the south and east of Dumfries, and round by Cummartrees to Annan. Eight or ten villages, called towns in the old reports, were set on fire, and the corn, cattle, and all they contained consumed or carried off. As his numbers were smaller, the Scots looked on less patiently; a party

whom Scrope had detached under one of the Musgraves to destroy a place called Blackshaw, was set upon by Maxwell and was in some danger; but Scrope coming up himself while the fight was going on, the Scots drew off into the woods, and Musgrave finished his work at leisure.

There remained Hume Castle, which had been specially fortified and was held by a garrison. This stronghold at least the Scots expected would be safe, and they had carried such property as they could move within its walls. The beginning of the following week, Sussex brought heavy guns from Berwick, and took it after four hours' bombardment. Fastcastle, the Wolf's Crag of the "Bride of Lammermoor," followed the next day, and both there and at Hume parties of English were posted, to hold them from the Scots. In the whole foray "ninety strong castles, houses, and dwelling places, with three hundred towns and villages, had been utterly destroyed." Peels, towers, forts, every thieves' nest within twenty miles of the Border, were laid in ruins, and Sussex, whatever else might be the effect, had provided for some time to come for the quiet of the English Marches.³¹

How the pride of Scotland would bear such a touch of the English lash was another question: there were few differences among themselves which the Scots would not forget till a blow from England had been paid back with interest; and Morton, and Morton's friends, were not likely to incur the reproach of being traitors to their country for the thankless service of Elizabeth. Had they been willing, they were powerless, for they had ruined their fortunes in maintaining Murray's Regency, and Morton, Ruthven, and Lindsay together could scarcely keep on foot two hundred men.³² On hearing of the foray they sent to Berwick to say, that they neither would nor could continue their present attitude. Elizabeth must speak out plainly, or they would make terms with the Hamiltons. "Ye think," wrote Grange to Randolph, — "ye think by the division that is among us, ye will be judge and party; ye have wrecked Teviotdale, your mistress's honour is repaired, and I pray you seek to do us no more harm, for in the end you will lose more than you can gain. The Queen, your mistress shall

³¹Notes of the raids made into Scotland by the Earl of Sussex, April, 1570: Conway MSS. Hunsdon to Cecil, April 23: MSS. Border. Scrope to Sussex, April 21: MSS. Scotland.

³²Lennox to Cecil, April 27: MSS. Scotland.

spend mickle silver, and tyne our hearts in the end; for whatever you do to any Scotchman the haill nation will think their own interest.”
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“The Queen,” wrote Sussex, “must discover herself plainly to maintain the King’s authority, or England will not have a friend left in Scotland.

The resentment must have been foreseen and may easily have been desired by Cecil, as likely to compel Elizabeth to a decided course at last. The question of Mary Stuart’s restoration was still daily debated in the Council: “Cecil and Bacon said no, the nobility said yea; while the Queen was supposed to stand indifferent, and to wish to do what was most for her strength, if she wist what that might be.”³⁴ Yet it seemed as if her resolution had failed after one bold step. She continued privately to write to Maitland, and Maitland was able to give out that Mary Stuart was certainly coming back;³⁵ and with this prospect the King’s party felt obliged, in common prudence, to make their peace without longer delay. It might have been thought that Elizabeth would have had no objection. A composition, a reconciliation of parties, and a voluntary reacceptance of the deposed Queen, had been all along what she seemed to have desired. But she had conditions, necessary as she supposed for her own security, which she meant to make the price of Mary Stuart’s release, and she could extort them only so long as a King’s party continued in Scotland, whom she could threaten to support if they were refused. If a united Scottish Parliament demanded her liberation, Elizabeth knew that she could not dare any longer to detain her, and the Leith treaty would be left unsigned, and Mary Stuart, with half her subjects at her back, would again call herself Queen of England. The Protestant Lords perfectly

³³Grange to Randolph, April 20. Grange had been a fellow-student with Randolph at a French university, and still wrote to him, half in irony, as “Brother Thomas.”

³⁴Sir Francis Englefield to Mrs. Essex, April 21: MSS. Spam, Rolls

³⁵“Lidington gives out plainly that the Queen of England is determined to send home their Queen and maintain her faction, and this encourages them and appalls their contrary.” — Hunsdon to Cecil: MS. Bordet April 23.

understood her embarrassment, and had no intention of sacrificing themselves for her convenience.³⁶³⁷

The Lady at Tutbury, meanwhile, was making Europe ring with her cries. It was not for herself that she now pleaded, but for her country, which the ancient enemy was invading and laying waste. She besieged Charles IX. and Catherine de Medici with entreaties to rouse themselves out of their sleep, and hurry to the rescue of their old allies. To the Spanish Ambassador she wrote, that if Philip and Alva sat still her cause would be ruined forever, and with it the Holy Catholic faith.³⁸ Driving the spur into the languid side of her English allies, she told Norfolk, that "she would be soon forced to consent to deliver her son and embrace the Protestant religion to get

³⁶Sussex performed the ungracious office of forcing Elizabeth to look the situation in the face. "The King's Lords," he wrote to her, "for lack of maintenance see only destruction to themselves; the rather for that it is delivered to them that your Majesty intends to restore their mistress. If it be your Majesty's intention to bring all Scotland to the mother's side, then is the course good they now begin to run in that country, and your Highness shall see the case at an end quickly, which, under correction, had been better to have been done under your direction than at their own choice. If, on the other hand, your Majesty intend to let this course and to continue a party for the child, then must you of necessity openly take upon you the maintenance of his authority as King; send presently money to such as take his part to levy for a time men of war of their own, and aid them besides with your forces here to bring the rest to yield to that authority: to get in their hands all the strengths in any part of the realm that stand in fit place to receive any foreign power." — Sussex to Elizabeth, April 23: MSS. Scotland. Two days later he wrote to the same effect to Cecil. "If her Majesty lack a sufficient party, the fault is in herself. Morton and his faction say that if she will enter into public maintenance of the King, and send money to entertain 3000 soldiers of their own for three months, and command the force here to aid them for that time, they will bring all Scotland in effect to obey their authority and yield in sense to England without the Queen's charges. The time passes away, and her Majesty must resolve what she will do. If she will restore the Scottish Queen, it was no good policy for me to shew countenance on the other side. If she will maintain the other side and command me to join with them, I will make all men within thirty miles of the Border obey that authority or I will not leave a stone house for any of them to sleep in. And if she command me to pass further, I will deliver the Castle of Edinburgh or any others in Scotland to the hands of any whom Morton with her Majesty's consent shall appoint. But these matters have too long slept. It is time to wake; and therefore, good Mr. Secretary, sound the Queen's Majesty's mind fully; and if she resolve to restore the Scottish Queen, advise her to do it in convenient sort, and suffer me not to put my finger in the fire without cause, and her to be drawn into it by such degrees as are neither honourable nor sure." — Sussex to Cecil, April 25: MSS. Hatfield.

³⁷Sussex to Cecil, April 23: MSS. Scotland..

³⁸La Reyna de Escocia a Don Guerau de Espes, April, 1570: MS. Simancas.

her libwhile to the Pope, ignorant as yet what he for her, she poured out an impassioned flood of pious rhetoric. She described herself as longing for the time when she could uproot heresy and restore the blessed faith of Christ. She besought him to lay his injunctions on the Catholic Princes to stand her friends in the hour of trial, or else, since they seemed so remiss, she asked his gracious absolution if she made use of perfidy, if, like Naaman, she bowed her head in the House of Rimmon; plied Elizabeth 3 with loving letters and smooth speeches and cunning presents, and so tempted her, through false confidence, to unlock her cage.³⁹

Unfortunately for Mary Stuart's prospects she had friends. France and Spain both wished her could not trust each other, and neither could trust the Pope. In Scotland, "some were desperately affected Protestants;" ⁴⁰ some, like Maitland, desired to marry her to Norfolk; some to a native Scot, a Gordon or a Hamilton. The Cardinal of Lorraine destined her for the Duke of Anjou; the King of Spain and Alva saw in such a marriage the death-blow to the Spanish Empire.⁴¹ In England some wished her out of the country, her presence there being so dangerous to the Queen; others wished to keep her there as heir presumptive and Norfolk's wife: Protestants wished it because Norfolk was outwardly a Protestant; Catholics, because they believed Norfolk to be a Catholic at heart, and to be waiting only for the completion of the marriage to declare himself. Others, again — the Catholics proper, who had been persecuted, who had kept up the practice of their faith in foul weather and fair; the conspirators of the Northern Counties, or those who shared the feelings expressed in the Lincolnshire address to Philip — had no confidence in Norfolk, and little in the Queen of Scots. They were willing to support her claim to the succession, for they had no alternative; but they would have her a dependent upon Spain, married, if possible, to Don John of Austria, or so married, at any rate, that her husband should be a Catholic indeed who had never stained his faith by a seeming apos-

³⁹"Quod ego Elizabethan Uteris amanter scriptis, donis affabre factis aliisque symbolis humanitatis datis in amorem benevolentiamque mei illiciam." — Message from Mary Stuart to the Pope sent through the Bishop of Ross, April 20: Labanoff, Vol. III.

⁴⁰George Chamberlain to the Duchess of Feria, April 6: MSB. Spat*, Rolls House.

⁴¹Don Guerau to Philip, April 25: MS. Simancas.

tasy.⁴² Yet they, too, had their misgivings and their uncertainties. The friends of England at Edinburgh were "appalled" by the vacillation of Elizabeth. The English admirers of Spain were "dismayed by the careless regard" with which Philip looked on upon their sufferings, and were beginning to think that they had no refuge but in God. "The Spaniards," said Sir Francis Englefield, "dwelt and busied themselves so long in deliberation that the opportunity was gone before they could resolve to act." Philip threw the responsibility upon Alva; and Alva "would do no iota more than came expressly commanded by his sovereign." Elizabeth herself was still the truest friend that the Queen of Scots possessed. If the threat of turning Protestant had been fulfilled in sincerity; if the lying demonstrations of affection in which Mary Stuart asked the Pope's permission to indulge had been made in earnest; or if, with or without affection, the conspiring and intriguing had been conclusively abandoned, Elizabeth would indisputably have sent her back to Scotland, replaced and maintained her on the throne, and would have yielded at last, however monstrous it might have seemed, on the long-coveted point of the English succession. Without seeing the application for absolution, Elizabeth understood her prisoner too well by this time to indulge in so vain an expectation; yet, although she could not trust her at liberty, she still hoped "that means could be found" by which, though on the throne, her hands could be tied, her teeth drawn, and her claws pared.⁴³⁴⁴

The affair on the Border led to angry words with the Court of Paris. La Mothe, at the instigation of Arundel, obtained a letter from the King threatening that if the invasion was repeated, a French army would be landed at Dumbarton or at Aberdeen. Elizabeth answered boldly, that "to submit without resistance to the inroads of the Borderers would be to abandon the English Realm to be conquered by rebellion, and to yield her crown to any that would with force invade it." If "with the French King's help," however, "reasonable conditions could be made by which England could be secured from the Queen of Scots' machinations and Scotland be quietly governed, she professed herself still ready to do her part to bring about a composition." 1

⁴²Chamberlain to the Duchess of Feria, April 5; Sir T. Englefield to the Duchess of Feria, May 17: MSS. Spain. vol. x. 4 I Englefield to the Duchess of Feria, May 17: MSS. Spam.

⁴³Mary Stuart to the Duke of Norfolk, March 19 and April 18: Labanoff, Vol. m.

⁴⁴She did not call her Queen.

It was less easy to manage her impatient friends at Edinburgh. Cecil was still for open measures: war with the Hamiltons and the Gordons; war, if necessary, with France, for anything which would mend a situation which he regarded as infinitely dangerous. The name of war, however, was intolerable to Elizabeth. She wrote to Sussex detailing her many embarrassments, and telling him that in some way he must keep the King's party together "till she had time to make choice whether she would restore the Queen of Scots or not." He might lay the blame on Morton; he might say "her backwardness had been rather his fault than hers;" "his manner of dealing had been slow and uncertain, and she had not known what to look for from him:" while, on the other hand, he might tell Maitland not to be foolish and ungrateful; encourage the Protestants with hope; soothe the others with "quiet means and messages," and lead them both to depend upon England.

So much for the Scots. "But Sussex himself," she said, "would expect to know what she meant to do; and she was obliged to own frankly that she could not tell. It would touch her in surety to have the King's party suddenly decay. It would touch her in honour if she should by her promises procure them to stand with her, and in the end not see them maintained or 1 Instructions to Sir H. Norris, May 2: MSS. France. provided for; and there was a danger also that if she sent them money, they might take it and not serve her purpose after all. The whole cause was thus full of doubt. Morton desired to know whether she would support him against those who maintained the Queen's authority. She could but say that she would still commission Sussex to proceed against all who assisted the English rebels. If they happened to be the same persons who were the friends of the Queen, Sussex's business lay with acts, and not with titles; and the King's party might take as much profit of his deeds for their aid as they should do if he used more open words." 1

So far, perhaps, Elizabeth's course was not indefensible. It was involved, but it was at least economical; and as long as she was moving in the right direction, the quarter towards which she was turning her eyes mattered little. But Elizabeth was a strange woman; or rather she was a woman and a man; she was herself and Cecil; and while her acts were the joint result of her own inclinations and Cecil's counsel, she among her women and her favourites to her humours. She spoke of the Lords at Linlithgow as the loyal subjects of their sovereign; she

denounced Morton and his friends as traitors; and when Sussex tried to execute the hard part imposed upon him, the words were flung back into his teeth. She wrote to Maitland "more gentle and loving letters than ever she did." She persuaded him that "he knew the bottom of her secrets;" and while by her imprudent words and doings "she struck a chill into the heart of every Scot and Englishman who wished her well," Maitland, the object of her attentions, felt Elizabeth to Sussex, April 30: MSS. Scotland. nothing but contempt for her weakness. He said "she was inconstant, irresolute, and fearful; and before the game was played out, he would make her sit upon her tail and whine like a whipped hound."⁴⁵ Maitland had to find to his sorrow that he had seen less deeply than he supposed; but if Elizabeth was misleading her enemies, she was misleading her friends also. She had spread such a mist about herself and her intentions, that those who knew her best could not tell what to look for at her hands. In Scotland the ferment was fast increasing. A French fleet was daily expected at Dumbarton, bringing arms and money, if not men. Morton refused to accept the palliatives which were offered him by Sussex. He insisted on communicating immediately with Elizabeth, and sent the Commendator of Dumfermline to London to demand a straightforward explanation. He declined for himself and his friends to accept the blame which she affected to throw upon him. She was herself, he said, the original cause of the whole trouble by breaking the promises which she had made to the Earl of Murray at Westminster, and by refusing afterwards to publish to the world the evidence of the Queen of Scots' guilt. She must now come forward publicly on the King's side and supply them with money and men, or they "would not run her course" any longer.⁴⁶ Dumfermline, as he passed through Berwick, told Sussex the nature of his message. Sussex could but add to it "that the Queen must decide quickly or she would lose both parties. He could but pray God to put in her heart to choose the more honourable course."⁴⁷

Meanwhile the Council in London had been discussing conditions with the Bishop of Ross, on which the Queen of Scots' restoration could be effected. The Bishop was still deep in conspiracies, at work

⁴⁵Sussex to Cecil, May 12, May 17: Sussex to Elizabeth, May 17: MSS. Scotland.

⁴⁶Instructions to the Commendator of Dumfermline. Sent by the Earls of Morton, Mar, and Glencairn to the Queen of England, May 1: MS. Ibid.

⁴⁷Sussex to Elizabeth, May 1: MSS. Scotland.

incessantly with Don Guerau and the Catholic leaders; but while there were hopes of obtaining his mistress's release from Elizabeth, he had never ceased to urge her yielding humour, and spared neither oaths nor protestations to persuade her that she might make the venture with safety. Elizabeth, however, did not mean to trust to promises. She insisted, as before, on the ratification of the treaty of Leith; she insisted that neither French nor Spanish troops should be invited over to Scotland; but she required substantial that the Queen of Scots should not escape engagements on the plea that they were extorted from her under restraint. The Prince should be brought up in England. Argyle and Fleming should accompany' him and reside at the English Court as hostages. An English garrison should hold Dumbarton Castle, and Dunbar, perhaps, as well as Hume and Fast-castle; and the Queen of Scots must undertake for the surrender of the Earls of Westmoreland and Northumberland.⁴⁸

These terms, with the guarantee of France for their observance, would suffice for England; but Elizabeth, in decency as well as prudence, had to insist also on other stipulations for the internal government of Scotland. The Bishop of Ross seemed to be inclined to yield to anything which might be demanded; and the negotiations had begun to make progress, when they were interrupted by the appearance of two pamphlets, which had been printed on the Continent, and had been brought over and circulated in London. They were both written by the Bishop. The first was the celebrated treatise already alluded to "in defence of Queen Mary's honour." The other was a genealogical statement of her claims upon the English Crown. The latter contained nothing on which a complaint could be founded. The subject was an extremely dangerous one, but the Queen of Scots' pedigree was a public fact which could not be disputed. The former was a plea of "not guilty" to the charge that she had murdered Darnley. The Bishop had no more doubt of her complicity, as he afterwards admitted, than the rest of the world. Even in his defence he argued that, supposing the charges to be true, she was no worse than David, and David had not been deposed. But the mutilated shape in which Elizabeth had let the investigation close, enabled him to say that her conduct had been enquired into, and that she had not been found guilty, and he had added that the English nobility generally regarded her as innocent.

⁴⁸Notes in Cecil's hand, May, 1570: MSS. Mary Queen of Scots, Jlolit House.

The two publications and their composition formed part of a scheme which had been secretly arranged with the Catholics, but unhappily the Bishop was premature. It had been agreed that every demand which Elizabeth might make should be conceded, that the treaty might not be interrupted. The detention of the Queen of Scots would perhaps be continued for some time after its completion, but the Duke of Norfolk would probably be liberated. He too was to promise anything; to promise to think no more of the Queen of Scots; to promise not to disturb the Established religion. Promises lightly made could be lightly broken,⁴⁹ and the Duke, once out and among his own people, could do what he pleased. The pamphlets were then to have appeared, and with them, or immediately after, the Bull of Deposition. A Nuncio had come from Rome to Paris with a hat and sword for the King, and the Pope had hoped and desired that it should be formally published in the Nuncio's presence there. But France, like Spain, had refused the necessary permission. A copy had been smuggled over to England in cipher by Ridolfi; and Ridolfi, and La Mothe, and the Bishop of Ross were watching for the Spain or France was expected to strike in. The Catholics, with their misgivings about Mary Stuart dispelled by the pamphlets, were to rise simultaneously in all parts of England. Norfolk would march on Tutbury, and Elizabeth would fall in a few weeks at most.

This was the programme, and this was the meaning of the Bishop's complacency in the treaty. The "Defence" was unfortunately inconsistent with the humility of his attitude. It was the first indication to the English Government that the plea of innocence would seriously be set forward in the Queen of Scots' behalf. He was sent for to Bacon's house and required to explain what he meant by saying that the nobility disbelieved her guilt. He said that she had offered to defend herself in the Queen of England's presence: the Queen of England

⁴⁹"Los deste consejo blandian mas con el Duque de Norfolk, y me han avisado que manana han de venir Cecil y otro del Consejo a hablarles en la Torre, y ver que seguridad podra dar a la Reyna de su fidelidad de no casarse con la Reyna de Escocia, y de no ayudar a rimover esta religion que aca tienen. El esta advertido de ofrecerles mucho... Seria possible que saiga presto; en lo cual puede considerar V Excelencia que salido puede con gran facilidad librar la de Escocia y alterar todo el reyno Si es bien que haga mas con el amparo del Rey nuestro Señor que de Franceses, y estando Va Exa resuelto en esto general, escrebire en lo particular algunas cosas que me parece se podran hacer convenientes a esta fin." — Descifrada. Don Guerau de Espes al Duque de Alva, Mayo, 1570: MS. Si. mancas.

had refused to hear her, and she was therefore held acquitted of the charge.⁵⁰

Bacon carried "the books" to the Queen, and the yielding humour which would have allowed the scheme to ripen was instantly hardened. Arundel, to counteract the effect, brought forward La Mothe, and the Queen was told that France could not and would not allow Mary Stuart to be kept in England. Elizabeth fired up in her proudest style.

"She was astonished," she said, "that the King of France should think so lightly of the Queen of Scots' enormities. Her friends had given shelter to the English rebels, and with her aid and connivance they had levied war against her with fire and sword. No sovereign in Europe would sit down under such a provocation, and she would count herself unworthy of realm, crown, and name of Queen if she endured it."

La Mothe replied that the King of France could not desert his sister-in-law; Elizabeth might name her own conditions, and his master would undertake that they should be observed; but if she continued to palter, he would be forced, however unwillingly, to interfere, and would hold himself acquitted before God and the world for any consequences which might follow.

"It was easy to speak of conditions," the Queen answered, "but she must have better security than words for their fulfilment. The Bishop of Ross had said that the abdication of Lochleven went for nothing. Francis I. had disowned the engagements with which he had bound himself in Spain; and even Maitland had been heard to say that promises given under' restraint were nothing."⁵¹ The Earl of Westmoreland, notwithstanding the harrying of the Borders, was still the 'guest of the Hamiltons.'

Bacon caught the opportunity, while the indignation at the Bishop's book was fresh, to urge her to strike another blow in Scotland, and show France that she was not to be frightened by La Mothe's threats. Lennox had gone down to Berwick, and couriers followed him with orders to Sussex again to set his troops in motion.

⁵⁰Don Guerau to Alva, May 10: MS. Ibid.

⁵¹The words which Maitland was said to have used were — "Quae in vinculis aguntur rata non habeo et frangeuti fidem, fides frangatur eidem." *Depeches de La Motlie Fenelon*, May 8, 1570. Compare MSS. Mary Queen •y Scots, May, 1570, Rolls House.

Sussex himself had caught a cold by sleeping in the air at Hawick; the cold had been followed by fever, and he could not leave his bed. But Sir William Drury, the marshal of the army, would be as useful in as himself. The Borders had suffered sufficiently the Hamiltons were the centre of the anti-English Confederacy, and no heavier blow could be dealt to Mary Stuart, no material support short of the recognition of the King could be given more effectively to Morton, than a direct attack on Chatelherault himself.

On the 10th of May the army was again in Scottish territory on its mission of destruction, with the Earl of Lennox in Drury's company as the representative of James, and Morton, taking courage at last, gave them a formal and friendly reception at Edinburgh. The news of their coming flew swiftly to Chatelherault, and the Duke and his sons, unable to defend themselves at home, made a dash on Glasgow Castle, surprised the gates, and forced their way into the inner court; but they were repulsed with loss, and retired with Westmoreland into the Highlands, while Drury, Morton, and Lennox advanced leisurely upon Hamilton. They carried guns with them, and after a few shots the garrison left by the Duke capitulated. The plunder was given to the soldiers. The castle itself, the town, "half a score of villages," and all the houses of the Hamilton family in the neighbourhood, were burnt and blown up. Dumbarton ought to have followed, for Dumbarton was an open port through which the French at any time could have access into Scotland. But Drury was tied by his orders and would not meddle with it. While his troops halted at Glasgow, he went down with a party of horse to survey the fortress for future contingencies. He was shot at from the ditches, but no harm was done, and after taking the necessary notes he rejoined his men. From Glasgow he went to Linlithgow, where a "palace" belonging to Chatelherault shared the fate of Hamilton. The house from which the Regent had been shot was destroyed, with every building or homestead belonging to any of the Hamiltons' name or lineage; and with this emphatic act of justice the English at the end of the month returned to Edinburgh.

Meanwhile a remarkable event had taken place in London. Desperate at this second invasion and the failure of La Mothe's threats, the Bishop of Ross had played the card which he had reserved in his hand. On the morning of the 15th of May the Bull declaring Elizabeth deposed and her subjects absolved from their allegiance was

found nailed against the Bishop of London's door, and whatever the Catholic Powers might do or not do, the Catholic Church had formally declared war. The experiment had been tried before against Henry VIII. and had effected nothing. The superstitious terrors once attaching to the Vatican thunders had long disappeared. But Elizabeth was not Henry, and the England and the Europe of 1610 were not the England and the Europe of 1539. In some respects the advantage was with the Queen. The Catholic Church had no longer the prestige of ancient sovereignty, for the first time disturbed and broken. It no longer counted among its friends men of noble intelligence like Sir Thomas More. It was disgraced by the cruelties which had attended its restoration under Mary, and its strength lay now among the meaner elements of secret conspiracy and disaffection. On the other hand, as the doctrinal tendencies of the Reformation had developed themselves, the line of the two creeds had become more marked. The instinctive dislike of English gentlemen for revolutionary changes, the uncertainty of the succession, the sense of insecurity from the political isolation of the country, had created a vague but general discontent among the masses of the population. The old-fashioned piety was superseded by a less respectable but more dangerous fanaticism; a fanaticism which no longer showed itself in open and organised political opposition, but was not afraid of treason, rebellion, or murder, which fraternised with foreign invaders, and was ready to sacrifice the interests of England to the interests of the Church.

On the Continent, too, the Council of Trent had closed the prospect of ecclesiastical reconciliation. The Catholics, wherever they could have their way showed a desperate and uncompromising determination to trample out the Reformers with fire and sword; and although France and Spain were still political antagonists and neutralized each other's influence by their mutual jealousies, it must have seemed but too likely, to the anxious minds of English statesmen, that the Pope would find means at last to put an end to differences which so far had been their only protection.

When the excommunication appeared, Elizabeth was assured that it had been issued with the sanction of one or both of the Great Powers. That the Pope would have taken so considerable a step without consulting them appeared extremely improbable; and taken in connexion with La Mothe's language, it seemed to tell her that her time

at last was come. The Channel fleet was instantly reinforced: Lord Clinton took the command in person, with orders to sink at once and without question any French transports that he might find carrying troops to Scotland. The country could on the whole be relied on if attacked only by France; but the questions of internal policy, and of the Queen of Scots especially, became more deeply complicated. The uncertainties revived. The advocates of the Queen of Scots' restoration were able to insist upon their arguments with increased plausibility, and a great meeting of the Privy Council was called at their instance to consider the situation.

From the moment that Lennox had been sent to Berwick, Arundel had never ceased to remonstrate. Angry words had been exchanged between him and Cecil in the Queen's presence. Arundel had been speaking as usual in favour of the Bishop of Ross and the treaty, when Cecil burst out, that the Queen had no friends but the Protestants, and if she yielded she would lose them all.

Elizabeth hated the naked truth. She said that Cecil's passion made him blind: she felt herself entangled in a net which threatened to strangle her. She declared that she would do what the French King desired, and shake herself clear, let Cecil and "his brothers in Christ" say what they pleased.⁵²

Bacon, who was as anxious as Cecil to prevent the Scotch question from being rediscussed till Drury had finished his work, attempted to leave London to prevent the Council from meeting; but Arundel caught him before he could escape, and told him that the Queen required his presence and advice. Bacon, whose temper was hasty, answered shortly, that it was to advise the Queen; she changed her mind that counsel was but wasted on her. She would not listen to him, and as it seemed that she was bent upon her destruction, she must go her own way.

If Bacon was absent the discussion might be postponed, and Mary Stuart's friends in Scotland would be destroyed in the meantime. Arundel insisted that the Lord Keeper should return with him. The

⁵² "Quoiqu'il y ait Maistre Secretaire, diet elle, je veulx sortir hors de ceste affaire, et "entendre a ce que le Roy me mande, et lie m'en arrester plus a vous aultres fferes en Christ." The authority for the scene was Leicester, who was present, and reported it to La Mothe. Leicester, who had more faces than Proteus, is in general not much to be depended on. La Mothe, however, believed that he was speaking the truth, and the® phrase "Brothers in Christ" is highly characteristic of Elizabeth - Instructions au Sieur de Vassal: Depeches, Vol. III. p. 181.

realm was in danger, he said, and no good subject at such a time could desert his sovereign.

Bacon sullenly complied. The Privy Council assembled, and the public policy of England was discussed in Elizabeth's presence. Bedford was ill; Clinton was with the fleet; of the rest every one, with the sole exception of Cecil and the Lord Keeper, recommended the recall of Drury, the immediate resumption of the negotiations, and the release of the Queen of Scots at the earliest possible moment: some, like Arundel, were deliberately treacherous, some were frightened, some sincerely believed that the course which they advised would be the best both for their mistress and for England. All agreed, however, in one conclusion, and Leicester, as if taking upon himself to speak for the Queen, said that violent measures were found too dangerous to be ventured further; her Majesty intended to take the opinion of the more moderate of her councillors, to come to an understanding with France, and replace the Queen of Scots on her throne.

It was no time for euphuisms or delicate phrases. The Lord Keeper had been forced to attend. The Queen desired his opinion, and she should have it. "Her Majesty," he said, "was deceived and trifled with. The men whose advice she was preparing to follow were the secret servants of the Queen of Scots. The French Ambassador threatened war. The King his master had work enough on hand at home and would not meddle with England. The Ambassador spoke for the Cardinal of Lorraine, and not for the King.

"After what you have done and are doing in Scotland," he continued, "you cannot now turn back: courage alone is safety, courage and persistence. Go on as you have begun, and there will be soon no Queen's party, no French party, no Catholic party to trouble that country more. English influence will be supreme there, and religion, the Protestant religion, will be established beyond reach of harm from end to end of Britain. No advice but this will be given to our sovereign by any loyal Englishman. This course alone befits the greatness of her crown; and in this quarrel I will live or die. It is not for the Majesty of England to be frightened by the threats of an ambassador. How think you her father King Henry would have dealt with such miserable counsels? You, my Lord," he went on, turning to Leicester, "you pretend to be loyal to your mistress, and you are in league with the worst of her enemies. If France lands a force in England to try to take the Queen of Scots from us, with her

Majesty's permission, I would strike her head from her shoulders with my own hands."

"In what I said," replied Leicester, "I spoke according to my honour and conscience. I will maintain my opinion if necessary with my life, against all who impugn it. It is my duty as a councillor to declare what I truly think. Her Majesty may do as she will, I hold to my own convictions, and I speak for others besides myself."

Elizabeth during this altercation looked angrily from one speaker to the other. Neither the favourite nor the Lord Keeper had pleased her. But the Lord Keeper had offended her most: "his counsels," she said, "were like himself, rash and dangerous;" she would not have her cousin's life touched for a second realm; she would rather lose her own. She forbade him at his peril ever more to speak such words to her.

In the pause which followed, Arundel struck in with affected moderation.

"They were met," he said, "to consider certain dangers which threatened the realm, and neither from anger nor passion, nor from any love or hatred which they might feel for the Queen of Scots, should they mislead their mistress at such a crisis; least of all should they quarrel among themselves, for the situation demanded all the prudence and discretion which they possessed. He thought for himself that to support by force the party in Scotland, who for whatever cause were in arms against their sovereign, was neither wise, just, nor advantageous. The expense would be enormous, the difficulties far more considerable than those who recommended that course appeared to imagine. It would offend a powerful party in England whom it was unsafe to irritate, and would lead in the end to a war with the Continental Powers, which England was in no condition to sustain. The French Ambassador could not have spoken so peremptorily without commission, and to withdraw from any enterprise to preserve the peace of the world was neither dishonourable nor dangerous. Henry VIII. might possibly have persevered, but under Henry VIII. England was loyal and united, and even Henry himself did not venture upon a war with France without the Emperor for an ally. Now the whole situation was altered. The Catholic King was estranged. The English people were discontented and divided. Let her Majesty secure peace at home, let

her deserve the friendship and confidence of other princes, and she would do what was right and just in the sight of God and man." 1

But for the revelations in the despatches of Don Guerau, but for the evidence that he had been for years conspiring for a religious revolution and Elizabeth's overthrow, Lord Arundel might have been credited with a mistaken but still honest anxiety to ex tricate his mistress from her embarrassments. Elizabeth herself construed his words favourably. When the next morning Leicester pressed her to give an to the Bishop of Ross, she answered sharply Queen of Scots seemed very near his heart, but she sent an order to Scotland for the recall of the army, which encountered Drury on his return to Edinburgh. Morton would gladly have detained him, at Grange could be compelled or persuaded to the castle; but the Queen's commands were peremptory; he made the necessary excuses and fell back at once to Berwick.⁵³

It might have been thought, as Cecil hoped and Bacon said, that Elizabeth, after inflicting punishment so tremendous on Mary Stuart's friends, would not have deceived herself with the expectation that she could recover their confidence or induce them any more to look upon her as a friend. Had her fluctuations been assumed to cover a purpose which in her heart she had definitely formed; had she been hypocritical and deceitful, and not weak and uncertain, such no doubt would have been the effect. She would have seen that she had gone too far to retreat, she would have avowed her real purpose and gone through with it. But Elizabeth was very different from all this. The principles which divided her Council divided herself from herself. She had no sooner committed herself to one course of action than the merits of another became doubly obvious to her, while it gratified her sense of power to strike and to smile, to be alternately the lightning and the sunshine.

She perhaps flattered herself that the Scots, after Buffering from the invasion, would come to her feet like children beaten into submission; a letter from Maitland to Sussex indicated that they were as yet far from any such condition.

"You tell me," Maitland wrote, "that her Majesty's forces are revoked. I am glad thereof more than I was at their coming, and it is not

⁵³This singular discussion is described by La Mothe. Depeches, Vol. [II. p. 181. It was perhaps protracted through several sessions, and did not all take place on the same day.

amiss for their ease to have a breathing time and some rest between one exploit and another. This is the third journey they have made in Scotland since your Lordship came to the Borders, and have been so occupied in every one of them, that it might well be said, if the amity and good intelligence between the realms would permit that phrase of language, to term the Englishmen as our forefathers were wont to do — they have reasonably well acquit themselves of the duty of old enemies, and have burnt and spoiled as much ground within Scotland as any army of England did in one year, these hundred years by-past, which may suffice for a two months' work, although you do no more. The rude people in Scotland will sometimes speak rashly after their fashion, but I am content to follow the phrase of your language as better acquainted with the same, and say that you have not been idle in the pursuit of her Majesty's rebels." 1

The order of the day, however, was once more to be conciliation. The Bishop of Ross, after a short delay, was admitted to an audience. He swore that he had known nothing of the rebellion, and although Elizabeth possessed the clearest evidence to the contrary, she affected to believe him. He was sent down to Cliatsworth, to which his mistress had been removed, to talk over the intended arrangements, and the Queen, for the further guidance of Lord Sussex, told him that 1 Maitland to Sussex, June 2: MSS. Scotland. "although in all worldly things there were some uncertainties," she had made up her mind to the course which promised least disadvantage. The Queen of Scots would have been long since restored "but for such impediments as from time to time had been ministered by herself." There was now a better prospect of a good conclusion. Both parties in Scotland must lay down their arms. She would take care of the interests of the Lords who had supported the King, and Sussex must learn from them what conditions they would consider satisfactory. In fact they had better send commissioners with full powers to London. Discretion should be used in opening the matter to them; "discomfort" might otherwise make them desperate.

As to the troops at Berwick, the Exchequer would no longer bear the expense of their maintenance. To disband them publicly might be too patent a confession of weakness, and Sussex was ordered therefore to get rid of them "in some secret and indirect sort." 54

⁵⁴Elizabeth to Sussex, May 31: MSS. Scotland.

The conspirators in London, meanwhile, were in high spirits at their victory over Cecil and Bacon, and in full assurance of success. The Queen of Scots wrote letters of passionate gratitude to Elizabeth, promising faithfully to be all that she could wish.⁵⁵ The Bishop of Ross, before going to her, talked over the situation with Don Guerau. Don Guerau recommended that to mislead Elizabeth she should still seem to comply with every demand which might be made upon her, while the Catholics should hold themselves ready for a universal insurrection the instant that she was free. La Mothe had served the Bishop's turn upon the Council; it seems that he had more trust in Spain for assistance in the field. The fear was that France might get the start and secure Mary Stuart for Anjou.⁵⁶ The papal Nuncio at Paris was strongly in favour of the match, and the Pope was ready to grant the necessary dispensation.⁵⁷ It was thought that a possibility so much dreaded would rouse Alva from his inaction. Philip's new Queen 3 was on her way through the Netherlands to Madrid. Her voyage and the insecurity of the seas had required the assembly of a powerful escort, and the fleet which was floating on the Scheldt could be directed to a second purpose if an opportunity presented itself for a sudden landing at the mouth of the Thames. If by any means the release of the Queen of Scots could be effected, fifteen or twenty thousand men could be thrown across, before Elizabeth could have notice of her danger. The Catholics would immediately rise, Mary Stuart would be proclaimed, France paralysed, the Queen taken prisoner, and Cecil and his party destroyed. The country would be conquered without a struggle, the pirate fleets annihilated, and, among other happy issues, the revolution that overthrew Elizabeth would

⁵⁵ Letters of Mary Stuart, June and July, 1570: Labanoff, Vol. III.

⁵⁶ "It is here doubted that the Queen of Scots being released shall marry M. de Anjou, and thereby possess him of the present estate of Scotland, and of the remainder of the Crown of England. It is said that the late messenger from the Pope which brought the sword and cap for Monsieur, doth most earnestly solicit this cause. The Cardinal of Lorraine said at the council board, that the peace once made here, it should be for the reputation of this Crown to declare an open war against England." — Norris to Cecil June 15; Norris to Elizabeth, June 20: MSS. France. z The relationship between Mary Stuart and the Due d'Anjou was precisely the same as that between Henry VIII. and his brother's widow.

⁵⁷ Anne of Austria, daughter of Maximilian.

end the rebellion in the Low Countries.⁴ By disbanding her army she was preparing her neck for the stroke.⁵⁸

Thus it Was agreed between the Bishop and Don Guerau that no concessions however extravagant should be refused. When the Queen of Scots' foot was on her own soil they would crumble to pieces of themselves.

After parting from the Ambassador, the Bishop ventured to the lodgings of the young Lord Southampton, one of the intended leaders of the insurrection, for with him too there was much to arrange and explain. It happened, however, that Southampton's house was one of those on which Cecil was keeping a watch. This nobleman had been notoriously favourable to the enterprise of the Northern Earls, and in fact he had been on the edge of declaring for them. After his defeat in the Council, Cecil had redoubled his private vigilance, and the Bishop of Ross was seen stealing at midnight from the door. He had started by daybreak for Chatsworth; the information came too late for his detention; but the Queen's suspicions were violently reawakened, if indeed they had ever really slept. The preparations in the Scheldt had alarmed her also; and almost at the same moment came the unwelcome news that Lord Morley, Lord Derby's son-in-law, whose loyalty had been hitherto unquestioned, had withdrawn without leave from England, and had gone to Brussels to the Duke of Alva. A letter which to the Queen when he was beyond her reach did not tend to reassure her. Lord Morley accused Cecil and Bacon of ruining the country, persecuting the nobility, and introducing into England the wildest and worst of the revolutionary passions of the Continent.. He said that the ancient order, the honourable traditions of the realm, were set at nought by them. They had maintained "that the opinions of the Peers were of no importance," « that her Highness and the Commons might make laws without the Nobles." "How a

⁵⁸En el mismo tiempo con quinze 6 veinte mill infantes y la caballena que pareciese conveniente entrar por esta Isla, haciendo levantar tod- s Ion quales, si se aseguran de la persona de la Reyna, tendrian la mayor parte de la empresa acabada, y aun asegurarse luego de Cecil y Leicester y Bedford seria muy conveniente, y no menos el tomar la armada en Rochester. Todo lo qual es harto facil, y no falta sino persona principal para executar, y en todo pretender el nombre de la Reyna de Escocia por hallar menos contradiction en el reyno, y no dar sospecha a los vezinos. Vo tengo por cierto que sino es por esta via jamas el reyno de Inglaterra siendo Protestant e dexara de inquietar las cosas de Flandes. A todo ello viene muy a proposito la passada de la Magd de la Reyna Nra Senora." — Descifrada de G. de Espes a su Magd Londres, 12 de Junio, 1570: MS. Simancas.

Prince could stand without a body of nobility, he recommended her Highness to consider;" and he trusted that a time would come when "she would discover their practices and weigh them and others as they had deserved." ⁵⁹

It was not the way to work upon Elizabeth. Southampton was at once arrested, and also Sir Thomas Cornwallis, Queen Mary's, old minister. Elizabeth sent for La Mothe, and began moodily to talk to him of the Bull, and of the name by which the Pope had described her as "the servant of iniquity." The world looked so wild, she said, that she thought the last day must be near. With one of her odd unearthly laughs she told him of Morley's flight, and how when he landed at Dunkirk he had described himself as one of the greatest Lords in England. She ran over the pretty doings of the Queen of Scots. She said she had promised the French King to send her back, and if she was let alone she meant to do it, but if France sent one man to Scotland she would hold herself acquitted of her engagement; she would send her army back to Edinburgh; Mary Stuart should remain prisoner for her life, and if war came it must come.⁶⁰ Fresh orders went down to Sussex. He had scarcely digested the letter of the 31st of May when another followed it to say that new practices had been discovered, and that the Queen intended to move with greater caution. The King's Lords, who had been but just informed that they were to prepare to receive back Mary Stuart, "were now to be told that in no wise they should shrink or yield; and whatever the Queen of Scots or her friends might say to the contrary, they might assure themselves of the support of England." i

Rarely have any set of public men been in a more deplorable situation than these unlucky Lords. Chatelherault had proclaimed the Queen. Elizabeth had withdrawn the indirect sanction which she had given to the election of Lennox in Murray's place, and they had neither Regent nor recognised authority among them. She had fed them with doses of alternate warmth and coldness, and her invasions and burnings had done them more harm than good, for she had tempted them to join in the demolition of Hamilton Castle, and then by her desertion had exposed them to be destroyed by their adversaries. The Abbot of Dumfermline had found her impatient for the treaty, and

⁵⁹Lord Morley to Elizabeth from Bruges, June 8: MBS. Domestic.

⁶⁰Depeches, June 16, June 19, June 21, Vol. III. When Sussex received the Queen's second letter he 1 The Queen to Sussex, June 6: MSS. Scotland.

had come back with an intimation that they must prepare for the return of the Queen. Lennox, Angus, Glencairn, Mar, Morton, the Master of Graham, Lindsay, Ruthven, Borthwick, Ochiltree, all the Lords remaining on the side of the little King, had assembled at Stirling to receive the answer to their petition, and when it came in such a form "their long silence manifested the heaviness of their hearts." sent Randolph on to them, and Randolph was able in some degree to reassure them; but they told him distinctly that if they were to hold together they must and would appoint a Regent. They sent again to Elizabeth to say that "it was impossible for them to continue as they were;" and Sussex, who trusted that his mistress had recovered her senses, added of himself that the idea of sending back the Queen had better be abandoned once and forever. "If her Majesty would be pleased to command him, he would himself take the castles of Edinburgh and Dumbarton in twenty days, and either bring all Scotland to the King's obedience in like time after, or leave the Queen's friends not a castle standing." ⁶¹

Elizabeth, however, was like a jaded horse, stung by the lash into momentary action, but lapsing speedily into lagging and weary motion. She brooded over the Pope's excommunication. She harassed herself with the belief that she was to be the object of a European crusade. The Duke of Norfolk plied her from the Tower with letters which were piteously submissive. His physician wrote that his health was breaking under his confinement, and that if he remained in the Tower he would die. ⁶² The Bishop of Ross reported from Chatsworth that his mistress was so anxious to please the Queen that Cecil might dictate his conditions. Title, religion, alliances — she would make no difficulties about any of them. "After so many storms her wish was to live in quietness;" and for his own part, the Bishop would count himself most happy if he could unite their Majesties in heart, mind, and bonds indissoluble. ⁶³

Elizabeth was on her guard against the Bishop, and the smooth words would have produced no effect had the Catholics retained their ascendancy in July' France. But just at this time an opportune victory of the Huguenots in Poitou recovered to them the strength

⁶¹Sussex to Cecil, June 19: MSS. Scotland.

⁶²Norfolk to the Queen, June 18: Report of the Duke of Norfolk's health, June —; Norfolk to Cecil, July 4: MSS. Domestic.

⁶³The Bishop of Ross to Cecil, June 26: Cotton MSS., Calig. C. II. 15# Cf. MSS. Mary Queen of Scots, June 26, June 29, Rolls House.

and prestige which they had lost at Moncouth, changed the policy of the French Court, and brought about another shortlived reconciliation between the Queen Mother and the Princes of the Disinclined to encounter further the chances which no battles seemed to end, the Court determined to give way. The Duke of Guise, who had aspired to the hand of the Princess Margaret, was driven in disgrace from the Court. The war spirit was suddenly extinguished, and with it the disposition to quarrel with England in the interests of the Catholic religion. In vain the despairing Nuncio preached upon the impiety of making peace with heretics. In vain Don Francis de Alava promised help from Spain, and the clergy of Paris offered to pay the expenses of the army for eight months if the King would persevere. He said he would have no more war with his subjects, and Protestants and Catholics should cut each others' throats no longer.⁶⁴

The change relieved Elizabeth from the fears of a crusade, and while it increased the chances of a quarrel between France and Spain, it enabled her to hope that between France and herself there might now be a cordial alliance. She would thus be secure against invasion, and her own subjects would lose the temptation to mutiny. The danger from the release of the Queen of Scots would be diminished or reduced to nothing, if the direction of French policy was in the hands of the enemies of the Guises; and while Charles and Catherine still continued to intercede for her, the guarantees which they were ready to give that she should not abuse her freedom could now be depended upon.

Thus again the wind swung round. Cornwallis and Southampton were set at liberty. A tripartite treaty was proposed between France, England, and Scotland, a condition of which was to be the Queen of Scots' restoration; and Elizabeth said that she would be satisfied with sufficient securities for her own title, the surrender of the fugitive Earls, and an undertaking on the part of Mary Stuart that she would not interfere with the religion established in Scotland. She should not be pressed to conform herself to a religion which she did not believe.¹

A third time the unhappy Sussex was disturbed with a change of orders. If the Lords at Stirling chose to elect a Regent, Elizabeth said that she would not interfere with them. She could not act in the matter herself, but if they were determined and desired her opinion, the Earl of Lennox she still thought was the fittest person for the place. But

⁶⁴Norris to Elizabeth, July 23: MSS. France.

Regent or no Regent, the Queen of Scots professed a willingness to be guided entirely by her advice, and she could not in honour refuse to hear what her friends or herself would propose. The Queen of Scots was about to send Lord Livingston to treat with them, and Elizabeth trusted that they would not refuse to receive him or weaken their cause by needless alarm or panic.⁶⁵

So many alterations, trying as they were to those immediately about the Court, were maddening to the unfortunate officers at remote stations on the Borders or abroad, on whom was thrown the responsibility of action. It might well seem that Maitland after all best understood the Queen of England's character. At this last revolution a shout of triumph shot through Mary Stuart's party, and a cry as despairing from the Lords. Buccleuch and Fernihurst, unable to restrain their delight, dashed into Northumberland, and carried off "a great booty of cattle," which they divided in triumph among the ruins of Jedburgh; and Sussex, in reporting this affair, told his mistress with some irony, that it was rather late, after all that she had made him do, to be talking of the restoration.⁶⁶ Chatelherault sent to France and Spain to say that now "with small support he would requite the Queen of England for her deceitful doings;"⁶⁷ while Randolph from the other side had to write "that the poor King would stand up naked for all that would be left to him. The Lords would seek their own at the Scotch Queen's hands. They had no confidence in the Queen of England, that had so often changed her course, and, though sore against their wills, they would now live with murderers and traitors to obey her whom neither by law, duty, nor conscience they held themselves bound to obey."⁶⁸

They did indeed at last make Lennox Regent, but this in itself, unless followed up by other measures, would do little to hold the pa'rty together. Each of the Lords prepared to make Iris own terms for himself, and whatever happened, Elizabeth in Randolph's opinion would not have "a friend left in Scotland to serve her turn,"⁶⁹ The ministers of the Kirk and their congregations alone showed heart or courage. The General Assembly, forsaken as they were, met at Edin-

⁶⁵Elizabeth to Sussex, June 30, July 2: MSS. Scotland.

⁶⁶Sussex to Elizabeth, July 8: MSS. Border.

⁶⁷Commission from the Duke of Chatelherault, July, 1570. MSS (Scotland.

⁶⁸Randolph to Hunsdon and Sussex, July 5: MS. Ibid.

⁶⁹Kandolph to Sussex, July 8: MSS. Scotland.

burgh, and passed a resolution "that whatever England might say, Mary Stuart should be no Queen of theirs. Every pulpit in Scotland should ring with her enormities. If the Lords and gentlemen interfered, they should be excommunicate and held as rotten members unworthy of the society of Christ's body."⁷⁰

For the dissatisfaction in Scotland, however, Elizabeth cared but little while she felt secure of France and even Philip, it now seemed, unless the chance offered itself to revolutionize England, might defy the Pope and his excommunication, and try to bribe over his sister-in-law to himself from her treaty with Charles and Catherine.

Towards Spain the aggressions of the privateers had rather increased than diminished. Elizabeth was well aware that for the safety of the realm against invasion she must chiefly depend upon the force which she could keep in the Channel, and that it was safer as well as cheaper to encourage the voluntary action of her subjects than to rely entirely upon her own fleet. In dealing with French ships there had been more or less forbearance; when the tone of the French Government was friendly an intimation was sent to the ports to let them pass, but on the whole little difference had been made. The sea-going population regarded Papists generally as their natural enemies and their legitimate prey. Forty or fifty sail — corsairs or privateers, according to the point of view from which they were regarded — held the coast from Dover to Penzance. The crews were English, French, or Flemish, united by a common creed and a common They shifted their flags as suited their connow sailing under a commission from the Prince of Orange, now from the Queen of Navarre. They had friends and stores in every English harbour, and since the publication of the Bull their trade had gone on more furiously than ever. Every day prizes were brought in to

⁷⁰Determination of the General Assembly, July 7: MS. Ibid. i "De presente se satisfacen contener en este estrecho mas de cuarenta velas de armada como he avisado, en nombre del de Oranges, y de la Duquesa de Vendosme, y de Chastillon, que estan por todos estos puertos y entran y salen a su voluntad; y van en cada nao muchos Ingleses, de manera que estos son amigos de los piratas publicos enemigos nuestros y los favorecen, acogen y regalan, robando nos cada dia quantas naos pasan por este estrecho; y lo peor es que luego las arman y engrossan con ellas la armada. Continuan en tomar presas, y de pocos dias aca han tornado tres ureas muy ricas que iban a Espaiia de Flandes, y por haberse puesto a dice que han muerto toda la gente y traen vendiendo las merestos puertos." — Antonio de Guaras & Gayas, Junio 30 y Julio 83: MS. Simancas. Compare La Mothe, Depeches, July 25.

Plymouth, Dover, or Southampton, the cargoes were sold, the ships armed and refitted.

The prisoners taken had met with the same mercy which Protestants in the Netherlands experienced from Alva, or the landless wretches in Yorkshire and Durham after the rebellion. At the end of July three richly laden traders on their way from Flanders to Spain were captured outside the Goodwins. They had made a fight for it, and the crews one and all were flung into the sea.¹

With peace in France, the whole of these wild marauders would be diverted upon Spain. Don Guerau wrote that Hawkins was fitting out a squadron to cruise for the gold fleet; and that the Government took no pains to prevent their depredations. It is certain that Philip had not as yet deserved at Elizabeth's hands so inveterate an animosity. For political reasons he had prevented France from declaring war against her. He had shown extraordinary forbearance in enduring injuries to which a great Power like Spain could scarcely submit without dishonour. He had empowered Alva to act in concert with the English Catholics if he saw a fair opportunity; but the seizure of his treasure would have justified more immediate and decisive measures; and the discretion which he had left to Alva could have been no more than an excuse to his own subjects for his inaction, for he knew Alva to be as reluctant to move as himself. The Spanish nation was furious. The feelings of the proud and bigoted Castilians found expression in the intrigues of the ambassadors in England, and in the successive entreaties of De Feria, the Bishop of Aquila, and now again Don Guerau, for a descent from Flanders upon the English coast. But Philip lagged behind his people, and Alva knew or feared that if he struck at England, France would send an army over the Rhine and the Netherlands would again be on fire.

The danger of this last contingency was increased by the prospect of a reconciliation between the Court of Paris and the Huguenots. If the leaders of the League came back to power, the anti-Spanish policy of Francis and Henry would revive; and in the event of a rupture with France, the Netherlands could not possibly be held unless Elizabeth was at least neutral.

Could a revolution be accomplished in England as easily as Don Guerau imagined, then indeed his difficulties would have disappeared; but Philip was less sanguine than his ambassador. With the first hint that peace in France was possible, he sent word to

Elizabeth through Don Francis de Alava, that if the alliance between the Crowns of England and Spain was broken, it should be through no fault of his.⁷¹ When the Bull of Excommunication was published he had directed Alva generally to do what he could for the Queen of Scots.⁷² Elizabeth might die or be murdered, and it was necessary to be prepared for all contingencies. But, as has been already seen, he expressed the most serious displeasure at the step which the Pope had taken. He still hoped, he said, that his differences with Elizabeth might be composed in any way rather than by force; and the Duke of Alva, in explaining the cause of the preparations in the Scheldt, that explanation should have been necessary countries which were naturally friends, and added that "since the Pope had been stalled he had done nothing that had so much displeased the King his master as the late declaration."⁷³

It must not be supposed that either the King or Alva cared at all for Elizabeth herself. Yet the Duke's private correspondence with Philip shows that both of them were sincerely desirous to avoid a collision with her.⁷⁴ They distrusted the accounts which they received from the sanguine Catholics in England. "I am afraid of Don Guerau," the Duke wrote frankly to Alva. "I cannot satisfy myself that he understands those English. I am doing what I can for the Queen of Scots. My master expressly desires me to assist her; but his wish is that the two Queens should be reconciled, and that both should feel themselves under an obligation to himself. I am trying all the fords in the stream, but I can find none that I like."⁷⁵

With Spain in this humour and the Huguenots restored to favour in France, the political objections to the release of the Queen of Scots might be supposed to have been removed, or at least materially diminished. Yet Bacon and Cecil remained unshaken in their dislike. The winds shifted too rapidly, and the sky was still too threatening

⁷¹"Que por mi parte no se rompera la antigua amistad y aliamja que entre nosotros hay, sino que se la conservaremos con toda buena correspondencia y que ella debe hacer lo mismo." — Philip to Alva, May 17: Teulet, Vol. Y.

⁷²"Escribo de nuevo al Duque de Ah a que tenga mucha cuenta con la reyna de Escocia y la anime y la favorezca con palabras y otras en quanto fuese possible." — Philip to Don Guerau, June 30: MS. Simancas.

⁷³The message was sent through Sir Henry Norris, Elizabeth's Minister in Paris. — Norris to the Queen, July 9: MSS. France.

⁷⁴Correspondance de Philippe II., March and August, 1570, tom. II.

⁷⁵The Duke of Alva to Don Francis de Alava, July 29: Teulet, Vol. V.

for the present calm to be relied upon. Elizabeth herself, with the instinct of prophecy, foretold that the peace in France would not last; that it would end in a year or two in some desperate attempt to exterminate the Protestants, and that war with England would follow.⁷⁶ Bacon, in a confidential letter to Cecil, said that "the proposed compromise would not make Spain and France the more assured, but the Queen's Highness the less to be feared." "Better far it would have been," he thought, "to have gone through with the matter." "Scotland would by that time have been at her devotion, and Scotland and England united might encounter the world in arms." "The effect of her present would only be to increase the danger, inexpense, drive the Queen to be burdensome to her subjects, which again would breed new perils; but his advice had not been allowed, and they must now wait for what would follow."⁷⁷ Cecil himself, if Don Guerau's secretary is to be trusted, had sent money to the Continent in preparation for exile. He intended to hold on to the last; but he believed that the end might come at any time; and after an interview with the Queen, he desired Lady Cecil to pack her jewels and be ready to fly at a moment's notice.⁷⁸ The Duke of Norfolk was released from the Tower the first week in August, and was allowed to reside at Howard House, under the partial supervision of Sir Henry Neville. If Arundel and Arundel's friends retained their hold upon the Queen, the next step was likely to be Cecil's arrest or banishment.

He was not gone yet, however; and while he remained the administrative power was still in his hands, and he was not afraid to use it. The person who had nailed the Bull against the Bishop of London's door had escaped for some weeks undiscovered. He had been taken at last, however, and was found to be a young gentleman of good fam-

⁷⁶ "Encore elle pense que quant Dieu vous aura donne la paix, Ton ne cessera, avant deux ans, de vous pousser a la guerre pour oster cette religion, et mesmes a vous animer contre ce royaume comme contre ung coing de la terre qui sert de retrete aux Protestans." — La Mothe au Boy, Juillet 14: *Depeches*, Vol. III.

⁷⁷ Bacon to Cecil, August 13, abridged: *Domestic MSS.*

⁷⁸ "Esta es cosa cierta que el segretario Cecil dixo a su muger con grandes ansias, ha dos semanas, viniendo de la Reyna a su aposento: 'Muger, si Dios no nos ayuda, somos presos y perdidos. Por tanto recoged vuestras joyas y todo el dinero que podeis, paraque me sigais quando tal tiempo viniere, como parece que la mala fortuna nos amenaza.' Y aunque parece que no seria esto assi, es cierto que esto paso, porque esperaran el y otros consejeros hasta lo ultimo. AL extremo piensan desampararlo todo y passarse a Italia, Vienne, 6 otras partes." — Antonio de Guaras a Cayaa August 1.

ily named Felton. Catholicism when it assumed the shape of treason could yet be dealt with. Felton confessed under the rack, but claimed his act wholly for his own. He was brought to trial, and said at the bar that 25 peers, 600 gentlemen, and 30,000 commons were ready to die in the Pope's quarrel. Cecil, perhaps, wished to provoke them to the experiment. Their champion was put to death on the scene of his exploit, with all the protracted tortures which the executioner could inflict.⁷⁹

A more audacious proceeding followed. Since there now appeared to be no doubt of Elizabeth's intention to proceed with the Queen of Scots' treaty, the Earl of Westmoreland, the Countess of Northumberland, the Nortons, and Leonard Dacres had withdrawn from Scotland. So long as they remained either nothing could be done, or their extradition would be made a condition of the agreement. They had therefore crossed over to the Netherlands, intending to return when the Queen of Scots was released and the stir in England had recommenced. Great numbers of English refugees were already collected under Alva's protection. Priests, lawyers, knights, peers, noble ladies, representatives of all sorts and ranks united in an enmity to their sovereign, and in a passionate hope of speedily assisting in her overthrow. They were living on pensions from Philip, entertained much as Ch&stillon, Montgomery, the Vidame of Chartres, and other Huguenots had been entertained in England; and there they had continued some of them from the time of Elizabeth's accession, scheming, conspiring, intriguing, gliding backwards and forwards over the Channel in disguise, and circulating seditious pamphlets in the English counties.

⁷⁹"Le hídron quartos vivo con grandissima crueldad." — De Guaraa a Oayas, Agosto 9: MS. Simancas. i This preposterous piece of wickedness would have been incredible had it not been confessed by Story himself. The account of it was transmitted by the Spanish Ambassador to Philip. The Prestal spoken of as another of the conspirators will be heard of hereafter. Don Guerau's words are these: — "Dixo Story que Hamilton le refirió que le habia escripto Prestal que aquel negocio que el Story y el Hamilton le habian dicho, que podia hacer con Ingles que entonces estaba en Irlanda, no se podia acabar sin gran copia de dinero. Y este secreto era sobre matar al Rey de Escocia; porque este Prestal habia dicho a Hamilton que con dificultad pudieran ser los Escoceses reducidos a la obediencia de la Reyna, mientras ella estuviese sin marido, y que ningun hombre principal la querria por muger mientras viviese aquel muchacho, pero si le mataba que el esperaba que el hermano del Emperador se casaria con ella." — Sacada de las Confessiones del Doctor Story: MS. Simancas.

Among these persons was Doctor Story, a man who had been notorious for his cruelties during the Marian persecutions, and for the insolence with which he had defended them in Elizabeth's first Parliament. He had been imprisoned for refusing the Oath of Allegiance, but he had escaped abroad and had since been active in plotting treason. On this person long had his eye. Spies pretending to be had been watching him and probing his secrets. Besides the ordinary plots for invading England, it seems that he had a scheme on foot in connexion with one of the Hamiltons for a feat which would have eclipsed the murder at Linlithgow. It was nothing less than making away with the little King of Scots, in the belief that with his life would be removed the principal obstacle to his mother's marriage with some Catholic Prince.¹

Whether Cecil knew anything of this does not appear. He bribed, however, a refugee named Parker who was in Story's confidence. Story himself was employed by Alva to search vessels arriving from England suspected of containing heretical books. Parker enticed him by false information on board a trader lying in the river below Antwerp, where he was immediately flung into the hold, the hatches were closed down upon him, and in a few hours he was in Yarmouth.⁸⁰

Finding himself in the hands of the enemy, he wrote on being landed, half in irony, to Cecil, that "as he was old and decrepit, one iron on his sound leg would be sufficient to hold him," and begging that he might be tolerably lodged, "that he perished not before his time."⁸¹

The "lodging" prepared for him was his own Lollards' Tower, which had been empty since he and his had lost the power to

⁸⁰Parker was treated in the same way, and sent to London as a prisoner, lest information should get abroad of his treachery, and he and others should be disabled from doing similar services. The Government was already contemplating the seizure of another of the gang. Sir H. Cobham, writing from Antwerp on the 4th of September, says: — "I am informed to a surety that Prestal is with the Countess of Northumberland. If the manner of the conveyance of Story had been kept secret in England, or yet hereafter shall be well carried, I think there is which will hazard to do the like enterprise by Prestal. In the meantime Story can inform you what practices Prestal hath in hand for Scotland. The rebels here provoke and stir what they may. The chief captain of those which are busy in practices is Prestal. Story was next." — Cobham to Cecil, September 4: MSS. Flanders.

⁸¹Story to Cecil, from Yarmouth, August 15: MSS. Domestic.

persecute. He bore his fate with considerable stoicism,⁸² but his firmness failed him in the terrible ordeal which followed. He was examined in his cell under the rack as Felton had been. The Catholics prayed that God would support him under it:⁸³ but he was seventy years old and feeble for his age, and his dark secrets were wrung from him by his agony. He was then tried for high treason. He said that he was a naturalised subject of Philip, but the plea was not allowed. He was sentenced as a traitor, committed to a dungeon in the Tower, and left there waiting for execution. If Alva and Philip endured this, the Catholics in England might well despair of help from them, and Elizabeth might lay aside her fears. Here was a man living under the King of Spain's protection, in the employ of the Government, and seized and carried off as it were under Alva's eyes. Yet Alva contented himself with a mild remonstrance to the English Minister. "The proceeding strange to him," he said; "the Queen of should remember that it would discontent her to have the like done in her countries; it was the King's pleasure, however, to bear with her in a matter which he would not have suffered at another prince's hand." 1 The English Catholics little expected such an answer. The haughty Alva had not been celebrated for endurance of injuries. The Queen of Spain had not sailed; ninety large ships were lying armed and manned in the Scheldt; and unless Spain to forfeit her rank in Europe, she must move Lord Seton sped across from Scotland to offer Aberdeen for a landing place. Lord Derby sent word that he could raise ten thousand men in Lancashire. Arundel, Worcester, Montague, Southampton, Lumley, all told Don Guerau that they were ready. Norfolk was flinching; but Norfolk's absence mattered not. They waited only but for a sign from Alva, and they pledged their lives that there should be no second failure. Twice the Bishop of Ross came with this message 1 Cobham to Cecil, August 31: MSS. Flandert. to the Ambassador. The Ambassador could but send then' words through the Duke to his master, adding, however, to the letter

⁸²"Story seemeth to take little thought for any matter, and is as perverse in mind concerning religion as heretofore he hath been. He plainly saith that what he did in Queen Mary's time, he did it lawfully because he was but a minister of the law; and if it was the law again he might do the like." — Watts to Cecil, September 4: MSS. Domestic.

⁸³"Danle en esta dia tormento y creo lo pasara mal. Dios le ayude que todos los Catolicos ruegan por el." — Don Guerau to Philip, December 13.

a few words of his own to rouse Alva before it should be too late.⁸⁴ "Now," he said, "is the moment for your Excellency's presence in England. Never could you come more opportunely. You will see what I have written to his Majesty; what Lord Derby and the rest say is all true."

The Catholic Lords sent a messenger of their own to Philip. They had trusted to him, they said, and hoped, till they were almost in despair. The Queen's Ministers were now distracted, quarrelling among themselves and uncertain what to do. No such opportunity had occurred before; and if it was allowed to pass, such another might never return. It mattered not whether a force was landed in Scotland or landed in England, the effect would be the same. They offered harbours, supplies — all that an army could want; and if Philip desired it, the Prince of Scotland should be placed in his hands as their secu

The excitement among the Catholics could not wholly be concealed. Huntingdon had his eye on Lord Derby, and warned Cecil that mischief was in the wind;⁸⁵ and whatever might be Elizabeth's pleasure, Cecil determined that with the first symptoms of further rebellion, Mary Stuart should die; she at least should not be carried off to be a head and rallying point to the Queen's enemies.⁸⁶⁸⁷

But the cloud, as so many others had done, broke and passed off. Alva would run no risk without positive orders from Philip; and Philip was too full of the dangers which he expected from the peace in France to be willing to take further quarrels on himself. Two Spanish officers went over to Aberdeen and stayed a week or two with Huntly, at Strathbogie, to look about them. The King of Spain offered Elizabeth his friendly assistance in Scotland; but his interference was graciously declined, and Philip said no more. Clinton lay in the Channel with the fleet,⁸⁸ either to defend the

⁸⁴Descifrada de Don Guerau a su Magd. — Don Guerau al Duque do Alva, dos de Setiembre: MS. Simancas.

⁸⁵Huntingdon to Cecil, August 24: Burghley Papers, Vol I. So dangerous was the Court that Huntingdon, after giving his information, added, "Take heed to which of your companions you utter this, though you b» now but five together."

⁸⁶"At primero movimiento que haya en este revno cortaran la cabeza de la Reyna de Escocia — assi esta en el consejo desta Reyna resuelto y acordado." — Don Guerau to Philip, September 25: MS. Simancas.

⁸⁷"Avisos que ha dado Geo Kempe en Madrid, Setiembre 19:" MS. Ibid.

⁸⁸Much reduced from its intended strength, owing to the Queen's economies. "La Reyna toma grande enojo en ver que la tray an a firmar cedilla de treinta mill libras

country from invasion, or to pay the honours of the passage to the Queen of Spain as the event might turn. At the beginning of October the huge armada weighed anchor in the Scheldt, and swept with a leading breeze down Channel without approaching the English shores. The Queen's ships, with the flying squadrons of privateers, hung about the skirts of the Spaniards till they were in the open waters of the Atlantic; but courtesies and compliments were interchanged instead of cannon shot. The English Admiral went on board the Royal vessel and presented the Princess with a diamond which had been given by Philip to Queen Mary; and the French Ambassador was driven sorrowfully to conclude that there was no ill-will between the Catholic King and his heretic sister-in-law, and that Spain and England would soon compose their differences.⁸⁹ The English Ministers themselves yielded to the pleasant hope that perhaps it might be so. Ridolfi, the Pope's agent, the most passionate firebrand in Europe, volunteered his services for the exchange of the arrested ships and property; and so plausible was he that even the acute Walsingham recommended Ridolfi to Cecil as a person in whom he might confidently rely.²

Meantime Scotland was seething and fermenting in the expectation of the Queen of Scots' return. Both parties denounced Elizabeth — the Protestants for her breach of promise, the rest for the insulting and imperious attitude which she had assumed towards their country; yet all were persuaded that the Queen was really coming back; and the only question was whether Elizabeth was to dictate the conditions, or whether the restoration was to be forced upon her with a high hand.

Commissioners from both King and Queen had been required to come to London where they could be heard upon their several claims; but neither party had been anxious for haste. The new Regent and his friends were hoping that something might occur to change Elizabeth's purpose once more; Chatelherault and Maitland waited for the result of their application to Alva.

Maitland's heart was set steadily on one point — to bring Elizabeth on her knees before his own mistress. If it could be accomplished

gastadas con el aparato desta armada, y assi cessa del todo el armar mas de las diez naves de que he dado aviso a V. Mag') que estan en orden." — Same to the same, September 2: MS. *Ibid.*

⁸⁹Walsingham to Cecil, October 22: MSS. Domestic

by force, so much the better, but the treaty would be a road as sure, though less rapid, to the same end. He expected that the conditions would be strained in the hope that they might be rejected. If this was Elizabeth's purpose he meant to disappoint her by agreeing to everything, however hubeing satisfied that when the Queen of Scots at liberty, whatever engagements she might make would snap like rotten cords.

He was staying through the summer and autumn at Blair Athol,⁹⁰ recruiting his shaken health among the glens and mountains. Cultivated far beyond the wild men on whom he played as upon instruments, Maitland would at any age of the world have been in the first rank of statesmen. He had little in him of high moral purpose in the technical sense of the words; but he was a passionate Scot, proud of his own intellect, and prouder of his country, to -which he devoted himself with a tenacity of purpose that no temptation of private interest could affect. He remains with all his faults a person singularly interesting, and whatever will throw light upon his character deserves to be carefully studied.

After the sharp burst of scorn with which he had spoken of the destruction of Hamilton, he resumed his self-command, and pretending to be satisfied that his mistress must abandon the hope of recovering her liberty by revolution, he sketched to Sussex an outline of the conditions which he said that he was prepared to urge upon her acceptance. The sore subject of the title might be dropped conclusively. The Queen of Scots should promise never again to molest the Queen of England, and she "should strengthen her obligations with her great seal and oath." The Emperor and the Kings of France and Spain would be sufficient securities. These sovereigns would "bind themselves to become her enemies if she broke her engagements," and an Act of Parliament might be passed in England cutting her off from the succession. The Queen of England "should dispose of her in marriage;" "the chief persons in Scotland that took her side should be hostages for her, and the Queen of Scots should either reside freely herself in England or the Prince should come there in her place."⁹¹

These offers naturally appeared to Sussex "as ample upon the sudden he could conceive needed to be demanded." His one objection was that "the performance of them depended only upon conscience,

⁹⁰Maitland was the Earl's brother-in-law.

⁹¹Maitland to Sussex, June 29; Sussex to Maitland, July 5: MSA Scotland.

and rested in the will and liberty of the persons that should perform." He had no confidence in Maitland. He doubted whether he was dealing honestly with him, and he intimated that "bye practices" would be found dangerous, and that "her Majesty had subjects who would provide for her surety whatever became of themselves." But the proposals, if made in sincerity, deserved consideration, and while sending them on to the Council, Sussex used the opportunity which Maitland's letter gave him to ask for an explanation of the problem which was perplexing everybody — why he who had so long acted with the Protestants had gone over to the other side. He had been one of those who had advocated harder measures for the Queen of Scots than the Queen of England would allow. "The persons were the same, the cause the same, the matter the same." "How had severity which was just one day become unjust the next?" "There was neither wisdom in it nor philosophy." ⁹² A note from Maitland to his brother explains the object of his first letter to Sussex. He was wishing merely to recover for himself the confidence of the English Council; 1 but a correspondence followed characteristic both of Sussex and himself.

"You ask me why I have changed my mind, he replied. "Have you never changed yours? Those are not the wisest men who remain always of one opinion. The skilful sailing master applies his course as the wind and weather drive him. You speak of philosophy; I have none of it. Yet if I turned in my mind that way I would not study it after the intractable discipline of the Stoics, but would rather become a student in the school where it is taught that wise men's minds must be led by probable reasons. That same firm, certain, unchangeable, and undoubting persuasion which is requisite in matters of faith must not be required in matters of policy; and good and evil are not such in themselves but in their relation to other things. You say persons, cause, and matter are the same. It is not so, for time has altered many things. The affections of men are changed in both realms, and the persons are altered. The person of the late Reo-ent was a circumstance of no small moment.

⁹²Sussex to Maitland, July 5: MS. Ibid. 1 "I send you herewith the copy of my letter to the Earl of Sussex which you desire, wherein you will think I have gone very far; yet I did it not without consideration. I open nothing but that I know is already in hand and muckle mair. I would they had that opinion of me that I dealt squarely and roundly wit-h them; and my opinion will not make the matter up or down" — Maitland to the Laird of Coldingham, July 17: MSS Scotland.

O And severity was a matter which might well vary with the change only of time. To sequester the Queen for a season might be required; to keep her all her days in prison would be rigour intolerable. Were it true that I had advised more hard dealing, yet the substance of things is not changed by our opinion. They are not good or ill, rigorous or equitable, because we think them so. I might have been wrong then and I might be right now — but it is not so. I may have been with those that persuaded worse to be done to the Queen of Scots by your sovereign, but I was never a persuader of such matters myself. I never went about from the beginning to advise her destruction, nor meant at any time ill to her person. A month after the late Regent accepted office I dealt earnestly with him to accord with the Queen. From first to last I have laboured always that the matter should be taken up by accord.” 1

The high ground of moral abstraction was pleasant to Sussex. He burnished up the rusty weapons of his school days, pelting his adversary with logical formulas, and fastening upon his heretical views of good and evil. He ran over the various steps which had been taken by the party of which Maitland had been a member.

“To depose a sovereign,” he said, “was a serious matter, not to be taken up lightly and laid aside because times were changed. Alteration on such a point was not wisdom but frivolous mutabilitation, unless indeed the cause alleged for the deposition had been discovered to be false. He desired to be satisfied whether Maitland thought it was false.

“What your party did in England,” he continued, “tended not to a short restraint of your Queen, but was directly either to deliver her captive into your own custodies, or to bind the Queen to detain her so as she should never trouble Scotland more. If her captivity or a worse matter was meant, God and your own con 1 Maitland to Sussex, July 16, condensed: MSS. Scotland science do know; only this I am sure, that if her Majesty would have digested that which was openly delivered unto her by the general consent of your whole company, in such sort as ye all desired, advised, and earnestly — I will not say passionately — persuaded her at that time to do for her own surety, the benefit of Scotland, and the continuing of amity between both the realms, there had been worse done to your Queen than either her

Majesty or any subject of England whom you take to be least free from passions could be induced to think meet to be done." ⁹³

Maitland did not care to prolong the argument. He said he was ready to answer for his conduct to his own mistress when she pleased to call him to account for it, and he was working loyally to deserve the pardon which she had long before bestowed upon him. Sussex sent the correspondence to the Court, and Elizabeth complimented him for having come off with honour from an encounter with one' whom she called the flower of the wits of Scotland." "She was more pleased with him," she said, "than if lie had won an action in the field;" "she always thought him wise, but had never seen a more absolute proof of it; he had overmatched and confounded Lidington, not only with the truth, but with the sharp good order in which lie had expounded it." ⁹⁴

Still unless Mary Stuart got herself killed, Elizabeth had determined to send her back, and was not again inclined to change her mind. She said only she would have conditions which should enable her to "command their observance;" she did not mean to depend on promises; besides hostages she would have some castie or castles in Her own hands or in the hands of Scots on whom she could rely. ⁹⁵

Sussex advised her strongly to secure her ground beforehand, and even as "a means towards the peace," allow him to take Edinburgh and Dumbarton. She contented herself, however, with sending a sharp message to Chatelherault and Argyle, that if they meddled with Lennox and Morton she did not mean to be "so deluded as to pass it over. Herries having given fresh trouble, she permitted Sussex to make one more foray into Galloway, where he blew up Dumfries Castle and left "not a stone house standing capable of giving shelter to armed men." ⁹⁶ Having shown in this way that she was not afraid and would endure no trifling, she proceeded seriously with the consideration of the treaty. Sussex lamented still that he had been forbidden "to go through with things;" "the heavier the hand of the English Government the easier, simpler, and more durable," he thought, "the composition would be." But the Queen considered that for the present enough had been done. The

⁹³Sussex to Maitland, July 29: MSS. Scotland.

⁹⁴Elizabeth to Sussex, August 11: MS. Ibid.

⁹⁵Elizabeth to Sussex, August 11: MSB. Scotland.

⁹⁶Ibid.

difficulty now was rather in restraining the King's party, who in desperation, and perhaps privately instigated by Cecil, might try to make a composition impossible. Lennox, under pretence of public order, hanged a party of thirty to forty Gordons whom he caught somewhere: "shrewd justice" as even Sussex was obliged to term it. Elizabeth required a bond from Chatelherault and his friends that they would keep the peace and would not bring in French or Spaniards. The Earl of Argyle, Huntly, and others, assembled to sign it at a house of Lord Athol's, and ran a narrow chance of being surprised and murdered. The bond, however, was completed and sent up. The Regent was lectured into behaving himself. Lady Lennox made an effort to induce Elizabeth to pause. The Queen of Scots had tried to persuade her that she had been accused unjustly of the murder, and had promised "to love her as an aunt and respect her as her mother-in-law," if in future they could be friends. Lady Len- September. replied with a protest to Cecil against the restoration as tending to obscure the memory of the crimes of which she was indisputably guilty.⁹⁷

Elizabeth herself too had forever fresh and fresh causes of suspicion dragged before her. A gold brooch fell into her hands in which the lion of Scotland was represented crushing a leopard's skull. The rose and thistle were twined below them with the words — "Ainsy abattra le ly on Kscuiiooys le lie part Anglois."

⁹⁷LADY LENNOX TO CECIL. "Good Master Secretaiy, — You shall understand that I have heard of some Commissioners that shall go to the Queen of Scotland to treat with her of matters tending to her liberty to go thither, of which she herself doth already make assured account. The knowledge thereof is to me of no small discomfort, considering that notwithstanding the grievous murder which by her means only upon my son her husband was executed, divers persons in this realm doth yet doubt, and a great many doth credit, that since her coming hither she is found clear, and not to be culpable of that fact; because, as they say, since all the conventions and conferences had between the nobility touching that matter, it has not been published and made known that the said Queen was found in any way guilty therein. Much more when they already deceived shall see her released to go home at (though upon some devised conditions to serve the present), conceits shall be verified; and therein they being satisfied it that she hath sustained insufferable wrongs to be for no offence so long restrained within this realm. The rest thereof I refer to your wisdom. I am enforced to crave your friendship herein, and to impart this my her Majesty, whose Highness I trust will hold me excused, whereupon I ground my desire for the stay of her who othershall stir up such ill as hereafter all too late may be repented." — MSS. Mary Queen of Scots, Rolls House.

"If that be our hap," said Randolph, by whom the emblem was sent to London, "if that be our hap to have our lion of England clawn by the powle, we have overlong nourished so cruel a beast that will devour the whole estate."⁹⁸

Nevertheless the Queen determined to persevere. She had given her word to the King of France, she said, and she meant to keep it; adding, with a proud consciousness of the truth of the words, that no sovereign in Christendom would have shown the forbearance which she had shown throughout the whole business.⁹⁹ She repeated her desire that Lennox and Morton should send commissioners to London. She assured them that they need be under no alarm. She would provide as carefully for them as for herself, but the cause must come to an end; "she could no longer with honour or reason continue to hold the Queen of Scots in restraint." 3

Of all conditions the best would be the Queen of Scots' marriage to some safe person, Sir Henry Carey or some one like him. Could this be arranged other securities might be dispensed with; if not, it was necessary to tie her hands. The French Government promised to be contented with anything provided she was still recognised as Queen. Elizabeth fell back upon the terms which had been sketched by Maitland. England, Scotland, the people, and sovereigns should be united in "a perfect amity;" without prejudice to her future claims the Queen of Scots should abandon definitely her present pretences to the Crown of England; and she should swear, in the presence of the assembled English and Scotch nobility, never more to trouble the peace of that realm. She should make no league with foreign powers to England's prejudice, introduce no foreign troops, and form no marriage without Elizabeth's consent, especially none with the Duke of Anjou. The religion established in Scotland should not be changed; Dumbarton Castle should be held by an English garrison; the Prince should be brought to England to be educated. To obviate any future objection that she was consenting under compulsion, the Queen of Scots should "by an instrument to be devised in due form of law, declare herself at liberty," and "confirm the articles collectively and separately under the Great Seal of Scotland." Should she violate her

⁹⁸Randolph to Cecil, October 2. Compare La Mothe, *Depeches*, October 25.

⁹⁹La Mothe: *Ibid.* Elizabeth to Sussex, September 28: MSS. Scotland. I Articles of accord. Endorsed by Cecil, "Inter Reginam Angli® et Scotise, September, 1570." — MSS. Mary Queen of Scots. *Projet d'accord Teulet*, Vol. II.

engagements in any part, "she should be in mere justice adjudged, deputed, and taken as a person by her own consent deprived of any title, challenge, or claim to the eventual English succession," and "the Queen of England should have liberty in the same cause to promote the young King by all means possible to the honour of Scotland." 1

These conditions were to be sent down to Chatsworth, before further steps were taken, for the Queen of Scots' approval. If she made difficulties, she was to be reminded of her incessant conspiracies against Elizabeth, "such as no sovereign had ever remitted when the pretending party was in the power of the possessor of the Crown;" and if this failed, she was to be told "that the Queen's Majesty had hitherto forbore to publish such matters as she might have done to have touched the Queen of Scots for the murder of her husband," with a hint that if driven to extremities, Elizabeth might yet have recourse to those means for her own protection.¹

There was no fear, however, that Mary Stuart would require to be pressed in this way. If France continued cold and Spain apathetic, her friends had agreed that she was to raise no more difficulties than** would suffice to allay suspicion. The one paramount object was to get her out of England, and this onm done, means could be found to break the chains of the strictest treaty which art could draw. The Pope, with his power to bind and to loose, would absolve her of her oaths; and "a way would be found" to escape from the more substantial engagements. Maitland had! instructed her from time to time in the course which sta was to pursue. Two of his letters were intercepted by Lennox, and at last, though written in cipher, were read by Cecil's industry — at last, though with difficulty, and not till later in the winter, not in time to cut off the negotiations in the bud, but in time to prevent the deadly flower from growing to maturity.

As representing the spirit in which the Queen of Scots and her friends were about to enter into the conference, the sincerity of those professions with which Mary Stuart had requested the Pope's permission to illude Elizabeth, the substance of these letters may be given in this place.

On the 9th of August, while still at Blair Athol, and after his correspondence with Sussex, Maitland wrote to the Queen of Scots to tell her to allow nothing to interfere with the completion of the treaty. Help eventually might be looked for from abroad. Elizabeth was false — on his life he could swear that 1 Notes in Cecil's hand: MSS. Mary

Queen of Scots. she meant no good — but Mary Stuart must continue to treat with her as though “she had confidence in her friendship,” “and must give her words for words.”¹⁰⁰

To the Bishop of Ross a few days later he wrote more in detail. “We are to yield in everything,” he said, “and receive humbly at English hands what they please to give us. It breaks my heart to see us at this point that Englishmen may give us law as they will. I understand by your letter that the Duke of Norfolk is at liberty, which is the best news I have heard this twelve months; and unless it had been the Queen of Scots’ restitution, or that the Queen of England had gone ad Patres, ye could not have sent me any word whereat I would have been more glad.

I hope to God since that has come to pass, the rest shall follow shortly. When ye write the Queen of gives you good words, ye do well to make to believe her, and to hope for goodness at her hands, but on my peril in your heart trust never speaks, for ye shall find all plain craft without true meaning. Always continue in the treaty untruth appears of itself. You desire my opinion what is to be answered to the demand of the Prince, some of the nobility for hostages, and the castle of Dumbarton. I will write you frankly what I think. The Queen of Scots is in the Queen of England’s hands, and I think she intends never with her good-will to part from her, and therefore to satisfy other princes proposes the harder conditions which she thinks shall be refused. It is for the Queen of Scots hard to deliver her son in England, and it is hard for Scotland to have our principal strengths in the hands of England. Yet rather than the Queen of Scots should remain still a prisoner, the conditions cannot be so hard that at length I would stick upon to recover her liberty; for if that point were once compassed, other things may be helped again with time. It is well done for the Queen of Scots to make difficulty that the Prince be delivered in England, because it will let the people of Scotland see that she is careful of him. Yet for the matter itself I see no sik danger in it, neither for preservation of his person nor yet for peril may thereafter follow to the Queen of Scots herself by setting up of him against her, that I would advise her to refuse it in the end. Those that are enemies to her title in England would rather destroy her person than his, because he is but a bairn, and the succession of his body is far off; but

¹⁰⁰Maitland to the Queen of Scots, August 9: MS S. Mary Queen o) Scots, Rolls House.

her person is the mould to cast more bairns in; so long as she is safe they will never press to destroy him; besides that, I think, having interest to the title after her, his nomination among them shall further it with the people.

"Besides, if she were once at liberty, I fear not that means shall be found to make both England and Scotland loth to enterprise far against her. I speak all to this end, that in any wise her liberty be procured whatsoever the conditions be; press it to the best, but if we fail we must accept the worst. As I write of the Prince I mean of Dumbarton. It is not the being of Dumbarton in English hands that will more thrall Scotland to England, than Berwick may do without Dumbarton; nor yet may Dumbarton keep Frenchmen or strangers out of Scotland if the Queen of Scots desire them; for she being at home, Leith, any part of Fife, Dundee, Aberdeen, and briefly all the coast of Scotland, will serve that turn as well as Dumbarton can do. Yield as little as ye may, but yield to all rather than she remain a prisoner, because I think her life always in danger in medio nationis pravce. You write of a secret purpose touching the Queen of Scots' escape. I pray you beware with that point, for albeit I would be content to be banished Scotland all the days of my life to have the Queen of Scots obtaining liberty without the Queen of England's consent, for the great uncourtesy that she hath used unto her, rather than have it with her consent and I the best earldom in Scotland between hands, because I would she might be even with the Queen of England, yet I dare not advise her Majesty to press at it without she be well assured there be no kind of danger in executing of her enterprise. I fear deadly the craft of her enemies that will not stick to set out some of themselves to make her Majesty offers to convey her away, and let her see probability to give her courage to take it in hand, and then, they being privy to it, to trap her in a snare, and so to execute against her person their wicked intentions, which now for fear of the world and shame of other princes they dare not do. Save her life whatever ye do, and sure I am God with time shall bring all other things to pass to our contentment. But that point lost can never be recovered, and then all is gone."¹⁰¹

When this letter was read by Elizabeth and Cecil it was made evident to them at once, that not a single scheme of revenge or ambition

¹⁰¹Maitland to the Bishop of Ross, August 17: MSS. Queen of Scott. I Elizabeth to the Queen of Scots, September 17. Abridged. — Teulet Vol. II p. 406.

was intended to be seriously abandoned, and that for all the oaths that might be sworn, the French and Spanish armies were to be introduced into Scotland at the first opportunity.

As yet, however, and conscious of her own sincerity, Elizabeth was able to half persuade herself that Mary Stuart was weary of conspiracy, and was -willing to remain quiet till she herself was dead. The Queen of Scots' protestations were incessant. She forever said that she had some mysterious secret which she was longing to communicate, but would only reveal in person. Elizabeth did not believe her, yet did not utterly disbelieve her; and — a sufficient proof that she was serious about the treaty — she appointed no less a person than Cecil to go to Chatsworth to negotiate with her. To the smooth letter she replied in a tone which even Maitland could not accuse of insincerity: — "You have caused a rebellion in my realm," she said, "and you have aimed at my own life. You will say you did not mean these things. Madam, I would I could think so poorly of your understanding and could lay your fault on your want of knowledge. You say that you desire to heal the wounds which you have caused. Well, I send two of my Council to you who know all my mind. I am not influenced by the menaces of France. Those who would work upon me through my fears know but little of my character. You tell me you have some mystery which you wish to make known to me. If it be so, you must write it. You are aware that I do not think it well that you and I should meet. I trust you will give me cause to forget your faults. God knows how welcome that would be to me." 1

With the utmost art Elizabeth could have scarcely counterfeited language which, if she meant October well and honourably, would have expressed better what ought to have been her feeling. She would not see the Queen of Scots herself. It was not without misgiving that she trusted even Cecil within the reach of her fascinations. No one perhaps except Knox had escaped from an encounter with this extraordinary woman altogether uninfluenced. Not a spell of subtlest glamour would be left untried on Cecil; and it was impossible to forget that he was going into the presence of a person whom disease or accident might make at any moment his titular, perhaps his reigning sovereign. Both the Queen and Lady Lennox

warned him at his parting not to be “won over,” and his confident promises scarcely reassured them.¹⁰²

The Bishop of Ross and Sir Walter Mildmay accompanied him.

“The Bishop of Ross,” wrote Don Guerau, “sends me word by one of his servants that he will return in a week and tell me what his mistress will do. I know for certain that the Duke of Anjou is a suitor for her hand, and that she is not disinclined to accept him. But her English friends do not like it, and your Majesty may believe that I do not. The Catholics, your Highness is aware, are also against her marriage with the Duke of Norfolk, not being assured that he is a Christian. The Earl of Arundel and Lord Lumley undertake, however, that the Duke will submit to the Holy See, and for the sake of a Crown perhaps he will do anything good or bad. He has been cool about the marriage lately, but it seems that he will take it up again, especially as he expects to be shortly restored fully to liberty. Your Majesty will instruct me how to act. The release of the Queen of Scots and her marriage in a good quarter will bring with it the restoration of religion and the consequent settlement of the Low Countries. I hold myself, as your Majesty commands, at the disposition of the Duke of Alva. -The Bishop of Ross tells me that if his mistress may depend on assistance from us, she will remain where she is; if not, she will agree to the treaty.”¹⁰³

¹⁰²Lady Lennox to Cecil, October 5: MSS. Queen of Scots. La Mothe Dépêches, October 16.

¹⁰³Don Guerau to Philip, October 15 and October 25: MS. Simancas

CHAPTER XX

While the political and religious passions of the English nobility were increasing in heat and intensity, the economical condition of the Commons was slowly improving. The social convulsions which accompanied the earlier stages of the Reformation had settled down. The state papers are no longer crowded with complaints of the oppression of the poor. The people could again be trusted with arms without fear that they would use them against the landowners. The interruption of trade with the Low Countries permitted the yeoman once more to drive his plough over the pastures from which he had been expelled by the sheep-owners, and the prices of wages and food had satisfactorily adjusted themselves. The Flemings, who had crowded across the Channel in tens of thousands, brought with them their arts and industries, and while the fine ladies and gentlemen still looked to the East for the silks and satins in which they fluttered round Elizabeth, the artisans, the labourers, and the farmers were clothed from the looms which had been brought from Ghent and Bruges to their own doors. But the recovered prosperity was partial; the experiment of the mart at Hamburgh had been tolerably successful; English merchants and sailors were tempted from legitimate trade by the more profitable occupation of privateering, and in the 14th year of Elizabeth, the burden of all the vessels in the kingdom which were engaged in ordinary commerce scarcely exceeded 50,000 tons.¹⁰⁴ The largest merchantman which sailed from the port of London was no bigger than a modern collier brig.¹⁰⁵ In the harbours of Devonshire and Cornwall there were but a hundred and fifty vessels of all kinds pursuing any lawful calling, and the most considerable of them would have appeared small by the side of a common channel coasting schooner. At a time when an unarmed ship could escape from pirates in the open water only by being too worthless to be seized, the English sailors eschewed a calling which was as dangerous as it was inglorious.

It was fortunate for Elizabeth that another occupation was open to them, that the sea-going portion of her subjects were those in whom the ideas of the Reformation had taken the deepest root, and that the

¹⁰⁴The exact figures are 50,926. List of vessels trading from all parts of England, 1572: Domestic MSS. Rolls House.

¹⁰⁵240 tons. — MS. Ibid.

merchant therefore could change his character for that of the buccaneer with the approval of his conscience as well as to the advantage of his purse.

The Catholic spirit was naturally strongest where the people were least exposed to contact with strangers. In the Midland and Northern Counties, where the feudal traditions lingered, the habits were unaltered and the superstitions undisputed. The customs by which old English country life had been made beautiful — the festivals of the recurring seasons, the church bells, the monuments of the dead, the roofless aisles of the perishing abbeys — all were silent preachers of the old faith and passionate protests against the new; while for good and evil, peer and peasant, knight and yeoman, were linked together in the ancient social organisation which thus survived unbroken. In sharp contrast, the merchant of the seaport was driven by his occupation to comprehend and utilise the knowledge which was breaking upon mankind. To him to live by custom was bankruptcy and ruin. Unless he could grow with the times, unless he could distinguish fact from imagination, and laws of nature from theories of faith, he was left behind in the race by keener and less devout competitors. It was no longer enough for him to christen his ship by the name of a saint, and pray to Paul or Peter to bring it safe to harbour. Peter had enough to do to save his own bark in the tempest which was raging, and had no leisure to listen to the seaman's orisons. The stars were now the mariner's patrons, and the tables of longitude and latitude were his Liturgy. The sun and moon pointed the road to him to the Pearl Islands and gleaming gold mines of the New World, and he looked out on nature and the world, on God and man, and all things in earth and heaven, with altered and open eyes. When driven from legitimate trade, the English merchants, instead of flying at the Government as the Spanish Ambassador had hoped, flew upon the spoils of those who forced them to abandon it. They swarmed out over the world, treating it like Pistol, as the oyster which their sword would open. Their rights were in their cannon, their title to their booty in their strength to win it. Careless of life and careless of justice as Alva's warriors themselves, they were their fit antagonists in the great battle between the dying and the rising creeds.

But there was another form, quieter, purer, nobler far, in England, in which the new ideas were developing themselves, and that was Puritanism. The Church of England was a latitudinarian experiment,

a contrivance to enable men of opposing creeds to live together without shedding each others' blood. It was not intended, and it was not possible, that Catholics or Protestants should find in its formulas all that they required. The services were deliberately made elastic; comprehending in the form of positive statement only what all Christians agreed in believing, while opportunities were left open by the rubric to vary the ceremonial according to the taste of the congregations. The management lay with the local authorities in town or parish: where the people were Catholics the Catholic aspect could be made prominent; where Popery was a bugbear, the people were not disturbed by the obtrusion of doctrines which they had outgrown. In itself it pleased no party or section. To the heated controversialist its chief merit was its chief defect. Besides the Queen there were perhaps half a dozen prominent people in England who had intelligence enough to estimate the real value of forms and doctrines; the passions which the Church was intended to check necessarily heaved under its surface; but the scandals and controversies which were incessantly bursting out should be regarded rather as an evidence of what the country would have been without the Establishment than as indicating that the Establishment itself was unsuited to the end for which it was constituted.

Conscience, Elizabeth never wearied of proclaiming, was unmoled; every English subject might think what he pleased. No Inquisition examined into the secrets of opinion; and before the rebellion no questions were asked as to what worship or what teaching might be heard within the walls of private houses. The Protestant fanatics, who had from time to time attempted prosecutions, were always checked and discouraged; and unless the laws were ostentatiously violated, the Government was wilfully blind. Toleration was the universal practice in the widest sense which the nature of the experiment permitted; and if it was now found necessary to draw the cords more tightly, the fault was not with Elizabeth or her ministers, but with the singular and uncontrollable frenzy of theology, which regards the exclusive supremacy of a peculiar doctrine as of more importance than the Decalogue.

It has been seen that the Catholics at the beginning of the reign applied to Rome for permission to attend the English service. Their request was considered and refused, and their duties to the Church and to the Crown being thus forced into collision, the more devout

among them became rapidly infected with disloyalty. The outward submission of the clergy at Elizabeth's accession is not to be construed into a real or even pretended approval of the changes which were then reintroduced. They had hoped for a time that the Liturgy would have received the sanction of the Pope, and had England consented to submit to the Holy See, that sanction might have been the price of the compromise. But many of them, when the hope passed away, reconciled themselves to the Catholic communion and sued for absolution for their unwilling apostasy. Noblemen who at first had attended the parish churches, no longer appeared there. The publication of the Bull precipitated the reaction, and thenceforward no one could pretend to be a sincere Catholic without at the same time declaring himself a traitor. "The people of Lancashire refused utterly to come any more to divine service in the English tongue." Lord Derby forbade the further use of the Liturgy in his private chapel.¹⁰⁶ Grindal, who had been appointed Archbishop of York, found on arriving at his diocese that "the gentlemen" were "not affected to godly religion." They observed "the old fasts and holidays." "They prayed still on their strings' of beads." In London he had been chiefly troubled with the overstraight Genevans. In the North he was in another world.¹⁰⁷ Disguised priests flitted about like bats in the twilight, or resided in private houses in "serving men's apparel." Corpse candles were lighted again beside the coffins of the dead, while "clerks and curates" sang requiems at their side. In other parts of England ecclesiastical officials, "nusselled in the Canon Law," recommenced the iniquities of the spiritual courts, "maintaining the Pope's authority," "propounding questions at the visitation and sessions," "rebuking the Protestant preachers," "encouraging or winking at persons accused of Papistry, never giving them a sharp word." They "provoked the people to blaspheme God, and ministered occasion to sedition;" and again with the doctrines they brought back the pleasant practices

¹⁰⁶The Bishop of Carlisle to Sussex, October 16, 1570: MSS. Border.

¹⁰⁷"Appeals in causes of reformation of life are daily committed in the Arches, and prosecuted there contrary to the express law of the decretals, and thereby notorious faults left unreformed and the offenders covered or justified, contrary to God's Holy Word. As for example: "Mrs. Neames of Woodnesborough, a woman not only of evil life herself, but also a broodmother of others, and James Augustine of Staplehurst, who had deflowered two maids and got them with child. These twain being heinous offenders, and of the diocese of Canterbury, were justified and restored to their Romish honesty again by the Arches. "Louis - of Sommerby, having deflowered two maids and got them

of the good old times — commuting penances for money, compounding for moral enormities, and grinding the widow and the orphan by their fees and extortions.³

The reaction was especially marked in Norfolk and Suffolk. An incipient rebellion had been smothered there; but the Duke was passionately loved by the people, who were described as being “wildly minded.” Protestantism had been, as usual, injudicious, when was particularly required. The services in Cathedral “had been denuded of all which could savour of Babylon.” “Certain of the prebendaries” had changed the administration of the Sacrament, pauperized the ceremonial, broken down the organ, and, so far as lay in them, had turned the quire into a Genevan conventicle.¹⁰⁸ Where the tendencies to Rome were strongest, there the extreme Reformers considered themselves bound to exhibit in the most marked contrast the unloveliness of the purer creed. It was they who furnished the noble element in the Church of England. It was they who had been its martyrs; they who, in their scorn of the world, in with child, appealed to the Arches and is not reformed but restored to his Romish priestly iniquity again.

“Baker of Bury, in Suffolk, who was taken with another man’s wife, by appeal first to the Arches and then to the Delegates, is by them justified and not reformed.

“Appeals in cases of controversy between party and party, contrary to both law and equity, do pass, whereby the judges, advocates, and proctors do much enrich themselves and burden and weary the poor people.

“The enormities and abuses of spiritual judges in extorting money with the corrupt dealing of Chancellors and Commissaries. It is to be noted further of Archdeacons wbc savour of Rome and favour not good religion, they abusing their authority do more harm than any preacher doth profit in divine sermons, partly by severe handling the preachers and sometimes by cruel threatenings, withdrawing the people from God’s Word and keeping them in doubt in matters of faith. In the late visitation at Norwich very few preachers escaped without an open rebuke at the lawyers’ hands. Neither was any Papist reformed or touched with any sharp word.” — Abuses in the Canon Law, 1569, 1570: MSS. Domestic. Endorsed in Cecil’s hand. their passionate desire to consociate themselves in life and death to

¹⁰⁸The Queen to the Bishop of Norwich, September 25: MS. Ibid. Cecil’s hand.

the Almighty, were able to rival in selfdevotion the Catholic saints. But they had not the wisdom of the serpent, and certainly not the harmlessness of the dove.

Had they been let alone — had they been unharassed by perpetual threats of revolution and a return of the persecutions — they, too, were not disinclined to reason and good sense. A remarkable specimen survives, in an account of the Church of Northampton, of what English Protestantism could become under favouring conditions. Under the combined management of the Bishop of Peterborough and the Mayor and Corporation of the city, the laity and clergy of Northamptonshire worked harmoniously together. On Sun days and holy-days, the usual services were read from the Prayer-book. In the morning there was a sermon; in the afternoon, when prayers were over, the “youth” were instructed in Calvin’s Catechism. On Tuesdays and Thursdays, a “lecture of Scripture” was read, with extracts from the Liturgy, and afterwards there was a general meeting of the congregation, with the Mayor in the chair, for “correction of discord, blasphemy, whoredom, drunkenness, or offences against religion.” On Saturdays, the ministers of the different neighbourhoods assembled to compare opinions and discuss difficult texts; and once a quarter all the clergy of the county met for mutual survey of their own general behaviour. Offences given or taken were mentioned, explanations heard, and reproof administered when necessary. Communion was held four times a-year. The clergyman of each parish visited from house to house during the preceding fortnight, to prepare his flock. “The table was in the vol x. 8 the church, at the far end of the middle and while the people were communicating, “a minister in the pulpit read to them comfortable scriptures of the Passion.”

From these arrangements it is clear that the Genevan element preponderated, but there follows a remarkable proof that even Calvinism, when left to itself, did not necessarily imply “ecclesiastical despotism.” The congregation of Northampton, “as a confession of faith,” “accepted Holy Scripture as the Word of God, to be read alike by all, learned and unlearned;” but “they did condemn as a tyrannous yoke whatever men had set up of their own invention to make articles of faith or bind men’s consciences to their laws and statutes; they contented themselves with the simplicity of the pure Word of God and doctrine thereof, a summary abridgment of which

they acknowledged to be contained in that Confession of Faith used by all Christians, commonly called the Creed of the Apostles.”¹⁰⁹

The fury of the times unhappily forbade the maintenance of this wise and prudent spirit. As the powers of evil gathered to destroy the Church of England, a fiercer temper was required to combat with them, and Protestantism became impatient, like David, of the uniform in which it was sent to the battle. It would have fared ill with England had there been no hotter blood there than filtered in the sluggish veins of the officials of the Establishment. There needed an enthusiasm fiercer far to encounter the revival of Catholic fanaticism; and if the young Puritans, in the heat and glow of their convictions, snapped their traces and flung off their harness, it was they, after all, who saved the Church which attempted to disown them, and with the Church saved also the stolid mediocrity to which the fates then and ever committed and commit the government of it.

In the months which followed the suppression of the Northern rebellion, the peace of Cambridge was troubled by the apparition of a man of genius. Thomas Cartwright, now about thirty-five years old, had entered at St. John's in 1550. He left the University during the Marian persecution, and kept terms as a law student in London. He returned on the accession of Elizabeth, became a Fellow, and continued in residence, till the Vestment Controversy of 1564 sickened him for a time with English theology, and he went over to Geneva. In Calvin's atmosphere he recovered his spirits, came back to Cambridge, and by some accident was appointed Margaret Professor of Divinity. Cartwright was no doubt at this time a questionable occupant of an English ecclesiastical office. He was at the age when men of noble and fiery natures are impatient of unrealities. He had been ordained deacon, but he had come to understand that the so-called "Holy Orders," in their transcendental sense, were things of the past. He destroyed his licence. The sole credentials of a teacher which he consented to recognise were the intellect and spirit which had been received direct from God; and Cecil, as Chancellor of the University, was beset with complaints of the wild views which the Margaret Professor was spreading among the students. Pluralities and non-residence, those comfortable stays and supports of the University dignitaries, he denounced as impious, and the Spiritual Courts

¹⁰⁹Order of the services in the Church of Northampton, June 5, 1571 Domestic, Rolls'

"as damnable, devilish, and detestable." "Poor men," he said, "did toil and travel, and princes and doctors licked up all. He maintained that those who held offices should do the duties of those offices; that high places in the Commonwealth belonged to merit, and that those who without merit were intruded into authority were thieves and robbers." In short, he professed the old creed with which all noble-minded men from the beginning have entered into life — the old creed, of which they find in the end that the smallest homoeopathic element is the most that mankind will absorb.

Whitgift, then master of Trinity, afterwards Archbishop of Canterbury, and Elizabeth's "little black parson," soon sent up to the Court special charges against Cartwright. He had said that Archbishop and Archdeacon should be abolished in name and office, and that Bishops and Deacons should be recalled to the Apostolic pattern. Bishops should be elected only by the Church, and ministers were only ministers when called to a spiritual charge. To kneel at the Communion he had called a feeble superstition. Unless opinions like these could be put down, it appeared to the Heads of Houses at Cambridge that all authority in Church and State would be overthrown.¹¹⁰

Occupied at the time with serious matters, Cecil was unable for a time to comprehend the nature of Cartwright's offence. He wrote to the Board that he could see nothing in his conduct which could be called improper. The professor appeared simply to have been giving his pupils the result of his own studies of the New Testament. "Until further orders could be taken," it would be well if he did not touch on the disputed topics; but beyond this recommendation Cecil declined to go.¹¹¹

Had Cecil's temperance been imitated at the University, moderation might have produced moderation. The youngest man of genuine ability is never inaccessible to reason, and had Cartwright been treated discreetly he would have become himself discreet. But the opinion of a statesman weighed nothing with the men who governed Cambridge. The Professor was suspended, and his influence became ten times greater than before. Though the lecture-room was closed to him, the pulpits were free. He had but to open his lips there and his word was absolute. He denounced the unfortunate vestments. The

¹¹⁰W. Chaterton to Cecil, June 2; Whitgift to Cecil, November 7, 1570 »ISS. Domestic.

¹¹¹Cecil to 'the Vice-Chancellor and Heads of Houses, August 3: MSS, Domestic.

next day, all the students but three in Trinity appeared in chapel without their surplices. It was too much. Cartwright was deprived of his Fellowship and expelled from the University.

Of all types of human beings who were generated by the English Reformation, men like Whitgift are the least interesting. There is something in the constitution of the Establishment which forces them into the administration of it; yet, but for the statesmen to whom they refused to listen, and the Puritans whom they endeavoured to destroy, the old religion would have come back on the country like a returning tide. The Puritans would have furnished new martyrs; the statesmen, through good and evil, would have watched over liberty: but the High Church clergy would have slunk back into conformity, or dwindled to their proper insignificance. The country knew its interests, and their high-handed intolerance had to wait till more quiet times; but they came back to power when the chances of a Catholic revolution were buried in the wreck of the Armada; and they remained supreme till they had once more wearied the world with them, and brought a King and an Archbishop to the scaffold.

These petty troubles, however, fertile as they were of mischief in the future, were of small importance by the side of the immediate pressing perils. Nestled in the heart of England lay the bosom serpent, as Walsingham called the Queen of Scots, with the longing eyes of the English nobles fastened upon her as their coming deliverer. There she lay, deserving, if crime could deserve, the highest gallows on which ever murderer swung, yet guarded by the mystic sanctity of her birth-claim to the Crown.

Cecil has not left on record the impression which Mary Stuart made upon him when he saw for the first time the object of so many years' anxiety. It was not then as when, seventeen years later, those two once more encountered each other, when compromise was dreamt of no longer, and long-lingering justice was claiming its own at last. What to do with her at present, and till the times were ripe for the sharp remedy of the axe, might well try the strongest intelligence. England, north and south, was trembling on the edge of a second rebellion. The Duke of Norfolk had been released from the Tower, on renewing his promise 44 to deal no more in the matter of the Queen of Scots." A second time he sent a copy of his bond to the very person with whom he was pledging himself not to communicate, meaning bad faith from the first, as the Bishop of

Ross, who was in his confidence, admitted.¹ The turn which affairs might take in 1 Confession of the Bishop of Ross, 1571: Murdin.

Prance was still far from certain. If the Admiral was received at Court, the peace might lead to Spain, or the project might yet be revived forriage of Anjou and the Queen of Scots;¹¹² while engagements, guarantees, promises — all the pledges, whether made by the Queen of Scots, by the Court of Paris, or by any or every person who became security for the observance of the treaty — could be brushed away like a cobweb by the all-powerful representative of St. Peter. Cecil well knew that he was walking on a thin crust with the lava boiling under his feet. Whether the crust was hardening, or whether the fire was eating its way through, time alone could tell him. The Queen of Scots had sent the copy of the articles proposed to her to Brussels and to Paris. She had looked for an instant interference, and both she and her friends were “dismayed and angered” at Alva’s seeming coldness. Arundel, Norfolk, Maitland, and even La Mothe, now advised her to accept the best terms which she could obtain, if only she could recover her freedom. They believed that they would be able to compel Elizabeth to go through with the treaty on her part, if no difficulty was raised by the Queen of Scots herself.

In this spirit therefore she received Cecil at Chatsworth, following Maitland’s advice, and fighting over the details of the proposals which were made to her. She showed considerable adroitness in qualifying or altering uncomfortable phrases. In a clause for the punishment of Darnley’s murderers she introduced the words “according to the laws of the Realm, intending, as a marginal note in Cecil’s hand indicates, to shelter Bothwell still behind his previous acquittal. She was willing to bind herself to do nothing for the future in prejudice of the Queen of England or her issue; but she inserted, as a marginal note again mentions, “with no good and honourable meaning,” the word “lawful” — making the phrase “lawful issue,” as if Elizabeth might produce issue which would not be lawful.

Yet, on both sides, there appeared a willingness to come to terms. Cecil was ready to soften violent expressions. The Queen of Scots

¹¹²On the 31st of August Sir Henry Norris wrote that it was feared the King, after lulling the Admiral into a false security, would destroy him and his friends. Anjou, “whose haughty mind could not be restrained within a younger brother’s portion,” was looking to England and Mary Stuart to provide him with a kingdom and a wife; and Norris warned the Queen that she must stand upon her guard if she wished France to make fait weather with her. — Norris to Elizabeth, MSS. France.

did not insist on her exceptions, which were introduced, perhaps, because they were in keeping with her character, and because too much readiness to make concessions might increase Cecil's suspicions. In manner he treated her with the respect due to a princess who might soon be his own sovereign while on her part, as Elizabeth foresaw, she exerted her utmost power of fascination to win and charm him. It was an encounter of wit in which each was trying to gain an advantage over the other.

"The Queen of Scots," wrote the Bishop of Ross in a letter which fell afterwards into Cecil's hands, "hath dealt with Mr. Secretary in such sort that he hath promised to be her friend. He likes well of her nature. He promises to travail that the Queen of England shall speak together, given his counsel how she should behave herself in that case to win the Queen of England's favour. He has spoken to me of the Queen of Scots marriage by way of conference, seeming to persuade that she yill marry with the Earl of Angus; but I have declared plainly that she will never marry a Scottishman. He hath told me secretly he could like well of the Duke of Norfolk's marrying her, but now is no time to speak of it. He saith that the Queen of England fears that the Queen of Scots and Norfolk would wax arrogant in that case; but yet he thinks that this surety that she makes to the Queen of England shall put away that fear and so the matter may be followed. I think he may be made to labour for that marriage if Norfolk do cause employ him; and in the meantime I will deal as of myself to knit the knot of sure friendship between Norfolk and him, for he shows himself very plain to me in many things."¹¹³

By arts which the circumstances justified, Cecil evidently had wound himself into the partial confidence both of the Queen of Scots and of her minister. They had tempted his loyalty and fell into their own snare, and he had discovered thus much at least that the marriage which Norfolk had professedly ceased to think of was still in steady contemplation. At the end of a fortnight he returned to London, and the two parties in Scotland were requested to send up their respective commissioners without further delay. I he representatives of the Queen were immediately ready. Lord Livingston and the Bishop of Galloway were selected to act with the Bishop of Ross. The Regent and his friends, who had persuaded

¹¹³MS. endorsed in Cecil's hand, "The Bishop of Ross to the Duke of Norfolk," October 11: MSS. Mary Queen of Scots.

themselves that the danger was passing over, were in despair. They again reminded Elizabeth of her promises at Westminster. "They said that they were so amazed and astonished that they knew not what counsel to take.

"Surety there could be none," they said, "either for themselves or England, if the Queen of Scots was restored." Douglas of Lochleven swore he would not keep the Earl of Northumberland a prisoner any longer to please Elizabeth. Randolph applied for his recall, "finding his credit clean decayed," and his old friends "alienated and clean gone from her Majesty's service." They talked again of revolting to France. They said "they would reconcile themselves secretly with their own Queen."¹¹⁴ Instead of commissioners to treat, they sent up the Commendator of Dumfermline to conjure Elizabeth, in the name of honour, justice, and prudence, to reconsider what she was doing.

The agitation produced no apparent change in Elizabeth's resolution. She said that she did not mean to do anything unjust; she was willing to listen to the Regent's objections; but "unless he could fortify his cause with such evident reasons as her Majesty might with conscience satisfy herself and with honour answer to the world," the treaty for the restitution must go forward.

In the meantime, however, a negotiation was in secret progress which, if successful, might obtain a more favourable hearing for Lennox's remonstrances. The peace was concluded in France, between the Court and the Huguenots, on the 10th of August. As is usually the case after civil convulsions, a desire naturally arose to heal the internal wounds of the country by "removing the war elsewhere." Whether England or Spain was to be the object of hostility, depended on whether the Catholics lost or retained their hold over Charles and Catherine. On the one side they might attempt the release of Mary Stuart and her marriage with the Duke of Anjou; on the other the recollections of St. Quentin still rankled; in alliance with Elizabeth and the Prince of Orange, France might appear as the champion of liberty and expel the Spaniards from the Low Countries. To ascertain which of these tendencies was likely to prevail, a young statesman of supreme ability was despatched on a special mission to the French Court. The early history of Francis

¹¹⁴Lennox to Elizabeth, October 16; Randolph to Sussex, October 16: Randolph to Cecil, November 13; Sussex to Cecil, November 18: MSS Scotland. i

Walsingham is almost a blank: he was born at Chiselhurst in Kent, in what year is uncertain, nor is anything known of the occupation or station in life of his parents. He was at Cambridge during the Marian persecution, and to escape conformity took refuge in Germany, but for the ten years after he returned to England nothing was publicly heard of him. A note from him on the murder of Darnley, however, in November 1568, shows that by that time he had been admitted into Cecil's confidence. He had been selected for the delicate duty of watching the Italian Kidolfi during the Northern rebellion, and when he was appointed minister at Paris, La Mothe was able to warn the Court there that no ordinary man was coming among them.

The direct instructions which Walsingham carried over were, to express Elizabeth's satisfaction at the peace, and her hope that the toleration now promised to the Huguenots would be faithfully observed: ¹¹⁵ should the war break out again, a general Protestant league would be the necessary consequence; the Queen of England would be compelled to take part in it, and all the force which she could command would be exerted in the cause. Beyond this simple message the new ambassador was left to his own discretion, to feel his way at the Court and report on what he found.

Mary Stuart and her cause created scarcely less embarrassment in Paris than in London. Lord Seton's mission to the Duke of Alva had excited the most violent displeasure. A revolution in England in Spanish interests was a catastrophe of which the very thought was unendurable, while a permanent league between England and Scotland, and the education of the Prince at the Court of Elizabeth, was almost equally distasteful. The Royal Family was divided. Anjou was restive and ambitious. He had distinguished himself in the war, he was discontented with his position as a subject, and he had liked well the adventurous prospect held out to him in England. At the instigation of the Cardinal of Lorraine, he thought of directly proposing for Mary Stuart's hand, and it was supposed that although she was binding herself by the most solemn engagements not to think of him, her promises would be no obstacle to her acceptance of his overtures. ¹¹⁶

¹¹⁵ Instructions to Walsingham, August 11: Digges's Complete, Ambastador. Compare La Mothe, August 14.

¹¹⁶ "Tras esto se cierto que el Duque de Anjou ha de enviar un criado suyo a hablar con la dicha Reyna de Escocia, y saber si su voluntad seria de casarse con l. Podra ser que la Reyna no viniese nial en ello, pero a a mayor parte de los Ingleses por ahora no les aplice, ni a mi tan poco." Don Guerau to Philip, October 15: MS. Simancas.

Jealous of his brother's schemes, and afraid that with his popularity among the Catholics, Anjou as Mary Stuart's husband would be dangerous to himself, Charles said significantly to Sir Henry Norris that if he were the Queen of England, and had the Queen of his hands, he knew what he would do with far different project for the Duke of Anjou, if the Duke could be brought to consent to it, was shaping itself in the minds of the Huguenot statesmen.¹¹⁷

Elizabeth again and again, in conversations with La Mothe Fenelon, had reverted to her own marriage. She regretted to him that she had let so much time go by. She was afraid to face the Parliament which her necessities would soon oblige her to call, with her promises still unfulfilled, the succession still uncertain, and the means of settling it farther off than ever. Sir Henry Cobham had been sent to Maximilian to tempt the Archduke to renew his suit, but he had received a cold answer; the game at trifling at Vienna had been played out and lost.¹¹⁸ Already, however, another proposal had been submitted to the Queen's consideration. The Vidame of Chartres and the Cardinal of Chatillon suggested that she should cut the knot of her difficulties, secure France, and snatch at least one dangerous lover from her rival by taking Anjou for herself. The Duke, it was true, was but twenty, while she was thirty-seven, but she might still hope for children, and the political advantages to the Protestant cause in Europe might compensate for greater incongruities. How Elizabeth received the idea when first laid before her is not known. Five years previously she might have married Charles, but she had then revolted from the absurdity; she was now offered his younger brother, and it is only clear that her answer was not wholly unfavourable. A few weeks later Chatillon wrote to Anjou. Anjou spoke to his mother, and Catherine, taken it seemed by surprise, enquired at length of La Mothe the meaning of a movement so unexpected. Elizabeth, she said, had played with so many proposals, had encouraged suitor after suitor, and had abandoned them one after the other with so little scruple, that the very mention of her marriage now provoked a smile. Families of Europe did not like to be made and the Queen Mother did not conceal her belief that the present overture was but another trick to escape

¹¹⁷ *u Si je la tenois prisonniere, ou que je fusse en lieu de la Roynie d' Angleterre, je sais bien ce que je ferais.* — Norris to Cecil, October 29: MSS France.

¹¹⁸ La Mothe, October 30: Bepeches, Vol. III

from a pressing embarrassment. But she had no objection to the English alliance. She had Catherine Grey; she imagined that Lord was dead and that she was a widow. This lady she thought the Duke might very well marry, and Parliament would then perhaps entail the crown upon Lady Catherine and her son. She knew vaguely that Cecil was interested in the Grey family. She desired La Mothe to tell him that if he could bring about this alliance, he might secure the gratitude of France, and his own continued supremacy in the direction of the policy of England.¹¹⁹

La Mothe was obliged to tell her that Catherine Grey was beyond the reach of diplomatic schemings. Elizabeth herself, however, continued to allude to the subject of her own marriage. Her husband, she said, if ever she took a husband, should belong to one of the reigning families of Europe; and at last she directly mentioned the Duke to La Mothe as a person on whom her mind had been resting. La Mothe was still unable to believe her serious; he suspected, like the Queen Mother, that she was trying merely to separate France from the Queen of Scots or create jealousies between France and Spain. Two papers upon the subject however, written by Cecil in December and January, before the French Court had seriously entertained the proposal, survive to prove that at least he and probably his mistress had taken up the thought in earnest.

"That the Queen, unless she married some one, would lose her throne, was assumed by Cecil as, humanly speaking, certain. If she let the age pass unimproved within which she could hope for children, "she would be in danger of such as by devilish means might be tempted to desire her end." "If God in His goodness preserved her from murder, yet she would be in danger to lose daily the loyal duty and the love which was borne her by her subjects." "She could not live forever." "Those who had possessions and families must necessarily foresee for the preservation of themselves and their children after their death." They would determine in their own minds who must succeed her, and to this person, "at first secretly, and then in process of time more boldly, they would direct their devotions, and so have less regard of the continuance and preservation of her Majesty." Conduct of this kind was to be looked for from loyal subjects, and besides these were the crowd of persons who already for one reason or another "grudged and disliked the continuance of her Majesty's life,

¹¹⁹ Catherine de Medici to La Mothe. October 20: Depeches. Vol. VII.

and were therefore ready always to assist in any innovation by practice, rebellion, or invasion."

"The Queen would thus become gradually conscious that she was disliked and neglected." She would have no one on whom she could rely, and "finding no remedy to recover the affections of her people for lack of marriage and children, she would have a perpetual torment in life."

"On the other hand, if she married, though she might have no children, there would long be the possibility of children. The people could still cling to the hope that the crown would remain in the line of King Henry VIII.," "and the curious and dangerous question of the succession would in the minds of quiet subjects be as it were buried — a happy funeral for all England." Disloyal noblemen would cease to speculate on the Queen of Scots' marriage; discontented rebels and Papists would forbear to practise with foreign princes; and "should God give to the realm the blessing of issue of the Queen's Majesty, the joy would be so great to good subjects and the grief so great to the evil, that her Majesty would see as it were a new life in the hearts and bodies of her loyal people, and the evil and froward would put on the likeness of the good. Her Majesty would have no reason to fear the marriage of the Queen of Scots, as now she had great cause to do, nor any practice of troubles in the realm, nor any need of maintaining an armed watch upon adjoining kingdoms."

"Marriage then being thus infinitely desirable, whom should the Queen choose? Should she marry a foreign prince? Should she in fact marry the Duke of Anjou? The objections were to be noted first.

"The Duke was scarcely more than a boy, his character was unknown, and was perhaps unformed. He had appeared so far to be more a Catholic than a Protestant. Being a Frenchman he would be unwelcome to the English people, and the alliance would complete the estrangement with the House of Burgundy. If there were children, and if the King of France were to die, the two crowns would fall to one person; if there were none, the Duke with his brother's help might encroach upon the crown — by colour, perhaps, of gift from the Pope — or finally, if there were no children and the Queen of Scots remained unmarried, her Majesty's life might be prematurely shortened. Some insinuation might light into the heart of the Duke to attain the marriage of the Scottish Queen, whereby to continue in possession of the

Crown of England, and so conjoin the three kingdoms in his own person."

This was the unfavourable aspect of the marriage, but the medal had a brilliant reverse.

"The connexion was princely and noble," and would draw together the "two great realms of France and England."

"The Queen would be delivered from the continual fear of the practices of the Queen of Scots, upon whom almost wholly depended the prosperity and adversity of her Majesty's whole life and reign." "The King of Spain would no more torture and imprison English subjects." "The Pope's malice, with his Bulls and excommunications, and the spite of all his dependants as well in England as abroad, would be suspended and vanish in smoke. Ireland would be no longer in daily peril of revolt." The Duke would bring a handsome revenue with him from his duchies, and should he, as perhaps he might, "accommodate himself to the religion of England," the Reformed faith would be established in France and throughout Christendom, "to the honour of the Queen and the augmentation of the glory of God." In one form or another Calais would be recovered, and the expenses of the Government would be reduced on every side. In a word, the result to be expected from the marriage was a general return of security — security at home against revolutions, security against combinations among the foreign powers. The Queen, of course, could not be pressed to accept the Duke "till she had assured herself of the qualities of his person," but Cecil so confidently anticipated her acquiescence that he recommended rather the suppression than the display of her feelings: "So as the French King might be made more earnest in his suit, and the conditions of the compact be thus made more beneficial to her Majesty and the realm.

A marriage with a princess so publicly and recently excommunicated would for some time at least decide the character of the relations between France and Rome. An open quarrel and a consequent increase of favour for the Huguenots appeared certain to follow; a war for the liberation of the Netherlands would come next; and when the French Government had once broken with the Catholics, there would be little danger of the darker possibilities which had suggested themselves.

Elizabeth at first diffidently, and afterwards with seeming frankness, talked about the marriage to La Mothe, and gradually Cather-

ine de Medici shook off her suspicions and began to hope that Elizabeth was m Leicester took credit for self-sacrifice in withhis own pretensions; and when the subject seriously discussed, he himself introduced the Ambassador to the Queen's private room at Hampton Court.

Elizabeth, whom La Mothe found better dressed than usual for the occasion,¹²⁰ at once broke the ice. She said that circumstances obliged her to overcome her reluctance to marry, and that she intended to select a husband from one of the reigning houses. La Mothe, who knew what was expected of him, replied that if this was her resolution, he commended to her the pretensions of one of the most accomplished princes in the word. Could he be the means of bringing about a union between her Majesty and the Duke of Anjou, he would esteem himself the happiest of men.¹²¹

The Duke, the Queen answered, was indeed worthy of far higher honours than she could offer him. She feared, however,, that his affections must have been already centered in some fairer quarter. She was herself an old woman, and but for the hope of children would be ashamed to think of marriage; and if the Duke accepted her she supposed it would be rather for her realm than her person. French princes had a bad name for conjugal fidelity. She spoke of Madame d'Estampes and the Duchesse de Valentinois, and she said she would not like to find herself the wife of a man who might respect her as a Queen but would not love her as a woman.

La Mothe protested that she would find the Duke all that was most devoted and all that was most deserving of devotion.¹²² He reminded her that when she was once married she would find all her troubles disappear, and he partly — but partly only — succeeded in removing her uneasiness. She said she would rather die than feel herself unloved.

She was perhaps, however, following Cecil's advice, and concealing her own eagerness. The two Courts were coquetting with each

¹²⁰On j je la trouvay mieulx paths que de coustume. - La Mothe to the

¹²¹Commodities that may follow from the marriage with ffe Duke of Anjou December, 1570. Notes on the Queen's marriage, January 14, 1571, In Cecil's hand, abridged: MSS. France, Rolls House.

¹²²11 avoit cette pdculihre qu'il s;avoit extremement bien aymer et m rendre de mesmes parfaitement aymable." — La Mothe, January 23.' i La Mothe, January 23. 2 Ibid/Februar 6

other, each at heart most anxious, and afraid each of losing the prize by grasping at it too precipitately.

"The Queen of England," reported La Mothe, "is one of those who will fly when they are sought after. It is a peculiarity of the English nation, who the more you desire anything of them the more coy they become, though what you ask is to their own advantage." 1., Till the middle of January the negotiation was kept a profound secret, Leicester and Cecil alone sharing the Queen's confidence. The preliminary stages, however, being got over, and the good-will ascertained on both sides, an indirect proposal was made by Charles which it became necessary to submit to the Council.

No stronger proof could have been given of the desirableness of the marriage than the dismay with which the mention of it was received. On Arundel and Arundel's friends, on the party of the Duke of Norfolk and the Queen of Scots, on the adherents of the House of Burgundy, and the intriguers for a Catholic revolution, it fell like a thunderstroke. La Mothe argued and reasoned, but to no purpose. If such a marriage as this could be brought about in the teeth of the excommunication, the cause of the at 10 ie Church, the Church of the Council of Trent, the Church of fanaticism, the Church of Alva and Philip and the Cardinal of Lorraine, would be lost forever. Scene after scene followed of violence and passion. The extreme Protestants suspected Anjou for his antecedents. The English traditional prejudices were set on fire.² At length Elizabeth summoned all her ministers into her presence, and said with tears in her eyes that they and only they were to blame for the breaking off her marriage with the Archduke Charles. It was they who had caused her to offend the King of Spain. 'It was they who had made the troubles in Scotland, and but for her own prudence they would have involved her equally in a quarrel with France.

Now at this supreme crisis of her life, she implored them not to fail her. A marriage with the Duke of Anjou would open a road out of all her perplexities, and those who set themselves against it were bad subjects and enemies of the realm.¹²³

¹²³"Entendant les diverges opinions que ceulx de son conseil dessus, elle les avoit assemble pour leur dire, la iarme a Pceil, mal venoit a elle, a sa couronne et a ses subjectz pour n'avoir espouse l'Archiduc Charles, il debitoit estre impute a eulx et non a elle; qui aussi estoient cause que le Roy d'Espaigne avoit estd offendd, et quele Royaulmo d'Escoce estoit en armes contre le sien, et qu'il n'avoit tenu aussi' a eulx que le Roy n'eust estd beaucoup provoqud davantaige par leurs d en faveur de ceulx

With the discussions at the Council the world was of course taken into the secret, and the agitation in France was as violent as in England. The Cardinal of Lorraine revived the scandals about Elizabeth's intimacy with Leicester, and frightened Anjou into believing that he was about to bestow himself upon a woman of infamous character. Anjou went openmouthed to his mother, and Catherine at first could do nothing with him; "she would have given all the blood in her body," she said, "to draw the matter out of his head, but he was obstinate and talked about dishonour; and Catherine, in despair at the thought of losing her prize, asked La Mothe whether Elizabeth would not take the Duke of Alençon instead. Alençon was but sixteen and was amenable to control.¹²⁴

But this cloud passed off. La Mothe was able to assure the Queen Mother that the stories were baseless scandals. The Court was so pure, and the Queen herself was so much respected by all classes of her subjects, that it was impossible to believe that she had misconducted herself.¹²⁵ The Pope, indeed, had lent his infallibility to the imputation, and the Catholics, to their no great credit, made Elizabeth's frailty an article of their creed; but the intelligence of men of the world, who were on the spot and could make enquiries, was not so piously credulous, and Anjou in a few weeks became as eager for the marriage as Catherine herself. A campaign in Belgium would give full scope to his military ambition; it would employ the swarm of soldiers whom the peace had let loose, and the success would be as certain as it would be easy. The Prince of Orange and the Germans would invade Holland. Elizabeth's fleet would seal the Channel against reinforcements from Spain, and the Royal family of France would be revenged for the death of their sister, whom they

de la Rochelle, si elle ne les eust empeschez; dont les prioit tres toutz de luy ayder maintenant a rabiller toutz les maulx par ung seul moyen, qui estoit de bien conduire ce party de Monsieur, et qu'elle tiendrait pour mauvais subject et ennemy de ce royaume et tres dloyal a son service qui aulcunement le luy traverseroit." — La Mothe February 6, 1571.

¹²⁴The Queen Mother to La Mothe, February 2: *Depeches*, Vol. singular letter was written by Catherine herself, the subject of too much consequence to be trusted to the most confidential secretary

¹²⁵"De tant qu'en sa court Ton ne voyt qu'ung bon ordre, et elle y estre bien fort honoree et entente en ses affaires, et que les plus grands de son royaume et toutz ses subjectz la craignent et reverent, et elle ordonne d'eulx et sur eulx avec pleyne authority j'ay estimé que cela ne pouvoit procder de personne mal fam, et ou il n'y eust de la vertu..a

believed, though without a shadow of foundation, that Philip had murdered.¹²⁶

Such was the programme which had grown up in Paris in connexion with the English marriage, and Catherine was only anxious to see the work commenced by driving Alva into the sea. The Nuncio suggested to Anjou "that if England was February. mark the spot at? it might be achieved easily by the sword, to his great honour and with less inconvenience than making so unfit a match."¹²⁷ But Anjou's thoughts had gone off into another channel and could not for the moment be brought back. One misgiving only continued to haunt the Queen Mother, that Elizabeth was trifling after all, that she would bring the Duke to the steps of the altar and then make him the laughing-stock of Europe. Guide Cavalcanti, for many years the unofficial minister of goodwill between the two courts, was again called into requisition. The Queen Mother sent for him to her bedroom and cross-questioned him, first about the truth of the Leicester scandals, and then as to what he thought of Elizabeth's present sincerity.

On the first point Cavalcanti answered that truth was the daughter of time. Elizabeth had been fourteen years on the throne; the hundred eyes of Argus had been fixed upon her, and nothing had been observed to justify "the false, slanderous, and envious bruits which had been spread to her dishonour; there was not in the whole world a more noble, virtuous, or better-natured princess." About the marriage he said that he had every reason, public and private, to believe that she was in earnest, and unless difficulties were made by France, the Duke might be in England before midsummer; but he suggested that Lord Buckhurst her cousin was in Paris, and could give her the fullest information.

Buckhurst, who had finished the business which brought him over,¹²⁸ was on the point of returning to England. The Queen Mother invited him before his departure to look over with her the gardens which she was laying out at the Tuileries, and there drawing him

¹²⁶There is not the slightest doubt of the existence of this conviction both in Charles and his brother. That it could gain credence at all is a proof how intense the national animosity against Spain continued to be. — See the Despatches of Sir Henry Norris, 1570, 1571, *passim*: MSS. France, Rolls House.

¹²⁷Walsingham to Cecil, February 8: Complete Ambassador.

¹²⁸Sir Thomas Sackville, first Lord Buckhurst, was grandson of John Sackville and Margaret Boleyn, sister of the Earl of Wiltshire, the father of Anne. Buckhurst had been sent to Paris to congratulate Charles IX on his marriage.

apart under the trees, she said that he could not be ignorant of the contemplated match; both she and the King, she told him, "were fearfully carried with mistrust that all was but abuse and dalliance," and Buckhurst would oblige her deeply if he would tell her the truth.

Buckhurst answered that as she had spoken freely to him he would meet her with equal openness. The Queen his mistress desired above all things in the world 'that France and England should be drawn together. As to the marriage, she had anticipated that some such question might be asked him, and she had directed him to say, "that for the benefit of her realm and contentation of her people she had finally and fully resolved to marry, and to match with the progeny of a prince out of her own realm."

"Could she be sure of this," the Queen Mother answered, "and if it was meant in deed and not only France and England might be the two most kingdoms in the world;" the honour of the French crown would be hurt if Elizabeth was insincere, but she would believe it was not so; and she went on to ask whether she might entertain hopes for her son.

"His commission," Buckhurst replied, did not allow 'him to answer this question, but "the Duke being so worthy a prince," and the benefits to be expected from such an alliance, to both the realms, being so evident, he thought, as a private individual, that if an ambassador was sent over to propose in proper form, he might be sure of a favourable reception. There was no occasion, however, for the Duke "to hazard his honour, ne would himself report the Queen Mother's words on his return, and he would inform her on all points, before she committed herself further.¹ Anjou was young, supposed to be brave, and not without ability. Walsingham was decidedly in favour of the marriage. Cecil, though fully conscious of the objections, thought them far outbalanced by the advantages; and so many dangers threatened Elizabeth, that something might well be risked to extricate her. He drew a sketch of the conditions under which he considered that Anjou might be received. On the point on which the negotiations with the Archduke had broken down he was particularly yielding. "The Archduke had been required to conform to the Anglian communion. Anjou would do enough if he would accompany the Queen to the Royal Chapel, and would promise, neither directly nor indirectly, "to attempt the alteration of the laws es-

tablished" in the constitution of the Church. The Liturgy might be modified to make it palatable to him. The prayers could be said in Latin, and the lessons read in Latin." "Should there be any manner of prayer or other thing in the book of the Divine Service of England that was not contained in Holy Scripture, nor used in the service of the Church of France, or if in the administration of the sacraments there were things different from the usage of the Church of France, neither the Duke nor his servants need use the same otherwise than as their conscience should persuade." Still further, it might be hoped that in time the Duke would conform wholly to the religion of his adopted country, but until he was persuaded to accept it with goodwill, Cecil thought that he might share the privilege of the ambassadors of the 1 Lord Buckhurst to Elizabeth, March 16: MSS. France.

Catholic Powers, and have a service of his own in a room in the Palace." ¹²⁹

These proposals were submitted privately to the French Council, and contained everything which they could reasonably demand. The French in return were ready to promise that the Established religion should not be tampered with. The marriage ceremony it was thought might be performed in the English form; some prominent members of the French Government, ecclesiastics as well as laymen, could be present as witnesses, and a special contract to be provided for the occasion would prevent a question from being afterwards raised as to the validity of the rite. ¹³⁰

The interests of Protestantism would have been more than answered by these mutual concessions, and Walsingham was most anxious that they should be confirmed and accepted by the principal parties. The Queen Mother, he wrote, intended to provide for her son in Scotland if not in England; and, "of all impending perils that would be the greatest." 3 Leicester, restore Catholicism, ready to devote himself to Catherine, to Norfolk, to the Queen of the Puritans, to any and every one in turn, as seemed to suit his interests, professed to be particularly anxious that this time the negotiation should be successful. Cecil made up his mind to the Duke's conversion, and

¹²⁹"Reasonable demands to be required of Monsieur for the preservation of the religion of England in credit, and the Protestants thereof in comfort, March 1571." In Cecil's hand: MSS. France.

¹³⁰"Qui res omnes ibidem gestas in acta secundum formam juris redigere valeant." — Marriage Articles proposed by France' MS. Ibid. Walsingham to Leicester, March 9: Complete Ambassador

saw him in imagination becoming "a professor of the Gospel;" "a noble conqueror of all Popery in Christendom while Walsingham, too eager to doubt that the marriage would be brought about, was busy knitting the political combinations which were to follow, and forming plans for the conquest of the Low Countries."¹³¹

The marriage project, meanwhile, in its' incipient stages, had not affected the diplomatic interference of France in behalf of the Queen of Scots.

Charles continued to declare, that unless his January sister-in-law was released he would have to take up her cause in earnest. M. de Virac remained at Dumbarton with the Hamiltons. La Mothe pressed upon Elizabeth, and Elizabeth declared that she still intended to keep her promise. Notwithstanding the protest of the Regent, the English Council resolved itself into a commission for a final settlement. The Bishop of Galloway and Lord Livingston came up from Chatsworth.² They were well received by Elizabeth, and a suspension of hostilities was proclaimed in Scotland till the 1st of April, by which time it was expected that all would be arranged. The proceedings waited only for the appearance of the representatives of the Regent; and the delay gave opportunities for informal discussions and endless intrigues. Maitland's letters were deciphered and read by Cecil. La Mothe objected to the education of the Prince in England. The threatened occupation of Scotch castles by English garrisons was equally intolerable to him; and Livingston intimated that it was preposterous to expect Scotch noblemen to reside at Elizabeth's court as hostages. Mary Stuart herself said, that without some equivalent she would not relinquish the French alliance and forfeit her dowry; while again, new features of the Queen of Scots' misdemeanours in England were coming perpetually to light. The Bishop of Ross was pointedly told that his mistress should think less of marrying Don John of Austria. The Bishop, in turn, informed La Mothe that if the King of France would allow the Queen of Scots four thousand crowns a month, her friends would reduce Scotland in half-a-year; and Charles answered that he would consent, if the treaty came to nothing.¹³²

¹³¹Cecil to Walsingham, March 25; Walsingham to Cecil, April 5: Complete Ambassador.

¹³²The King of France to La Mothe, February 19: Depeches, Yol VII. i La Mothe, March 4, 1571. Short answers to four principal points, February 24. In Bacon's hand: MSS. Mary Queen of Scots.

But the interference of France was contingent on the success of the negotiation for Anjou. Elizabeth knew it, and her intentions towards her prisoner varied with her disposition towards matrimony. Her marriage, when once completed, would remove the political to the restoration; while, if she backed out resentment of France at her trifling would enhance the danger a hundredfold.

At length Lennox consented to put in his appearance; the Earl of Morton arrived for the young King, and the way toward a conclusion seemed to be opened. But Morton had not 'come to London with any such intentions. The Commission held its first sitting on the 24th of February. The Earl, instead of consenting to consider the details of the treaty, presented a passionate remonstrance, expressing only with increased vehemence the objections which had been before conveyed through the Abbot of Dumfermline. It was the old story, but it could not be too often repeated. When Morton ceased, Bacon rose to • support him. Queen of Scots was restored," said the Lord u in three months she would kindle a fire which would wrap the island in flames, and which tle power of man would fail to extinguish. If Elizabeth would recognise, the Prince and support the Regent, all Scotland would instantly be at her devotion, and with Scotland hers she might defy the malice of the world. His mistress," he said, "believed herself bound by promises to the Queen of Scots; but neither the Queen of Scots nor her friends were prepared to fulfil the conditions under which alone the restoration could be contemplated. Without material securities it was not to be thought of, and securities adequate to the risk did not exist. To send Mary Stuart back to Scotland would alienate every friend which England possessed there; and as to the grave question so often raised of the rights of subjects and sovereigns, the Queen of England had no concern with the titles of the princes with whom she treated. If treaties could not be made till the right of every prince to his crown was first ascertained, the world would fall in pieces. It was enough that a King was a King, and the fewer questions asked the better." 1

Elizabeth answered gloomily that if there was danger in restoring the Queen of Scots, there was greater danger in detaining her. The Commission was not sitting to decide what was already determined, but to consider the conditions on which the venture might be made. The Bishop of Ross, in Mary Stuart's name, entreated that there mirdit be no further delay: she was ready, he said, to make ev-

ery concession that might be thought necessary. The hostages should be forthcoming, and the Prince should be given up.

La Mothe supported the Bishop, the general question was assumed to be settled, and the business went forward. The next step was the presentation of a petition by the Bishop of Ross, requiring that the March' abdication made at Lochleven should be declared invalid. Morton said fiercely that the grounds on which the Queen had been deposed had been already examined into, and were sufficiently well known. The Bishop replied, that subjects, whatever their complaints, had no rights over their princes. The tribunal to which a Queen Regnant was amenable, he argued, was a council of sovereigns, who alone could take cognisance of such a cause;¹³³ and he appealed with effect to Bishop Jewel, who had limited Christians "to prayers and tears" when their princes tyrannized over them.

The fine talk did not affect Morton. He, with his life and fortune at stake, fell back upon the facts. The government of Scotland, he said, was established in the person of the young King. The change of the son for the mother had been made for adequate reasons; and if the Queen of England forsook him, they could themselves find means to support him and to force submission on the disobedient.

. Remembering the complaints and entreaties for assistance with which she had so long been besieged, Elizabeth fired up at these last words, which, if they meant anything, meant a revolt to France. "That

¹³³La Mothe, March 12. The Bishop supported his position in a written memorial with his old and favourite illustration. Except in special cases, such as Jehu's, which were not to be taken as examples, he said that Scripture always enjoined obedience to the sovereign, even though "he might be a terrible tyrant." "David himself, whom God always called a man after God's own heart, committed both murder and adultery, and yet his subjects, the Jews, rose not against him. But God not only continued his estate, but also his son Solomon, gotten upon Bathsheba, enjoyed his chair and sceptre after him." "When God," he continued, "was minded to trouble the Kings of Judah for their sins, he punished them, not by the Jews, but by the Babylonians and Assyrians. He punished Saul not by David, but by the Philistines." "So it was in the time of shadows." "In the time of grace and truth" the rule was tiade more clear. "Nero was an impure beast," yet God nevertheless declared that he was to be obeyed, not only for fear of vengeance, but also for conscience' sake. No one had condemned more distinctly "all wicked detestable rebels that went about under colour of rebellion to banish their natural sovereign," than Bishop Jewel. Bishop Jewel had proved that whatever the crime of the sovereign, the arms of the Christian "were but tears;" and Peter Martyr had said that "if it were lawful for to put down their Princes that reigned unjustly, no Prince should at any time be in safety." — Memorial presented by the Bishop of Ross, March 4: MSS. Scotland.

language, she said when it was reported to her, "the Earl of Morton never brought with him from Scotland; it was put in his mouth by some of my own Council, and they ought to be hanged outside the doors, with the words hung about their necks." ¹³⁴ Yet with Elizabeth, also, there were facts which were highly pressing. She had brought the -Anjou complication upon herself, and she must either marry him or else affront him and turn him over with more certainty than ever to the Queen of Scots. The dispensation was promised by the Pope, and the Duke was supposed to have no objection to the change. ¹³⁵

In such a situation the wisdom of one moment became the folly of the next. Anger and vexation would not answer arguments or remove dangers, and with Leicester forever whispering at her ear, she and fro, now determining to restore the Scots, now to marry Anjou, now to go with Cecil, now with Arundel and Norfolk.

Morton at last brought matters to a crisis by declaring that whatever might be the Queen's pleasure, he had not brought powers with him to agree to the restoration. If she meant to persist, he must return to Scotland and consult the Estates. The English Parliament was about to meet. Elizabeth accepted Morton's excuses, and further discussion was prorogued indefinitely. She directed Lord Shrewsbury to pacify the Queen of Scots by assuring her that the settlement of her affairs was only postponed. The answer was to be satisfactory, and she therefore told the he must "take good heed to his charge; "being discontented, she would leave no means unsought to attempt her escape." ¹ For the time, at any rate, the Anjou negotiation would ensure the acquiescence of the Court of France, and if Elizabeth could but resolve to marry the Duke, she might count upon their permanent indifference. It was enough that she. was safe for the moment, and if time brought new complications, it might bring the remedy along with them.

¹³⁴ Elle a diet qu'elle s que ledict Morton ne l'avoit aporte telle de son pays, ains l'avoit aprinse icy d'aulecuns de ceulx mesmes du conseil lesquelz elle vouloit bien dire qu'ilz estoient dignes d'estre penduz a la porte du chasteau avec-un rollet de leur advis au coul." — La Motlie March 12.'

¹³⁵ So La Mothe says that Walsingham wrote from Paris. "Le Sieur Walsingham a escript qu'il a descouvert ung propos qui se mene bien chauldement pour maryer Monsieur le frere de vostre Majesty avec la Roynne d'Escoce et que le Pape luy promet la dispence et beaucoup d'avantaiges au monde en faveur dudict mariage, et que les choses en sont si avant que mon diet Seigneur promet d'y entendre ausitost que par ce trettid ladicte Dame sera restituee en son estat." — Ibid. i Elizabeth to the Earl of Shrewsbury, March 24: MSS. Halfidd.

That Mary Stuart would not sit down patiently under her disappointment, no particular wisdom was required to foresee; but Elizabeth scarcely even yet comprehended the energy of the person with whom she had to deal. The Queen of Scots had long anticipated that the treaty would end in nothing. She knew that Cecil was not a fool, and she must have soon been undeceived in her hope that she had gained him over. She believed Elizabeth to be as false as she knew herself to be, and before the Conference opened she had written to the Archbishop of Glasgow to bid him stir the King of France in her faaoui. A few weeks before, Anjou had all but proposed for her hand. The French Court still professed the most ardent desire to help her, and La Mothe appeared to be working heartily with the Bishop of Ross. Suddenly, with overwhelming surprise, she learnt that her false lover was going over to the English Queen; that a marriage between them was seriously contemplated, and that the fault would not be with Charles or Catherine if Anjou did not soon become the husband of Elizabeth. She, perhaps, might be kept in hand as a reserve card, if the other game was a failure; but her proud blood boiled at the indignity. That so detestable an alternative could be even contemplated by the French Court, at once convinced her that it was idle to hope that the Queen Mother would really move for her. She had been hitherto embarrassed by the jealousies of the Great Powers. They would not act for her together, and if she threw herself upon one, she would offend the other. This difficulty was now at an end. Her hope, if hope she had, was in Spain and in the Pope. To them the ill-omened union between Huguenot France and Protestant England would be as unwelcome as to herself; and, in his own defence, Philip would take up her cause at last.

Stung to fury by this unlooked - for blow, she watched with impatience the lingering of the treaty, which now she could scarcely wish to succeed. She at least had no expectation that Anjou would come back to her if she were free. Her friends in Scotland had looked to France to unloose the meshes of the obligations into which they were about to enter, and France, false, traitorous France, would only draw the cords tighter, and leave her a slave in Elizabeth's hands.¹³⁶

Alva caught the alarm like herself. He, too, had satisfied himself that peace in France meant war in the Netherlands. He had advised

¹³⁶Mary Stuart to the Archbishop of Glasgow,, January 1: Labanoff Voi. m. yoti. x. 10

Mary Stuart in the autumn to consent to the treaty, but when he heard of the intended match, he felt that it would but throw her again into the hands of her rebel subjects, and that the chances of a Catholic revolution would be farther off than ever. She was recommended to atescape, and if she could succeed, to make her Spain, where she could either marry Don John, or wait for Norfolk to declare himself a Catholic.¹³⁷

Yet she was disturbed with seeing that Alva also seemed anxious to compound his quarrels with Elizabeth. The existing government of England was a reality to which the Duke attached more importance than the Catholic refugees desired. The ease with which the Northern rebellion had been put down, weighed more with him than tabulated statistics on the numerical strength of the disaffected. The unflinching determination with which the Queen maintained the privateers seemed to prove that she was confident of her resources. He was alarmed with rumours that a descent would be soon attempted, under the direction of Count Louis, on the islands at the mouth of the Scheldt,¹³⁸ and although insult was accumulated on insult, and injury on injury, he felt himself compelled to smother his resentment, and endeavour, by smooth words and humiliating concessions, to prevent this fresh addition to his embarrassments. His best chance of escaping a war with France was to reconcile himself with England. He understood Elizabeth's character well enough to know that she would never marry the Duke of Anjou if she could help it; but he believed also that she might be driven to it if pressed to extremities; and, that the alliance between England and France thus cemented, would be followed by the serious movement against Spain, for which the Huguenot chiefs were longing, and which Walsingham so enthusiastically anticipated.

Notwithstanding Chapin's failure, therefore, the Duke of Alva continued his pacific advances. A third time he sent over a commissioner; not a soldier like the Marquis of Chetona, but a member of the Flemish Council, Count Schwegenhem. The open object was the restitution of prizes and the reopening of trade • the private object was to separate Elizabeth from the French; and Alva, to tempt her, made certain secret offers, the nature of which Elizabeth did not care to reveal, but it was something, she said, which would not a little have

¹³⁷ Mary Stuart to the Bishop of Ross, February 8: Labanoff, Vol. III.

¹³⁸ "Aquí tratan de molestar los Payeses Baxos, creyendo por esta via

amazed La Mothe. Count Schwe- escusar la molestia en sus Islas y aguardan aqui al Conde Ludovico de Nassau. Aperciben con tanta artilleria las naves destos Piratas Flamencas y Inglesas que es maravilla, y la Reyna les ha ofrecido cien piegas, y las cuarenta cargan ya en barcos para llegar a la Isla de Huiet, donde M. de la Mark se llama Almirante del Principe de Orange. — Don Guerau to Philip October 28, 1570: MS. Simancas.

This passage is underlined by Philip himself, and on the margin is one of his characteristic exclamations of distress, *Ojo!* He might fairly think that he had not deserved this treatment at Elizabeth's hands. *genhem*, however, went the way of his predecessors. The details of his public proposals were quarrelled over. The cargoes of the detained ships had been sold on both sides. The Duke had taken advantage of a rise of prices in the Flanders markets, caused by the suspension of trade, to dispose of some English wool at a large profit. Elizabeth demanded the full sum which had been realised. The Duke allowed only the value set upon the wool at the time of its shipment. The petty disagreement was made an excuse to suspend the negotiations; Count Schwegenhem was bowed out of the country; and the Queen repeated what she had said to Chapin, that she would treat directly with the Duke's master. It seemed as if she believed that Philip's forbearance was inexhaustible. She knew, or Cecil knew, that it was to him that the highest Catholics looked for assistance, and she wished to force them to recognise the idleness of their expectations. It was a game which might be tried too far; yet, for the present it seemed to answer. Philip still did not rouse himself. Alava talked to Walsingham at Paris of the desirableness of a revival of the old alliance.¹³⁹ Don Guerau was obliged to apologise for Count Schwegenhem's failure, as if the cause of it had rested with the Commissioner; and Leicester, as a new year's gift, presented Elizabeth with a group of figures wrought in gold, in which she was herself represented on a throne, with the Queen of Scots in chains at her feet; France and Spain were being overwhelmed in the waves of the ocean; and Neptune, with the globe in his hand, was paying homage to the English sovereign.²¹⁴⁰

¹³⁹Don Guerau to Cayas, January 9: MS. Simancas.

¹⁴⁰She told me," La Mothe wrote, "que je serois tous esbahy si jo sa vois quelles choses ledict Due despuys ung mois avoit voulu traiter we« •lie au prejudice de

Extravagant, or at least premature — yet, amidst the suspicions and jealousies of the Continental Powers, the actual position of England was scarcely exaggerated; and the absurd spectacle was presented to the world of an excommunicated Princess balancing herself so critically that it was supposed a push would overthrow her,¹⁴¹ yet treating Spain with disdain, holding as a prisoner the Queen Dowager of France, making her country an asylum from which the refugees of the whole of Europe levied war upon their respective sovereigns, and all this time with these very sovereigns suing for her favour, and able to dictate the terms on which she would receive them again as her friends.

But there was one potentate who was not disposed to sit down meekly in so disgraceful a situation. It was not to see them thrust aside like dishonoured bills, that Pope Pius had directed the censures of the Church against Elizabeth; and after all allowances for the secularity of temporal governments, he could ill brook and he could hardly comprehend this contemptuous disregard with which the sentence of the Holy See had been received. Spain was as much interested as Borne in the reconversion of England. He had lectured Philip on his duties, but his admonitions had been as vain as his entreaties. The Catholic King listened, acquiesced, and did nothing; and the Pope perceived at last, that unless he could himself throw further weight into the scale, the Island of Saints might remain heretic till the day of judgment.

Don Juan de Cuniga, the Spanish resident at the Holy See, waited upon Pius at the end of January, with a message from his master, conveyed in the usual tone. The King, he said, was grieved to the soul at the behaviour of the Queen of England; he was most anxious to effect a change there; and his Holiness might put entire confidence that no opportunity would be passed over.

The King of Spain had sung the same song for twelve years, and no better opportunity would be likely to occur than one at least which had been allowed to escape. The Pope replied to Don Juan, that the English Catholics had heavy grounds of complaint against the Christian Powers. Not only they had received no assistance from • them,

ses voisins.” — La Mothe, January 23. i Walsingham to Cecil, March 5: Complete Ambassador.

¹⁴¹ Tiene su sceptro tan sobre palillos que cualquiera pequena fuerca h derribaria.” — JUS. Simancas.

but his own Bull had been suppressed in France, and never published in Spain or Flanders; the Queen was encouraged by the respect which was paid her to persist in her disobedience; she had already been the principal mover of all the continental disturbances, and she would go on as she had begun as long as she remained on the throne.

Don Juan attempted excuses, but the Pope cut him short. It was positively necessary to do something, he said, and if the King of Spain would lend assistance in deposing Elizabeth, and could place some English Catholic nobleman on the throne in her place,¹⁴² he believed that he could secure the consent and cooperation of the French.

"The French, Don Juan replied, had been unable, or, to speak more truly, had not been willing, to root out heresy from among themselves. It was not likely that they would undertake the reduction of England. They would make fair promises, entangle his master in a war with the Queen, and then declare in her favour.¹⁴³ If this was so, the Pope said, the King of Spain might at least recall his ambassador, and prevent intercourse between his subjects and the English.

Don Juan could merely indicate that this would be to break prematurely with Elizabeth, and would do more harm than good.¹⁴⁴

Nothing can show more clearly than this conversation the intense unwillingness of Philip to have an English quarrel forced upon him. Don Juan closed the despatch in which he described the conversation by saying, that if the Pope showed any intention of interfering actively, he would find means to prevent him.

But Philip was no longer to be left with his head run ostrich-like into the sand; a parallel effort to move him was made simultaneously, through the Duchess of Feria, by the Bishop of Ross, who sent over to Spain, evidently for Philip's perusal, a long and curious account of his mistress' positions and prospects. "The life of the Queen of Scots," the Bishop said, "had been in great danger; Bacon, Bedford, and Cecil had urged the Queen to put her to death; and, of all the ministers whom Elizabeth admitted to her confidence, Leicester only had opposed her execution. A revolution in her favour might have been effected with ease, if the King of Spain would have raised a finger; but the King of Spain had given no sign, all application to him for help

¹⁴²"TJn Rey Catolico natural del mismo Reyno." Not the Queen of Scots therefore.

¹⁴³"Prometerian grandes cosas para hacer declarar a su Santidad y a V Magd contra la Reyna y despues se juntarian con ella."

¹⁴⁴Don Juan de Cunia a su Magd, January 27: MS. Simancas.

had been so far received with coldness," and the Queen of Scots was now driven to entertain the question of a treaty. But the conditions offered to her were so intolerable, that she would not accept them till she was assured for the last time that she had nothing to hope for. She would rather die than be the cause of the continued oppression of the Catholics; her party was falling to pieces, and unless the King helped her, she might consent to things which would cause her' endless remorse and do fatal injury to the Christian faith. If the persecutions continued, the spirit of the Catholics would be broken, and a revolution would then be impossible. Lord Seton had been three months at Brussels trying to prevail on Alva, but he might as well have pleaded with the dead. The Spaniard, it seemed, depended for his information about the state of England on the reports of a few miserable wretches without faith and honesty.¹⁴⁵ Harbours, towns, supplies, the nobles of Scotland and England to assist the enterprise — all had been offered, and all in vain, and unless the Queen of Scots was shortly relieved, she would either have to give up the Prince and marry some one that the Queen of England would choose for her, or without doubt she would be secretly made away with.

"The Catholic King perhaps thought the Queen of Scots a person of no importance, but he should remember that to her God had given by right the sovereignty of the Island of Britain. Her hand so dowered was not to be despised. A marriage had been spoken of for her with the Duke of Anjou or the Duke of Norfolk, but she was still free and at the King of Spain's disposition, if only he would take her under his protection.

"The submission of the Duke of Alva to the Queen of England's insolence was worse than humiliating. He had yielded to all her demands, and she would do nothing in return which he desired. The Catholics could only suppose that he was influenced by some paltry pique or jealousy. The Duke of Feria had been spoken of as likely to supersede him in the Low Countries. The Duchess was an English woman. The refugees were thought to belong to the Feria faction, and therefore Alva hated them. Every heretic spy found more favour in his eyes than they did.

¹⁴⁵"Elios entretanto se contentan mas, como se vee, de tomar infonnacion y noticia destas cosas de algunos baxos hombrecillos, de quien con razon se« puede tener sospecha assi de su religion como de su sinceridad y bondad."

"Finally and especially, the consciences of all Christians were shocked at the indifference which the King of Spain had displayed to the sentence of excommunication. It was treated as if it had no existence. The Catholics everywhere were lost in astonishment, and could but remember with fear the words of the Gospel, 'woe to that man by whom the offence cometh.'

"The Christian faith was decaying. A Princess gifted with the most exquisite graces of mind and person was sinking under the accumulated weight of ill-usage and undeserved infamy; the Catholic King himself, the pillar of the faith, was allowing his honour and reputation to be discredited in the world by the wrongs to which he was submitting at the hands of a bad woman.

"Would it then be of service," the Bishop asked, "if he was himself to repair to Spain and lay the truth before his Majesty? To reform England and to extinguish the faction of the King in Scotland were one and the same thing; and both were so necessary, that as long as they remained undone heresy would scarcely be extinguished in the Low Countries. The English Catholics had placed their whole confidence in the King; the Holy See implored him to act; God himself had marked him out for the work by the power which he had trusted in his hands. If he would not declare himself openly, he might allow his subjects to for service in Ireland and Scotland, nor just reason be given for his refusal to allow the Bull to be published in his dominions, or for the scandal of the continual residence of his Ambassador at the English Court. The heretics boasted that the King of Spain feared the enmity of their sovereign and dared not quarrel with her." ¹⁴⁶

There was nothing in this letter which Philip must not have said often to himself; but the times were growing urgent. His resolution began to fail under the importunities of the Catholic world, and the Pope soon after made an opportunity of assailing him in more regular form. •

Mary Stuart was evidently one difficulty. Even the Pope would have preferred some nobleman of unblemished character as the champion of Christ's Church, could any one have been found whom the English Catholics could agree to recognise. This, however, could not be. It was necessary to make the best of the Queen of Scots, and.

¹⁴⁶MS. Simancas, endorsed, "El Obispo de Ross" The letter is very long, and I have been obliged to condense it.

to rouse Philip out of his slumbers in her favour. From his agent Ridolfi, Pius was incessantly hearing of the number and zeal of his English friends, of Elizabeth's cruelty, and their abundant ability to help themselves. Ridolfi declared that all the Peers except four or five were openly or secretly disaffected. The Pope said that he had never heard of a country where the will of the united nobility was not irresistible, and he told Ridolfi that if he could bring over some bond or engagement on the part of the Lords, in which they would pledge themselves to a general insurrection, he would be able to lay the case before Philip in a form which could be no longer disregarded. °

The moment was peculiarly favourable. Ridolfi must have been a man of no ordinary ability, for he had entirely deceived the English Government as to his real character. His name had appeared in connexion with the Northern Earls, but his professed occupation as a banker enabled him to explain every suspicious circumstance. He admitted without hesitation that the Earls had borrowed money of him, but there was no evidence that he was aware of the purpose for which they wanted it, and he had come so well out of the enquiry that after Count Schwegenhem's departure, Walsingham recommended him to Cecil as a person who might be trusted to talk over with Philip the conditions of a possible arrangement.

An opportunity was thus created to Ridolfi's hand, to repair unsuspected to the very countries where he wished to go, and to the persons with whom he wished to communicate. His ostensible business would lay with Alva and the King of Spain, and the disputed question of the ownership of the money originally seized would necessarily take him to Italy.

So far nothing could be more fortunate. But if a larger movement was now to be attempted in England, the character and object of it had to be clearly determined. Divided counsels had ruined the first rising, and before Philip would think of moving he would insist on seeing his way before him. Was Elizabeth to be deposed at once? or was she to be allowed to reign for the term of her life, with a Catholic Council at the head of the government, and the Queen of Scots for her successor? Who was to be the Queen of Scots' husband? was it to be Don John, as the Catholics desired? was it to be the Duke of Norfolk, the favourite of the great English country party? Norfolk had most friends, but he had not been reconciled to the Church, and the Pope

and Philip. could not move to give the throne to a Protestant. Was there sufficient security for his conversion in the event of a revolution being accomplished?

The latter question was submitted by Ridolfi to the parties principally concerned just at the time when the restitution treaty was hanging fire in London,

The Duke of Norfolk, irresolute as ever, had drifted on between falsehood and loyalty, trusting partly that would bring Elizabeth to consent to his marriage with the Queen of Scots, on the terms originally between himself and Leicester and Pembroke, partly looking to the contingent insurrection if other means should fail. By hesitating at the critical moment he left his friends in the North to failure and exile; when the Stanleys would have raised the standard again, he was still uncertain and would not sanction their rising; but the Queen of Scots was now determined to force him to a resolution, and she sent him word, through the Bishop of Ross, that he must make up his mind. It was idle to wait any longer for Elizabeth's approval. An application was about to be made to the King of Spain in the Queen of Scots' behalf. If the Duke of Norfolk would commit himself finally to the measures which were in contemplation, she was ready to fulfil her own engagements with him. If he shrunk from the danger or felt unequal to the enterprise, she said that she must hold herself free to make other arrangements.

The English Peers still looked to Norfolk with a feudal attachment as the first of their order. Many of them represented to Don Guerau that they were still anxious that the Queen of Scots should marry him if the King of Spain would sanction it.¹⁴⁷ Two alternatives therefore, and two only, now lay before the Duke: either to retire from the field, and leave the Queen of Scots to look for some other alliance, or to declare himself privately a Catholic, and offer himself through Ridolfi to the Pope and Philip as the instrument of an armed revolution.¹⁴⁸

True to his character, Norfolk struggled hard to avoid committing himself. The prospect of the throne was too tempting to be aban-

¹⁴⁷"Hallandose ahora aqui la Corte, y en ella los mas principales Catolicos, han aprestado otra vez la platica del casamiento del dicho Duque de Norfolk con la Reyna de Escocia y restitution de la religion Catolica. Piden socorro de V. Magd, pero yo no he qu'erido salir de la orden de Alva ni darles confian ni desconfianza, hasta que el dicho tiene niandado." — Don Guerau to Philip, February 6: MS. Simancas.

¹⁴⁸Confession of the Bishop of Ross: Murdin.

done, but he shivered at the thought of palpable and positive treason. He allowed Ridolfi to visit him at his own house. He talked over a plan of invasion which would give Alva, as he conceived, a certainty of success. He even empowered Ridolfi to assure Alva that he would come forward immediately on the landing of a Spanish army, but he shrunk from setting his name to any document of which Ridolfi was to be the bearer. The papers might fall into wrong hands, and the scaffold had terrors for him.

But Norfolk's signature was the one security which Ridolfi knew to be indispensable. He insisted, and the Duke yielded.¹⁴⁹ He was assured that by consent he would heal the divisions by which the Catholics were prevented from acting together. The threatened marriage between Elizabeth and Anjou screwed his courage to the sticking point. Being still under surveillance at his own house, he was unable to consult freely with his friends, but he gathered heart from a list of Peers who Ridolfi told him would sign if he would sign. No less than forty noblemen professed to be waiting only for an opportunity to declare in arms against Elizabeth, and of the rest a third were neutral.¹

It need not be supposed that all the party had been consulted man by man, or could have been admitted safely to a dangerous secret. They were men, however, notoriously opposed to the Reformation policy of Elizabeth's Government, and among them were Clinton, the admiral of the fleet, and Shrewsbury, under whose charge the central person of the conspiracy was residing. So supported, or so believing himself to be supported, the Duke of Norfolk took the fatal plunge, and gave power to Ridolfi, in his own and his brother nobles names, to bring an invading army into England. Parliament was to open on the 1st of April. The arrangements of the conspirators were completed by the middle of March. Ridolfi, after a circuit to Brussels, Rome, and Madrid, expected to be again in London before the close

¹⁴⁹Norfolk swore afterwards that he had signed nothing. The Bishop of Ross, though he admitted that Ridolfi had received every encouragement short of absolute signature; that a letter written in his name had been read over to him, and had been approved by him; and that in essentials he was thoroughly implicated, yet in that one point supported his denial. But a letter from the Duke to Philip survives at Simancas to make his formal guilt as indisputable as his substantial complicity.

of the summer, while the Peers would still be assembled and in a position to act.¹⁵⁰¹⁵¹

Don Guerau, in a letter sent direct to Spain, prepared Philip for Ridolfi's coming: — DON GUERAU TO PHILIPS "The Queen of Scots, the Duke of Norfolk, and the other Catholic leaders, have arrived, after long deliberation, at a most important conclusion. The Queen of Scots will send a Commissioner to your Majesty, with instructions the copy of which I enclose. He will explain fully to his Holiness and to your Majesty the miserable state to which this country is reduced, the probability that the Catholics have yet greater cruelties to undergo, and the solitary prospect of escape which is open to them through the assistance of those who support the claim of the Queen of Scots to the succession of these realms. The other competitors, the Earls of Hertford and Huntingdon, are heretics. Your Majesty will be given to understand the unhappy state of that Princess, and the sufferings to which the good 3 are exposed who favour the cause. The Queen of England does but dally in affecting to treat for her restoration. More than once she has proposed to put her to death, and she forbears only the more effectually to ruin her Catholic subjects. She entertains them with the hope of an agreement, while the heretics persecute them at their pleasure. The friends of the Queen of Scots therefore have decided that she must throw herself upon the protection of the Christian princes, and especially of the Pope's Holiness and of your Majesty. They are willing to venture their lives and fortunes for religion and for that Queen's title. The Duke of Norfolk, the first nobleman in England, consents to place himself at their head.

¹⁵⁰Norfolk himself, with many of the rest, gave letters of credit in their own hands to Ridolfi. The originals were left as a precaution in the hands of Don Guerau, and transcripts in Don Guerau's cipher were forwarded to Rome and to Spain.

¹⁵¹The forty were, the Duke of Norfolk, the Marquis of Winchester, the Earls of Arundel, Oxford, Northumberland, Westmoreland, Shrewsbury, Derby Worcester, Cumberland, Southampton, Viscount Montague, Lords Howard, Abergavenny, Audley, Morley, Cobham, Clinton, Grey de Wilton, Dudley, Ogle, Latimer, Scrope, Monteagle, Sandys, Vaux, Windsor, St. John, Burgh, Mordaunt, Paget, Wharton, Rich, Stafford, Dacres, Darcy, Hastings, Berkeley, Cromwell, Lumley. Fifteen at most, according to Ridolfi, could be depended upon as true to Elizabeth, and of these, Sussex, Rutland, Huntingdon, and Hereford alone belonged to the old English aristocracy. The rest, Russell, Seymour, Sackville, Carey, were the new men who had grown out of the revolution, and so far as the Peers were concerned, rather aggravated the danger from the bitterness with which they were hated and despised. — "List of the English Nobility, with a note of the part which each nobleman was prepared to« take:" MS. Simanca*.

The Duke has ever in secret favoured the Catholics. His chief friends are Catholics, and he has constantly supported the Queen of Scots in deed and word. He possesses therefore the full confidence of the Catholic paitj.¹⁵²¹⁵³

"This Duke at the same time is the leader of a section of the heretics who might perhaps abandon him were he to be openly reconciled to the Church. It is in consequence considered expedient that he should temporise, the better to use their assistance and bring them under the yoke of the Church when occasion shall serve. He has influence among the Protestants in two ways: first, a great many of them favour the Queen of Scots' title. They believe that she has the right, and they resent the late imprisonment of the Duke on her account. The Queen of England intends in the approaching Parliament to advance the claims of the Earl of Hertford, and they will take arms with the Duke to prevent such a wrong from being done.

"Secondly, they are alarmed and angry at the marriage which is now talked of between the Queen of England and the Duke of Anjou. The Queen is supposed to have set her heart upon it, and it is thought that the Protestants would even prefer the restoration of the faith to the consummation of a union which they detest. The Commissioner will take especial pains to explain the nature of Norfolk's position to the Pope, so that his Holiness may be satisfied about him; and it will be well if the Duke can be induced to seek absolution at his Holiness's hands, and to submit his conduct in all particulars to his Holiness's judgment. The Queen of Scots desires him to do this, in order that, should your Majesty prefer to arrange the marriage for her with Don John, which his Holiness so much desires, his Holiness may the better be able to urge the Duke to give way, by representing to him that particular interests must not be allowed to obstruct the universal good of Christendom.¹⁵⁴

"The Commissioner will request his Holiness to send some one to your Majesty to give you the particulars of the men and money

¹⁵²MS. Simancas.

¹⁵³The usual phrase in these despatches to express the Catholics.

¹⁵⁴So I understand a rather complicated passage: — "Lo qual Reyna de Escocia assi, a fin que si V. Magd quisiese diferir esto, el casamiento del S Don Juan de Austria — el qual su Santidad desea mucho — haya de apretarlo y pasar adelante, ofreciendose tales para el bien universal de la Xdad, el qual no se debe impedir designo particular." If I translate rightly, Mary Stuart hoped to balk the wretched Norfolk of the reward of his treason after all.

which his Holiness will contribute to the enterprise, and to satisfy your Majesty, should you feel uncertainty, about the Duke's religion, the Duke being the only person through whose assistance the work can be done. Against the Duke's wishes it would be extremely difficult for any foreign prince to carry off the Queen of Scots by force, or if she were out of the country to bring her back and place her upon the throne.

"Your Majesty will understand that no word of all this is known in France, nor has the Queen of Scots hint of it to any of her own relations. She confidence in your Majesty alone, and with your Majesty, if God gives her grace to obtain her just rights, she will maintain the ancient league and confederation which has so long existed between her and your progenitors.

"She will consent also to a proposal made to her by the late Queen of Spain before her death, for a marriage between her son the Prince of Scotland and one of your Majesty's daughters. Your Majesty's pleasure in this matter will be hers. She will place the Prince in your Majesty's hands, to be educated at your Court in virtue and the Christian faith.

"Your Majesty will also hear in detail the nature of the assistance which will be required, the native force with which your Majesty's army will be supported, and the means by which the Queen of Scots can be released, and the Queen of England arrested and confined: you will be able to assure yourself that this is no ill-considered enterprise in which you are invited to take part, and that your soldiers will be in no danger."

Accompanying this letter, as Don Guerau stated, were transcripts of the commissions given both by the Queen of Scots and the Duke of Norfolk to Ridolfi. The Queen of Scots had not at first intended to communicate to Don Guerau the full details of the plot. She feared that he would send a sketch of them prematurely to Alva, and that Alva would form an unfavourable opinion with an imperfect case before him. But the Bishop of Ross feared to awake Don Guerau's suspicions by an imperfect confidence. If Don Guerau felt his footsteps insecure anywhere in such a sea of quicksands, he would report unfavourably, and the scheme would be ruined.

Mary Stuart's letter was therefore laid before him exactly as she wrote it, and the Ambassador's own account to Philip was in parts a mere duplicate of the Queen of Scots words. In form it was addressed

to Ridolfi, and the matter which it contained was to be laid before the Pope and Philip.

With extreme skill, and touching with comparative lightness on her personal sufferings, she turned the substance of her representations entirely upon the cause of the Catholic Church. When she spoke of her title and claims, she seemed to value them chiefly as means towards the restoration of the faith; and her own injuries appeared most to grieve her through the sympathy which they excited among the Catholic noblemen — a sympathy which, immediately that it was manifested, brought down upon her friends the most cruel and malignant persecutions. “Some were in prison,” she said, “some murdered, some in exile, and she was so grieved that she prayed often it might be the will of God to take her out of the world. If she was once dead and beyond the reach of the hard woman who had her in her hands, the Catholics, she thought, would then be more patient, and would be content to wait till God took pity on them.”

“She was mocked at, trifled with, and insulted with hopes of release which were never intended to be realised. She was in daily expectation of assassination either by poison or open violence. A person had once even come to the place where she was, with a commission to kill her, and she was kept alive only that Scotland might be plunged into the miseries of uncertainty and civil war, and that Elizabeth might make her hateful to her subjects by representing to them that she was the cause of their sufferings.”

She then went on to speak of Norfolk and the English nobility, of their friendliness to herself, their zeal for the Catholic Church, and their determination to risk life and fortune to overturn the present Government. She touched approvingly on Norfolk’s treachery to the Protestants in pretending still to belong to them, on the Anjou marriage, and the fury of the English people at the prospect of having a French Prince among them; and afterwards, successively, she went over all the points on which Don Guerau had written to his master — the necessity of making use of the Duke, her own devotion to Spain, and the certainty of the success of an invasion.¹⁵⁵

So far Mary Stuart. It is necessary to remember that she was no subject of Elizabeth’s; that in the eyes of Elizabeth she was still Queen

¹⁵⁵Instructions of the Queen of Scots to Ridolfi: MS. Simancas. A message was attached which Ridolfi was to give separately to the Pope, contrived to meet any rumours which might have reached him as to her past misdoings.

of Scotland, unlawfully deprived of her crown by her subjects, for crimes of which, after a formal examination, she had not been declared to be guilty. So far as Scotland was concerned, therefore, Elizabeth had no right whatever to complain of her using any means and inviting any assistance to compel the recognition of her authority there. In England, her position was so utterly anomalous, that it was hard to say whether she could or could not be regarded justly as subject to the laws; and could the causes which brought her there have been forgotten, she would have been entitled morally to use any means whatever to recover her freedom.¹⁵⁶

She, indeed, seeing her crimes condoned by Peers and Prelates, by the Vicar of Christ upon his spiritual throne, might easily have persuaded herself that she was the chosen of Heaven, a woman after God's heart, like the David to whom her defenders compared her. It was true that Elizabeth had protected her honour and had saved her life — saved her when all parties in Scotland would have shaken hands over her grave — saved her when the wisest of the English Council believed that her life had a second time been forfeited. It was true, as Elizabeth said, that no sovereign in Europe would have shown the forbearance which she had shown to a pretender to her crown. Yet benefits, when undeserved, are but added injuries; and rage, hatred, jealousy, the thousand passions which failure upon failure had aggravated to madness, explain entirely the desperate course upon which the imprisoned Queen was now venturing.

Far different was the position of the Duke of Norfolk. Norfolk knew Mary Stuart's story, and never pretended to believe her the

¹⁵⁶You will explain to his Holiness," she said. "the ill-treatment which I met with from my subject, the Earl of Bothwell. The Earl carried me, the Lord Huntly, and my secretary, to the Castle of Dunbar and afterwards of Edinburgh. I was there detained against my will until he a pretended divorce between himself and his wife, the Lord Huntly's sister, and he then forced me to marry him. I therefore entreat his Holiness to take order for my relief from this indignity, either by a process at Rome or by a commission sent into Scotland." If the Queen of Scots wished to marry again it was no doubt necessary for her to free herself from a troublesome engagement. Yet the versatile lady had but two months before been in correspondence with Bothwell himself. Buchanan, who had gone to Copenhagen to endeavour to prevail on the King to give up Bothwell to the Regent, ascertained that the Queen of Scots had both written to me Earl herself, and had written to the King to entreat him not to listen to Buchanan's persuasions. Buchanan told Cecil that if he took the trouble, he might intercept some of her letters. — Buchanan to Cecil, January 19. From Copenhagen: MSS. Scotland, RoUt House.

suffering innocent which her friends now represented her to be. Norfolk was Elizabeth's subject, but lately pardoned by her for offences for which her father would have made short work with him. Bound to her by the most solemn promises, which on the moment when he made them he had determined to break, and without even the poor pretext of religion to invest his treason with spurious sanctity - Norfolk's instructions come next Whether written by himself matters little. He denied them, but the evidence of their substantial authenticity is too strong to be shaken by his own tainted word. They were read over in his presence and approved by him, and the bearer carried credentials from him to the King of Spain.

He, too, like the Queen of Scots, addressed himself in form to Ridolfi.¹⁵⁷ "Such," he said, "is the confidence which is placed in you by the Queen of Scots, by myself, and by others our friends in this realm, that, with common consent, we entrust a matter to your diligence and honesty which touches the safety of our own lives, the welfare of this nation, and, generally, of the whole of Christendom. We commission you to cro with all expedition, first to Rome and then to the Catholic King, that you may lay before his Holiness and his Majesty the wretched state of this island, our own particular wrongs, as I have more largely by word of mouth made them known to you, and an assured mode by which our country and ourselves can obtain relief.

"The Queen of Scots has informed you what you will say on her part. I on mine, and in the names of the larger number of the Peers of this realm the list of whom you carry with you — declare our own opinions in the following words; and we pray God. to conduct you safely through your journey, and to bring you back with happy success.

" You will tell his Holiness and the King that, to all appearance, bad things will grow to worse among us, unless God of His mercy shall move them to look upon our afflictions and assist us — as they may now do with ease and safety — to advance the title of the Queen of Scots, to restore the Catholic religion, and to suppress the pretensions of the Earls of Hertford and Huntingdon, who on various grounds aspire to the succession, and, being Huguenots, find favour with the heretics.

¹⁵⁷ Instructions of the Duke of Norfolk to Robert Ridolfi: MS. Simmcai

" You will make known the good and prompt disposition of the Catholics, who are the strongest party in numbers and rank, and you will explain the opportunity which is now offered for the reestablishment of the truth, through the just title of the Queen of Scots, many of the Protestants regarding religion as of less importance than the succession, and being, therefore, ready to support the Queen of Scots against the rival claimants.

" And since his Holiness and the Catholic King may have hitherto been dissatisfied with me, as having in some sort affected to be a Huguenot, you will say that I have never been disloyal to the Holy See, but have desired only to hold myself in readiness (when an occasion like the present should offer itself) to do some service to my country and the common weal of Christendom; as the event will show if they give us now the aid for which we ask. My hope is to unite this whole island under one sovereign, and restore the anand the ancient religion. Yet, because on the Queen of Scots' title, many Huguenots me and under me, they must not be surdo not as yet make known my purpose to every one. You will kiss the feet of his Holiness m. my name and that of the nobles, and you will say that, if God gives me grace to conduct this enterprise to a happy end, I will then be content to do anything which his Holiness, the King of Spain, and the Queen of Scots shall ordain..

« I aild my friends will adventure our lives in the cause, and I beseech his Holiness to use his influence with the Catholic King in our behalf. You will convince his Majesty of the sincere hearts with which we turn to him, and' although I may at times, either for the sake of the Queen of Scots or for other causes, have seemed to incline too much towards France, you wi say that I have never been French at heart, but that my inclinations have been always towards his Majesty, as I hope I shall have occasion to prove.. I turn to him as my most sure refuge. I beseech him to help me in the interests of the Christian world. The pernicious purpose of those about the Queen is to determine the succession to some one of their own sort, and to establish the Huguenot religion, not here only, but in all Europe. If this be done, the King's Low Countries will be in danger, especially if the marriage take effect between the Queen and the Duke of Anjou, — but that marriage shall never be, if the King will aid us in preventing it. ... "You will tell his Majesty that, in return for the confidence which we place in him, we trust he will approve of my own marriage with the Queen of Scots.

Half the realm desires it as well as I. We bind ourselves to renew the league between England and Spain, and to restore, as we should have long ago done but for the late troubles, all the property of the King which is detained in this country. His Majesty will hnd us ready to do our own parts. The nobles and the people promise to take arms with myself at their head, and to adventure themselves in battle; yet, being imperfectly provided, we cannot do all of ourselves. We ask Ins Majesty for money, arms, ammunition, troops, and especially for some experienced soldier to lead us;¹⁵⁸ we on our part providing a place upon the coast where his army can land, entrench itself, and keep its stores.

"We can ourselves on the spot provide 20,000 foot and 3000 horse; besides those many others who have pledged themselves afterwards to take the field upon our side.

"In my own opinion, the most convenient port will be Harwich, where I can myself be present with the forces of the country. If Portsmouth be thought better, I will be there in strength enough, for a time at least, to hold in check the Queen of England's army. From his Majesty and his Holiness we ask for 6000 harquebussmen, with 4000 additional harquebusses to arm our own people, 2000 corslets, and 25 pieces of artillery. 3000 horses will be wanted also, to keep command of the country in case the Queen of England make more resistance than it is thought she will be able to do. Money will be wanted also; and if the enterprise succeed, as with the help of God and of his Majesty it must, I and the Queen of Scots undertake to reimburse his Majesty for all the expenses which he may incur. Were it possible to increase the succour to 10,000, 2000 men being landed in Scotland, and 2000 in Ireland, the Queen would have to divide her forces, and success would be the more certain.

"If the war with the Turks, or other impediment, make it necessary for his Majesty to put us off, I and others, if it seems expedient, might retire to Spain or Flanders, and wait for a more convenient time. The Scots, however, must be first set at liberty. away and leave her in the Queen of England's hands, she will be destroyed.

« If the Queen of England be left with her present advisers, the Low Countries will never be secure. success of our proposed scheme, his

¹⁵⁸"Se digne assister nos lo mas pronto que pudiese, assi con dineroa como con el numero de gente, armas y municiones, y principalmente con un personag e de experiencia para guiar un exercito."

Majesty no further troubles there, and you will tell therefore, that it should be executed before the end of the coming summer, and before the French or the Queen of England have discovered our secret. As yet, you will say, the French know nothing of it, nor is there any surer way to prevent the Anjou marriage. Be as quick as you can that we lose not the summer. You carry letters of credit from me and from all my friends, for his Holiness, the King, and the Duke of Alva;¹⁵⁹ but as both you and the Bishop of Ross are of opinion that these letters may be dangerous both to yourselves and to us, you may leave them in the hands of the Spanish Ambassador; you will ask him, from me, to transcribe them in his own cipher, and send copies to each of the Princes, and assure them that he is in possession of the originals;¹⁶⁰ giving at the same time the reasons why you have them not with you. If I can see the Ambassador and confirm to him what I have said to you, I will do so. If not, I must let him know by letter. I will write with so much the more warmth to his Majesty, whose hand you will kiss with all due reverence in my name.¹⁶¹ You must insist on my desire to serve him, and entreat him to think well of me.

To the Duke of Alva you will give my commendations: you will admit him as far as you think proper into our plans and as you find him disposed, you will ask for his favourable letters to his Holiness and the King. You will require him as a Prince of honour not to betray

¹⁵⁹"Llevais cartas de creencia mias j de todos los amigos."

¹⁶⁰"Me contento que las dexeis aqui en manos del Embajador de Espana con rogarle de mi parte que se contente de daros copia dellas en su cifra mas secreta y que escriba a cada uno de los dichos Principes como tieus los originales cerca de si,"

¹⁶¹The commission is so long that I have been obliged to abridge it in places, but I have omitted nothing of consequence, and I have as far as possible preserved the tone. The letter of credit, which was forwarded in Don Guerau's cipher, was as follows: — "Christiani orbis Serenissime idemque Catholice Rex; hujus insula) Britannic® statum tot miseriis et serumnis undique religionis ergo dissidii quoque fidei causa deplorandum considerans, hunc nuntium Robertum Ridolfi, Virum probum, de aliorum procerum hujus regni consilio in priesentiam V. Majhs mitto, adeo instructum ut de rebus ad publicum spectantibus commodum, Serenitatem tuam certiozem reddere poterit, cui fidem haberi et eundem bene expeditum ea celeri diligentia quam ipsius negotii statum (sic) requirit ad nos remitti humillime supplico, et ut omnia ad optatum perducantui finem, non solum omnem meam operam et cadera quomearum virium sunt, sed et vitam denique meam in Dei gloriam exponere summa ille polliceor. Csetera vero quae V® Maj« nuntius abunde et perspicace (sic) coram disseret ad V® Majtis suinmara prudentiam, sicut et mea omnia definienda supplex refero, quam semper incolumem servet et tueatur Deus Optimus Maximus. Londini, vigesimo Martii 1571. "Celeritudinis tu® addictissimus eervus, "Thomas Dux Noefolclck." — MS. Simancas.

us; and you will leave our cipher with him, that we may keep him informed of what is going on among us.

And, because the King of Portugal is also much offended with the Queen of England, I think that, being a most Catholic Prince, he cannot but favour us.

As this Prince has no ambassador residing here whom I can communicate with him, you will advise a Holiness and the Catholic King to introduce you to him • and when you shall have left them and shall have let us know what we are to look for from them you may return through Portugal, and tell the King, that if he will join our enterprise, I will undertake to see him satisfied for the injuries which he has sustained. He can help us much by throwing men into Scotland. It will not be suspected, and he could be on the coast before a word had been heard about them. The Queen will have to divide her force. She will be disturbed and terrified, and the rest of the work can be executed with greater ease. That ambiguous crime of treason, which graduates, according to its object and circumstances, through all moral degrees, from the most sublime virtue to the deepest wickedness, has rarely geared less favourably in this unlucky paper. If the Duke of Norfolk credited with a sincere conversion to the Roman faith, that faith itself assumed in his person its most revolting and perfidious aspect. The Duke was not to reveal his creed because he was still trusted by those whose cause he was betraying; and because, by retaining their confidence, he could serve the Catholic interests more effectually. If, as he afterwards protested, he remained at heart a Protestant, he was deceiving alike his new friends and his old. He was without the solitary excuse which he might have pleaded in palliation of his treachery. He was bringing an army of strangers upon England, he was preparing to inflict upon his countrymen inevitable horrors of invasion and civil war, to gratify his own pride and paltry ambition. Doubtless, to his conscience, if conscience pricked him, he could say that there was much in the administration of which he disapproved: the excesses of the Reformation, the social changes, and the growth of a new order of men whom he may have hated as his father hated Cromwell, might have reasonably offended his prejudices. Doubtless, even while he called himself a Lutheran, he had no sympathy with the Protestantism of France, and Scotland, and the Low Countries, which Cecil's policy encouraged and protected; yet, it was not to remedy such ills as these that Alva's legions should

have been called m to water English soil with English blood. Not on such grounds as these should he have sought the overthrow of a government, which, however grave its shortcomings, was the mildest which England had known for many a century. He might sigh for the patriarchal days of feudalism, when the earls and dukes were local sovereigns, and no upstart commoner could stride before them on the road to power • but there was little likelihood that the ancient order and reverence which he and his friends so much regretted, could be reestablished by lying and treachery, or that a purer creed could be brought back into the Church by placing Elizabeth's sceptre in the hands of Bothwell's paramour. There had been a time when Norfolk would not have required to be reminded of such common truths. He was not naturally mean or false. But the spell of the enchantment was upon him, and the woman, for whose sake he was fouling his hands with baseness, was intending secretly, when she Lad used his services, to dupe him at last out of his reward.¹⁶²

Thus Ridolfi went — ostensibly on Elizabeth's business — to return if possible in the summer with the Spanish army, and Norfolk lay waiting "Howard House for the springing of the mine, while Mary Stuart corresponded with Elizabeth about the treaty as if her thoughts were absorbed in that and that only. She appealed from Elizabeth ill-informed by her detractors, to Elizabeth who would one day hear her defence; she affected still to depend upon her to prevent her title being meddled with by Parliament, and she swore that she was not entertaining a thought in Elizabeth's prejudice."¹⁶³

In signal contrast with all this treachery and conspiracy, a remarkable exploit in Scotland threw sudden the Regent's government, gave heart to the Protestants, and encouraged Elizabeth m her resolution to postpone for a time at least the further consideration of the Queen of Scots' restitution.

The Castle of Dumbarton has been many times mentioned in this history. The rock on which it stands forms the point of a peninsula at the confluence of the Leven and the Clyde. It rises sheer from the water to a height of two hundred feet. The circumference at the base is less than half a mile, and the sides, if not entirely perpendicular, are

¹⁶²Commission of the Duke of Norfolk to Ridolfi: MS. Simancas. An Italian version of the same document has been punte y a an the Vatican Archives.

¹⁶³"Veu comme desubs que je ne d&ire rien mouvoir de ma part pour ne« vous desplayre sans aultre respect je vous jure." -Mary Stuart to Khzabeth, March 27; and compare Same to the same, March 31. Labanott, Vol. HI.

so near it that there is but one spot where it can be ascended without ladders or ropes. The rock is united to the mainland only by a low strip of marsh and meadow, which at that time was flooded by high tides. In a cleft near the summit there is a spring of water, and thus before the invention of shells the place was virtually impregnable except by famine. It had been held by Lord Fleming, in the name of Mary Stuart, from the beginning of the troubles in Scotland. It was to Dumbarton that she was retreating when intercepted at Langside. Dumbarton was the open gate through which French or Spaniards could have entrance into Scotland. It was a sanctuary of disaffection; a shelter for English Catholic rebels; a residence for a French minister, who was kept there to nourish hopes which might or might not be realised; and commanding free access to the sea was a focus and hotbed of intrigues with the Continental Powers. The two Regents had watched anxiously for a chance of getting possession of it. The journey in which Murray lost his life had been undertaken in the vain hope that it would be surrendered. Sir William Drury surveyed it after he had destroyed Hamilton Castle, and a ball from a ditch had nearly ended his course there. The occupation of Dumbarton by an English garrison was among the conditions demanded by Elizabeth in the treaty. But for the present Queen Mary's banner waved above the battlements on Wallace's Tower, Fleming was still in command; the Archbishop of St. Andrew's, who had been proclaimed traitor after Murray's murder, found shelter behind its crags. De Virac was there, superintending the supplies of arms and money which were continually coming in from France, and beside others there was a young Englishman also, named Hall, a friend of Sir Thomas Stanley, who had been concerned in the last Lancashire conspiracy.

It has been said that while the treaty was under consideration in London, the two parties in Scotland had suspended hostilities. The conference having broken up, the armistice was not to be renewed and was to terminate on the 1st of April. In the last week of March, a man who had been a servant in the castle, and had some grudge against Lord Fleming for ill-treatment of his wife, came to Lennox at Glasgow, and told him that the garrison was keeping negligent watch, and that the place might be surprised. Crawford of Jordanhill, Darnley's last friend, who had shared his confidence on Mary Stuart's fatal visit to him, was now an officer of Lennox's guard. Throughout the civil war, when any exploit of note and

mark was to be accomplished, Crawford was always among the foremost. He was a man of great personal courage, devoted to the young King, and one of those who were most anxious to avenge his father's murder. He had a follower of his own who had once lived at Dumbarton, and knew his way about the cliffs, and with this man's help Crawford, when the Regent consulted him, determined to undertake the enterprise. If done at all it was to be done at the first permissible moment, before the recommencement of the war placed Fleming again upon the alert. On the 31st of March, an hour before sunset, Crawford, with one of the Ramsays and a hundred and fifty men, went quietly out of Glasgow, carrying with them ladders, cords, and "crows of iron to drive into the rock." A party of horse had been sent on to watch the road and prevent intelligence from being carried to the castle. At midnight they were at Dumbuck, a mile and a half up the river. The moon set shortly after, and with their guns strapped to their backs, the ladders slung between them, and attached in line by the cords that none might stray, they stole down over the marshes in single file. It was a clear starlight night, but they were delayed more than once by the broad deep ditches with which the fields were intersected, and daylight was dangerously near when they reached the foot of the rock. As dawn approached, however, the moist air from the Clyde condensed upon the crags and wrapped the castle in vapour. The watch was weakest where the rock was highest, and there, exactly under Wallace's Tower, at the northeast corner where the road from the town first touches the cliff, they made preparations to ascend.¹⁶⁴ For the first forty feet there was a sheer precipice. The cliff then split, making a kind of funnel, at the top of which stood a stunted ash tree, and above that a steep grassy slope of a hundred and twenty feet up to the foot of the wall. Crawford and the guide went up first. The ladder brought them within ten or twenty feet of the tree,¹⁶⁵ and from thence they

¹⁶⁴The spot can be identified with certainty by the ash tree — not that the tree now growing there can be supposed to have stood three hundred years, or thirty, but the crack in the rock where it is rooted is the only spot in the whole circuit of the place where a tree could take hold.

¹⁶⁵Among other romantic stories which gathered round Crawford's exploit, it was said that the first man who ascended was seized with a fit when half way up the ladder. He could neither go forward nor come down, and blocked the way for those below. After a moment's thought, Crawford lashed his hand and foot to the staves so that he could not fall, turned the ladder over, and so enabled the rest to pass

scrambled up the rock in the darkness with extreme difficulty, dragging a rope behind them which they succeeded in lashing to the stem. With this assistance the rest rapidly followed.

The mist which concealed them from the guard happily deadened the sound. They collected on the foot of the slope, and thence an easy and silent climb over thick grass brought them to the bottom of the wall. To draw the ladders after them and raise them in their places was the work of a few more minutes, and a moment after, as dawn was breaking, the astonished sentinels saw three figures looming large through the fog on the battlements above their heads. Ramsay was the first to enter: with a shout of "God and the King!" "A Darnley, a Darnley!" he leapt down upon the half-awakened soldiers and struck them to the ground. The wall was carelessly built where no danger was anticipated. A breach was easily made through it, and before the garrison were out of their beds the whole party had entered, and Wallace's Tower and its guns were in their hands. The place was now at their mercy. The inhabited houses were in a hollow immediately at their feet; a few soldiers, halfnaked and blinded by the mist, attempted a short resistance. Three were killed, and some others wounded; but when they found that their cannon were taken and turned upon them, they threw down their arms to their unknown enemy, who seemed to have dropped upon them from the clouds. Fleming made his way to the water-gate by the staircase which was the usual approach. The tide was in, he sprang into a boat and went off into Argyleshire. The Archbishop was less fortunate. Disturbed out of his sleep, he had put on a steel cap, and was struggling into a coat of mail, when Crawford's men were upon him. He was taken, and Lady Fleming was taken, and De Virac: young Hall, with two friends, declared themselves English, drew their swords, and demanded leave to depart.

They were told that if they had committed no crime against their sovereign they had nothing to fear: but for the present they must be considered prisoners like the rest.

The news of success was carried rapidly to Glasgow, and the Regent was on the spot by ten o'clock. Of the spoils, the money, powder,

over him. Crawford himself, in the account which he wrote for John Knox, says nothing of this; and I fear it can scarcely be reconciled with his own modest but clear declaration that he was himself the first to go up. — See Bannatyne's « Journal, p. 123. 12

arms, guns, provisions, wine — the stores of all kinds, so carefully collected to maintain the garrison — were shared among the captors. Lennox retained only the Archbishop and his companions in captivity.¹⁶⁶

It was supposed at first that so remarkable a feat could not have been performed without the help of treachery. But Crawford was able to say proudly that he had had no manner of intelligence within the house nor without the house." The capture was a fair achievement of daring and adroitness, aided only by the carelessness which had invited the attempt. The English prisoners were sent to Berwick; De Virac was allowed to go his way; Lady Fleming was treated with the utmost courtesy which the circumstances allowed; and the garrison was pardoned and dismissed.

Archbishop Hamilton alone was preserved, to pay the score which had been so long accumulating against him.

It may be much to say that in all Scotland there was not one man who had better earned a halter than the Archbishop of St. Andrew's. There was the Calvinist minister of Spott, who was never silent about the crimes of Queen Mary, when, with at least equal atrocity, he was murdering his own wife. There was Kennedy, Earl of Cassilis, who roasted the Abbot of Crossraguel before a slow fire in a dungeon, to make him sign away his lands; and Hamilton was rather unfortunate in the number of his iniquities which were brought to light, than in any especial distinction above the other miscreants of his time. Of a Churchman he had nothing in him beyond the appetite for persecution. It was he who had burnt Walter Milne, the last of the Scottish martyrs. He was made Beton's successor only because he was the brother of the Duke of Chatelherault, and because the revenue of the archbishopric was a splendid provision for his vices. He had been the prime adviser in the late intrigues of his family. He had been in the secret of the murder of Darnley. It removed an obstacle between the Hamiltons and the Crown. He had promoted and pronounced the infamous divorce of Bothwell, knowing or hoping that in marrying him the Queen would destroy herself; and while affecting to be her warmest friend, he had offered in the name of his family to support Morton and Lindsay in putting her to death, if the Regency was given back to his brother, and the succession after the Prince secured

¹⁶⁶ Compare Buchanan's *History of Scotland*. Crawford's letter to Knox in Bannatyne's *Memorials*, and a letter of Sir W. Druiy to Cecil April 9th MSS. Border.'

to his brother's heirs. His last and foulest crime had been the murder of Murray, which was perpetrated by his kinsman, and traced in its contrivance to himself, his nephews, and Mary Stuart's household.

There was but one gaoler in Scotland whose bolts neither bribe nor intrigue could undo; and to that dark keeping Lennox hastened to consign him. He begged hard for a brief respite, if only that he might have some form of trial; but the Regent knew that if he waited till a post could reach London and return from it, his hands would be tied by the Queen of England. The notoriety of his guilt was held to be sufficient proof against him, and an Act of a so-called Parliament an adequate sentence. He was sent the way of his predecessor by the wild justice of revenge. Beton had been stabbed in his own room, dangled out of a window of his castle, and salted in the dungeon of the Sea Tower. Hamilton was hanged at Stirling five days after his capture; some not unlettered hand writing upon the gibbet — *Cresce diu, felix arbor, semperque vireto: Oh utinam semper talia poma feras.*] Elizabeth forgave easily an execution which her weakness would have allowed her to prevent. She congratulated Lennox on his success, and she recommended him to keep Dumbarton as surely as it had been bravely won.¹⁶⁷¹⁶⁸

¹⁶⁷Elizabeth to Lennox, April 22: MSS. Scotland.

¹⁶⁸Long may'st thou grow and thrive, thou bounteous tree, To bear for aye such fruits as this we see.

CHAPTER XXI

From the great day when Wolsey ceased to be a minister, when Cardinal Campeggio left England carrying with him the curses of the people and the stolen love-letters from Henry VIII. to Anne Boleyn, the Parliament met year after year for a quarter of a century, almost without intermission. In the early steps of the revolution, whether it was in the reconstruction of the law, the establishment of the succession, the attainder of a minister, or the decapitation of a queen, the representatives of the people were seen, for good or evil, taking their share in the actions of the Crown.

Whether it was, according to the modern theory, that the parliaments of Henry VIII. were but the mechanical instruments of a despot's caprice, or that the great body of the nation sincerely approved of the King's policy, such was the evident fact; and the result of it was that broad mass of legislation on which the ecclesiastical constitution of England reposes — a legislation which in its intellectual structure, and in the enduring vitality which has survived so many centuries of change, proves conclusively that whatever may have been the moral character of the statesmen in whose brain those laws originated, they were in sagacity and insight inferior to. none in the illustrious list of the public servants of the English Commonwealth.

The practice of annual or frequent parliaments, commenced by King Henry, was followed reluctantly and with less success by the Protector Somerset, the Duke of Northumberland, and Queen Mary. Disagreements naturally rose between the Crown and the Peers and Commons, when the government remained in the hands of one or other of the extreme parties in the country. With the accession of Elizabeth and a return to a more moderate policy, the good understanding might have been expected to come back. It might have been thought that the Queen would have followed the example of her father in this respect, if in no other, so confessedly excellent, and that no season would have been allowed to pass without the opinion of the country being allowed to express itself through its legitimate channel.

The anticipation, however, if entertained by the people, had not been fulfilled. Elizabeth had now reigned thirteen years, and in all that time there had been but three short sessions. She was personally

popular — popular for her own qualities, and popular because her life was the only breakwater between the country and civil war; yet the Parliament of 1566 had been dissolved in disgrace, and she looked forward to another as the most unwelcome of necessities.

The reason was not far to look for. The succession to the crown was still undetermined. The religious differences, which would have died away with an ascertained future, had been aggravated by the uncertainty. The marriage of the Queen, so naturally and justly desired, was still in the clouds; the value of it as a means of providing an heir to the crown was sinking to zero with her advancing years, and the experience of the last session might well make her unwilling to encounter another while still unprovided with a husband. If the dread of a disputed succession secured to the Queen of Scots, notwithstanding her crimes, the tacit or avowed support of the great conservative party, her claims on the consideration of Parliament, had she come upon it with clean hands, would have been altogether irresistible. Her friends would have said to Elizabeth, "We can bear our uncertainties no longer. Here by the laws of blood is your undoubted heir, hied from a marriage contrived by your grandfather to unite this island under one head, and bringing Scotland in her hand as her dowry. Would you have married as we desired, and as you promised, you might have had children of your own, and one and all of us would have been true to you and yours. But you have played with the princes of Christendom till you have offended them all and have left us without an ally in the world. You are thirty-eight years old, and you have no husband, no child, nor likelihood of child. Our lives, our properties, our national independence are at stake, and we will bear it no longer. It is true that the Queen of Scots when in France made unwise pretensions to your crown; we will secure you against a repetition of that danger. She shall promise to respect your rights while you live. She is a Catholic, and so are more than half your subjects, but we desire no revolution, no bloody Mary to rule over us; there shall be toleration on all sides and equal liberty to Protestant and Catholic to worship in their own way."

This would have been the unanimous language of the English Nobles; a majority of the Commons would have gone along with them, and with what pretence could Elizabeth have resisted? She could not have resisted at all. She would have had no power and probably no will to resist; and beyond reasonable doubt Parliament would

not have again separated till the long-vexed question had been determined in Mary Stuart's favour.

The prospects of a lady who had presided over the horrors at Kirk-a-Field were far less promising. The political reasons in favour of her succession were as strong as ever; but it was no longer possible for an English nobleman to rise in Parliament and speak openly for her title. Her cause was now maintained in the dark by conspiracy and rebellion — rebellion under false pretences, and lying pamphlets, and parallels of David. The Catholic religion, shrinking from the light among these subterranean elements, was losing what of English frankness there lay in it, and was walking in the dark with its hand upon the poniard. But this darker turn which affairs were taking was due itself to the disappointment of more legitimate hopes. The Catholic party could find no other representative. Mary Stuart, as they again and again said, was their only hope, and they were themselves degraded to the level of the cause which they were supporting. Passion and fanaticism were called in to defend what reason could not justify; the religious reaction was precipitated into the most extravagant forms; and Puritanism on the other side was destroying much that was left of moderate counsels. Had Elizabeth published Mary Stuart's letters after the enquiry at Westminster — had she done this, and coupled with it the recognition of James as King of Scotland and her successor — half her own troubles would have been avoided, and half the national perils. But she had allowed the opportunity to pass, and she could not recall it. The two Houses were now divided, and were the represents tives of two religions and two policies. The Norfolk marriage was likely to be revived among the Peers and pressed upon her consent; the Commons would probably boil over in some fierce stream of anti-Popery, insist on declaring the Queen of Scots incapable of the succession, and recognising one of Lord Hertford's children; while both alike would combine in not undeserved reproaches against herself.

It was no wonder that Elizabeth dreaded the meeting of another Parliament, but an empty treasury made longer delay impossible. The suspension of commerce had ruined the customs. Ireland absorbed annually almost a fourth of the ordinary revenue; and and the navy, and the expenses of the Borthes secret-service money — taking the form subsidies to the Prince of Orange and the Huguenots — were making demands upon the exchequer which no economy could

meet. The lands of the Northern Earls could not be touched till they were attainted, and in some form or other the Bull of Pope Pius required an answer from the nation.

The Houses were to meet on the 2d of April.

The forty noblemen who were parties to the Ridolfi plot would be in London with their retinues; and the Queen of Scots, who had reason to believe that measures might be introduced unfavourable to herself, and who recollected how Morton, Lindsay, and Ruthven had broken up the Parliament at Edinburgh which was to have attainted Murray, conceived that the same game might be repeated by her present friends with equal success. The Duke of Alva's willingness to assist her would be proportioned to the energy of the English Catholics themselves, The Duke of Norfolk, though released from the Tower, was not to be allowed to take his seat among the Peers. The great party of which he was the leader was deeply affronted, and their resentment might be utilized to practical effect. The servants and followers of the Lords would be sufficient, if combined, to overcome the utmost resistance which could be offered by the Court; and the Queen of Scots once more endeavoured to spur her languid lover into energy. She recommended him and Arundel to surprise the Queen, seize her and Cecil, and before the opening scatter such of the Commons as had arrived, and so end the Anjou marriage and all other troubles at a single blow.¹⁶⁹ The scheme was perhaps not impracticable. The Court suspected nothing. The Bishop of Ross talked it over with the Catholic leaders. Arundel, Lumley, Worcester, Southampton, Montague, and several others, were ready. Lord Derby's sons had come up with some hundreds of Lancashire gentlemen, and were eager for any desperate enterprise. Young Talbot had arranged a plan for the simultaneous escape of the Queen of Scots; relays of horses were provided, and a ship was in readiness at Liverpool to carry her to the Isle of Man till the struggle in England should be over.¹⁷⁰ Nothing, however, could be done without Nor-

¹⁶⁹ Confession of the Bishop of Ross, October, 1571: Murdin. Barker's Confession: *Ibid.*

¹⁷⁰ Several projects had been formed to get her out of Sheffield, some details of which were discovered by the Earl of Morton on his way back to Scotland. "She would feign herself ill for two or three days, and then be taken down stairs to see the dancing." She was to dance herself, affect to faint, and be carried to her room. One of her women, dressed like her, would take her place on the bed, while she, in the disguise of a page, would escape from a postern. If this failed, she was to go

folk, and Norfolk was one of those unlucky conspirators who. wait always for a better opportunity. The Bishop of Ross laid the design before him, and showed him the promises of his friends. But the little decision which he possessed was unnerved by the badness of his cause. He knew too well the nature of the woman for whom he was turning traitor, and when he was warming to the striking point, the thought of it froze the blood in his Too dastardly and soft, as the disappointed called him, "unfit alike for good or ill;" he said he did not like 44 Italian devices;" 44 he would attempt nothing till he got answer from the princes beyond the seas." ¹⁷¹

Thus the occasion passed, and Parliament opened in peace, the Protestant party being strengthened in the Upper House by the presence of the Queen's cousin, lately created Lord Buckhurst, and, far more important, of Cecil, whose long services had been rewarded, on the 25th of February, by the Barony of Burghley. Including these two, there were now sixtyone Peers upon the list, besides Westmoreland and Morley, who were in Flanders, and the Earl of Northumberland, who was at Lochleven. Of the sixty-one, Lord Cumberland and Lord Bath were under age. Norfolk was not allowed to sit, and to compensate for his absence Hertford was excluded also. Lord Derby she was a turnbroach of the kitchen, and so convey herself forth on foot to some place where horses should be provided for her." —Morton to Cecil, April 7: MSS. Queen of Scots. was ill and could not come up, and Shrewsbury could not leave his charge. Eight others were absent for various reasons, and seven of the twenty-two Bishops. The Upper House was therefore composed of sixty-two members in all. The Bishops were to a man under Cecil's direction, and their united vote, including the proxies, could always be depended upon. Seven of the absent Peers gave their proxies to Leicester, and Leicester would not go over to the Catholics till he saw that they were certain to succeed. So far, therefore, the prospects of the Government were favourable. Lord Arundel, with the Ridolfi revolution in front of him, was un-

hunting, one of her ladies representing her, and she again as a page. A Scot was to come in post with a pretended commission from Elizabeth to speak with her. He would address himself to the lady, who when he retired would direct the page to wait upon him: or "She should cut her hair, blot her face and body with filth as though

¹⁷¹Confession of the Bishop of Ross, October, 1571: Murdin Barker's Confession: Ibid.

likely to try the experiment, under such circumstances, of a Parliamentary conflict.¹⁷²

The proceedings commenced, as usual, with a speech from the Lord Keeper. It was long, but contained little beyond an encomium on the Queen's Government, and an intimation that, through "thq, raging Romanist rebels," the Queen had incurred extraordinary expenses in defence of the kingdom, and required money. She had reduced her personal outlay, cutting off all needless luxuries and extravagancies, to avoid being a burden to her people; but the peace of the realm had been disturbed both at home and in Ireland. The malice of the time obliged her to keep a fleet upon the seas for the protection of commerce. The state of parties in Scotland required the presence of a large force upon the Border, and with the utmost economy she was unable to meet the demands upon her. This, with two short paragraphs on a revision of the laws, was all, in substance, which Bacon said. The succession, the excommunication, the Queen's marriage — the subjects which really occupied all men's minds — • were passed over in silence. A reform in the discipline of the Church was admitted to be necessary, but a wish was pointedly expressed that it should be left to the Bishops.

Had the Parliament confined themselves to the programme thus marked out for them, the Session would have passed over quietly. So long as no attempt was made to cut the Queen of Scots off from the succession, the Peers would have been content to wait to assert her claims after the arrival of Alva; and the Commons were intended to restrict themselves to voting the supplies.

The Commons, however, were in no humour to be thus easily managed. The ultra Protestants proved to be in an enormous majority. The rebellion of the North, and the general necessity of things, had developed largely and freely the Puritan spirit of the towns; and the Catholic reaction in the country districts, the loose administration of the laws, and the notoriously Romanizing tendencies of the Peers and country families, acted as a challenge to the fiercer of the Reformers to try their strength with them. For ten years past there had been an earnest desire in the Reforming leaders to inflict the Thirty-nine Ar-

¹⁷²"I confess that I, waiting on my Lord and master, did hear his Grace say that upon examination of the matter of the murder, it did appear that the Queen of Scots was guilty and privy to the murder of the Lord Darnley, her late husband." — Barker's Confession: Murdin, p. 134.

ticles clergy and laity as a test of doctrine, to reform the Prayer-book, and impose on England generally the Genevan discipline. As a step in this direction, on the first day on which the Houses met for a Bill was introduced to compel all persons, of whatever degree, not only to attend service on Sundays at church, but to be present twice a-year at the Communion.

The tongues of men, finding themselves unloosed at last, ran over at once with a violence unprecedented in House of Commons' history. Complaints burst out the laxity with which the laws against Papists had been enforced. The Catholic services were prohibited, yet all over England masses were said in private houses with scarcely an attempt at disguise. The ecclesiastical lawyers were running in the old grooves, with pluralities and dispensations and licenses, those gray iniquities of which Henry had for a few years washed the Church Courts clean. Mr. Strickland, "a grave and antient man," declared that "known Papists were admitted to have ecclesiastical government and great livings, while godly Protestants had nothing," and "boys were dispensed with to have spiritual promotion." God, he said, had given England the light of the Word, but England had been slack in making use of its advantages, and had not thought convenient to profess and publish the truth openly. He moved for a reproduction of Cranmer's book on the Reformation of the Laws, that the country might take its place at last among the Reformed nations, with a clear confession of its faith.

Free speech in Parliament had been one of the privileges which Henry VIII. had not attempted to interfere with. Elizabeth could never bring herself to regard it as anything but an intolerable impertinence. Sir Thomas Smith, who had succeeded Cecil as her Secretary, proposed that the Communion Bill should be leferred to the Bishops; the Queen sent a message to the House not to waste their time over matters which did not concern them, and "to avoid long speeches."

Fleetwood, however (afterwards the Recorder of London), said that the House "knew that there was a God to be served as well as the Bishops;" "when Bills were referred to the Bench, they commonly came to nothing;" "the Bishops would perhaps be slow," and they "could do better without them.

The Queen's monition was unheeded, and the discussion went on more fiercely than ever. Mr. Snagg insisted on the insufficiency of the Act of Uniformity.

In some churches the Common Prayer was not used at all. There was only a sermon, and such prayers, extempore, as the minister might choose to offer. Mr. Norton broke into invectives on the abuse "of benefit of clergy," "the straining of the law by ecclesiastical favour of offenders in Holy Ordeis, the clerks in a cloak of naughtiness, and giving them liberty to sin." The dispensations in the Court of Arches were attacked specially and bitterly. Bishops, it was presumed, "could do nothing contrary to the Word of God," yet, like Popes, they kept open offices for the sale of licenses to disobey the law.

So the storm broke on all sides, and for three weeks it raged incessantly. Some language was heard not wholly immoderate. Aglionby, the Member for Warwick, raised his solitary voice for liberty of conscience.

« He did not approve," he said, "of the private oratories in the Great Houses; he would give the rich no privileges which the poor could not share, and both alike should be obliged to appear in their parish church. But receiving the Communion was something more than an ordinary outward observance, and he thought that the law ought not to meddle with it. Men were excommunicated because they were wicked, but to force men to communicate because they were suspected of being wicked was an anomaly beyond reason or precedent." But Aglionby was briefly told that the peace of the realm was of more importance than conscience. The Israelites were not allowed to refuse to eat the Passover, and the makers of laws were not called upon to respect the obstinacy of fools and knaves. It was enough if what Parliament prescribed was right in itself, and if the people were unfit to obey, they must make themselves fit.

Two of the officers of the Household attempted to bring back the debate to the subjects mentioned in the Speech. The Parliament, Sir James Crofts said, had met on business of immediate and serious moment; the Queen being Head of the Church, might be trusted to do what was right, and the hasty proceedings of the House of Commons, "before and contrary to the law, might rather hinder than help." But Crofts was suspected to be a concealed Catholic; a Mr. Pistor, a Puritan, brief and stern, and "much approved by the House, complained

rather of the waste of time over mere secular business, when the cause of God was in danger; subsidies, crowns, realms, what were these, he said, but dust and ashes. It was written, "Seek first the kingdom of God."

Whatever may have been Elizabeth's private feelings when she found herself thus defied, she showed outwardly remarkable self-command. She knew and valued the men who were thus provoking her, and she forced herself to bear with them. Strickland fell under her displeasure. He introduced a measure without permission for the alteration of the Prayer-book, and he was sent for, reprimanded, and forbidden to return to the House. But a universal cry of Privilege warned her to be cautious, and she withdrew her prohibition. Thus the Commons persisted, passing measure after measure, — the Bill for attendance at Communion, of which no draft remains to indicate the provisions of it; a Bill which has also perished, restricting or abolishing the dispensing power of the Court of Arches; and a Bill which unfortunately did not share the fate of its companions, and made its way to the statute-book to trouble the peace of broader times. Convocation, nine years before, had reimposed upon the clergy, so far as they had power to legislate, the too celebrated Thirty-nine Articles of Religion. The Parliament had then refused their sanction to a measure which went far beyond the most extravagant pretensions of the Church of Rome in laying a yoke upon the conscience. But their moderation forsook them now. The heavy chains descended. The faith of England, which, but for this fatal step, might have expanded with the growth of the nation, was hardened into unchanging formulas, and intellect was condemned to make its further progress unsanctified by religion, the enemy of the Church instead of being its handmaid.¹

A Bill became law also to check the profligate administration of Church property by ecclesiastical corporations; ² and a companion measure was introduced, originally perhaps as part of the same statute, so singular in some of its provisions as to deserve particular notice. Puritanism had not yet blinded the eyes of Protestants to the merits of the faith of their fathers; the House of Commons could still acknowledge an excellence in the clergy of earlier times, to which they saw but faint approaches in the degenerate ministry which had taken the place of the Catholic priests.

"The Queen's noble progenitors," so ran an Act which never reached maturity, "had in times past endowed the clergy of the realm with most ample and large possessions, that godly religion might be the beti 13 Elizabeth, cap. 12. 2 Ibid., cap. 10. ter advanced among the people, that the poor might be relieved, the children of the nobility and gentlemen of the realm be virtuously educated in the fear and knowledge of the Almighty. Whether the revenues of these estates were now employed and bestowed according to the intent and meaning of their donors, was a thing to be pondered and considered. The clergy being now married and having wives, did overmuch alienate their minds from the honest and careful duty to which they were bound to attend. The poor were left in their poverty. The ancient hospitality was no longer maintained. The ministers of the Church accepted and. reserved the most part and portion of the yearly revenues of their dignities unto themselves, to the slander of the whole estate of the clergy." The remedy was not to return to the old law of celibacy, and it was admitted that ecclesiastics, if they brought children into the world, ought to provide for them; yet, so great a change could not be passed over without the expression of an opinion, that it was no matter for entire satisfaction. The framers of the bill desired to intimate, "that Archbishops and Bishops, Deans and Provosts of Colleges, ought to maintain their households on the old and generous scale; and for the necessary evils, their wives, those ladies should consider that they were the companions of learned men, who had charge and care of the whole realm as concerning the doctrine of faith and good examples of life: it was their duty therefore, as sad and discreet matrons, to bestow their time in devout and godly exercises, prayers, almsdeeds, ministering to the poor, with such like works of charity. They ought not, as was now far otherwise reported to be, much to the blemishing of their good name, to intrude and press themselves into the worldly affairs of any such State and Government." ¹⁷³

One after another these measures went up to the House of Lords. The Queen interfered once May- more. On the 1st of May she sent a message to the Commons, that Church questions belonged to herself, and that they had no business with them. But they took no notice; she required money, and she let them go their own way till the subsidy was voted..

¹⁷³Act for the Bishops and Clergy, 1571: MSS. Domestic, Rolls House.

To the Peers, the Communion Bill was most unwelcome. They knew it to be aimed at themselves, and deputations of Catholic noblemen waited on the Queen to remonstrate. Troubled as she was with her Anjou marriage, and intending if necessary to escape out of it through her Protestant orthodoxy, Elizabeth did not care to commit herself too positively on the Catholic side. A committee of the two Houses sat to consider if it could be remodelled; but the one supremely unpalatable condition could not be shaken off; the undivided phalanx of the twenty-two Prelates never failing, who turned the scale in every division.

°One Catholic nobleman said tauntingly, that if the Right Reverend Lords could agree among themselves as to what they required the laity to receive in the Sacrament, they might get over their objections; at present every parish had its own theory on the matter; and being charged as they were with the custody of their own souls, the Peers as well as others had a right to their own opinions.¹⁷⁴

Burghley, however, lent his great weight to put down the opposition. "The quiet of the realm, he 197 said, "required that the measure should be passed, liberty of conscience was generally good, but after the step which the Pope had chosen to take, religion had been made a question of allegiance. The State was in danger, and the Queen's throne had been made insecure." 1

The Bill passed, and waited only for the Queen's consent. In and out among these debates, other business went forward of no little moment; but of more importance than any one of the special measures brought forward were these signs of the humour of the Commons. The heart of Protestant England was alive; a deep earnest fear of God was spreading in the middle classes, on the Jewish rather than on the Christian model; a recognition of a Divine Sovereignty, which it was their business, in spite of knight or noble, to see recognised and obeyed upon earth. With a better cause, and a lady worthy of their devotion, the Catholics might still have won; but Kirka-Field and the Bothwell marriage were worth a legion of angels to English Protestantism.

Of thirty-nine other Acts which passed before the session ended, the following were specially noticeable. It was tacitly understood that Mary Stuart's name was not to be mentioned, but a Bill was introduced, which in its original form would have cut her off from the

¹⁷⁴La Mothe F, May 18: Depeches, Vol. IV.

succession as effectually as if she had been directly designated. The excommunication had made it necessary to shield the Queen with more stringent laws, and to reenact in a modified form the repealed statutes of Henry VIII. It was proposed that "to affirm, by word or writing, that the Queen was not Queen, or that any other person ought to be Queen, or that the 1 La Mothe Fnelon, May 13: Depeches, Vol. IV.

Queen was a heretic, schismatic, tyrant, infidel, or usurper of the crown," though not followed by any should be high treason. Any person, who Queen's life should lay claim to the Crown, or that had already laid claim to the Crown, or should not, on demand, acknowledge the Queen to be lawful sovereign of England, should be declared incapable of succeeding to the Crown after the Queen's decease. It should be high treason to maintain the right of any such person; or to deny the power of Parliament to order the succession; and "to avoid contention of person except the Queen's children, or not specially named and chosen by Parliament, regarded or spoken of as heir to the throne, under penalties of forfeiture and outlawry.

Some measure of this kind the Catholics in Parliament could not refuse to pass without open confession of disloyalty; all that they could reasonably attempt was to blunt the personal application of it. The Bill was thrown like a shuttlecock from House to House, and from Committee to Committee. The Queen of Scots was in the mind of all and in the mouths of none. The Protestants were struggling to extinguish her and her pretensions, the Catholics to shield her without prematurely declaring their intended treason.

The argument on one side was that it was unjust to make the Act retrospective; on the other, "that where ambition to a crown had once entered, such was its nature that it could never be satisfied." Sir Francis Knollys informed the Commons, that the words, "had already laid claim," were carefully considered by the Council before the Bill was introduced, "and were more than requisite, yea, more than convenient."¹⁷⁵

To stay or prevent devices past he thought it but honest policy.' Another bold speaker said that "to pretend the Queen was not Queen might fairly be called treason, but to make it treason to call her heretic, infidel, or schismatic, was unreasonable. Catholics necessarily considered her a heretic, unless they confessed themselves

¹⁷⁵13 Elizabeth, cap. 1.

to be heretics, or unless her Majesty, as some people thought, was at heart a Catholic herself; there were those who said the Established doctrines were her councillors' but not her own; and if the words to which he objected were allowed to stand, he would introduce another, and vote it be treason to call her infidel, Papist, or heretic."

Elizabeth's wishes in the matter appear nowhere, except as they may be supposed to have been represented by Knollys; and Knollys himself had more than once lamented that Elizabeth did not always think with her Council. She liked to be able to tell foreign Ambassadors that she disapproved of Cecil, that she valued and loved the Catholics, that she had not interfered and would not interfere with the prospective claims of Mary Stuart on the crown. In the end each side yielded something. The Act passed, but the contemplated offences were made to date from thirty days after the close of the Parliament, and if Ridolfi made good speed, it would be a dead letter, or would recoil upon Elizabeth. Past pretensions and past acts were to be forgotten, and a power was reserved only to demand of any known pretender whether he or she would for the future admit the Queen to be a lawful sovereign. Then, but only then, if the answer was disloyal, the right, whatever it might be, was to be held forfeited.

Other clauses provided that prosecutions should be instituted in all cases within six months of the alleged offences, and that witnesses should be brought face to face with the accused.

Two further measures were modified in the same spirit. The introduction or publication of Papal Bulls in England was made high treason also, high treason for any person calling himself a priest to receive English subjects into the Church of Rome, and high treason in the subject to be received; but this Act was made prospective only; and three months' grace was allowed to persons who had Papal Bulls in their possession, or had been converted, to make confession to their diocesan and be pardoned.¹

Besides the exiles who had been in rebellion, many gentlemen had followed or anticipated the example of Lord Morley, and had withdrawn to the Continent. The law of England forbade subjects to reside abroad without leave from the Crown, and they had evaded it by conveying their lands in trust to relatives, through whom their rents were sent across to them. Conveyances of this kind were declared to be void, and the Crown was empowered to take possession of the estates of all persons who after sufficient notice refused to return. But

a distinction was introduced between those who were hatching treason and those who were influenced by "blind zeal;" and the Peers carried a special clause in favour of their own order. A Peer, at any time that he pleased to make his submission, might recover his property.²

An Act of Attainder was carried against Westmoreland, Northumberland, and their companions. Their estates became the Crown's, to be sold or disposed of as the Queen might please; and the dispute with the 13 Elizabeth, cap. 2. 2 Ibid., cap. 3.

Bishop of Durham, which the lawyers had left after all undetermined, was disposed of by an intimation that, except for the exertions of the Crown, the Bishop would have been swept out of existence, and had therefore no claim upon the forfeitures.-

It had been discovered after the suppression of the insurrection that multitudes of seditious priests were continually going up and down the country in disguise, or hiding in country houses as "serving men." The Council proposed that all such persons, wherever found, should be treated as vagrants or Egyptians, that such priests should be pilloried, set in the stocks, or whipt at the cart's tail; and that the gentlemen who enter This practically useful measure was not pressed, and lay over for another session. The subsidy was the only matter of importance remaining, and it was rapidly, easily, and freely disposed of. A grant of 100,000 l. was voted without a word of opposition, and on the 29th of May the session was at an end.

As with all Elizabeth's Parliaments, it was brought to a close ungraciously. The Queen said that "on the whole she was tolerably satisfied. Some members of the Lower House had shown themselves arrogant and presumptuous, especially in venturing to question her own prerogatives. They had forgotten their duties in wasting time by superfluous speech, and they had meddled with matters not pertaining to them nor within the capacity of their understanding. The audacious folly of this sort deserved and received her severest censure." The majority, however, even of the Commons, she admitted, had conducted themselves creditably; and as to the Lords, half of whose names were in Ridolfi's letter-bag, "her Highness said that she took their diligence, discretion, and orderly proceedings to be such

as redounded much to their honour and commendation, and much to her own comfort and consolation." ¹⁷⁶177¹⁷⁸

Her actions went with her words. She consented measures which had passed both Houses except the Communion Bill, against which the Lords had struggled so hard, and which was identified by Burghley himself with the safety of the Crown, she permitted to drop.

Possibly Elizabeth was wise. Many a wavering Catholic may have been won back to his allegiance she passed the bill, would have gone over to; and although had she known all the truth she would have spared the Lords the compliments which she lavished upon them, yet there was true statesmanship in her efforts to keep the peace among her subjects, and in her refusing to punish the Catholics for the act of the Pope until they had made it their own by actual treason. It was not, after all, by measures passed in Parliament that Elizabeth's crown was to be saved, and Cecil was working more effectually by other methods.

It is time to return to Ridolfi and his mission to the Pope and the King of Spain.

Elizabeth, it has been seen, had replied to the commissioners sent by Alva to treat for a settlement, that she would negotiate directly with Ins master. Sir Henry Cobham, Lord Cobham's brother, was despatched to Madrid with powers to come to terms with Philip; while Ridolfi went ostensibly to Brussels, on Walsingham's recommendation, to make arrangements for the reopening of trade.

The Duke of Alva had been long looking, as he said, for some "ford" by which to enter effectively into the English difficulty. He had apparently failed to find one, and notwithstanding the stolen money, the wrongs, insults, violence, indignities, to which Spain had been exposed since the quarrel, he was coming round to quiet methods. The threat of the Anjou marriage, if it did not alarm him as much as it alarmed the Queen of Scots, was a formidable possibility, and to prevent the chance of it was worth the sacrifice of his pride.

He was in this humour when Ridolfi arrived at Brussels to lay before him the message of the Queen of Scots and Norfolk. His plan for the invasion was as simple as on paper it seemed most promising. Eight thousand Spanish troops could be collected at

¹⁷⁶Journals of the Lords and Commons, reign of Elizabeth: D'Ewes.

¹⁷⁷13 Elizabeth, cap. 16.

¹⁷⁸Draft of an Act against Disguises of Priests, April 27, 1671: MSS Domestic.

Middleburg. They could be silently embarked in the transports with which the necessities of Alva's army kept the harbour crowded, and with a fair wind they would be across the Channel in a night. Six thousand would land at Harwich, two thousand would make North to Aberdeen. The Eastern Counties were ready to rise; Norfolk and the Spanish Ambassador would fly from London raising the country as they went; the Catholic noblemen in Scotland and the North would rise at the same moment; and two armies, each swelling like an avalanche, would advance by forced marches upon London. Lord Derby, according to Ridolfi, had undertaken to bring into the field the whole force of Lancashire and Cheshire, Shrewsbury was in the secret, and had pledged himself to protect the Queen of Scots till the army from Scotland came to her rescue.¹⁷⁹ Assailed thus on all sides, taken by surprise and without time to raise a force for her defence, Elizabeth would be taken in a net. The Catholic religion would be restored from the Orkneys to the Land's End, and the Queen of Scots, as sovereign of the whole island, would dispose as she pleased of the life and person of her oppressor.

In such rhetorical fashion Ridolfi prearranged the campaign. Doubtless there were elements of hope in what he said, and the conquest of England was of supreme importance for the security of the Netherlands; but the silent Duke formed no favourable opinion of the messenger, whatever attention he might pay to the message itself. He knew England too well to believe that the enterprise would be so easy. He had learnt something of the toughness of Protestantism; he had a solid respect for established governments, with a distrust equally deep of noisy explosive insurrections.. Ridolfi too could not hold his tongue. He was so vain of the part which he was playing that he told his secrets to Chapin Vitelli and the Spanish generals. He struck Alva as too great a fool to have been trusted on a serious errand of such magnitude, and he half doubted his

¹⁷⁹“El otro ejercito que viniese de Escocia vendria siguiendo de mano en mano para juntarse con los amigos que se levantarán, y de passada llevar consigo la Reyna de Escocia, la persona de la qual se puede tener por cierta, rnrriue assi la promete quien la tiene en guarda [underlined in the original], Uevantandose un ejercito de la parte de Norfolk y por opposite de la parte nacia el Canal de Irlanda, Uevantandose todo el pays del Conde de Derby que confina con la Wallia y son todos Catolicos: succede desto que a la Reyna Isabel se le cierra el paso de poder ir a hacer dano a la dicha Reyna ile Escocia.” — MS. endorsed de Roberto Ridolfi, April, 1571: Simonca*.

professed character might not be his leal whether he was more than a spy of Cecil's.

The letters of which he was the bearer, however, were genuine; the Queen of Scots' pretensions were a reality; and were Elizabeth out of the way, something indisputably might be made of them. Were Elizabeth out of the way — this on reflection seemed to Alva to be the hinge of the matter; but the step which he contemplated was not to be risked on his undivided responsibility, and to Philip, therefore, he proceeded to state at length his private opinion. After sketching generally Ridolfi's proposals, he continued thus: — "I replied that what Ridolfi suggested was full of danger; the Earls of Westmoreland and Northumberland had tried an insurrection and had failed, and the Duke of Norfolk, who was to have joined them, was still in partial confinement. Ridolfi assured me that Norfolk could leave his house when he pleased, and that the Catholics would not fail a second time if the Pope and one or other of the great Powers would help them. He showed me a list of the Confederates, and he mentioned July or August as the time when the enterprise would be most easy. I asked him what they would do if the Queen married the Duke of Anjou. He said that the Queen was trifling as usual. She would never marry unless she was forced into it, and if it became at all likely, the Duke and the other noblemen would interfere."¹⁸⁰ « I then talked over the matter with the Council of State. To Ridolfi — his commission not being addressed immediately to me — I said merely that lie might assure the Duke of Norfolk and the Queen of Scots of your Majesty's good-will to both of them; and if the Duke was really a Catholic, and the Queen of Scots was willing to marry him, your Majesty I was sure would make no objection. I charged him, however, as he valued their lives to keep better guard upon his tongue, and I have written to Don Juan de Cuniga,¹⁸¹ to impress on his Holiness also the necessity of caution. Should the Queen of England hear of what is going on she

¹⁸⁰Yet Norfolk and his friends at this very time were assuring La Mot he Fenelon that there was nothing which they desired more than this marriage. "Ledict Due," La Mothe wrote on the 2d of May, "pareeque je lay avois desja faict quelque communication de ce propos, avec assurance de la volonte de Voz Majestez vers luy et la Rovne d'Escoce, m'a envoys dire qu'il se sentoit trbs obligd a Voz Majestez de la consideration qu'il vous playsoit avoir d'eulx deux en ceste affaire, auquel il m'avoit desja faict declaration de son coeur qu'il se deliberoit avec toutz ses amys de s'y employer droicement; car se reputoit tout oultre vostre serviteur et que Monsieur vostre filz ne doubast plus qu'il ne flit obey, rdvdrd et aymd en c«

¹⁸¹The Spanish Ambassador at Rome

will have a fair excuse to execute them both, have desired Don Juan to tell his Holiness that he may rely upon your Majesty, but that he must submit to your Majesty's decision whatever it be, and that he must leave the execution of the enterprise to those who are to act in it.

"His Holiness sent some one here a while ago to press these English matters upon me. I said then that he ought not to believe that the thing was as easy as the English Catholics pretended. The difficulty was not so much in the enterprise itself as in the impossibility of any common understanding about it between Royaulme; et a escript a l'Evesque de Ross qu'il me voulut ayder de toutz ses moyens et intelligences en ceste cause, car il cognoissoit qu'il estoit besoeing d'avancer icy la reputation de la France pour bien faire les affaires de la Royne d'Escoce. Milord de Lumley, pour gaiges dela volunté du Comte d' Arundel son beau-pere, du Comte de Worcester et de luy en cest endroit, m'a envoyd une bague, et m'a mandd que si je le trouvois bon, eroient debon coeur et y procederoient pareffectz." — La Mothe Mai 2: *Depeches*, Vol. IV. To cover language of this kind, should it be carried round, Ridolfi told Alva that the Lords were playing with France till Spain was ready, lest France might withdraw its subsidies from their fi lends in Scotland. It did not answer. They lied to both tin Great Powers, that if one failed them they might fall back upon the other They earned only in the end the distrust and contempt of both. your Majesty and the French. If his Holiness could have prevailed on France to leave all to us, your Majesty could at least have compelled that Queen to set the Queen of Scots at liberty, you would have provided her with a Catholic husband, and have opened a way for the restoration of religion. I thought then that his Holiness might do something in this way if he would proceed with the necessary discretion, but I have told Don Juan to say that now it had better be left alone. Nothing which the Pope can do at present will produce good: so far from it, if a hint of what is intended reach the French Court, all will be ruined.

"But to come to details. Certain points are clear: the unhappy condition of the Queen of Scots, the ill-usage of herself and her friends, the obligation which rests on your Majesty to make an effort for the restoration of the faith in those islands, and the injuries which your Majesty and your subjects have sustained from the Queen of England

— injuries which will not be redressed as long as she continues on the throne.

“All these things may be set right through the offers which are now made to us. It will never do, however, simply to send our troops as these people propose, on the chance of what may follow. A large force will be required, many persons will have to be admitted into the secret, and a secret which is widely shared will infallibly be betrayed. The Queen will have the opportunity, for which she has long been looking, of putting the Queen of Scots and her adherents to death, and the blow will recoil upon your Majesty. I do not trust Ridolfi. He is a babbler. He has talked over the plan with a person here who is not a member of the Council.¹⁸² If we land and do not succeed at the first stroke, you may be sure that the Queen of England will move heaven and earth to defend herself. She will throw herself wholly upon France. She will instantly marry the Duke of Anjou, though at present further from her thoughts; and your Majesty may consider how you will then stand, with England, France, and Germany your enemies. No one should advise your Majesty to run such a risk as this.

“But there is another possibility. Suppose the Queen of England dead — dead by the hand of nature or by some other hand; or suppose the Catholics to have got possession of her person before your Majesty has interfered; the case is then altered. There would then be no danger from Anjou or any other Prince; and the French will no longer suspect your Majesty of intending the conquest of England. Then you will be able to say to the Germans that you go there only to maintain the rights of the Queen of Scots against her competitors. The Duke of Norfolk says he can himself keep the field for forty days: long before that time is out we can give him the 6000 men that he asks for, and all will go well.

“Your Majesty understands. The Queen being dead — naturally or otherwise — dead or else a prisoner, there will be an opportunity which we should not allow to escape. The first step must not be taken by us, both for our sake and for theirs, but we may tell the Duke that those conditions being first fulfilled, he shall have what he wants. The enterprise will be as honourable to your Majesty as it will then be easy to execute. So confident am I of this, that if I hear that either of these contingencies has taken place, I shall act at once without wait-

¹⁸² A side note says, “debe decir a Chapin Vitellii.”

ing for further instructions from your Majesty." ¹⁸³ Alva, it is clear, understood the business, and, if every one concerned in it had been as prudent as he, the result might have been something considerable. He dismissed Ridolfi with such cautions as he described to Philip, to pursue his journey to Rome, and he himself at his leisure made arrangements to move on the instant, if the opportunity for which he waited should present itself. Had Norfolk possessed sufficient spirit, the Queen might perhaps have been taken at the opening of the Parliament; the occasion was not lost so long as the session lasted, and Ridolfi thought it desirable to let his friends know before he left the Low Countries what the Duke had said to him.

There happened to be at Brussels at this time a certain half Scot half Fleming named Charles Baily. He was one of those many young men who were carried away by enthusiasm for the Queen of Scots, and speaking English and French perfectly well, he was employed by the Bishop of Ross to conduct the communications between the refugees and their friends at home. When Ridolfi took leave of Alva, Baily was on the point of leaving for England with letters from Sir Francis Englefield, Lady Northumberland, and the Earl of Westmoreland, and with a number of copies of the Bishop of Ross's book in defence of Mary Stuart's title, which the Bishop wished to distribute while Parliament was sitting. A safe messenger being thus ready to his hand, Ridolfi wrote to the Bishop of Ross, and with singular imprudence, when one letter would have answered his purpose, he enclosed others containing the same dangerous secret to the Duke of Norfolk and Lord Lumley. Each of the three was in cipher, but either by accident or further carelessness he sent the key with them on a separate sheet, and the only precaution which he observed was to cipher the addresses of the two noblemen, in figures which had been arranged with the Bishop while he was in England. ¹⁸⁴

With this perilous addition to his burden Charles Baily sailed for Dover. There were spies everywhere and on every one. He had no sooner set foot on shore than a hint was given to an officer to search his baggage; the letters and books were found, and he and they were sent under guard to Lord Cobham, the Warden of the Cinque Ports, who was in London for the session.

¹⁸³ Alva to Philip, April 7, 1571 ' MS. Simancas.

¹⁸⁴ The letters to Lumley and Norfolk were addressed to 30 and 40.

» Cobham's house was in Blackfriars. While the prisoner was being taken thither, intimation was sent to the Bishop of Ross that a person had been arrested with some mysterious papers enclosed under cover to and the Bishop, not knowing his precise danger, but feeling only the possibility of a tremendous discovery, first thought of throwing himself upon La Mothe, telling him as much as he dared, and asking him to claim the enclosures as his own. On reflection it seemed better to trust to Cobham himself, whose name was in Ridolfi's list, and to wait to see what Cobham would do.¹⁸⁵

It was the evening of the 10th of April, when the Commons were in full discussion of their Communion Bill. Baily, when brought before the Warden, was again searched. The alphabet of the ciphers was found wadded in his coat at the hollow of his back; the books were manifestly dangerous; and according to his own story, which must be received with suspicion, Lord Cobham was preparing to discharge his natural duty and lay what he had discovered before the Council. His brother Thomas Cobham, however, who had escaped hanging for his atrocities in the Bay of Biscay and had taken now to conspiracy and Catholicism, happened to be in the room; the prisoner contrived to let him know by signs that the letters were of consequence; and young Cobham, taking the Warden apart, "threw himself in tears at his feet," and told him that if the packet was taken to the Council the Duke of Norfolk was a dead man. Lord Cobham said that at first he refused to listen. He put the letters in his pocket, and with the books and other papers in a bag he crossed the river to Cecil's house. On the way his heart failed him. He left the bag; with Cecil; he said nothing of the letters, but carried the packet back to his house, and "being again importuned by his unhappy brother," he sealed it and sent it to the Bishop of Ross, desiring him to come the next day to Blackfriars and open it in his presence.¹⁸⁶ As it had been seen by the searchers, the Warden knew that he would be called upon to account for it. He could but give the Bishop a few hours to do the best that he could.

The Bishop, with the packet in his hands, instantly possessed himself of the dangerous letters, and then, creeping across in the darkness to Don Guerau, he composed, with the Ambassador's assistance,

¹⁸⁵Confession of the Bishop of Ross, October November, 1571: Murdin.

¹⁸⁶Notes of Lord Cobham's confession, in Cecil's hand, taken October 14 M SS Domestic Dolls House.

another set of ciphered papers sufficiently tintured with disloyal matter to satisfy Cecil's suspicions, while all that touched the real secret was kept out of sight. A copy of the Bull of excommunication was introduced, an old letter from Mary Stuart to Don Guerau, another to Mary Stuart herself from an Italian in the Nether lands, and two from some one else to the French Ambassador. The malcontent tone which characterised the Queen of Scots' secret correspondence was carefully preserved; one or more of the letters were written in the cipher which Charles Baily had brought over, and the Bishop detained the key, intending to produce it with affected reluctance when it was asked for. Norfolk's and Lumley's letters were then conveyed to their address, and the Bishop, in the belief that he had done the work effectually, ventured to write himself to Burghley to say that a packet of letters had been brought over for him by one of his servants, that the servant had been arrested, and the letters detained. Fie trusted that Burghley would assist in recovering- them for him. Fie did not know what the letters might contain, "but if they came to his hands, no one of them should be used except as Burghley should think good." ¹⁸⁷

It was a dexterous performance — perhaps too dexterous — especially the last stroke of it. Cecil was better informed of what was passing underground than the Bishop supposed. The capture of Story was but one instance of the adroitness of his agents on the Continent. His spies, in the disguise of refugees, were to be met with at the Earl of Westmoreland's dinnertable, and in the closet of Lady Northumberland. Men who had been out in the rebellion compounded for their pardon by betraying their friends, and Cecil had already heard from Flanders that mischief of some kind was in the wind.¹⁸⁸ The Bishop's books unquestionably were meant to cause a stir on the Succession question, besides containing "many manifest lies." The forged packet was duly sent to him, and no suspicion was at first entertained that a trick had been played; but Charles Baily was committed by Cecil's orders to the Marshalsea, and means were taken to probe something deeper into his secrets.

¹⁸⁷The Bishop of Ross to Lord Burghley, April 12: MSS. Mary Queen of Scots.

¹⁸⁸Letters of John Lee to Cecil, February, March, April. 1571: MSS Flanders. I No other meaning can be forced upon his words. "Touching Ramsden," Herle wrote to Cecil, "no doubt he is an apt man to do some great fe**i*

Statesmen who have to grope their way among plots and treasons soil their hands with the instruments which they are compelled to use. Among the persons who had been arrested and sent to London after the rebellion was a dissolute cousin of Lady Northumberland, named Thomas Herle. Poor, cunning, and unprincipled, and connected by birth with the high Catholic families, this Herle was willing and able to be useful. He was confined under warrant from the Council in the Marshalsea, apparently as a political prisoner, his occupation in any other capacity being known only to Cecil and himself. He was treated at times with exceptional severity — examined often before the Council, heavily manacled, and sometimes, to sustain his character with greater completeness, he was threatened by Cecil with the rack — and all the time he was employed in winding himself into the confidence of his fellow-prisoners, as a common sufferer in the same cause with them. He was an object of interest to the Bishop of Ross, who had been melted to tears by the report of the weight of his irons. He had been in communication with the Bishop. He had been in communication with Don Guerau. His last creditable duty had been to find a person who could be trusted to go to Flanders and kidnap or kill the Earl of Westmoreland.¹ A hint from Cecil set him at once upon the new arrival. The prisoners had access to each other during the day, and sometimes at night. Charles Baily, friendless, desolate, terrified, warmed at the friendly voice of a companion in misfortune and an acquaintance of the Bishop of Ross; and Herle was able to tell Cecil, in a few hours, that “he had in his hands the most secret minister in all the ill practices in Flanders.” There was a mystery about the letters which he had not yet fathomed, but he said that he would soon learn all that was in him. “Baily was fearful, full of words glorious, and given to the cup, a man easily read.”¹⁸⁹

The Bishop of Ross, meanwhile, knowing that he must expect to be questioned, had arranged the story intended to tell. He meant to say that his against his own advice, had been applying to France and Spain for assistance to put down what she called the Rebellion in Scotland. He would gain credit by the seeming importance of the confession, while, though Elizabeth might be angry, she could not justly complain. Scotland was not hers, nor had she yet recognised any other authority there but the Queen’s. But it was essential that he and Baily should tell the same story; and as suspicion might be

¹⁸⁹ *Ibid.*

provoked if he moved in the matter himself, Don Guerau sent a servant to the Marshalsea to ask permission to see the prisoner under pretence of enquiring after the missing letters. The servant went, but did not return. Foreseeing something of the kind, Cecil against the Earl of Westmoreland or any other, if he be cherished, which may not only discourage a rebel when he is nowhere safe from his Prince, but express a wonderful vigilancy in every action that her Majesty and your Lordship doth intend." — Herle to BurghJey, April 11: MSS. Mary Queen of Scots. had given orders that any person coming to enquire for Charles Baily should be detained. An Irish priest whom the Bishop next employed was equally unsuccessful, and, as Cecil hoped, recourse was then had to Herle. By steady attention, by lamentations over the growth of heresy, by expressions of indignation at the hanging of the Archbishop of St. Andrew's, the wretch had won Baily's confidence, and as he had confederates outside the prison who were permitted to see him, he became the channel of intercourse between the Bishop and the prisoner.

The letters each way passed through Cecil's hands. They were in cipher, but were carefully copied, and were then passed on to their address. Could they be read they would tell all which he desired to know; but he could not trust them out of his hands, and the characters baffled his skill. He consulted Herle, and Herle suggested that if he could be allowed to leave the prison, Baily might trust him with a verbal message; he would "then enter into more familiarity with the Bishop," and might learn much.¹⁹⁰ Before this could be done, however, the keeper of the Marshalsea would have to be admitted into confidence, and that could not be thought of. The best hope was that Baily might be brought to use Herle as his secretary, and trust him with the ciphers, or that Herle might otherwise catch him with some skilful question. The doors of the sleeping cells in the prison were left occasionally unlocked. One night, in the small hours, the spy stole out of his bed and crept to Baily's side. He woke him, and whispered that he had a letter for him from the Bishop of Ross, which he had concealed and could not find till daylight; but the Bishop, he said, wanted, meanwhile, to know whether the Council had him about the books which he had brought they had questioned him about his dealings with the refugees. The two points were ill selected, for Baily, in the ciphered letters, had given the Bishop full information on both

¹⁹⁰ Herle to Cecil, April 22: Cotton MSS., Calig. 3.

of them. Herle heard his teeth chatter in the dark, and felt the bed tremble.

"What!" he said, "had not my Lord his letters, then, wherein I answered Yes?" He felt that he was betrayed, and not a word more could be extracted out of him, only cold answers, and assertions that he knew nothing of refugees.¹⁹¹ The next morning, the forlorn creature attempted to warn the Bishop that Herle was false. This note also was intercepted, and being not in cipher, showed Burghley that if he wanted more information he must try other means. Baily was removed from the Marshalsea to the Tower, where he was confined "in a cave" "rheumatic and unsavoury," foul with the uncleansed memorials of generations of wretches who had preceded him there, "without a bed," and "with only a little straw on the moist earth-floor to lie upon;" the wardens answering to his complaints that "they provided prisoners only with place and room;" "beds and other necessities" they must obtain from their friends.³

But this was not the worst. Burghley meant to make him speak, and to use whatever means might be necessary to break his spirit. He sent for him, laid his letters to the Bishop of Ross before him, and required him to read them. He said he could not, and pretended that he had lost the alphabet. Burghley sternly told him that he was lying, and that if he would not confess he should be tortured.¹⁹² It was no idle threat. From his cave, to which he was remanded, he once more sent a few words to the Bishop of Ross. He implored the Bishop to save him from La Gehenne, or he was "lost forever." The Bishop rushed to the Council, claimed Baily as his servant, and insisted on his privilege as Ambassador. Finding no comfort there, he let fall, when he returned to his house, a passionate expression "that those who lived a month would see strange changes." To keep up Baily's spirits he sent him a note to entreat him to be firm, to bid him "comfort himself in God, and remember the noble heroes who had suffered death rather than betray their masters."¹⁹³ The treacherous messenger carried the paper, and the report of the Bishop's words, to Cecil, and the following brief order was sent to Sir William Hopton, Lieutenant of the Tower: — "You and Edmund Tremayne are to examine Charles Baily con-

¹⁹¹ Charles Baily to the Bishop of Ross, April 25 (evening). Misdated by Murdin, April 22. Same to the same, April 26: MSS. Queen of Scots.

¹⁹² Baily to the Bishop of Ross, April 29: Murdin.

¹⁹³ Bishop of Ross to Charles Baily, May 1: Ibid.

cerning certain letters written by him in cipher from the Marshalsea to the Bishop of Ross. You will ask him for the alphabet of the cipher, and if he shall refuse to shew the said alphabet, or to declare truly the contents of the said letters in cipher, you shall put him upon the rack; and by discretion with putting him in fear, and as cause shall be given afterwards, you shall procure him to confess the truth with some pain of the said torture.”¹⁹⁴ A few hours later Baily was seen staggering back to his dungeon, “scarce able to go,” “discoloured and pale as ashes.”¹⁹⁵ He had told nothing, so far; but the experiment was to be tried again more severely, and he was left in the darkness to reflect on what was before him.¹⁹⁶

One more ingenious refinement was yet behind. Doctor Story was still in the Tower waiting for execution. It had been ascertained that Baily was unacquainted with Story’s person, though he regarded him, like the Catholics generally, as a confessor and a saint. There appeared one night by the side of the straw heap on which Baily lay extended, the figure of a man who said that he was Story himself, admitted into the cell by the kindness of a gaoler, to console him in his sufferings. The deceit could be successfully maintained, for the counterfeit was Parker, the treacherous friend who had betrayed Story in Flanders. In the character of a ghostly father, and an experienced conspirator, Parker recommended Baily to dig below Burghley’s mines. He persuaded him that so much was already discovered that it was useless to persist in denial. By deciphering his own letters he that he would gain credit with Burghley, while he would leave him no wiser than he was already. He might offer to be a spy upon the Bishop of Ross, while in fact he would be a spy upon the Government, and would serve the cause of the Queen of Scots more effectually than ever.¹⁹⁷ Too happy to escape a repetition of La Gehenne under so high a sanction, the victim, of this singular

¹⁹⁴Burghley to the Lieutenant of the Tower: Hatfield MSS.

¹⁹⁵Herle to Burghley, May 1: Colton MSS., Calig. 3... The Spanish Ambassador said that, though racked, he had been more frightened than seriously hurt. “Con haber tornado a aquel criado del Obispo de Ross y ver las cartas con cifra, le han dado tormento aunque no muy rezio y esta en la Torre.” Don Guerau to Philip, May 9: MS. Simancas.

¹⁹⁶Younger brother of the two Tremaynes who were killed at Havre, a man of special ability, much trusted by Cecil, whose name will be heard of hereafter in connexion with Irish matters.

¹⁹⁷Baily in writing afterwards to Don Guerau to say what he had con-

network of deceit fell at last into the pit which was laid before him. He gave up the keys of the cipher, which revealed at once the story of the abstracted packet, with the existence of other letters addressed to unknown persons which had missed his hands; and Burghley must have smiled as he read the passionate promises of Baily before his experience of the rack, that the Council should get nothing from him though he was torn in pieces." He confessed now to all that he knew. He could not tell who the persons were for whom he had brought over the letters because they were under cover to the Bishop of Ross; but he gave a sketch of the conversation which had passed between Ridolfi and Alva, so far as Ridolfi had communicated it to himself; he described the intended landing of the Spaniards in the Eastern Counties, and with many entreaties to Burghley that he would keep his secret and save his honour, he undertook, if he was allowed to return into the Bishop of Ross's service, to watch his correspondence and keep copies of all letters written by or to him.¹⁹⁸

Yet he was still but half false, and Parker had prepared Burghley to understand the meaning of this base offer. Baily was left in the Tower, to find him- fessed, adds innocently, "He hecho todo lo que he dicho por consejo y exhortacion del Doctor Story que ha visto como he sido tratado, y estaba avisado de la manera que determinan de tratarme." — Charles Baily to Don Guerau. May 10: MS. Simancas.

Four months after we find him answering at another examination "that his memory was so troubled with his long imprisonment and the trouble which he had with Parker feigning himself Doctor Story, and other such matters as he told him, that he was not able to write ten words together. MSS. Hatfield, September 19. self, to his surprise, in no better favour with Cecil, and reproached as a coward by his old friends. He could but excuse himself to Don Guerau, by saying that Cecil knew already more about Ridolfi than he had himself admitted; and that except for what Doctor Story had told him, he would have suffered death rather than have confessed a single thing.¹

The Bishop of Ross, meanwhile, sick with fears that Baily would confess under the rack, had taken to his bed. He ate nothing for three days, and lay barricaded in his house, having given orders to his porter to admit no one to him. He could tell secrets which Baily could not, and the question now with Cecil was how to extract them from him. Herle's services were again therefore put in requisition. The

¹⁹⁸ Charles Baily to Burghley, May 2: Murdin.

warning against him which had been sent by Baily having been intercepted, the Bishop, though he had vague misgivings about him, had no reason to suspect him of treachery, and with judicious treatment his full confidence might perhaps be recovered. After a short correspondence, in which the stages of the farce were pre-arranged, Herle was sent for to the Council, examined, and being found contumacious, was loaded with irons and threatened with torture. In this seeming extremity he wrote to the Bishop to implore his prayers, and his advice. He desired, as he told Burghley, "to beget some kind of second trust in the Bishop, and he swore that no extremity should force him to reveal anything. Appealed to thus earnestly, the Bishop sent a friend to the Marshalsea, who found Herle "plunged into the depths of wretchedness, and lamenting that he was regarded with mistrust." He complained of Baily, "uttering his speech," as he tri 1 Charles Baily to Don Guerau, May 10: MSS. Simancas. umphantly described it, "in such piteous forms, his irons jmg hng up and down by meet occasions as the fellow wept and sobbed." ¹⁹⁹ Following up the favourable impression, he wrote again to the Bishop, that "he was between the anvil and the hammer;" but whatever was, thought of him, "his right hand should play Mucius's part before he would break his faith;" "they should rather rend his poor carcase than he would betray the least tittle of what had passed;" "He spoke it with sorrow of mind, and he would seal it with his blood," "esteeming no torment greater than unjust jealousy conceived 'of a true friend." With mild reproaches for the discouraging of his honest service, he said that he looked for consolation at his Lordship's hand, protesting, "that for any that would maintain he was dealing otherwise than honestly, he would make them liars in their throats." ²⁰⁰

The Bishop was taken in to the extent of again believing Herle to be honest; but the rascality was thrown away so far as practical results arose from it. Baily had told all which Cecil desired to hear, except the names of the English noblemen designated by the ciphers, and these the Bishop saw no reason for trusting to Herle's curiosity. Other and more honourable measures, therefore, had now to be substituted. On the 13th of May, Sir Ralph Sadler, Lord Sussex, and Sir Walter Mildmay repaired to the Bishop's house. He was obliged to admit them, and then questioned on his servant's confession. re-

¹⁹⁹ Herle to Burghley, April 29: MSS. Queen of Scots.

²⁰⁰ Herle to the Bishop of Ross, April 29: MSS. Mary Queen of Scoti.

quired to tell what he knew about Ridolfi's mission. His previous story served him in good stead. Ridolfi, he said, had carried a petition from his mistress to the Duke of Alva, the Pope, and the King of Spain for assistance against the rebels in Scotland. He was asked to explain the ciphers 30 and 40.²⁰¹ He first denied any recollection of them. Then he said that 30 was the Spanish Ambassador, and 40 was his own mistress. The examiners enquired what had become of the letters which had been addressed in these figures. He said that he had burnt them. They asked why, and he could give no explanation.²⁰² They knew that he was not telling the truth, but the rack could not safely be applied to an ambassador, especially on mere suspicion, nor could Cecil venture prudently to commit him to the Tower. His papers were sealed up, his servants separated from him, and he himself placed under the charge of the Bishop of Ely, to whose house in Holborn he was soon after removed. That he had given a false account of the figures was easily ascertained. Don Guerau was asked whether he had ever been designated by the cipher 30. Ignorant of what the Bishop of Ross had said, he answered that he had not. The Queen of Scots was examined at great length whether she had sent any message by Ridolfi, whether she had heard from Ridolfi, and whether she was the cipher 40. She too, knowing as little as Don Guerau, declared boldly that she had sent no message by Ridolfi, that she had never heard from Ridolfi, and had no cipher of any kind in which she corresponded with Ridolfi. Finding, however, by the questions which were put to her that something had been discovered, she was ready-witted enough to say that the Bishop of Ross might have arranged a cipher in her name which she did not know; and when Shrewsbury asked her further whether she had written to the Pope or to the King of Spain, she replied boldly, that finding herself without hope of support in England, she had written to all foreign princes for aid against her rebels.²⁰³

But Burghley knew from the confession of Baily that more was meant than aid in Scotland. The contradictions in the several stories taught him to distrust them all, and he found other means, as will be seen, more successful to find the bottom of the conspiracy. The Bishop of Ross was left in imprisonment. Mary Stuart was placed

²⁰¹The addresses on Ridolfi's letters to Norfolk and Lumley.

²⁰²Examination of the Bishop of Ross, May 13: Murdin.

²⁰³Shrewsbury to Burghley, May 18: MSS. Queen of Scots.

under stricter guard; her servants were locked out of her apartments at night, and only allowed to return to her after daybreak. The real Story, the farce having been played out in the Tower, was hanged. Don Guerau claimed him as a subject of Philip. Elizabeth answered that the King of Spain might have his body if he wished for it, but his head should remain in England.²⁰⁴

The investigation had been simultaneous with the sitting of Parliament, and they came to an end together. The discovery that she was surrounded with treason now rendered it imperative upon Elizabeth to come to a distinct resolution upon her proposed marriage with the Duke of Anjou. The more it was pressed upon her, the more she hated the thought of it. The mocking world outside believed that she was only trifling; yet among her many changes, her own ministers were unable to discover her real wishes.

Here too, as in so many other matters, the historian finds himself staggering among quicksands of falsehood. Burghley and Walsingham alone are to be depended upon as saying what they meant. Some points, however, can be made out with an approach to certainty.

Both the principals first of all detested the marriage in itself, although the force of the political reasons in its favour was felt by each of them. Elizabeth herself believed that when the Duke found himself the husband of "an ugly old woman," he would give her *ung brevage de France*, which would leave him a happy widower in six or seven months. He would then marry the Queen of Scots and be King over the whole island.²⁰⁵

Anjou, on the other hand, in his confidential moments repeated his suspicions of Elizabeth's character, and when there seemed to be a hope that the objections would be found insuperable, did not conceal his delight.²⁰⁶

The position so far was not a hopeful one, but the interests at stake were so tremendous, and the pressure exerted upon both Queen and Prince was so heavy, that Anjou was ready to yield, and Elizabeth at times persuaded others if not herself that she might yield France the fortunes of the Huguenots were to depend upon the marriage. It

²⁰⁴ La Mothe, June 9: Depeches, Vol. IV.

²⁰⁵ La Mothe, May 2: Depeches, Vol. IV.

²⁰⁶ Speaking to a lady one day about the marriage, he said, "La Reyna mi madre muestra tener pena de que esta desbaratado mi casamiento, y yo estoy el mas contento hombre del mundo de liaber escapado de casar con una puta piiblica." — Don Francis de Alava to Philip, May 11: Tmilet, Vol. V.

was no hopeful sign for them that their prospects could turn upon so poor a contingency, but, so they judged themselves of their own situation. The marriage was to be the keystone of a policy. If the support of England could be secured to France in a war with Spain, the jealousies of Catholics and Protestants would be superseded by a revival of the old temper of Francis and Henry. Catherine de Medici hated the Protestants, but she hated Spain more. With Elizabeth for an ally she could revenge St. Quentin and extend the French frontier to the Rhine.

On the side of England the advance of the Reformation had been connected at every stage of its progress with an approach to France. The divorce of Catherine of Arragon broke up the ancient European combinations. Henry VIII. became the friend of Francis. Edward was to have married a French princess: a French king had befriended the English Reformers during the Marian persecution, and in the face of the late discoveries, Elizabeth's condition appeared so "desperate" to Walsingham and Burghley, that they were ready for their own part to agree to any terms "rather than the matter should quail." Walsingham especially "challenged to himself no great judgment, but he said that if it proceeded not, he saw at hand the ruin of England;"²⁰⁷ and he told Catherine that the Duke "would be welcome there as a Temporal Messiah to save them from the mischief of the civil sword."²⁰⁸ Some hundreds of letters about it were exchanged during the spring between the French and English ambassadors and their Courts and Sovereigns. The perusal of them leaves an impression that everything turned upon Elizabeth herself. Could the French Court have been satisfied that when the conditions on both sides had been drawn out and agreed to, Elizabeth would have then honestly completed the marriage, she could have asked nothing to which they would not have consented: without that preliminary certainty, they were unwilling to compromise themselves with concessions which might prove to have been made in Elizabeth's "sincerity" — that was the point. She had admitted the general arguments in favour of the marriage, but, exactly as she had done with the Archduke Charles, she had suddenly told Walsingham that Anjou could not be allowed to hear mass in England; and although neither Anjou nor his mother would have allowed such an objection to have stood in their way, could they have

²⁰⁷Walsingham to Burghley, May 15: MSS. France.

²⁰⁸Same to the same, June 21: MS. Ibid. 15

assured themselves that if they yielded the Queen would be satisfied, they feared that it was merely an excuse, and that a fresh difficulty immediately raised. It was admitted on a if he married Elizabeth Anjou's Catholicism of no long continuance. Charles IX. gave Walsingham to understand "that he was no enemy to the Protestant religion, as if the marriage proceeded would well appear." Anjou was ruled by his mother, and "what her religion is," Walsingham wrote to Burghley, "your Lordship can partly guess." M. de Foix, who was employed by Catherine to discuss matters with the English Ambassador, "swore, to him using God for witness," "that in his conscience he thought Monsieur within a twelvemonth would be as forward to advance religion as any in England." Monsieur himself said, "that if England meant to proceed there was no fear that religion would prove a cause of breach;" and Walsingham concluded, "that if the match went forward it would set the triple crown quite aside." Yet that Anjou should formally bind himself never ²⁰⁹

, - - » uuuul wiieimer uncertain object of his ambition would not flit be- 01 e is grasp after all. He would affront the Catholic world in his own country and beyond it by consenting, and he would gain nothing in return; "neither honour, credit, nor safety itself" could allow him to show Europe that he held so lightly by his creed.

Thus on this point of religion sovereigns, ambassadors, ministers, continued through the spring and summer to argue up and down. The French asked whether the Queen of England "wished Monsieur to be an atheist that he should abandon his faith at a word for mere worldly advancement." Elizabeth in her usual formulas replied that in England faith and conscience were free; Monsieur might believe what he pleased; but the peace of the realm could not be disturbed by a license to use a service forbidden by [10 lour * "Her son," Catherine answered, "would soon be overcome by the Queen's persuasions;" the inconvenience at worst would be brief, for the Catholics everywhere felt "that the match would breed a change of religion throughout Europe."

Elizabeth rejoined that if the case was reversed, if she were going to France to marry Monsieur, and if the exercise of her religion would create trouble there, she would raise no difficulty on any such

²⁰⁹Walsingham to Burghley, April 22: Digges. Same to the same, JuB 21 MSS. France

ground.²¹⁰ She hinted that if Monsieur would yield in form she might relieve his conscience by a private permission. She reminded Catherine that many of the English mass in their houses, the Queen shutting her eyes to it. The Ambassador could accommodate Monsieur at his chapel, or if the worst came to the worst he could cross the Channel now and then to Boulogne: Philip when he wished to be devout withdrew from Madrid to Segovia, and Boulogne was at least as easy of access from London; nay, as Monsieur be called on to declare himself a Protestant, might be brought to give a dispensation to secure a titular Catholic husband for the heretical Queen.¹

To the English ministers, on the other hand, the Duke's request was so modest that it did not seem worth disputing; he asked only, like the Archduke, to have a priest now and then privately in his closet; the people should neither see him nor hear of him, and in public he would appear in church with the Queen. Cecil's Protestantism was above suspicion, and Cecil saw no reason to refuse so slight a favour.

It was but too obvious that the nominal obstacle was not the real one. The French Government suggested that the religious question should stand over for a time, and that the other conditions of the marriage should be arranged first. Cecil, anxious to do anything that would help things forward, entered upon them with the Queen. He met at first with the coldest discouragement. She clung convulsively to her objection; and when she was driven from it at last, with a desperate clutch at the next plank which was floating near her, she said that the first article should be "the restoration of Calais."

229 was trifling and he gave no obscure intimation that France might be more dangerous to play tricks with than Sweden or Austria. The Emperor was far off, and aught that would bring the French into England. To speak of Calais, as Cecil said, could mean only that she intended "to procure a break," and a break of the most dangerous kind.

The Council unanimously entreated her "to forbear that toy of Calais," and generally again urged upon her the prosecution of the marriage as a matter of all others most necessary." She listened,

²¹⁰"Que si elle aroit à aller en l'estat de mondict Seigneur et que l'exercice de sa religion y deust apporter du trouble, qu'elle s'en passeroit." — La Mothe, May 10: *Dépêches*, Vol. IV.

²¹¹Burghley to Walsingham, June 7: Digges.

and as Burghley said, "seemed to intend it earnestly;" she told La Mothe that she was most anxious to bring the matters to a happy termination; but as fast as one obstacle was removed she raised another, and the situation was the more embarrassing because she had herself begun the negotiation. The French might naturally conclude that she had been amusing them with proposals which she had predetermined should end in nothing, merely to extricate herself from immediate embarrassments. Probably this was not the truth: with the present, as with all her marriage projects, she perhaps hoped and expected at first That she might be able to overcome her repugnance, and only found her resolution fail her when the moment came to decide. Even yet she could not face her own conclusion. She wrote to Catherine and she wrote to Anjou, not committing herself to anything positive, but repeating the general declarations which she had thoroughly, saw where all was tending, and naturally dreaded the resentment which further trifling might "Her Majesty," he wrote to Walsingham, "is not unwarned how dangerous it were, if in her,uly' default the matter taketh not success, and she seemeth to conceive thereof, and pretendeth that if the point of religion may be granted, there will be no other difficulty. But whether she. is persuaded that therein the breach will be on that side, and so she to escape the reproof, I cannot tell. God direct the matter, for I have done my uttermost, and so hath other councillors. My Lord Keeper hath earnestly dealt in it, and so have others. This amity was needful to us, but God hath determined to plague us.. The hour is at hand. His will be done with mercy." ²¹²²¹³

Even Leicester had outwardly united with Burghley in recommending Elizabeth to yield; ²¹⁴ and as Burghley had ascertained that Leicester had been the person who had at first urged her to stand out so perabout religion, he had been at a loss to unhis conduct. ²¹⁵ In public Leicester had apgo with the Council so heartily, and he had spoken so warmly in private to La Mothe, that it was hard to

²¹²Burghley to Walsingham, July 9: Digges.

²¹³Elizabeth to Catherine de Medici, June 6; Elizabeth to the Duke of Anjou, July 9: MSS France Rolls House.

²¹⁴Ibid.

²¹⁵"It was strange that any one man should give comfort to the Ambassador in the cause, and yet the same man to persuade the Queen's Majesty that she should persist. Both these things are done, but I dare not affirm by any one." — Burghley to Walsingham, May 11: Digges. The allusion Is evidently to Leicester.

doubt his sincerity. "Unless," wrote La Mothe, "he is altogether sans foy, he is with us." Sans foy, unfortunately, might have been the motto on Leicester's shield. While "the poor Huguenots" were telling Walsingham in tears that an affront from England would bring back the Guises, and end in a massacre of themselves, Leicester was working privately upon the Queen, who was but too willing to listen to him, feeding her through the ladies of the bedchamber with stories that Anjou was infected with a loathsome disease, and assisting his Penelope to unrael at night the web which she had woven under Cecil's direction in the day.²¹⁶

Anjou was growing impatient. "Religion would not have been the let. So anxious was Catherine for the marriage, that she was on the point of openly giving way about it; but the Duke began to see that "he was one of the forsaken;" " " and " "to yield in religion, and after to miss of their purpose, they thought would be a touch in honour."²¹⁷ The best that Walsingham could now hope to do was to secure his mistress an honourable retreat, and Anjou's own pride came opportunely to his assistance.

If the thing was not to be, religion was a fair excuse on both sides; and Anjou, in fear of ridicule, determined to save his credit with the Catholics by himself making the difference of creed an insurmountable objection. He began to talk largely of his conscience. He protested that he would not marry a heretic of questionable character. The clergy and the Cardinal of Lorraine encouraged his humour, and the English Ambassador now watched it growing with secret satisfaction. The Queen Mother and Charles still hoped that Elizabeth could not break off. The King swore he would make those who had dared to interfere "shorter by the head;" ²¹⁸ Catherine used all her arts with Anjou, and "never sobbed so much since the death of her husband;" " " and " "Monsieur himself retired to his cabinet and bestowed half a day in shedding tears." But "neither the King's threatening nor the Queen Mother's persuading could draw him to pro-

²¹⁶"El Conde de Leicester hace demostracion exteriormente de desear el casamiento de la Reyna de Inglaterra, mas por tercera mano hace lo contrario, habiendo hecho a entender a la Reyna por su hermana y otnu mugeres que M. de Anjou estaba llagado de lepra." — MS. endorsed, Por eartas de Londres de Agosto 23. Sivmncas.

²¹⁷Walsingham to Leicester, July 27: Digges.

²¹⁸Walsingham to Cecil, July 30: MSS. France.

ceed further." Mass or no mass, toleration or no toleration, he refused definitely to think any more of the marriage.²¹⁹

Nothing could have happened more conveniently. Except for this fit of temper the rejection would have come from England, and Walsingham congratulated himself that "at least her Majesty's honour could be saved, and she could be thought to have proceeded with sincerity." Elizabeth made a new danger for As Anjou drew back, her scruples became the peculiarity of her character enabled her to persuade even herself that she had been and still continued to be willing to accept him. Had it been so indeed, Anjou could doubtless have been whistled back to the lure. But further vacillation would have been deliberate suicide. Cecil was too happy that she was creditably extricated from a dangerous position, and however anxious he still admitted himself to be for the marriage, he showed her that it was absolutely necessary for her to make up her mind.

"Should she marry with France," he said in an August elaborate paper which he laid before her, "many things evil digested and dangerous would, by God's providence, prove easy to be ordered — the perilous causes of the Scottish Queen and Scotland, the discontent of a great number of her subjects upon sundry causes, the differences with Spain, the dangerous and unreasonable changes growing up in Ireland, and, generally, the uncertainty which obliged her to stand continually on her guard by sea and land. Her Majesty believed that a league with France would answer these purposes as well as her marriage. The league, no doubt, would be better than nothing; but it would last only as long as France was interested in maintaining it. The danger to her from the pretended title of the Queen of Scots would continue, and probably increase. The dissatisfaction of her subjects would increase also, and with it the Queen of Scots' faction. The uncertainty of the succession would divide England into parties, and the people, all alike, would become against nature careless of her Majesty's felicity. If however these considerations did not satisfy her that the marriage was absolutely necessary, if she was not positively and finally determined to go through with it, she had better leave it as it stood; she had better persist in her answer that she could not allow the Duke to have private mass, how secret soever; so it would appear that the only cause of the interruption of the marriage was the scruple of her conscience, which, being offended, she could never live in

²¹⁹ Same to the same, July 27: MS. Ibid.

quietness. In that case she must look about her for some other means to preserve her state, surety, and life; and how her Majesty would obtain a remedy for her perils, he thought was only in the knowledge of Almighty God. If, on the other hand, for the urgent, necessary, and honourable causes many times plainly, earnestly, and at length delivered to her Majesty, she could bring herself to take the Duke of Anjou for her husband, then, no doubt, without offending her best subjects, as she had affected to fear she might do, or without seeming to consent that there should be two kinds of religion in England, means could be found to settle all conditions to the satisfaction of both countries." ²²⁰

The game had been played to the latest moment and was now dropped: Elizabeth talked, protested, played with the idea, and affected to be anxious that the marriage should be brought about; but she held fast, as Cecil advised, to her plea of conscience. Monsieur was delighted to show his zeal for the faith in which he had been bred; and the French Court was left in the belief that the ultimate breach had been more on than on Elizabeth's. Walsingham and Cecil to hide the imperfections of both parties, not knowing what thereafter might follow;" ²²¹ and to Walsingham's extreme relief and partial amusement, the French King said, "that for her upright dealing he would honour the Queen of England during his life."

It can now be understood why she refused her consent to the Communion Bill. That measure was part of an organised Protestant policy, of which the Anjou marriage formed an essential element; and feeling that her own part in the drama was not likely to be performed effectively, she preferred to trust still to her old policy of humouring and conciliating the Catholics. In one sense she may well be pardoned for having declined to accept as her husband the miserable Henry de Valois, especially as to England no harm came from her refusal. Yet Elizabeth may not be credited with a deeper insight than Burghley's, and the moral worthlessness of the Duke of Anjou could not have formed the real objection to him in the mind of a woman who had been devoted so long and so deeply to such a wretch as Leicester. Had Anjou been a second St. Louis, she would have acted in the same way; and possibly, also, Walsingham and Burghley were right in believing that, had the marriage taken place, the course of

²²⁰ Cecil to Elizabeth, August 31: MSS. France.

²²¹ Walsingham to Cecil, September 26: MS Ibid.

European history would have been different, and the power of the Papacy have been rolled back in one broad wave across the Alps and Pyrenees.

The Queen having finally discovered that she was unequal to the sacrifice which was required of her, the next step was to secure the political alliance of France: and here, for a time, the success seemed considerable. The Queen Mother flattered herself with the hope that although Anjou had proved untractable, Elizabeth might yet in time accept her third son, the Due d'Alencon. The anti-Spanish party remained in the ascendant at Court. Count Louis, at the beginning of August, brought a petition from the Netherlands for help against Alva, and was graciously received. He had tried Elizabeth first, but Elizabeth, fearing then that she had brought a quarrel with France upon herself, was intending to make up again to Spain — as if, as Walsingham said, "Spain would forget the injuries which it had received from her." Count Louis had asked for 50,000 crowns, which Walsingham considered "would save the disbursing of 300,000; but they could not be obtained" — "God," as he said, "at times blinding the hearts of Princes, not suffering them to see the perils that hung over them." 1

At Paris, however, Count Louis found a Government more ready to listen to him. It was not now a question of money; he had come to lay the Low 1 Walsingham to Cecil, June 30: MSS. France.

Countries at the feet of the French King, to ask him to assist in expelling the Spaniards, and to prevail on Elizabeth's unwillingness to induce her also to assist. In return, the Provinces might be divided — Flanders and Haynau could be reunited to France; Brabant, Gelderland, and Luxemburg to Germany, while England might have Holland and the islands at the mouth of the Scheldt.

Could the marriage have been arranged, an aggressive league with this object would have unquestionably followed between England, France, and the German Protestant States; and a European revolution would have been the inevitable consequence. Without the marriage, it was doubtful whether either of the contracting Powers would have sufficient confidence in the other to risk a breach with Spain. It had been the traditionary policy of English statesmen to embroil France with Spain, and to make their own market out of the discord of their rivals. Catherine de Medici naturally feared that Elizabeth would "leave her in the briars," or perhaps purchase back Spanish friend-

ship by turning against her, unless Elizabeth had given securities for her good faith.

Nevertheless, it appeared on the surface as if Catherine and Charles were willing to venture the experiment. The King desired Walsingham to acquaint his mistress with Count Louis's proposal. "If she, being Lady of the Narrow Seas," would go along with him, Charles offered to take his share of the enterprise, and to make a league with England for the of the Netherlands. "It would be as much Elizabeth," he said, "to unite Zealand to the English Crown, as the loss of Calais had been shame to her sister." ¹ There was no reason to suppose ¹ Walsingham to Cecil, August 12- MSS Diages Charles insincere. The Admiral was invited to the court. The ships of the Prince of Orange were entertained at Rochelle. When the Spaniards complained, the King replied that the Prince of Orange was a Prince of the Empire, and could not be denied the use of the ports of France; Count Louis was neither subject nor pensioner of Spain, and the Catholic King should not think he could give laws to other countries than his own."²²² "The Queen Mother," said Walsingham, "is incensed against Spain, being persuaded that her daughter was poisoned."

The Ambassador, however, was obliged to admit that his own expectations were not shared by every one.²²³ France feared that England would go over to Spain. It was equally possible that the Catholics might recover their ascendancy at the Louvre, and England might be left to fight out, single-handed, a quarrel which it had entered at the side of France. To Cecil as well as to Catherine the failure of the marriage seemed fatal to an aggressive policy. Zealand and Holland might become English provinces, but they would probably be purchased by the loss of Ireland; it was folly to risk a kingdom in possession in seeking other countries by conquest; ²²⁴ and the loss of Ireland might prove, "in the end, the loss of all else," for Spain would then acquire the command of the sea. "When England and Spain were enemies, France might be accorded with

²²²Walsingham to Cecil, August 12: MSS. Digges.

²²³"Some," he wrote, "do judge these things only to be colours and to tend to some dangerous issue: but they that think so have nothing but jealousy for ground. The Admiral himself believing that good may come of his access means to proceed, laying all fear aside, and to commit himself to God's protection." — Same to the same, August 12: MSS. France.

²²⁴Objections to the league with France, August 22. — Cecil's hand; MS. Ibid.

Spain by practice of the Pope, and on small quarrel fall off from England." ²²⁵ The English share of the war would be chiefly naval, "and the loss of men and ships by tempest, shot, and fire would be most costly." ²²⁶

So thought Cecil, having lost heart from his mistress's inconstancy. If the French would be content with a defensive alliance, in which the German Princes were comprehended, each Power to assist the rest in case of invasion, that would be most welcome — but he feared that their disappointment would not incline there to so mild a policy. They would make a league if England would go along with them in a war of conquest. Otherwise, it was too likely that they would change their front and fall back on Spain. ²²⁷

Walsingham, in Paris, where he was in daily intercourse with the Huguenot leaders, viewed the situation more hopefully. He thought that whatever Elizabeth might do or forbear to do, war between England and Spain was inevitable; and being so, it would be better, on all accounts, to give it at once the complexion of a war of liberation. When the fighting was once begun, he assured himself that the pride of France would be roused, and the Huguenots would be strong enough to prevent the desertion which Cecil anticipated. "Another dangerous sore," he said, "would be remedied also;" for France, in return for the alliance, would abandon once for all the cause of the Queen of Scots. Members of the French Council, in conversation with him on the subject, had confessed "that Mary Stuart had made herself unworthy of government;" that Elizabeth "had shown rare favour to her; "that their King for the future would forbear to recommend her;" and that in fact, "his former recommendation of her cause proceeded rather for manners' sake to content others than of affection of his own, being by him thought guilty of so horrible crimes. ²²⁸ If, on the other hand, "the league went not forward," the reconciliation of Spain and France "would come about another way;" the toleration edicts would not be observed; "religion would be clean overthrown;" "the House of Guise would bear the sway, who would be as forward in preferring the conquest of Ireland, and

²²⁵ Objections to the league with France, August 22. — Cecil's hand MSS. France.

²²⁶ Ibid.

²²⁷ Ibid.

²²⁸ Walsingham to Cecil, August 3: MSS. France.

the advancement of their niece to the Crown of England, as the other side was bent to prefer the conquest of Flanders.”²²⁹

The arguments were evenly balanced; but in Cecil's mind the prospect every way was almost desperate — desperate, not through its inherent difficulty, but from the combination of obstinacy and vacillation in the Queen, who was at once determined to go her own way and unable to decide which way she wished to go. He had exhausted his powers of persuasion and remonstrance. He could now but stand by, as he said, and wait for the visitation of the Almighty.

It is remarkable that while the public policy of the English Government was so uncertain, while Elizabeth believed it possible to recover Philip's friendship, and Cecil believed that if England abstained from meddling with the Low Countries she might perhaps escape being assailed at home or in Ireland, the provocations of the privateers in the Channel continued unchecked, and were allowed to assume proportions which would be incredible but for the evidence on which they rest. In the spring of the year the Prince of Orange's fleet, under Brederode and De la Mark, came down into Dover roads. There, joined by their English consorts, they held complete command of the Straits. Every Spanish vessel which attempted to pass was pursued and usually caught; a market was held in Dover for the sale of the cargoes, while some of the more daring cruisers would harass the Spanish coast, pilfering churches and convents, depreciating the price of silver by the quantities which they captured, and at their when they came back in triumph, drinking piracy from the consecrated vessels.²³⁰

Alva sent an armed squadron from Antwerp to burn * out this nest of hornets. Brederode risked an engagement, but getting the worst of it, he drew in under the cliffs, and the English shore batteries opened upon the Spaniards, cut them up and drove them off to sea.²³¹ Don

²²⁹Same to the same, September 26: MS. Ibid.

²³⁰“Es tanto el robo que truxdron ahora que la plata de Iglesias no se vendia sino a cinco sueldos la onça, y con los Calices se brindaban en Dobra unos a otros” (underlined by Philip). — Don Guerau to the King of Spain, April 15, 1571; Don Guerau to Alva, April 23: MS. Simancas.

²³¹“Navi jam una ex piraticis capta, reliquis consternatis, subito prater spem ex Doverensi arce munitionibusque vicinis magna pilarum procella tormentis continenter emissa nostram classem dissipavit magno acf ipto in commodo.” — Don Guerau to Burghley, August 19: MS'S. Spain.

Guerau protested, and demanded the punishment of the officers in command. He was referred in answer to the example of Don Alvarez at Gibraltar, and was told that the English waters were a sanctuary.⁸ The Spanish ships had suffered too severely to lie at sea upon the watch. They retired, with Brederode and La Mark hanging in their rear, cutting off the stragglers which had been lamed by the English shot; and the next news which came to London were that, not content with selling their cargoes, they were selling their prisoners, like the Algerine corsairs, for the chance of the ransom which they would fetch. The extraordinary spectacle was actually witnessed, of Spanish gentlemen being disposed of openly in Dover market at a hundred pounds a piece, and being kept in irons at the court-house till their friends could purchase their liberty.²³²²³³

It required no small audacity on the part of Elizabeth, when her harbours were the scene of outrages so unparalleled, to send a minister May' to Madrid to settle her differences with Philip. She calculated, however, on the notoriously extreme reluctance of the King of Spain to quarrel with her. The unlicensed violences of her subjects, if he was without the courage to resent them, might increase his anxiety for a better understanding with her; and she probably expected that Philip would submit to any conditions which she might please to dictate. She was herself uneasy at the possible consequences of her behaviour to France. She trusted perhaps to Philip's alarm at the report of her intended marriage, and she may have hoped that he would meet her overtures with an open hand. In fulfilment therefore of her promises to Alva, she commissioned Sir Henry Cobham to the Spanish Court in the spring, and he arrived there just after Philip had

²³²This remarkable story rests on the apparently sufficient authority of a complaint addressed by the Spanish Ambassador to Burghley. The charge was openly brought and was never, so far as I can learn, denied. It will be seen that I have not overstated the purport of Don Guerau's words: — "Mitto ad Dominationem tuam domesticum meum, ut te certiolem reddat de rebus quae fcede admodum Doveri aguntur, ubi prostant publice praedse piratic® venales, hominesque etiam nostri a latronibus capti venduntur, neque vili valde pretio. Ad centum enim librarum summam unus et alter censi fuere, plurimique etiam ex his captivis apud Baillivium Doverensem in vinculis asservantur, interim piratis et Serenissim® Regime magistratibus de illorum redemptione agentibus. Tanta est autem illic tam mercium captarum quam hominum auctio ut nullum possit esse aliud magis piratarum emporium in tota Europa." — Don Guerau to Burghley, September 12: MSS. Spain. 16

²³³Don Guerau to Philip, August 23: MS. Simancas.

received the Duke of Alva's letter, and was told to expect the coming of Ridolfi.

The first impression of the King when he heard that an English envoy was coming, was much what Elizabeth expected: the pirates on one side, and the support continually given to the Prince of Orange by the Flemish refugees who had found an asylum in England, had troubled his peace of mind. He had been taught by Alva to distrust the resources of the English Catholics, and he was ready to endure considerable humiliation if he could be relieved at once of a source of perpetual uneasiness and danger. His father's last advice to him had been to hold fast by the English alliance; and England, whether Protestant or Catholic, was of equal political importance to him.

The endurance of his subjects, however, had been exhausted, if Philip himself continued patient. On the appearance of Cobham a memorial was presented to the King by the Spanish merchants, setting forth that, besides the losses which they were daily experiencing from the pirates, the property already taken from them by the English privateers amounted to more than three millions.²³⁴ As the flag of Spain was no longer a protection to them, they said that they must decline for the future to fulfil their contracts with his Majesty, or make themselves responsible for the transport of further money or stores to the army in Flanders.²³⁵

The remonstrance of the merchants was followed by a remarkable letter from the Duke of Feria to Philip's secretary, written no doubt for the King to see, but without the constraint which must have been imposed upon his pen had he addressed himself to Philip directly. De Feria, with his English wife, his English friends, and his English experience, believed himself qualified to speak with authority. He had seen Cobham and had heard what he had to say. His opinion of the situation he expressed thus: — THE DUKE OF FERIA TO CAYAS.i We propose, I am told, to keep on terms of friendship with England; because, to make ourselves complete masters of that country and of Ireland is not immediately practicable. If the sovereign of England is not a Catholic, it will be very difficult for us to maintain that friendship; and yet, without it, we are unable to keep our hold upon the Low Countries. The Queen has found us timid, and she now thinks to frighten us by pretending that she will marry with France. She

²³⁴ 3,000,000 ducats.

²³⁵ Address of the merchants at Madrid to the King of Spain, April 28 MS, Simancas,

will no more marry with France than she will marry me. She is no longer young, she has no strength to bear children, and she cannot live much longer. She is loathed by the nobility. She persecutes the Catholics, and she closes her ports to prevent them from leaving the realm; but for all this she has failed to break their spirit. They are stronger than ever, and she knows it. That France and England can become friends is most unlikely. The two nations instinctively hate each other, and the two Queens can never trust one another. Against us, on the other hand, they have no natural enmity; our relations with them have been uniformly good, and commerce with Spain and the Netherlands has been most profitable to them, while the French have not a friend in the realm. The whole Catholic party are on our side, consisting as it does of all the greatest families. If we do not help them as they ask us, we shall offend God, and we shall country to the heretics. The Queen is only from making open war upon us by the want of men and money; and if Cobham is not now sent away with an answer of becoming spirit, an attempt to her will only involve us in fresh troubles, and have ruined the Catholics, even while they have arms in their hands to help themselves and us. Let the Queen know that our King undertakes to protect her Catholic subjects: I warrant she will no more ill use them, and there is no other way out of our present difficulties. For two years now we have been taking the coward's road; we have found it a dirty one, and it is time for us to try another. No one has a better right than I to speak of this matter: I have had much to do with the English, I know the Queen, I know her ministers, I know their ways and their resources, and I cannot conceive for what reason we are so needlessly hesitating.²³⁶ Cobham called on me the morning on which he arrived. He brought me most loving messages from the Queen, and remained some time with me. But I could get nothing from him of any consequence, except entreaties that I would exert myself for the restoration of trade. He left me more assured than ever that this is not the time for us to turn our backs upon the Catholics. If we are not prompt in moving we shall find ourselves in a dilemma from which there will be no es-

²³⁶De Feria's effective metaphor does not bear a closer translation. His words are: "No se porque nos meamos en el vado tan sin porque." The phrase "mear en el vado" is no longer in use in Spanish. It means However, obviously, that the ford of a river is no place to stop in for purposes which can be attended to elsewhere.

cape. Tell the Lords of the Council from me, to be careful what they do or say."²³⁷

The English envoy seems to have been wholly unprepared for the temper with which his arrival was received. The Spanish Government considered themselves beyond comparison the party most aggrieved. Cobham presented himself merely with a list of complaints against Philip and his ministers. The Queen, he said, had desired above all things to remain on good terms with Spain. The Duke of Alva, without the smallest provocation, had arrested the English ships and goods in the harbours of the Low Countries. He had since attempted to arrange the quarrel, but his proposals had been such as the Queen could not honourably accept; and meanwhile, both at Madrid and at Brussels, English traitors were received with open arms, and treated with marked consideration. He was directed by his mistress to say, that she declined to correspond with the Duke of Alva any longer on these subjects. She requested his Majesty to discuss them immediately with herself. If his Majesty would banish Sir Thomas Stukely from Spain,²³⁸ and if he would send orders to Flanders for the immediate dismissal of the refugees, the differences between the two countries could be satisfactorily adjusted, and the arrested property on both sides be restored.

Elizabeth as the wife of the Duke of Anjou might have held this language with success. Resting as it did upon a mere threat of a marriage which no one out of England expected to see fulfilled, and coming simulwith an offer which promised to place Elizaher throne at Philip's mercy, the insolence of it was too much for the already sorely tried Castilians. The sluggish blood of the King himself ran quicker in his veins when he was required to refuse even common hospitality to the Catholic exiles.

The Council sat for a week to consider their reply. Their discussions were submitted day after day to the King, and returned with his comments on the margin. Their resolution shaped itself at last into the following form: — "The envoy had come to treat with the King in The King should decline to hear or speak on any public matter. The envoy should be privately that his complaints and demands were alike preposterous. The disputes had notoriously commenced in the

²³⁷MS- Simancat

²³⁸Stukely's stoïy will be told hereafter. He had come from Ireland u nek for help in an intended insurrection there

seizure of the Spanish treasure; and while the English harbours were dens of pirates from which the King's revolted subjects preyed upon his commerce, while the crews were recruited from English subjects, and guns and powder supplied to them from English arsenals, to make a grievance of the residence of a few persecuted Catholics in the King's dominions was intolerably monstrous."

This, and this alone, ought, in the opinion of the Council, to be the answer of the Spanish Government, and Philip at first wished to dismiss the envoy from the Court without so much as admitting him to his presence. When he consented at last to grant him an interview, it was to make the permission more insulting than a refusal. He was at the Palace of Aranjuez, thirty miles from Madrid. Cobham went down there, and the King saw him for a few minutes only; the common forms of hospitality were not extended to him; he was left to dine at an inn, and returned to the capital the same evening. The Council thought that for the King's credit some small present might be given to him; there was no precedent for the reception of an ambassador and his departure empty-handed. But Philip, being once launched upon the bold course, was more bitter than his advisers. "Presents," wrote the King in a side-note, "are given to envoys when they ' come on a mission of good-will, and they are given when they come to declare war. But this man comes merely to threaten and terrify us. If we bestow a present on him he will boast of it, we shall dispirit the Catholics, and inflate the heretics with the belief that we are afraid." ²³⁹

De Feria in the character of an acquaintance delivered the private message. Cobham tried to argue that Alva had been the aggressor; but De Feria cut him short with saying, that he was sorry to hear an English ambassador condescending to falsehoods. He asked for the answer in writing, but he could not have it, and he was then sent for by the Council.

Spinosa, the Cardinal President, made a difficulty in addressing a heretic, and would have transferred the duty to a lay member of the Cabinet. The words, however, it was thought would come with more imposing effect from one who might be supposed to speak in the name of God as well as of man. The Cardinal therefore swallowed his scruples, and thus delivered the reply of Spain to the Queen of

²³⁹"Lo que parece sobre el negocio de Cobham." — Aranjuez, Mayo 14 4 19: MS Simancas.

England: — "If that Queen would fulfil the office of a good neighbour and friend, his Majesty had given proofs already that he would not on his part be found wanting towards her. It would please him much if the differences between the two countries could be compounded, and as a step towards it his Majesty trusted that the Queen of England would at once restore the Spanish treasure. The details of the negotiation however were committed to the management of the Duke of Alva, and to him she was referred." ²⁴⁰

With this answer and without his present Sir Henry Cobham returned to England, sick at heart with the same fears which haunted Cecil, and little dreaming then how soon he would again be at Madrid with the same message, to find the note of defiance dying away in prostration and humility.

The Spanish Ambassador chuckled over the dismay with which the news of his failure was received. "My Lord Burghley's burlesques," ²⁴¹ he said, "had gone off so well hitherto that he despised danger and thought that he had taken a bond of fortune. He with his friends had made a jest of our endurance. His conscience stings him now, but his malice is inveterate. He is given over to reprobate courses and cannot turn to any good. His Majesty is wise and will provide against their tricks, though to see through them he requires more eyes than Argus had. I will do my part to make him respected, as the great Prince which he is, both by friends and enemies: but we must dissemble and be as Proteus, and hide our purposes, and they shall pay for their iniquities at last as they deserve.

The audacity of Burghley in sending Cobham with such a message was indeed marvellous; but knowing them as I do, I am surprised at nothing. We must provide in time. If this French marriage or league, or both together, come about, they can do us harm in the Provinces, but as certainly we can make a revolution in England; and I have no fear, if we are only prompt enough and do not allow this French business to consolidate itself. It need seem no work of ours, but merely a rebellion in which we may be called in to assist; and before the summer is over we can transfer to their island the mischief which they tried to work in Flanders." ²⁴²

²⁴⁰ "Lo que parece se debe responder a Enrique Cobham de palabra, y ninguna cosa por scripto. Mayo 1571." — MS. Simancas.

²⁴¹ The pun is Don Guerau's. "Y como a Milord Burghley todas las burlas hasta aqui le han salido bien," &c. — Don Guerau to Cayas, July 12 MS. Ibid.

²⁴² Don Guerau to Cayas, July 12 and July 19, abridged: MS. Si mancas.

Once more we go back to Ridolfi, who, leaving Alva, made his way with all speed to Rome. His commission was duly delivered, and the Pope, the Cardinals, and Don Juan de Cuniga sat in conclave upon it. Pius himself was in ecstasies, eager to begin, and seeing nothing but the bright side of the prospect. Don Juan attempted to moderate his transports by pointing to France; but the Pope would listen to nothing. As Christ's vicar he was in the secrets of Providence, and he answered "that God would manage it." This conviction Don Juan could not interfere with. He contented himself with insisting upon caution, and with sending a careful account of Ridolfi's reception to his master: one curious point only he was able to mention, which it seems Ridolfi had told him. There was 'no hope that the Spanish property detained in England could*ould be recovered by treaty, for not only those who had prompted the seizure of the treasure were unwilling to part with it, but the Catholics and the Queen of Scots intended to support them in their refusal, that they might compel Spain to go to war.²⁴³

But Philip now required no additional pressing. After dismissing Cobham he was only eager for Ridolfi's coming. He had learned from England that the Government was alarmed, and he was uneasy at delay as giving Elizabeth time to prepare — time perhaps to marry Anjou, or, still worse, time to make discoveries which might cost Norfolk and the Queen of Scots their heads.² The same misgiving crossed his mind at first which had occurred to Alva, that Ridolfi bottom be an agent of Cecil; but it passed Guerau's letter satisfied him that on this ground there was nothing to fear.

At length, the last week in June, Ridolfi came. "He has arrived at last," wrote Philip, giving an account to Don Guerau of his appearance. "I have received your letter with those also from the Queen of Scots and the Duke of Norfolk. Ridolfi has brought me also a note from his Holiness. I am most anxious to do something, not for any object of my own or for any human interest, but merely and simply for God's glory. What I can and ought to do shall be done, and I shall now decide what it is to be. You will say thus much from me to the Catholics, and bid them be secret and quiet. Oppressed and ill-treated as they have been, they may possibly be too precipitate in their thirst for vengeance and may move before the time. Tell them that of all things they must keep still till our preparations are com-

²⁴³ Philip II. to Don Guerau, June 20: MS. Ibid.

plete; if not, they may share the fate of the two Earls; their cause will be lost, the Queen of Scots will be put to death, and all the other 1 Don Juan de Cuniga to Philip, May 11 and 17: MS. Simancas misfortunes which they can easily imagine will follow. I have sent a courier to the Duke of Alva to desire him at once to place himself in communication with you, and to direct you from time to time how you are to conduct yourself." ²⁴⁴

To resolve to do something was by no means the same as to resolve what to do. Alva, it was seen, disapproved Ridolfi's method, briefly indicating another of his own; and in the Council Chamber at Madrid, to which Philip returned from Aranjuez in the beginning of July, there was held a remarkable discussion, the notes of which were preserved, though not intended for the curious eyes of mankind — a discussion first on the fitness, and then on the feasibility, of murdering the Queen of England.

The assassination of political enemies has an ugly sound, and in later and calmer times men of all beliefs and parties have agreed in one opinion about it. Yet, first, it does not differ so very widely from a practice still in use in our dependencies, of offering a reward for the body of troublesome persons, whether quick or dead; and secondly, in that passionate 16th century it was not peculiar to creed or nation. Catholics profess abhorrence of the murder of Beton in Scotland. Protestants retort with effect by pointing to the Regent Murray, the Prince of Orange, and the black butchery of St. Bartholomew. But both Protestants and Catholics might well drop their mutual reproaches; their sin was the sin of their age, the natural refuge of men who were driven desperate by difficulties which fair means would not clear away for them. Lord Sussex, in Ireland, would have murdered Shan O'Neil. Cecil, a few pages back, was seen treating with some villain for the death of the Earl of Westmoreland. In this meeting of Philip's Cabinet there was the most profound impression that they could invite the blessing of God upon the execution of Elizabeth — that, on the whole, God would look upon it with decided approbation. They were all present, Cardinal Spinosa, Ruy Gomez, famous afterwards as the Prince of Eboli, the Papal Nuncio, the Grand Prior, Alva's son, Don Ferdinand of Toledo, and the Duke of Feria. Chapin Vitelli had come across from Flanders to attend the Council, with a purpose presently to be seen. The account of what passed is compen-

²⁴⁴Philip II. to Don Guerau, July 13.

dious — taken down, apparently, in shorthand — in some places confused, in others imperfect. The general drift, however, is intelligible, with some noticeable details.

&On the essential desirableness of interfering, and interfering promptly, in England, the whole July' Cabinet was agreed. The cause was the cause of God, and the King of Spain was the person on whom the duty manifestly devolved. The Catholic party was wearing away. It would never be stronger than it was at that moment. If the Catholic Powers hung back, it would lose heart and dissolve. The Queen of England might marry the French Prince, and heresy would become too powerful throughout Europe to be afterwards put down. The broad principle was plain; the details were less easy to settle. Alva, who was supposed to have crushed the rebellion in the Low Countries, had long solicited his recall, preferring to leave to other hands the work of reconstruction and reconciliation. The Duke of Medina Celi had been chosen for his successor 5 but with the usual slowness of Spanish movements, the preparations for the change were still incomplete. It was thought, however, that with an effort the intended arrangements could be hurried forward. It could be represented that Alva's troops required to be relieved, as well as their general, and without exciting a suspicion a second army and a large fleet could then be collected, under pretence of accompanying the new Viceroy. The army in the Netherlands, in the same way, could be marched to the ports, as if to embark for Spain; and the money for the English campaign could be provided, also, as if for the necessities of the Brussels treasury. So far no great difficulty was anticipated. Twice the number of men for which Norfolk asked could be landed in England without difficulty; but the question next arose, what reason they were to allege to the world for their appearance there? what proclamation were the Spaniards to put out? what were they to say that they were come to do?

The Nuncio at once took upon himself to answer. Like his master, he made light of difficulties. He believed that twelve legions of angels would accompany the expedition. The one sufficient pretext, lie said, was in the Bull of Excommunication. The Vicar of God had deprived Elizabeth of her throne. The soldiers of the Church were the instruments of his decree, and were executing the sentence of Heaven against the heretical tyrant.

The Spanish ministers were loyal members of Holy Church. Alone among Christian sovereigns, the Spanish King had upheld in the Mediterranean the Cross against the Crescent, and was still performing, single-handed, the duties in which every baptised prince had once sought and claimed his share. Philip II. was the one Crusader that survived in Europe; but change of times had not left even Spain untouched by the modern spirit. Popes had more than once shifted sides in the long war with France, and an unconditional recognition of their claims to dispose of was no longer convenient. The border to be defined precisely of that cloudy debate where the temporal and spiritual powers intersected; but the Catholic King himself would not allow the two provinces to be co-extensive, or seem to sanction the pretensions of the Holy See to depose sovereigns or absolve subjects from their allegiance. The Bull had been issued without Philip's knowledge; it had not yet been published in Philip's dominions; and as the Duke of Feria observed, some Pope of the future might trouble Spain with similar assumptions.²⁴⁵ Even the Cardinal Spinosa preferred national to ultramontane interests, and the Nuncio's proposal was politely waived on the plea that it would needlessly complicate the problem; that it would defeat the plan of the Duke of Norfolk, and be a signal for a general league between all the heretics in the world. The justification, it was soon concluded, should and could be only the Queen of Scots' claim on the succession to the Crown, which the Queen of England unjustly refused to recognise. Even the wrongs of Spain were better passed over in silence. The King should appear in the matter solely as the champion of a Princess who was injured and oppressed. This being determined, the next point was the time and manner of the invasion. Should Spain begin? or should the English Catholics begin? The English Catholics wished to see Spain commit itself before they ventured another insurrection. The Duke of Alba had insisted that they should first do something for themselves, and the Spanish Cabinet were of the same opinion. Ridolfi, who was admitted to the Council, reproduced the scheme which he had laid before the Duke; but the Duke's letter was at hand, to be considered by the side of it; and it was thought certain that any such step as Ridolfi proposed would bring France into the field. The Nuncio said that the Pope would undertake for France; but the Pope's tempera-

²⁴⁵ "Peligroso hacer la empresa en nombre de su Santidad, porque para lo de adelante vendria otro Papa que quisiese mezclarse con nosotros."

ment was more sanguine than judicious; and thus the question narrowed down to the ground taken by Alva. The key of the situation was Elizabeth's life. The Catholics would make nothing of an insurrection while the Queen was alive and at large. She must either be killed or captured. That, in Alva's opinion, should be the reply which Ridolfi should carry back. The English must do that part of the business themselves; as soon as it was accomplished, the Spanish army should be instantly set in motion.

Yet it was felt that if they waited for this consummation they might wait long or forever. There were traitors in plenty about the Queen. There was Leicester's accursed crew in the household, and Arundel and Crofts upon the Council; but either they were faint-hearted, or the English nature did not understand the art of murder. Spaniards and Italians could do it; Scots could do it excellently; but the English, from some cause or other, were wanting in the necessary qualities. Ridolfi, when questioned on the possibilities that way, gave unsatisfactory answers. There was not one among Norfolk's friends about the Queen who could be thoroughly relied upon for any desperate enterprise.²⁴⁶ There were seven or eight noblemen, however, he said, any one of whom would make the necessary opportunities, if some one else could be found to do the thing, and all would be ready to come forward afterwards. He named Windsor, Lumley, Southampton, St. John, Arundel, Worcester, Montague — and peculiarly Montague; and Chapin Vihad come from the Netherlands for this particular purpose, now presented himself to help the Council in their dilemma. They would give him credit, he said, for being disinterested, for he

²⁴⁶“El Duque no tiene persona de los que estan con la Reyna en quiea hacer fundament©.” I “Ami conviene comen car por ellos, y matar 6 prender la Reyna qua de otra manera luego se casaria y mataria a la de Escocia. El punto principal que prendiesen a la Reyna. Offfesse Chapin de prenderla con diez 6 quince hombres en la casa de placer; que fuesen con titulo de demandar justicia; que en Londres seria dificultoso. Offrece de ir a ello en persona. “Lo que dixo Vitelli que pues el pone la vida, bien se entendera que no le mueve interesse.... que el efecto se ha de hacer yendo la Reyna ea progreso, y en ninguna manera en Londres, porque alii es la heregia. “James Graffs (Crofts) es hombre para el efecto. Que en caso que se haya de hacerlo en progreso serian convenientes Montague y... y en casa de algunos de los caballeros, y bastaran seys, siendo luego asistidos c’e otra gentei que ellos estan resueltos en despachar a la Reyna. Tienen u Clinton y James Crofts, Windsor, Lumley, Montague, Southampton, St. John, Arundel, Worcester.” — Lo que se platico en consejo sobre las eosai de Inglaterra en Madrid, Sabado 7 de Julio, 1576: MS. Simancas.

was going to risk his own life. He, if the matter was trusted to him, would take or kill the Queen. He knew England. He was acquainted with the noblemen whom Ridolfi mentioned. It could not be done in London; but at the end of the summer Elizabeth would go on progress. She travelled inadequately guarded. She stayed at different country houses. He would go over with ten or fifteen companions; and when she was — as she need not fail to be — the guest of Montague, or some other of the set, he would obtain access to her person, perhaps pretending some commission such as he had been sent upon before, and then and there cut the knot of all difficulties.¹ The Lords would have a force in readiness to support him. The Queen of Scots would be safe with Lord Shrewsbury; the Countess was a Catholic, and conducted that Queen's secret correspondence.²⁴⁷ The Catholics would then everywhere rise, Alva would cross the Channel, and the revolution would be over before the French had recovered from their first astonishment.

The date of this notable conference agreed nearly with that of Cecil's saddest letter to Walsingham. Not without reason, Cecil believed that England's supreme hour of trial was drawing near, and but for the accident that the intended bridegroom was as reluctant as the bride, Elizabeth would have selected that particular opportunity for insulting France, and adding another enemy to those who were already in league against her.

The resolution of Philip's Council was immediately forwarded to Alva; and Ridolfi, according to the Queen of Scots' instructions, would have gone on to Portugal. But Philip was unwilling to extend further the circle of conspiracy. If the enterprise was to succeed at all, his own troops would be sufficient, and Ridolfi's headlong temper did not personally recommend him to confidence. He too was sent to Brussels to be at Alva's orders. He wrote enthusiastic letters to Norfolk, to Mary Stuart, and the Bishop of Ross, detailing his success, and forwarded them under cover to Don Guerau; but there was so much fear of a premature disturbance, that Alva ordered Don Guerau not to deliver them, forbade him to mention their arrival, or to open his lips upon the subject to any living person till further orders.²⁴⁸ The Catholic King meanwhile made such haste as he was able to fit out the Duke of Medina Celi, whom Chapin was to

²⁴⁷“Por medio della van y vienen las cartas y avisos”

²⁴⁸ Alva to Don Guerau, July 30: MS. Simancas. 17

accompany.²⁴⁹ The power of Spain was still vast, but its movements were ponderous and slow.

The Duke of Feria died in August, and with him the most ardent in the matter of all the Council. Other matters too claimed attention. Don John of Austria was in the Mediterranean, getting ready for *Le panto*. Too much time was already gone, and what remained of the summer was all too little for the work that was to be done. Don Guerau was growing restless and impatient. The English Council, he said, suspected much, although as yet they little. If the blow could be struck quickly, go well. The Catholics were three to one, all prepared. If the summer went by, they might despond again; Scotland might be conquered, the Queen of Scots killed; and Lord Hertford or the little Prince of Scotland declared heir to the throne. Other factions were fast merging in the two great religious divisions, and the longer the delay, the stronger the Protestants would grow. Above all, there was no safety while such a man as Cecil was at the head of the Queen's Government. "Tell his Majesty," Don Guerau wrote to Cayas, "that Cecil is a fox cunning as sin, and the mortal enemy of Spain. He moves in 259 silence and falsehood, and what he will do, or try to do against us, is only limited by his power. The Queen's opinion goes for little, and Leicester's for less; Cecil rules all, unopposed, with the pride of Lucifer."

But Cecil could be rolled in the dust if only Philip would be prompt, while the fire was burning and the iron hot. On the night of the 4th of August, the Londoners were in the streets gazing at a huge arch in the sky, which seemed to span the city, and filled their hearts with terrors of approaching change. The Catholic Don Guerau scoffed at the cowardly superstition of the enlightened and Protestant English, but he pressed his master to use the moment, and take advantage of their fears.²⁵⁰

²⁴⁹There seems to have been some uncertainty, after all, whether Philip did not withdraw his sanction of the murder. Writing on the 4th of August to Alva, he tells him simply to prepare to invade England, to assist the Catholics who were to rise in rebellion. Chapin, he says, was to command the expedition. Alva understood this to mean that Philip would carry out Ridolfi's original proposal. He referred the King to the objections which he had already laid before him, and insisted that no force should be sent to England till the Queen was in the hands of Norfolk and the Queen of Scots at liberty. — *Precis de la Correspondance de Philip II: Gachard. Yvl II.*

²⁵⁰"Puede pensar V. Magd quan alborotados deben andar los de Londres que es gente muy medrosa y credula de prodigios." — Don Guerau to Cayas Aug 5 • Don

Tried by his own standard, Philip was not working without diligence. He had meditated for two years on sending Alva to the Low Countries. He had kept his secret, matured his arrangements, and believed that he had accomplished what he desired. To be slow and silent, to take every precaution to ensure success, and then to deliver suddenly at last the blow which had been long vaguely impending—this was the Spanish method. It had answered before: it might answer again.

So Philip thought, and let the days go by. He had taken a false measure of his antagonist. It was not without reason that Don Guerau warned him to beware of Cecil.

It will be remembered that Sir John Hawkins, in his great disaster on the coast of Mexico, left the majority of the survivors of his crews in the hands of the Spaniards. Prisoners of war in all countries were considerably worse off than well-befriended felons in common gaols. The felon who had money commanded all the luxuries which the corruption of the warders could provide. The prisoner of war, stripped of everything that he possessed at his capture, and far away from his friends, experienced the hardest extremities which the inhumanity of carelessness could inflict. English captives everywhere would have had no enviable lot. In Spain, and in the Spanish colonies, they fell as heretics into the hands of the Inquisition. Some of Hawkins's men had been burnt; all had been more or less tortured; and such as had not died or been murdered, had been transferred to Europe, and were lying half dead of hunger in the Archbishop of Seville's dungeons.¹ Sir John was not a virtuous man in the clerical sense of the word, but he had the of a brave man for the comrades who had his side; and the fate of those poor fellows who had hunted negroes with him in the mangrove swamps, had surveyed the reefs in the Gulf of Mexico, and shared so many dangers and so many successes, now lying in those horrid dens at the mercy of the familiars of the Holy Office, never left his mind. Two years after his return, while they were still in Mexico, lie had intended to go out in search of them. The Government, afraid of the consequences, prevented the expedition, and Hawkins, since he was forbidden to use force, determined to try what he could do by cunning. With Cecil's secret permission, he paid a visit to Don Guerau, complained of his ill usage by the

Guerau to Philip, August 8; MS. Simancat. i "Muertos de hambre," was the admission of the Spaniards them Bjives.

Crown, and asked whether nothing could be done for the relief of his companions. Don Guerau never lost an opportunity of encouraging discontent, and Hawkins allowed himself to be led on to speak so bitterly of the Government, that Don Guerau suggested to Alva that it might be worth while to secure the gratitude of so able and formidable a person by setting the prisoners at liberty.²⁵¹ Hawkins, however, was not able to secure his object so easily; nothing came of Don Guerau's suggestion; the men were not released, and it was necessary to wade a little deeper.

About the time when Ridolfi was leaving England, Sir John intimated to Don Guerau that he too was weary of serving an ungrateful sovereign. He professed himself willing, if his companions were restored to him, to enter the Spanish service, and to carry over with him the finest ships and the bravest sailors in the Queen's navy. Don Guerau, who was full of the idea that three quarters of the people were disaffected, saw nothing to surprise, but much to delight him in this communication. He had sufficient prudence not to admit his new friend to the Ridolfi mystery, but he wrote to Cayas with an account of the offer, which seemed to fit providentially with the scheme of the intended invasion. The sea was Elizabeth's strongest defence, and Hawkins was the ablest commander that she possessed — given to piracy, indeed, but piracy was a common English failing, for which Spanish apathy was much to blame — otherwise, bold, resolute, a splendid seaman, and a person of station and property.

Encouraged by the ease with which the Ambassador was taken in, but perhaps disappointed at the little which he had learnt, Sir John next contrived the more daring step of applying immediately to Philip. He sent George Fitzwilliam, who seemingly was one of his officers, to Madrid, to tell the King that his master was one of the many Englishmen who were broken-hearted at the progress of heresy; to say, as a faithful son of Holy Church, he was waiting for the time when the Queen would be overthrown, and the crown pass to its rightful owner, the Queen of Scots; and that he himself, with his friends in the navy, were ready to do their part in bringing about that happy consummation.²⁵²

²⁵¹ Don Guerau to Alva, August 21, 1570: MS. Simancas.

²⁵² "Inclinado a robar como lo son todos de su nacion, mayormente ahora, viendo que se salen con todo sinque nadie los contradiga." — Don Guerau to Cayas, March 25, 1571.

The King, to whom Hawkins's reputation had long been terribly familiar, who could never read his name in a despatch without scoring opposite to it a note of dismay — who had heard of him only in connexion with negro - hunting, sacked towns, and plundered was more astonished than Don Guerau at an so utterly unlooked for. One of the pirate race, Thomas Stukely, had indeed already come over to him. Stukely was Sir John's cousin, and so far the thing was not utterly incredible; but his instinct told him to distrust the advances of Hawkins. He asked Fitzwilliam whether his master was acquainted with the Queen of Scots. Fitzwilliam was obliged to say that he was not. Was he in communication with the Catholic noblemen, or with the refugees in Flanders? He had never spoken to one of them. But when Philip went on to enquire who and what he was then, and what claim he possessed to be believed, Fitzwilliam haughtily answered, that the credit of Sir John Hawkins was in his right hand, and what he said he meant. He had offered to pass over to the service of his Majesty with the English fleet. He desired nothing in return but the release of a few poor prisoners at Seville, who were not worth the cost of keeping them. The crews of the ships would follow where he led them. The King need only pay them their usual wages, and advance some small sum of money to complete the equipment of the vessels to which his own means were unequal.²⁵³

. The thing was strange, but the very boldness and simplicity of Fitzwilliam's language was against the notion of deception. The Duke of Feria, whom Philip consulted, took his cue from his wife's 2 relations, who were enthusiastic believers in the success of the revolution. The Duke saw in the adherence of the great king of the buccaneers only a fresh proof that all England was returning to the faith. Don Guerau's letters were favourable; and Philip at last listened so far at least as to write to the Ambassador for fuller information, and to tell Fitzwilliam that if he would return to him with a letter of introduction from the Queen of Scots, and with a precise and exact account of what was to be done, his master's propositions should be favourably received, and money also should not be wanting to put the fleet in good order. Not a hint had been dropped by the cautious King about the meditated invasion; but the Duke and Duchess of Feria were less cautious. They talked

²⁵³“Las cosas de que Jorge Fitzwilliam ha de traer claridad.” April 1571: MS. Simancas. Respuesto a los Articulos: MS. Ibid.

over with Fitzwilliam the possible achievements which Hawkins might accomplish. They trusted him with letters and presents to the Queen of Scots, giving him the excuse which he wanted for being introduced to her; and with these, and with the information at least that the King of Spain was willing to encourage the desertion of the fleet, he returned to England a little before Sir Henry Cobham. He had gone over merely to dupe Philip into letting go the prisoners. Before he came back the arrest and examination of Charles Baily had sharpened Cecil's suspicions, and more might now be made of the original purpose of the deception. If followed up, it might lead either to Hawkins being admitted into the whole secret of the conspiracy; or, if the trick was discovered, he would at the worst discredit other overtures from English disloyalty, and make Philip doubt whether it was not all treachery together. Thus it was decided to go on. Hawkins was bent on recovering his friends, and Cecil on discovering the mystery of which Baily had revealed the existence, but had left but half explained. The important thing was now to obtain the letter of introduction from the Queen of Scots.²⁵⁴

In this there was an unexpected difficulty. Fitzwilliam went down to Sheffield to deliver the packets from the Duke of Feria. The Queen of Scots had been kept close prisoner since the confession of Charles Baily, and Shrewsbury had been commanded to allow no one to have access to her, except with an order from the Government. It was not safe to admit Shrewsbury into the secret of Hawkins's treachery, and unless Fitzwilliam could sustain his character of a bonafide Catholic conspirator, the Queen of Scots would be on her guard.

Hawkins consulted Cecil.²⁵⁵ The release of the prisoners, which was Hawkins's principal object, was considered a sufficient excuse to cover the ap- . May. plication. Cecil wrote to Shrewsbury, saying 7 merely that some poor friends of Fitzwilliam were dying in a Spanish dungeon, and that a letter from the Queen of Scots might induce Philip to let them go. Fitzwilliam was then admitted to a private audience. He delivered the letters from the Ferias, and the Queen of Scots, little dreaming that she was being made the instrument of a plot by which her own hopes were to be destroyed, said good-naturedly

²⁵⁴Jane Dormer, one of Queen Mary's maids of honoui

²⁵⁵Your good Lordship may be advertised that Fitzwilliam has been in the country to deliver his tokens, and to have had some speech with the Queen of Scots, which by no means he could obtain. Wherefore he hath devised with me that I should make some means to obtain him license to

"that she must pity prisoners for she was used as one herself, and that she would do any pleasure she could to relieve an Englishman." ²⁵⁶

Suspecting no treachery in a friend of the Duchess of Feria, Mary Stuart talked with much unreserve to Fitzwilliam. Fitzwilliam told her about Hawkins and his offer to the King of Spain, and she, on her part, wrote to Philip at once in his favour. Don Guerau was delighted at so important an acquisition to the Catholic cause, and told the King that he might expect service from Hawkins of infinite value,²⁵⁷ while Hawkins have access to her for her letters to the King of Spain for the better obtaining of our men's liberty, which otherwise are not to be released; which device I promised him that I would follow, and that if it shall ito your Lordship he may be recommended by such credit ijordship shall seem best; for unless she be first spoken with and an answer from her sent to Spain, the credit for the treasure cannot be obtained. If your Lordship think meet that Fitzwilliam shall be recommended to speak with her, if I may know by what sort j'our Lordship will appoint, there shall be all diligence for his despatch used, and hereof I humbly pray your Lordship's speedy resolution.

"Your good Lordship's most humbly to command, "John Hawkins.

"The Right Honble the Lord Burghley," May 13. — MSS. Queen of Scot Rolls House. sent the Queen of Scots' letters to Cecil to be examined, with a list of the presents which in her innocence she had trusted to the false hands of Fitzwilliam for her Spanish friends,²⁵⁸ and enquired whether it was Elizabeth's pleasure that he should pursue the game further. If it was thought good by her Majesty that he should proceed, there was no doubt, he said, but various commodities would follow: — "The practice of the enemy daily more and more discovered; there would gotten for a good sum of money; the same money, as the time should bring forth cause, should be employed to their own detriment; and the ships which should be appointed as

²⁵⁶Shrewsbury to Cecil, June 3: MSS. Queen of Scots.

²⁵⁷Don Guerau to Philip, June 15: MS. Simancas.

²⁵⁸Fitzwilliam is returned and hath letters from the Queen of Scots to the King of Spain, which are enclosed with others in a parcel directed to your Lordship. He hath also a book sent from her to the Duchess of Feria with the old service in Latin; and in the end hath written this word with her own hand: — "Absit nobis gloriari nisi in cruce Domini nostri Jesu Christi. Makij B." — Hawkins to Burghley, June 7: MSS. Queen of Scots.

they would suppose to serve their own turn might do some notable exploit to their great damage.”²⁵⁹

No very creditable correspondence, on the face of it, between Elizabeth's greatest minister and England's ablest seaman: the Queen of Scots was being betrayed through her good nature, and Philip was to be duped into dependence upon a pretending traitor, and to be relieved at all events “of a good sum of money” by a process which resembled swindling. Hawkins doubtless took a keener interest than Cecil in the money part of the transaction. He maintained that the King of Spain was in his debt to the full value of the ships and property which had been destroyed in Mexico, and that he was doing no more than recover what justly belonged to him. Cecil was soiling his hands for no such sordid purpose. He was in search of secrets of state of tremendous moment, and treachery in extreme exigencies becomes but the legitimate feint of a general in the presence of the enemy. Fitzwilliam returned to Madrid with as little delay as possible. He found the King in the credulous flush of excitement which followed the resolution of the Cabinet on the 7th of July. The murder of Elizabeth had been decided upon, the instrument chosen and sent upon his errand. England was to be recovered to the Church and the penitent Hawkins was accepted as the first fruit of the national conversion. The letters of the Queen of Scots removed every doubt that remained. The sailor captives were set at liberty and sent back to their country each with ten dollars in his pocket to atone for his sufferings. Fitzwilliam was introduced to the Cabinet, and explained at length his master's August' views. Sir John Hawkins, he said, was struck with horror at the condition to which his country was reduced. Heresy and tyranny were alone dominant there in frightful combination, and the Queen of Scots was the only hope that good men saw remaining. She had so many friends that if the King of Spain would but say the word the work of raising her to the throne could be done with ease and safety. Sir John himself had but to sail up the Humber with half-a-dozen ships, land the crews and proclaim her Queen, and the whole nation would declare for her.

Mary Stuart in her letter to Philip had said, after all, less than Hawkins wished, and had confined herself to generalities. Fitzwilliam explained her reserve by saying that he had himself seen and spoken with her, and she had told him to say that her

²⁵⁹ *Ibid.*

correspond • ence was watched and that she dared not write more than a few words. Hawkins himself, however, Fitzwilliam stated, had 16 vessels, 1600 men, and 400 guns, all at his Majesty's disposition, ready to go anywhere and do anything which his Majesty might command so as it was in the Queen of Scots' service. For himself Sir John asked for nothing save pardon for the sins which he had committed in the Indies. He would cover the preparation of his ships by pretending that he was going to serve with Count Louis in an expedition against the Spanish coast. The Queen would give him leave and would fall into her own pit. He desired only to have the fleet in a condition to do his Majesty royal service. In this he was obliged to throw himself on his Majesty's liberality, and he requested his Majesty also to advance him two months' wages for 1600 men.

The proposal seemed so liberal that Philip forgot his caution and dropped his reserve. He had still prudence enough to conceal the correspondence with Norfolk, Chapin's mission, and the intended assassination; but Fitzwilliam was allowed to know that England was really to be invaded, and that the blow was to be struck, if possible, at the end of the summer. Indentures were drawn at the Escorial, and were signed by Fitzwilliam for Hawkins, and by the Duke of Feria — just before his death — for Spain. Hawkins bound himself to have his fleet at sea, to be at the disposition of the Duke of Alva, in September and October. Philip consented to advance the necessary moneys, and being in a generous mood, expressed a hope that in the event of success Sir John and his friends would accept, — in addition, something handsome for themselves. The pardon for the misdoings in the Spanish main was drawn out in full, with an assurance that if the expedition failed, they should be sure of employment in the Spanish service.²⁶⁰

This prodigious "practice" was thus entirely successful. The English Government learnt the particulars of the danger which lay before them and were able to prepare for it — prepare for it in part with finances furnished by Philip himself; Hawkins held himself in readiness to join Alva as soon as he should sail, intending to sink him

²⁶⁰The documents relating to these negotiations are very numerous, and with the exception of the letters which passed between Hawkins and Burghley, are all at Simancas. The Spanish historians, knowing only their own archives, have supposed that Hawkins was really acting in good faith with Philip. The King did not care to leave on record an account of the trick by which he had been taken in.

in mid-channel. Philip paid the money for which Fitzwilliam asked, some forty or fifty thousand pounds, through his agents in England. He made Hawkins himself a grandee of Spain, and sent him, through Fitzwilliam's hands, his patent of nobility.

One more communication from Sir John to Cecil contains all that requires to be told September further.

SIR JOHN HAWKINS TO LORD BURGHELEY.

"My very good Lord, — It may please your Honour to be advertised that Fitzwilliam is returned from the Court of Spain, where his message was acceptably received both by the King himself, the Duke of Feria, and others of the Privy Council. His dispatch and answer was with great expedition, and great countenance and favour of the King. The Articles are sent to the Ambassador, with orders, also, for the money to be paid to me by him, for the enterprise to proceed with all diligence. Their pretence is, that my powers should join with the Duke of Alva's powers, which he doth secretly provide in Flanders, as. well as with the powers which cometh with the Duke of Medina out of Spain, and so altogether to invade this realm and set up the Queen of Scots. They have practised with us for the burning of her Majesty's ships, therefore there would be some good care had of them,, but not as it may appear that anything is discovered — as your Lordship's consideration can well provide.

"The King hath sent a ruby of good price to the Queen of Scots, with letters also, which in my judgment were good to be delivered. The letters be of no importance, but his message by word is to comfort her and say that he hath now none other care but to place her in her own. It were good, also, that the Ambassador did make a request unto your Lordship that Fitzwilliam may have access to the Queen of Scots, to render thanks for the delivery of the prisoners which are now at liberty. It will be a very good colour for your Lordship to confer with him more largely. I have sent your Lordship the copy of my pardon from the King of Spain, in the very order and manner I have it. The Duke of Medina and the Duke of Alva hath every of them one of the same pardons more ampresent unto me, though this be large enough, great titles and honours from the King, from which God deliver me. I send your Lordship, also, the copy of my letter from the Duke of Feria, in the very manner as it was written, with his wife's and son's hand in the end.²⁶¹ Their practices be very mischievous,

²⁶¹Not found

and they be never idle, but God, I hope, will confound them, and turn their devices upon their own necks. I will put my business in some order, and give my attendance upon her Majesty, to do her that service that by your Lordship shall be thought most convenient in this case. I am not tedious with your Lordship, because Fitzwilliam cometh himself, and I mind not to be long after him, and thus I trouble your Lordship no further.

"Your Lordship's most faithfully to my power, "John Hawkins." 1

The letter came opportunely, for Cecil, as will presently be seen, had by this time the few remaining threads in his hand which would ravel out the whole conspiracy. Very hateful such proceedings may seem to some readers, as if it were better that a Government should perish than to be driven to maintain itself by treachery. Elizabeth won the game, and therefore the faults on her side appear gratuitously wicked. We fancy that she might have succeeded as easily by fairer means, while the like doings on the other side are passed over in a general sentiment of compassion for the losing cause. Yet treachery was but meeting treachery. The Queen of Scots, on the whole, held better cards than Elizabeth; and but for Cecil, the Queen of Scots would probably have won, and Chapin's poniard and Alva's legions might have given another complexion to English history. The Queen of Scots' iniquities would then have stood out in the relief of success. The pity would have been for Elizabeth, the moral censure for her more lucky rival. In this and all such conditions, our praise and our blame are alike impertinent, for it is impossible to apportion them fairly. The rules which insist on truth and candour 1 Domestic MSS-Rolls Rouse. between man and man and Government and Government, apply only to quiet, or at least to honourable ages. Wars and treasons and conspiracies derange the natural relation of things, and bring about situations where other balances are required. The baser crimes which spring from selfishness and cowardice are hideous in every time and place: but Hamlet is not condemned for rewriting his uncle's packet, because Shakspeare, in the fulness of genius, places the facts before us with all their surroundings. Let the reader exert his imagination to call up before him the situation of Elizabeth and her Minister, and he will be sparing of his outcries in proportion to the vigour of his thought.

The anticipation that the year 1571 would prove a critical one in the fortunes of England was entirely verified. The Ridolfi conspir-

acy was the last combined effort of the English aristocracy to undo the Reformation and strangle the new order of things before it grew too strong for them. The exigencies of history compel us to follow in single lines the many threads of which the situation was made up. London, Paris, Brussels, Rome, Madrid — we have had to transport ourselves from one to the other, while at each and all, at the same time, the warp and the woof of Elizabeth's destiny were forming. We have watched the English Parliament at home labouring for the cause of God and freedom. We have seen Philip's Cabinet planning murder, in the cause also, as they believed, of God and Holy Church; while Cecil and Walsingham were struggling desperately to bind England and France together, and the Queen was choosing the edge of the precipice to execute her matrimonial coquet dance. Dungeons have been thrown open, where wretched prisoners were yielding their secrets to the rack,²⁶² or cheated out of them by the midnight visits of pretended friends. And, last of all, we have seen the Catholic King and his Council of State becoming the dupes of a buccaneering adventurer. All these scenes were going on together; while Cecil had his eyes everywhere, conscious or unconscious that on him, and on what he could do, the fate of England and its Queen depended.

It remains to observe, during the same months, the fortunes of the two parties which divided Scotland. On the fall of Dumbarton and the ineffectual close of the London Conference, the civil war broke again into a blaze. War, in a large sense, it could not be called, but a general breaking down of all order and authority, the parties which respectively called themselves subjects of the King or Queen flying at each other's throats, burning each other's houses, and indulging, under the pretence of loyalty, their private hates and feuds. Neither France nor England could openly interfere. The marriage project made them unwilling to quarrel; and till that marriage was accomplished, they were equally unable to act in concert. At the same time, neither cared to desert their friends entirely; and thus both sides were encouraged with promises and fed with money. King's party and Queen's party were called to the field, and one could not overwhelm the other; and the hopeless struggle was varied only by some

²⁶²Charles Baily was not the only sufferer. Hall, Sir Thomas Stanley's friend who was taken at Dumbarton, was made to tell what he knew by the same means. The Queen and Cecil ordered Sir William Drury to submit a series of questions to him, adding, "Let him look to be racked to all extremity if he will conceal the truth." — Elizabeth to Sir William Drury May 20, Cecil's hand: MSS. Scotland.

gallant achievement like the storming of Dumbarton. Had Elizabeth resolved from the beginning, as she had now resolved at last, to keep Mary Stuart prisoner — had she supported Murray — had she allowed Sussex to take Edinburgh Castle — had she recognised James not only as King country, but as her own prospective heir she would have added nothing to the danger of her position with the European Powers, and the peace of Scotland would never have been disturbed. The settlement in James's favour was the one step which, beyond question, she ought to have taken, and which she only did not take from the peculiar perversity of temperament which never would allow her to move directly and openly towards any object, however excellent, however just, however expedient.

She had played fast and loose so often with the Protestants that, but for the interest of their common religion, they would long ago have fallen off from her. As it was, the position of parties was briefly this. The Regent, supported by Mar and Morton, held Stirling, and Dumbarton. The Laird of Grange and were in Edinburgh Castle, where, after the of the Archbishop of St. Andrew's, they were joined in force by the Hamiltons, with Buccleuch, Fernihurst, and Lord Hume, and then took possession of the town. The North and West, with the Gordons, Argyle, and Athol, were for the Queen. From Stirling to St. Andrew's, and south till within thirty miles of the Border, the farmers and peasants were mainly Protestants. The French were more liberal of money than Elizabeth. Elizabeth reluctantly doled out a thousand pounds to the Regent on a single occasion. Mary Stuart's dowry was regularly paid to the other side, with four thousand crowns a-month in addition from Charles and Catherine.

So matters stood on the arrest of Charles Baily and the partial discovery of Ridolfi's plot. Elizabeth, as usual, was roused for a time into resolution. Drury was sent to Edinburgh to remonstrate with Grange and Maitland "for occupying the city in warlike manner," and to inform them that if he or his party "brought m strangers," "the Queen would avenge their obstinacy against the common peace." Cannon were prepared in Berwick, and an expeditionary force was organised and put in marching order for the reduction of Edinburgh Castle.²⁶³

So obviously necessary, if Elizabeth's throne was to be preserved, was the reduction of Scotland under the Regent's authority, that

²⁶³Elizabeth to Sir William Drury, May 20- MSS. Scotland.

Mary Stuart's party were unable to believe that decisive measures could be longer postponed. Lord Seton flew to Paris to entreat assistance. It was at the moment when the Queen Mother was most sanguine about the English marriage, and the application was especially unwelcome. Seton said that he hoped that in the midst of her new schemes she would not forget her old friends. He reminded her of the many gallant Scots who « had offered themselves for the country of France and had left their bones behind them there.” Catherine gave but cold answers. The Archbishop of Glasgow stood sadly by, but did not speak a word.

“Madam,” said the old lord passionately, “I must speak two words to you, and pray you to receive them as coming out of a true French heart. Madam, since Charlemagne's time there was never sent from Scotland, by King, Queen, or nobility, a more honourable suit than is desired at the present by me; and seeing that this vain opinion of the Queen of England's marriage is so had in conceit of you that ye heed not us who are invaded with fire and sword and our castles and houses demolished, as I have shown you before, the nobility of Scotland will not fail to sue where they Lord Seton fell back on Brussels. The friends of Mary Stuart in Scotland followed the lead of the English Lords, and, deserted by France, flung themselves upon Alva and Spain, and the coldness of the French Court gave fresh facilities for the organisation of the intended invasion. Should accident prevent a landing at Harwich, the coast of Aberdeen was close at hand and always open, and the presence of a Spanish army in the island was all that was needed to call the Catholics to the field.

Meanwhile, till the Spaniards were ready it was necessary to keep Elizabeth in play, and to prevent her from executing her threat of reducing the Castle of Edinburgh. Her determined moods seldom lasted more than a few days, and Maitland's pen was called into requisition to soothe her into a false security.

Maitland had a singular influence over Elizabeth. She corresponded with him in private, and while Cecil was threatening him in her name, she was herself unsaying Cecil's language behind the scenes. Whatever may have been her secret purpose in so doing, she allowed him to see that she did not desire to interfere if she could help it, and that she would welcome any opening which he could make for her to escape from the necessity which was being forced upon her. Maitland believed her incapable, through her vacillation,

of any consistent policy. He despised her and played upon her weakness. When he received Drury's message, 1 Seton to Maitland, May 31: MSS. Scotland.

277 and heard of the preparations at Berwick, he wrote to remind her "how often she had urged him to remain faithful to his own Queen, y how at times she had reproached him for his seeming want of duty, how incredible it appeared to him that she should now take his fidelity to his mistress unkindly. He could not and would not acknowledge the Regency of Lennox. His property had been confiscated. He and many other noblemen had been declared outlaws. The King, when he took on him the administration, would find no kingdom apt for rule, but a confused chaos, where within short time there would start up two or three hundred resembling Shan O'Neil, whereof every one would be king in his own bounds or within ten miles' compass. Neither he nor his friends would permit five or six earls and lords, not of the greatest degree, to make slaves of all who would not serve their turn; and for himself, he had not been accustomed to misery, and would find it strange to be driven to live on other men's charity. This, however, he was ready to do. He would use his credit to procure a reasonable union of all the states of the realm to maintain peace with England. He would procure that her Majesty should be put in trust to make a final end of all controversies and be moderatrix in all their debates; this point only reserved, that she would so deal with the Queen of Scots that he and his friends might not be condemned of having dealt undutifully with their sovereign, to whom he for his own part was particularly bound for benefits received, and had made promises which in honour he might not break." ²⁶⁴ The intention of this letter was to gain time till] A.lva could land, the Catholics rise, and Elizabeth and the Queen of Scots change places. Mary Stuart and the Bishop of Ross had admitted, in explanation of Charles Baily's confession, that the Spaniards had been invited into Scotland. It was more than ever essential to put down the party which would open their ports to receive them. But Maitland's words chimed in exactly with Elizabeth's detestation of resolute action. She underlined particular expressions in the letter with marks of her approval, and Drury was again ordered up to Edinburgh and Stirling, to say that force, after

²⁶⁴Maitland to Elizabeth, May 30: MSS. Scotland.

all, was not to be used; a commission should sit again in London to arrange a compromise.

The Queen's friends had as much intention of submitting to Elizabeth as of accepting the Archbishop of Canterbury for their Metropolitan. When Drury came to Edinburgh, he found Chatelherault holding a Parliament in the Tolbooth to reinstate Mary Stuar^t "as only lawful sovereign of Scotland." Making a mild protest — all that he was now allowed to make — he went on to the Lords at Stirling, where his appearance was the signal for a burst of execrations. « Among the hot bloods of the young men" he was « in danger of his life;" "shot at divers times;" dreaded by the Regent as the minister of that uncertain action which had caused all the existing misery, hated and cursed as "a false treacherous Saxon." The Lords had hoped that at last Elizabeth must declare decisively for them. If they waited till Alva landed they were lost, and the first impulse was to throw up forever the service of a mistress who never for two days together remained in one mind, and make terms with their enemies at Edinburgh. The Regent, old, infirm, and over-influenced by Lennox partisanship, had grown unpopular with his own party, and Drury feared that he would soon be sent the way of his son. Maitland had been making overtures to Morton, to which Morton was supposed to be listening. "The Castilians," as the Queen's faction was called, were supported with money from France and Flanders. The Regent, to maintain a force, was driven to distrain still upon the few noblemen who adhered to the King. The situation could not be prolonged under such conditions. On the 14th of July Drury reported to Cecil that, unless her Majesty could make up her mind at once what she meant to do, "both parties were determined to agree among themselves, the same being already in hand." ²⁶⁵ Had the Queen of England been liberal with money, the Regency July' might have continued; but with ample supplies on one side and on the other only contradictory advice and perpetual vacillation, the Lords who had stood for the King could no longer persevere in so thankless and dangerous a course. Even Elizabeth's own people could not be paid their own justly earned wages. Drury complained that he had himself incurred such expenses in her Majesty's service that he was weighed down with debt.²

²⁶⁵Drury to Cecil, July 14: MSS. Scotland. 2 *ibid*.

In the midst of these distractions, and immediately arising out of them, a third party now appeared, which, though unfavourable to Mary Stuart and scarcely less so to Elizabeth, seemed likely for a time to obtain the control of Scotch policy. It was the misfortune of the Queen of Scots that she was unable to apply for help to one of the great Powers without offending the friends of the other. Out of the large body of noblemen who had hitherto supported her, the Protestant section disapproved entirely of the new connexion with Spain. They remained true to their French sympathies; and the change of policy at Paris, the reviving influence of the Huguenots, and the liberalising tendencies of the King, produced a corresponding effect upon his friends in Scotland. As the Guises lost their ascendancy the French Court became again indifferent to Mary Stuart, and was as willing as it had been four years before to support the King if it could win back the Scotch alliance. If the Anjou marriage had come off, France and England, and the Scotch friends of both, would work together. If the marriage failed, France would not allow Scotland to become Spanish; and if Mary Stuart flung herself on Philip, for their own sakes they were forced to take up the cause of her son. In the universal uncertainty no definite resolution was possible; but M. de Virac was sent back with large discretionary powers; and thus through the summer months there followed a series of intrigues and counter-intrigues, the principles of which are generally intelligible but the details utterly confounding.

This only is clear, that all alike were bidding *AusTM* for popularity by appealing to the national sentiment, swearing "that Scots would never thrall their land to England. The King of France, if he would, should be judge in all their differences." 1 The nobler element in Scottish life was for a time in abeyance. Knox had withdrawn from Edinburgh to St. Andrew's. The reforming noblemen were divided and disheartened. The commons were lying in the dead water between the opposite tides, and for the present attending chiefly to their farms and their trades. At length, towards the end of August, things began to assume defined outlines. Three parties had shaped 1 John Case to Drury, August 29: MSS. Scotland. themselves — French, Spanish, and English. Chatelherault, Maitland, Huntly, Fernihurst, Buccleuch — those who had been most nearly connected with the English Catholics, and were to some extent in the secret of their plans — followed the main line of the conspiracy and remained in correspon-

dence with Alva Argyle, Cassilis, Eglinton, and several others broke away and declared for the King — for the King and France — or for the King and France and England — as events and as their friends should direct them. They came to an understanding with the party at Stirling. Lennox for general convenience and through Morton's interest, was to be continued as Regent. Elizabeth had bought Morton's services, finding it cheaper to bribe a single nobleman than maintain a Government.²⁶⁶ But he was to be placed under restraint, unable to act without consent of a Council, and generally rendered so uneasy in his seat "that he would be glad to be gone."²⁶⁷

A great meeting of the Lords was held at Stirling, to consider the propositions which should be submitted to Elizabeth. This much only they had at once resolved, that the Prince should in no case be sent to England as Elizabeth desired; and no right whatever should be recognised as existing in the Queen of England to decide who should or should not be the Scottish sovereign. The unfortunate Lennox could but lament to Cecil the indecision of his mistress, which had thus shaken her influence: was it not for his grandson, he said, no earthly interest should tempt him to remain in office another day.²⁶⁸ Neglected in the midst of the crowd, desolate and weeping with such few friends as privately came to him, the father of Darnley sat waiting for the fate which was coming upon him.

If threatening to England, the new combination was no less unfavourable to the projects of the "Castilians." Whether a French faction or an English faction governed Scotland, or both combined, there would be an equal difficulty in making arrangements for the landing of the Spaniards, or for the march southwards to the rescue of the Queen of Scots. In reply to the Hamiltons' Parliament at the Tolbooth, a rival meeting was held at Stirling, where Chatelherault and Huntly were attainted, and the assembled Lords gave out that they meant to march immediately upon Edinburgh, and starve the castle into submission.

The Castilians — or rather Maitland, for Maitland was the inventor of the enterprise — proposed to anticipate them. He flattered himself that if he could bring all parties together with some vantage ground

²⁶⁶Morton took her money and professed to place himself at disposition, "either to use him to quench the fire among them the flame break out further." — Drury to Cecil, August 24: MSS. land.

²⁶⁷John Case to Drury, September 2: MS. Ibid.

²⁶⁸Lennox to Cecil, August 25: MSS. Scotland.

of position to himself, he could settle matters in his own way, and flatter the ambition of Scotland by a sketch of the prospect which that autumn was to open for the Queen. His plan was characteristic both of himself and his countrymen — a companion enterprise, though far grander in its aim and scope, to Crawford's capture of Dumbarton. Including the Lords, their friends, and their followers, there were at Stirling, in all, 2000 armed men. The town as well as the castle was fortified. The Queen's party had no kind of force in the field, and the last thought which would have occurred to any one would have been that there was danger of surprise. Buccleuch and Fernihurst, with a few score Border troopers, men accustomed to desperate adventures, had been for some time at Edinburgh. It was given out that they were going back to their own country. Half a dozen of them were sent forward to Queen's Ferry to keep the passage, and on the evening of the 3d of September, the two Border leaders, with Huntly, Lord Claud Hamilton, and 120 troopers, rode quietly out of the gate. They took the Jedworth road to prevent suspicion. Dusk fell as they cleared the suburbs, and they swept round to the right, galloped rapidly through the darkness, and by three in the morning were within a mile of Stirling. Here they dismounted and left their horses, "lest the clattering of hoofs upon the paved road" should be heard by the guard. Stealing silently on, they crept, "by a secret passage, through the wall, and made their way undiscovered to the market-cross at the head of the town. It was now between four and five in the morning, and day was breaking. The King was in the castle beyond their reach, but the noblemen were lodged in the houses round the market-place. They had exact information of the place where each of them would be found, and Lennox, Argyle, Glencairn, Sutherland, Cassilis, and Eglinton were taken one by one out of their beds without a blow being struck. They were less successful with Morton, who, hearing the disturbance, had time to barricade his door, and with a party of his servants held out desperately till the house was set on fire. It was one of those high, narrow buildings so common in Scotch towns. As the flames spread upwards the poor women and children in the upper stories leapt from the windows and were killed upon the pavement. At length when the roof began to fall in, Morton, singed and scorched, grimed with smoke, and half dressed, came out and surrendered to his kinsman Buccleuch.

So far the success had been brilliant. The Regent and the leading noblemen were prisoners, and they had now only to make off as they had come, before the soldiers in the castle were roused. The fighting had blood. Lord Claud Hamilton owed Morton for Drury's invasion, and attempted to stab him; and Buccleuch, to save his life, called off some of his men, and putting Morton in the midst of them, made his way down the street to the gate. The party, which was small already, was thus divided, and when Huntly would have followed with the rest, there was a difficulty in collecting them. Border thieves, if useful in some aspects of them, had their disadvantages. A town seemingly at their mercy was too much for their habits to resist. The stables were filled with the finest horses in Scotland. The lives of the freebooters of Hawick and Jedburgh depended often on the fleetness of their steeds, and such a chance as the present might never return. Thus having, as they supposed, secured their prisoners, they dispersed in search of plunder. Morton's resistance had already cost too much time and created too much disturbance. The recall bugle was sounded impatiently, but the men were too busy to attend to it; and by this time the town was awake, the guard had turned out in the castle, and parties of armed men came streaming into the market-place from every wynd and alley. Further delay was impossible. Those who were left to guard the prisoners made after Buccleuch to the gate. The prisoners themselves, most of them seeing their friends at hand, shook themselves easily free; and Buccleuch, who was taking care of Morton's life, was obliged in turn to surrender. Lennox was less fortunate. He had been tied on a horse's back, and a handful of men were scrambling off with him down one of the side streets. They were hotly pursued, and Claud Hamilton, remembering the Archbishop, and fearing that he would be rescued, ran after them, calling out, "Shoot him; shoot the Regent!" A trooper, named Cawdor, drew a pistol and fired, and Lennox fell mortally wounded, and was left upon the ground. Then all was confusion. The Borderers had done their peculiar portion of the business well. They got off with 300 horses, "besides a great butin of merchants' goods, but from twenty to thirty of the party were taken or killed, Scott of Buccleuch among them, and to the plunder had been sacrificed the whole serious fruit of an enterprise, which, in the opinion of the Castilians, "if it had been wisely followed out, had put an end to the troubles of Scotland without blood or difficulty."

Lennox survived only a few hours, and "then departed to God very peacefully," "exhorting all men to follow still the action for the maintenance of the King." Stepchild of fortune through a hard life, his father killed, his son murdered, he himself, a second Regent, now went down in blood, and was hardly paid by the poor honour of being father of the line of English kings.

Cawdor, who was taken, was broken on the wheel. He confessed, and a comrade confessed also, that their orders had been to kill Morton and Ruthven also.

On the spot, that there should be no trouble with Elizabeth, the Earl of Mar was elected as Lennox's successor. The fire of hate was fanned into fury, and Maitland's stroke of brilliant strategy served only to draw a sharper line of separation between the Castilians and the rest of their countrymen.

Had Alva come, the north and east were still held by Huntly, and Aberdeen would have been open to receive him; but on that same week of September, when Lennox was dying at Stirling, and Hawkins was writing from Plymouth of his officer's success at Madrid, a happy accident explained to Cecil the missing ciphers, and extinguished the remaining chances of the Ridolfi conspiracy.²⁶⁹

²⁶⁹For the attempt at Stirling see Advertisements from Scotland, September 6: MSS. Scotland. Another account: Ibid. Maitland and Grange to Sir William Drury, September 6: Ibid. Drury to Cecil, September 10 and September 13: Ibid. Confession of Cawdor and Bell: Ibid. Two letters, ciphers deciphered, from Maitland to Mary Stuart, September —8 MSS. Queen of Scots.

CHAPTER XXII

As the summer of 1571 passed away, each week had brought fresh information on the intended invasion of England. The confessions which had been forced out of Baily in the Marshalsea and the Tower had revealed the general fact that a treasonable correspondence was going forward between the Netherlands, the Bishop of Ross, and other parties whose names were concealed behind a cipher. Sir John Hawkins had penetrated into the confidence of Philip himself, and had linked the conspiracy with the person of the Queen of Scots; and details of Ridolfi's commission, with the formidable but still vague intimation that he had declared himself the representative of three-quarters of the English nobility, had been collected by the Florentine Ambassador at Antwerp, and communicated to Elizabeth.²⁷⁰

The Government was thus warned to prepare; yet it was not easy to determine on the measures which it would be wise to adopt. The Queen could not order a general arrest of the aristocracy; and disaffection in a greater or less degree existed over the whole country. The upper classes were deeply opposed to the revolutionary Protestantism which Cecil and his friends were supposed to desire to introduce among them, and were agitated with a fear, which amounted to a disease, of a disputed succession after Elizabeth's death. She could not throw herself on the patriotism of the nation, as her father did when Pole was preaching a crusade. In the absence of any distinct act which could be openly charged against Mary Stuart, it was unsafe to take her out of the hands of Lord Shrewsbury. Whatever doubts might be entertained of Shrewsbury's fidelity, Elizabeth thought it necessary to her position to be still able to tell Europe that the Queen of Scots was residing with a nobleman notoriously favourable to her.

²⁷⁰In Flanders, by the Ambassador of a foreign Prince, the whole plot of this treason was discovered, and by a servant of his brought to her Majesty's intelligence." Speech of the Solicitor-General (Sir Thomas Fynes Clinton). DuU of Nmf°IL The Spanish account identifies the Ambassador and intimates that the communication was brought to England circuitously through the Duke of Florence. "Un Embajador que estaba en Anvers descubrid la misma platica y negociacion de Ridolfo, y todas sus instrucciones y advertencias, que dió al Duque de Florencia su señor, el qual lo escribió muy a la larga a la Reyna de Inglaterra." - Avisos de Londres & Don Guerau de Espes: MS Si. mancas.

Nor could Cecil, with his utmost efforts, succeed in tracing the conspiracy distinctly to any English subject. As successive fragments of information came to his hands, he sent again and again for the Bishop of Ross, to cross-question and threaten him; but, although the whole affair from the beginning had been the Bishop's contrivance, he bore the examination without flinching. He pleaded his privilege as ambassador to keep secret passed between himself and his mistress. He that he had commissioned Ridolfi to sue for help to her party in Scotland. "If there was any further matter in hand," he said, "no doubt it proceeded from the Pope himself, who was well known to desire ardently the recovery of England to the Church, and would use all means possible to that effect." ²⁷¹ The suspicions of Cecil were not removed; he knew too much to be so easily deceived. The Bishop was not set at liberty, and was sent down to the Fens in charge of the Bishop of Ely; but still nothing had been discovered on which resolute action was possible. Country gentlemen from all parts of England visited the Duke of Norfolk at Howard House, and went to and fro without interruption. The Duke himself was so slightly guarded, that "at any time he could leap on horseback at his back door and ride away, and send word to the Queen that he was gone." His influence was supposed to be so great "that the Queen's power without Alva's assistance he would soon be able to dictate his pleasure to her.

Thus the Spanish Ambassador remained sanguine that all would still go well. The war with the Turks in the Mediterranean had interfered with the departure of the Duke of Medina, but the delay, if tantalizing, would not be necessarily fatal. The refugees at Louvain expected that with the coming spring at latest they would be at home again, purging their country of the stains of heresy; and the traitors in the Queen's household kept them constantly informed of every movement in the English Court.³

The young Duke of Guise and the Cardinal of Lorraine had been at Brussels with Alva, and it was understood that if the French Government took the side of England the Guise faction would rise. Lord Derby was said to have Catholic service in his household without disguise, and to be casting cannon in the Isle of Man. Lancashire, Cheshire, Yorkshire, Norfolk, Suffolk, Hampshire, Surrey, and Sussex, were believed to be waiting only for Norfolk's instructions to

²⁷¹The Bishop of Ross before the Council at Hampton Court, August 8; MSS. Queen of Scots.

rise at a moment's notice: and the Queen was thought to have lost her only chance of saving herself by trifling with France, and by neglecting at the same time to form a league with Count Louis and the German Princes.²⁷²²⁷³²⁷⁴

So matters stood when an insignificant accident threw the Duke of Norfolk into Cecil's power. A stream of money was being continually poured into Scotland to support the Marian faction there. From Rome, Madrid, and the Low Countries, large sums had been repeatedly sent over; and France, as long as it was uncertain of Elizabeth, could not afford to be behind the rest. At the end of August, in reply to an urgent demand from the Queen of Scots, a letter of credit for 2000 crowns was forwarded for her use through La Mothe, and the Ambassador handed it over to the Duke to be sent on to Lord Herries. Six pounds were sealed up in a bag, with instructions in cipher that the money was to be delivered to one of the Lowthers, by whom it would be conveyed across the Border; and the Duke's two secretaries — Higford, of whom nothing further is known, and Barker, an old favourite of Anne Boleyn — were directed to send the bag and its contents to the Duke's P agent in Shropshire, a man named Banister. A Shrewsbury merchant, who had been in London making purchases, was returning home. Higford desired this person to take charge of it, telling him that it was fifty pounds' worth of silver, which the Duke was forwarding to his steward. The merchant, who suspected nothing, had almost reached Shrewsbury when the weight of the bag struck him as unusual. He opened it, found gold and a ciphered letter, and immediately returned to make known his discovery to Cecil.²⁷⁵ It was just at the moment when Fitzwilliam had returned the last time from 'Spain. Cecil, more than ever vigilant, and especially watchful of Norfolk, sent at once for Higford and required him to decipher the paper. Higford hesitated, and said that he could

²⁷²Avisos de Inglaterra, September 1: MS. Simancas

²⁷³MS. Ibid.

²⁷⁴"The rebels all expect to be in England next spring with the Duke of Alva, and then they will spoil the new ministers heretics of all they have, and hang them and not leave one of them alive. They all came of Luther; and the devil came to Luther by night to tell him what he should say. They say the Queen of England is no righteous Queen and ought to be pal away. If the weather is fair they have news from the Court of all that passes there every two days." — Report of Conversation at the Earl of Westmoreland's table, by Henry Simson: Border MSS., October 8.

²⁷⁵Relacion de la prision del Secretario del Duque de Norfolk, September 3: MS. Simancas. Examination of Higford and Barker: Murdin.

not do it without the key; afterwards, being required to produce the key and being threatened with the rack, he said that it would be found under the mat at the door of his master's bedroom. Sir Henry Neville was despatched to look for it, and found there, not the key of which he was in search, but another letter in cipher also — the letter, unfortunately for the Duke, which the Queen of Scots had written to him preparatory to the mission of Ridolfi. The fresh mystery produced fresh suspicion. Higford, being again menaced with torture, read the first cipher from memory, and this established beyond doubt that Norfolk, who had sworn to Elizabeth "to deal no further in the Queen of Scots' causes," was corresponding with and assisting her friends in Scotland.²⁷⁶ Sir Thomas Smith and Doctor Wilson, the Master of the Court of Requests, waited upon the Duke, and told him that a bag which he had sent to Shrewsbury had miscarried, and asked him for an explanation of its contents. The Duke, not knowing that his cipher had been read, repeated the story that he was sending money to his steward on private affairs of his own. The lie was more alarming than the truth; and, as it was likely that he would attempt to fly, Sir Ralph Sadler was summoned out of his bed at midnight and sent with a company of the Queen's guard to take charge. The other secretary was arrested, and, being also of what Higford had done, contradicted his master. The Duke was examined: he was told that there was reason to believe the money to be intended for the Scots, and was pressed to be open about it. He reasserted his own explanation with so much positiveness that even the seasoned Sadler, with Higford's confession in his hands, listened with amazement and consternation.²⁷⁷

Cecil was now satisfied that he was in the track of important discoveries. The examinations, so far as they had gone, were laid before the Queen, and Elizabeth "being assured by Norfolk's manifest untruth that his offences were the greater and more dangerous," gave orders for his removal to the Tower, "there with to Lidington and

²⁷⁶"The words of the ticket deciphered": — "You shall receive sealed up in a bag by this bearer, Mr. Brown of Shrewsbury, 600 in gold, which must be presently sent to Lowther to be conveyed into Scotland to the Lord Herries, to be sent by him forth

²⁷⁷"The Duke aosomeiy and expressly denieth all with such constant asseveration and earnest protestations, as if it be true that Higford has confessed, which indeed hath such appearance of truth as for my part I believe it to be true as yet, then is the Duke a devil and no Christian man." — Sadler to Burghley, September 5: MS. Ibid. I Sadler to Burghley, September 5: MSS. Domestic.

Grange. This money is shifted for at this present only to relieve their friends, which otherwise for want of money are like enough to revolt; and therefore the more speed must be used herein, which I pray you do by all possible means." — Endorsed by Sir T. Smith, to Lord Burghley, September 2: MSS. Domestic. to be secluded strictly from intelligence with any persons, which she knew would be in many ways attempted." 1

Cowardice was not a common fault in an English nobleman; the first peer in the land, the head of the proud House of Howard, and the aspirant for the hand of England's expectant Queen, fell upon his knees when the warrant was brought to him and cried for mercy like a poltroon. Mounted "on a footcloth nag" between Sadler and Sir Thomas Smith, and attended only by their own servants, he was led through the streets to the Tower gates amidst a crowd of women and idle boys and girls, and he was locked into a room with a set of questions to read and think over and prepare for a third examination in the morning. His first step was to compromise himself still more fatally. He wrote a note to some one at Howard House desiring that all his ciphers might be collected and burnt. He gave it to an attendant at the Tower whom he believed that he had bribed. The attendant carried it to the Lieutenant, by whom it was passed on to Burghley.³

From this moment discovery succeeded discovery with breathless rapidity. The method of enquiry, however inconsonant with modern conceptions of justice, was adapted excellently for the outrooting of the truth. In quiet times the prisoner is more considered than the State. The commonwealth is in no danger though isolated crimes be undiscovered or unpunished, and the possible suffering of one innocent person is held to be a greater evil than the occasional escape of the guilty. But the change is less due to moral improvement than to the conditions of our present life; and if we shudder at the cruelty which wrenched confessions out of strained limbs and quivering muscles, it is no less true that Elizabeth's Government would have come to a swift end if her ministers had been emwith modern scruples. Banister was sent Shrewsbury and racked. Barker yielded to terror and told all that he knew. By his directions the key was found between two tiles on the roof of Howard House which unlocked the letter of the Queen of Scots. Each victim when he tried to equivocate was confronted with the acknowledgments of his companions, or left with papers of questions so worded as to exhibit most strongly

the hopelessness of further concealment. The Duke, who was abject from the first, redeemed his infamy in some slight degree by endeavouring to shield Mary Stuart. He poured out streams of unmeaning eloquence to Elizabeth and Burghley, forever asseverating his innocence, enlarging the circle of his admissions only when forced by the confessions of his secretaries, and then wildly charged with having sold his blood and with endeavouring to buy their own pardon at the expense of his life. The Catholic nobles lay still, paralysed by the sudden energy of the Court, doubting the effect on Alva of the Duke's imprisonment, and lacking courage to risk their lives by rising alone in his defence. The courtiers, the crew of traitors whom Elizabeth persisted in keeping about her person, dared not openly speak for him, but worked secretly to baffle the enquiry, gave him notice of the questions which would be asked him and advised him as to what he should answer.¹

1 On the 23d of September Sir Owen Hopton, the Lieutenant But no clue which they could give him sufficed in the labyrinth in which he was involved. He staggered from falsehood to falsehood as thread by thread his connexion with Ridolfi was unravelled out. First he swore that he had never spoken with or seen Ridolfi; then he said he had spoken with him once but only on personal business. Afterwards he allowed that Ridolfi had suggested treason to him, but he vowed that he had refused to listen, and he insisted positively that he had never heard from Ridolfi since the latter left England. Here, too, he was unable to escape from the merciless Cecil. Charles Baily, it will be remembered, confessed to two letters which he had brought over addressed with the ciphers 30 and 40, which the Bishop of Ross said that he had burnt, but which in fact had been forwarded to their destination. The figures hitherto had been undeciphered, but the rack now dragged out the truth. Cobham admitted the theft of Baily's packet and the trick by which Cecil had been partly duped. The secretaries gave up the names, and 30 was found to have been the Duke of Norfolk, and 40 his brother-in-law Lord Lumley. By the middle of October the Government had full possession of the entire secret. The remaining noblemen who had been prominently concerned in the conspiracy were traced out one after another. Lumley was sent to the Marshalsea, Southampton to the Tower, and Arundel placed under a guard at his own house. The part which the Queen of Scots had played was revealed in her own letters, of which Barker had betrayed the key. Orders went down to Sheffield that her servants should be

reduced, and that she herself should be committed to close imprisonment. Shrewsbury immediately obeyed. He informed her that her transactions with Ridolfi were discovered; and he added, as a message from Elizabeth, "that her intentions and practices against the Queen and the realm did deserve a sharper dealing, as time would shortly make clear to all the world." ¹²⁷⁸

Norfolk's "soft and dastardly spirit" never showed in sharper contrast with Mary Stuart's than at this moment of their common danger. The Queen of Scots replied, in her own most haughty style, "that she had come to England as a free Princess relying upon promises which had been repeatedly her, and instead of friendship and hospitality found a prison. It was true, therefore, that she had applied to the King of Spain to replace her on her own throne. Those who said that she had done more were false villains and lied in their throats. The Duke of Norfolk was the Queen of England's subject, and for him she had nothing to say. For herself, she was a free Princess, the Queen of England's equal, and was answerable neither to her nor to any other person." In Lord Shrewsbury's presence she called her secretary to her, and bade him go tell the King of France how he had seen her treated. She wrote to Cecil to say that she had loyally kept to the engagements into which she had entered with him and Sir Walter Mildmay, and was ill rewarded for her good faith. She wrote to La Mothe that her

²⁷⁸ Sadler, Smith, and Wilson to Burghley, September 7: Murdin Avisos de Londres, September- MS. Simancas. Tower, enclosed the following note to Burghley, which one of the servants had been detected in attempting to deliver into the Duke's hands: "We received yours though not at that length that was desired. Your friends at Court dare not deal. There are two ways to receive intelligence, both I hope trusty. You shall hear this day of something that stands you upon to be very circumspect how you do confess, for in confessing there may be much peril. Your case, for anything we can yet learn, groweth very hard. Therefore it standeth you in hand to comfort yourself as ye may; and God comfort you. We hear not whether you have well looked at the covering of your book [23]." — Sir Owen Hopton to Burghley: MSS. Hatfield. The last sentence with the number refers probably to a cipher which was found on the back of a bible in the Duke's room. The complaints of the treachery in the Royal household are constant. Three quarters of the courtiers, men and women, were in Mary Stuart's interests, and supplied her friends with information. One of Cecil's agents wrote three or four weeks later to him: — "The Papists in the realm find, 'oo much favour in the Court. As long as that continueth, practising will never have end. The double-faced gentlemen, who will be Protestants at Court, and in the country secret Papists, frigidam suffundunt." — Thomas Ashton to Burghley, October 23: MSS. Domestic. i Mary Stuart to La Mothe, September 8: Labanoff, V of. IJT Notes in Cecil's hand, October 22: MSS. Queen of Scots

life was in danger. If his master intended to move in her behalf, he must do it then or never. She took leave of her dismissed attendants as if she was never to see them more, and she asked for a priest to prepare her for the death which she professed to expect.²⁷⁹

Neither anger nor pathos moved Shrewsbury, who, whatever may have been his past hesitation, was now determined to be faithful to his mistress. Mary Stuart's correspondence was effectively crushed. A lad was detected in bringing dangerous letters to her concealed in a staff. She was at once confined to a single room, the bolts were taken off the doors, and she was watched day and night. Even the linen of herself and her ladies was passed to the wash through the hands of male inspectors, the women of the castle being all devoted to her, and the observance of common decorum being no longer safe or possible. Shrewsbury told Cecil that "those should buy her dearly who should get her from his hands; if five thousand men tried to rescue her he would give them such a banquet as they should repent that they had come to Sheffield."²⁸⁰ The Bishop of Ross was then called up again from the country. Cecil had waited till the case was complete against him. Elizabeth's tenderness to the sovereign rights of the Queen of Scots had permitted him to remain at the Court with the privileges of an ambassador. He had abused his liberty to be the arch contriver of a gigantic conspiracy, and the law officers of the Crown, when consulted by Cecil, gave as their opinions, first, that the representative of a prince or princess lawfully deposed possessed no privileges at all; and secondly, that an ambassador who could be proved to have moved a rebellion in the country to which he was accredited, had forfeited his protection and might be proceeded against as a private person.²⁸¹ Thus fortified, the Council ordered that the Bishop should be brought back to London. They told him briefly that his practices had been fully discovered, and that unless he answered truly to the questions which would be put to him, "he should be made to suffer to the example and terror of all others."

The Bishop was a brave man: on his way up out of Cambridgeshire he had received a message from La Mothe that the Duke had confessed to no particulars, and that he might stand out in a general de-

²⁷⁹Mary Stuart to La Mothe, September 8, September 18; To Cecil, September 9; To the Archbishop of Glasgow, September 18: Labanoff, Vol III.

²⁸⁰Shrewsbury to Cecil, October 24: MSS. Queen of Scots.

²⁸¹Opinions on the privileges of Ambassadors, October 11: Murdin.

nial. He assumed a high tone. He declared that he November, done nothing of which they had a right to complain. He was privileged, and if he had exceeded his commission he was only answerable to his mistress. Cecil replied sternly that his answer had been anticipated and provided for, and that his privileges were not to be respected. He was allowed two days to consider what he would do, and he was supplied with proofs that La Mothe had been mistaken, and that much, if not all, of the transactions with Ridok was really known. Had he been aware that Elizabeth had refused to allow him to be tortured, die might have remained obstinate;²⁸² but he saw before him the rack and perhaps the scaffold, and when the time allowed him had elapsed, he followed the example of the secretaries, and confessed to all which was important that he knew.

The secrets of the last four years were thus one by one cleared up. The Bishop, for the first time, explained fully to Cecil the private history of the conference at York; the original design for the. Norfolk marriage; the manoeuvres to suppress the letters and prevent an exposure which would stain his mistress's character. He admitted his own and the Duke's connexion with the rebellion of the North, and described the causes which had prevented it from spreading. He mentioned the plan which had been formed for breaking up the Parliament and seizing the Queen's person; and finally for bringing the Spaniards to Harwich. He did not conceal the names of the noblemen who had specially committed themselves with promises to join in the insurrection. Finally, he wrote to the Queen of Scots to tell her that all was over and advised her to do as he had done, and give up conspiracies. "He was very sorry," he said, "that they had ever meddled with such things. "The discovery had been made by God's

²⁸²The Spanish story says that the Bishop was tortured. "Al Obispo de Ross, says a correspondent of the Spanish Court, "ban dado tormento y forfadole a declarar todo lo que le pregun taron tocante al Duque de Norfolk. But to the regret of Doctor Wilson, one of the examiners, who believed that the rack might have been applied to good purpose, it never came to this extremity. "The Bishop of Ross," says Wilson, "when he found it useless to conceal the truth, confessed much, and would have confessed more both he and others, if they had been more straitly used, and by duress enforced to reveal the secrets of those horrible dealings. But such Is the mildness of our gracious sovereign, that she had rather hazard her own person than yield to such extreme dealings, although necessity never so much required the same." — T. Wilson to Cecil, July 31, 1573: Flanders MSS i The Bishop of Ross to the Queen of Scots, November 8; Doctor Wilson to Burghley, November 8: Hatfield MSS. Printed by Mur din.

providence, that for the future her Majesty might trust only in God and her good sister;" and while making a clean breast of it, he admitted to Doctor Wilson her share in the murder of Darnley.²⁸³ It was not the least of Mary Stuart's misfortunes, that being accepted by the Pope as a confessor for the Catholic faith, she was able to dwell exclusively on the meritorious aspect of her character, to forget that it had other and less favourable features, and to expect the memory of the general world to be as unretentive as her own. She was unhappy also in her exaggerated belief in the power of her own eloquence, in her expectation that her pathetic and passionate words would pass at all times for current coin, although her letters so frequently miscarried; and protestations of love and confidence could be contrasted too often by the persons to whom they were addressed, with expressions of contempt and hatred. An accident of this kind befell her in the midst of her present troubles. After chafing for a month, she sent off one of her usual rhetorical appeals to Elizabeth; and a few days later she wrote to La Mothe, declaring that Elizabeth was all falsehood and treachery, that she would rather perish than yield, and again entreating France to take her and Scotland under their protection.² The second letter fell into Burghley's hands. It told him nothing new, but it told him how vain was the hope that Mary Stuart could be other than herself.

Tn this humour she was to learn that the Bishop of Ross had given way, that he had admitted the true character of Ridolfi's mission, and that her protestations of integrity had been thrown away. There, in plain words, in the handwriting of her own agent, was the intimation that he had made a full confession, and the mask could be worn no longer. Shrewsbury placed the Bishop's letter in her hands. "The hand," she said, "was Esau's hand, but the voice was Jacob's; the Bishop had held the pen, but some one else had²⁸⁴ guided it." Then bursting into rage, she cried, "that the Bishop of Ross was a flayed and fearful priest, who had done as they would have him do;" for herself, "they should find her to be a Queen, and to have the heart of a Queen, with other words of her wonted discontented manner *"
1 France and Spain, she said, would come and deliver her, and the turn of her enemies should come.

²⁸³Mary Stuart to Elizabeth, October 29; To La Mothe, November 7 Labanoff.

²⁸⁴Shrewsbury to Cecil, November 23, 1571; Sadler to Cecil, January 9 1572: MSS. Queen of Scots.

Alas! France was but congratulating itself that the discovery of her danger might frighten Elizabeth into a renewed desire to marry one of its Princes; and Alva, on the news of Norfolk's arrest, had driven Ridolfi from the court, and had determined to leave to God the settlement of a matter in which the Pope assured him that God was profoundly interested. It was with the utmost unwillingness that either the Pope or Philip could part with a project on which their imagination had dwelt so passionately. Alva laid the fault on Ridolfi. Ridolfi complained at the Vatican, that the fault was Alva's in refusing to allow the letters which he had written from Brussels, on his return from Spain, to be delivered. The Pope still urged Philip, and Philip, still harping upon God, believed that it was not yet too late. Angels, he thought, would fight for the good cause, and he could not stand by while the Catholics were persecuted into apostasy; Hawkins, too, the great admiral, was on their side, and was himself an there was danger in making the venture, danger and dishonour also in remaining passive.²⁸⁵ But neither Pope, nor King, nor trust in Hawkins, could move the resolve of Alva, whose only anxiety was to shake himself free from the clamours and complaints of the refugees.²

²⁸⁵"The affair is upset," Alva wrote to Don Juan at Rome, "and for the present nothing can be done. The Queen has arrested all the noblemen who would have assisted us. For my own part, I looked for nothing better with such light people to deal with. You will explain to his Holiness how things stand, and you will let him see that my fear of what has actually taken place was the cause of the caution with which I proceeded. I o ran hastily into ill-concerted enterprises stains our reputation, turns our hands against ourselves, and injures rather than benefits the service of God. God, it is clear, can bring about His own purposes without man's assistance. I doubt not He will put His hand to the work when we least look for it, and will reward his Holiness for the zeal which he has shown in His cause by bringing about a happy end to these troubles in his Holiness's lifetime. "At present his Holiness and I bear the whole blame in England, and although the Queen is not acting as injustice she ought to do, yet she has made it impossible for us to attempt anything with a hope of success. I have gone to a great expense in preparing for the expedition. His Majesty bade me spare nothing, and all is lost. I fear we have been betrayed by M. de Foix, a few days before he left England, told a friend that the Duke of Norfolk was about to be arrested. Had the equal to the work, he might now have been in the place of those who have thrown him into the Tower and will cut off his head. You shall hear all that happens, and you will beg his Holiness, as far as possible, to keep our secret and deny everything. A confession on our part will be the final destruction of those poor Catholics." — Alva to Don Juan de Cuniga: MS. Simancas. Cf. Don Juan to Philip, November 28: MS. Ibid. The MSS. of these and all the other Simancas documents of which I have made use are deposited by the consent of the Trustees in the British Museum.

From Spain there was no longer hope, and the Queen of Scots expectations from France were not likely to be improved, as the Spanish character of the conspiracy in which she had been October' involved became more folly revealed. The superstitions of Anjou had been worked upon by the Cardinal of Lorraine, but if Anjou continued obstinate, there was still Alençon; and the discovery of the precipice on which she was standing appeared to reawaken Elizabeth to the importance of the arguments by which Cecil was pressing the marriage upon her with one or other of the brothers. M. de Foix had come to England in August, to talk her out of her objections, and had returned to Paris with imperfect success; but the Council, one after another, impressed upon her their conviction that she ought to overcome her reluctance. Sir Walter Mildmay spoke of it as "the weightiest cause she had ever had in hand;" Sussex trusted that "she would now see that she must look to herself, and make France sure by a husband;" and she appeared so far moved as to allow Cecil to inform Walsingham that the religious difficulty was not insuperable. Walsingham consulted De Foix. After mature consideration they both agreed that it would be unwise to "wade further" with Anjou. Elizabeth "might find herself forsaken," "an opinion which would prove dangerous." It would be better to assume that negotiation to have come to an amicable end, and "to hide the imperfections of both parties, not knowing what would follow."²⁸⁶ Mary Stuart's intrigues with Spain, however, had created a violent exasperation at the French Court, had given a fresh impulse to the war party, and made the King and the Queen Mother more anxious than ever for Elizabeth's alliance. To all entreaties to send help to Mary Stuart in Scotland, the King now returned only cold denials. The Admiral was sent for to Paris: Catherine de Medici took him in her arms and kissed him, and Charles received him as if among his subjects there was not one whom he so much honoured.²⁸⁷ The Queen Mother, after being assured by Walsingham that no wanton or needless objections would be raised, resolved formally to propose Alençon in the place of his brother; and she desired La Mothe to tell Elizabeth that, although religious differences had interfered with the marriage which she had before hoped to arrange, she had another son who would be troubled with no scru-

²⁸⁶Walsingham to Cecil, September 26 and October 8: MSS. Franc*.

²⁸⁷La Mothe F au Roy, September 30: Depeches, Vol. IV. La Roy Au M. de la Mothe Fenelon, October 20: Ibid., Vol. VII.

ples. Anjou was seventeen years younger than the Queen of England. Alenon was two years younger than his brother; and De Foix feared that the substitution "would but breed disdain;" but Elizabeth was far too adroit to make so poor a use of her advantage. Her wish was to escape marriage but secure a league; and the effect produced by the new offer was to make her pretend to an extreme eagerness for the marriage with Anjou, which she knew, or believed, that Anjou's obstinacy would make impossible. Leicester echoed the Queen, and made a parade of disinterestedness: he declared that he as well as his mistress were now aware of the necessity for the marriage, and that all concessions should be made to secure it.²⁸⁸ The manoeuvre answered the purpose. The French Court perhaps desired to persuade itself of her sincerity; for the present the two Gov- NoTember' einments appeared every day to be drawing closer together; and the prospect of interference from France in behalf of Mary Stuart was more remote than ever. A regret may be permitted only that Elizabeth had so slight a sense of the obligations of her position, and so small a capacity for self-sacrifice. The nation had reason to congratulate itself that the Anjou negotiations failed: but Alençon was an innocent boy, and the ridicule which attaches to unequal marriages in private life has no place in marriages of state. Although it must remain uncertain whether the infernal bigotry which burst loose in the following year in Paris could have been held under effective restraint, yet those who saw that crisis coming upon them believed at the time that by the marriage of the Queen of England with one of these Princes, and by that alone, fetters would have been forged of sufficient strength to bind it. The attention of the people would have reverted to the old current; national enthusiasm would have taken the place of religious bigotry; and France and England, linked together by a stronger bond than words, would have freed the Netherlands from Spain. The Catholic States of Germany could have been swept into the stream of the Ref-

²⁸⁸"I find now a full determination in her Majesty to like of marriage, and to my judgment she is resolved not to refuse any reasonable conditions that shall be offered by that King for Monsieur. So she earnestly and assuredly affirms to me, and would have you signify the same, with all that has passed about it hitherto, by some discreet messenger to the Admiral, begging him to forward the matter. She has opened her mind partly also to the Count Montgomery, who has this day taken his leave and is departed to deal with the Admiral." — Leicester to Walsingham, December 6: Digges.

ormation, and Europe might have escaped the thirty years' war, and the Revolution of '89.

If it be supposed that public interest, however great, could not have required the Queen to devote her person and happiness in a union which she disliked, there is no excuse for the false and foolish trifling which exhausted the patience and irritated the pride of Royal family of France, and weakened the already too feeble barriers which were keeping back the tide of Catholic fury.

The reader will always turn with pleasure from Elizabeth's matrimonial insincerities. At home she submitted more entirely to Cecil's guidance, and thus bore herself with a dignity and a wisdom more becoming in an English sovereign.

It appeared beyond doubt that the body of the Peers had in various degrees been parties to the Ridolfi conspiracy. Many causes had been at work among them — some were Catholic, some semi-Catholic, whose differences with Rome were merely political; and deeper with most of them than any religious feeling was the dread of a disputed succession. They had examined, and had not dared to challenge, the proofs which connected Mary Stuart with the Kirk-a-Field tragedy; but excuses could not be wanting where there was a wish to find them. The Queen of Scots was young, she had been led away; others were as guilty as she was; and, guilt or no guilt, the sacred blood of the Plantagenets was in her veins, and she was next of kin to the Crown. As Elizabeth refused to marry and refused to name a successor, they had passed from discontent to treason. They had meditated an open rebellion, which all elements of dissatisfaction — civil, social, political, and religious — had united to stimulate, and they had invited a foreign Power to assist them in overthrowing the Queen's Government and the liberties of their country at a single blow. A scheme of the same kind had been formed in the past generation by the Marquis of Exeter, the Nevilles, Lady Salisbury, and her traitor sons. Elizabeth's father, supported by the hearty confidence of the people, had called the whole nation under arms, and had struck the heads of the chief conspirators from their shoulders before their projects were matured. The position of the present Government was far more precarious. The progress of the revolution had fostered a crop of discontents which then were in their germ. The Catholics throughout all Europe had recovered from the paralysis into which they had been thrown by the first burst

of the Reformation. A general spirit of disloyalty had penetrated every section of society: the leaders were arrested, but a sullen dangerous humour was abroad, in the North especially, which at any moment might break again into flame;²⁸⁹ and, since Pembroke's death, Elizabeth had no one in her Council who could be relied on to command in the field with any general sympathy from the country. Her ministers were chiefly civilians who had risen from the ranks with the new order of things. Leicester was detested and despised, and was half a traitor to boot; Bedford was in bad health; Bacon was a mere lawyer; Cecil was infinitely able and infinitely popular with the Protestants; but he was not a soldier, and by the Catholics he was as much hated as Cromwell had been. If it came to blows it might well be doubted whether men like these could hold their ground against the retainers of the hereditary English chiefs, around whose persons was concentrated the traditional loyalty of centuries. Such men as Norfolk and Arundel were as sovereigns in their own counties. To the Howards and Fitzalans the Tudors themselves were but the mushroom growth of yesterday; and to attempt to crush treason by force when the leading nobles were at the head of the conspiracy, was only one degree less dangerous than to pass it over unpunished.

Norfolk was the chief offender. Norfolk was the intending husband of the Queen of Scots. Norfolk had friven the commission to Ridolfi, and his crime was surrounded with every circumstance of ignominy and dishonour. He, an English nobleman, had pledged his word to his sovereign, deliberately meaning to break it. Calling himself a Catholic to the Pope, he had sued for a dispensation to conceal his creed the better to betray the Protestants who trusted him. For the fanatic who conceives that he has a duty to God which supersedes his earthly allegiance, some kind of respect is not impossible — but no plea of religion can take the stain out of treachery. Nor among Norfolk's many-sided protestations was it easy to distinguish truth from falsehood. He was a Catholic to the Pope and the King of Spain; while he swore to Elizabeth and Buro;hlev that he would be sooner torn with horses than forsake the faith in which he had been brought up.

²⁸⁹“The people have been put in comfort of a change, and stand but looking for one that would say Hisse. These counties apt to evil, as where the practising Papists have most their conventicles.” Thomas Ashton of Shrewsbury to Burghley, October 23: MSS. Domestic.

Which were his real convictions, or whether he possessed any real convictions, remains after all uncertain. With Arundel, Southampton, Lumley, and the Stanleys, both prudence and a natural disinclination to severity induced Elizabeth to pause. Norfolk she determined to bring to trial. A commission was appointed to revise the evidence against him and draw up his indictment. The exposure of his falsehood would, it might be hoped, compel even the unwilling Peei's for very shame to admit his guilt. Meantime there was another ambassador whose complicity came out with no less clearness than that of the Bishop of Ross. Doctor Man had been dismissed with scanty courtesy from Madrid; Sir Henry Cobham had been received by Philip with studied insolence. There was an opportunity for repaying the Spanish Court in kind, and ridding England of a minister whose residence had been one continued plot against the throne. Don Guerau was summoned before the Council. He was told that his practices had been discovered: in the three years which he had been in England he had never ceased to trouble the quiet of the realm; the Queen would no longer endure his presence, and he must be gone without delay.²⁹⁰ Don Guerau, savage with disappointment, turned on Burghley, and said he was the cause of all the unkindness between his master and the Queen. But Burghley was now supreme again. The order was coldly repeated, and he was allowed four days to prepare for departure.

There were two sides to the question. The Ambassador, looking back over the history of the same three years, might well believe that the balance of right was in his own and in his master's favour. He knew, better than Elizabeth herself, the reluctance with which the King of Spain had accepted the quarrel which had been forced upon him, and the earnestness with which he had resisted the importunities of the Court of Rome and his own subjects. His coasts had been plundered, his commerce destroyed, his colonies outraged by English desperadoes, in whose adventures the Queen herself was an interested shareholder. The seizure of his treasure at Plymouth and Southampton was an act of piracy on a gigantic scale, committed by the Government itself. The English harbours had been the home of the Dutch privateer fleet; ships built in England, armed in England, and manned by Englishmen, had held the Channel under the flag of the Prince of Orange; and if Alva attempted to interfere with

²⁹⁰Words to be said to the Spanish Ambassador, December 14: MSS Spain.

them they were sheltered by English batteries. Their plunder was sold openly 'in the markets, the royal purveyors being occasional purchasers; and Dover had been made a second Algiers, where Spanish gentlemen had been set up in chains for public auction. The King of Spain might have held himself free in equity from all obligations to a Government which set at naught the usages of civilised nations; and Don Guerau could have seen no sin in endeavouring to bring into power the old nobility, the hereditary friends of the House of Burgundy. The legitimate remedy however was open war, and Philip and his councillors had stained their honour and their cause by preferring the assassin's dagger. To the same ill resource the Ambassador, now at his last extremity, applied himself. The mine which had been dug and carefully had been discovered and harmlessly the excommunicated Queen, the insolent Burghley, the heretics, and the buccaneers, had once more triumphed; Norfolk was to be tried for his life; the experienced Spaniard could not hope that the Queen of Scots would be spared; he was himself ordered away in disgrace, yet one bold stroke might repair everything. Cecil — the false, lowborn, but most dexterous Cecil; the arrogant islander who believed that England united might defy the power of the whole world 1 — Cecil was the soul of Elizabeth's government: were Cecil gone all might yet be saved.²⁹¹

In times of civil commotion there are never wanting persons who, under the influence of vanity, are ready for the most desperate enterprises. There were present in London, and known to the Spanish Ambassador, two young gentlemen from Norwich named Berney and Mather, who, after drifting about Europe in various services, had come to England to take part in the rebellion. Kenelm Berney had gone abroad to escape justice for some previous murder. Mather had been secretary successively to Sir Henry Norris and to Sir N. Throgmorton in France. His father was a merchant in good circumstances: he had himself glittered about courts, pushing himself by all ways into notoriety, and with such a hunger for what he called fame that, as one of his brother secretaries said of him, "he could content himself with nothing less than shaking a kingdom."²⁹² On a smaller scale he resembled Thomas Stukely, and like Stukely had thought of Ire-

²⁹¹"Hombre de baja gente, astuto, falso, mentiroso, y lleno de todo engano, grande herege, y tan vafio Ingles que cree todos los Principes Chris-

²⁹²— to Sir William Fitzwilliam, March 5, 1572: MSS. Ireland.

land as a field for his ambition, when the Ridolfi conspiracy came in his way and gave him the opportunity for which he was looking.

Being Berney's fellow-townsmen, and knowing him to be ready with his hand, he sent for him from France, and the two friends were looking about them for some means of employing their talents. Like the rest of the Catholics, they bewailed the misfortune which had placed so poor a creature as the Duke of Norfolk at their head.²⁹³ As time passed on and the tianos no ser parte por hacer dano al Senor de aquella Isla; este trae la massa de los negocios, en los quales con gran diligencia y astucia y con no tener fe ny palabra, cree sobrepasar a todos los otros ministros de Principes 7 en Parte ha salido hasta ahora con su intento." — Relation dada por Don Guerau de Espes: MS. Simancas. chances of insurrection grew fainter, Mather became restless and impatient, and accident or intention brought him in contact with the Italian Secretary of the Spanish Ambassador named Borghesi, who had perhaps been ordered to look out for a fit person for Don Guerau's purpose. Alva had pointed to Elizabeth as the mark to be aimed at; but Elizabeth was difficult to get at, and Don Guerau had come to think the Queen was but the cipher to which Burghley was the governing number. One night in the autumn Borghesi brought in Mather to his master, and the Ambassador receiving him as a Catholic gentleman who would sympathise in the general disappointment, began to talk of Scotland, and the noblemen in the Tower, and Burghley and Burghley's policy. Burghley, he said, "held the helm and did all in all;" and then with a glance at his guest exclaimed, Men must all die, and a noble death is better than a shameful life. Oh for some man of spirit who would kill that wretch and cut him in pieces!"²⁹⁴

The fire was thus lighted, and Borghesi as Mather left the house threw fresh fuel upon it. "It was a fine thing to die sword in hand, he said; and if Burghley was taken away, all would go well. Mather asked him if he thought it could be done: Borghesi said that a resolute man could do it with ease. "Then," cried Mather, "I will do

²⁹³Mather, sitting by the fire side, said the Duke was a beast and a coward that when he was in his country he did not take arms. Then he

²⁹⁴The Ambassador said, "Perche un huomo ha da morire, h meglio prender una honorata morte che vivere una vituperiosa vita. Bisogna che qualche huomo di spirito ammazza e taglia in pezzi," adjoining thereto an injurious word, "poltrono." — Confession of Mather, January 8: MSS Hatfield.

some service to the common cause, or it shall cost me my life."²⁹⁵ He went might have married the Scotch Queen and have altered the State. Confession of Kenelm Berney: Murdin. home to his companion swelling with hope and pride, and together they sat into the night talking of "how good it was to have a name and die famous." They reminded one another of Poltrot and Bothwellhaugh, and of the mean men who governed England, while sparks of metal like themselves were passed by without employment. Regicide in some aspects presented the most temptation. "To kill a sovereign would make their fame immortal." "The Queen's Beefs" were poor creatures, whom a handful of determined men could easily dispatch, and the rest of the household were "perfumed minions such as the vile woman kept about her to feed her fantasy."²⁹⁶ But Don Guerau kept them to the easier and in his eyes no less important business of killing Cecil; and to this they addressed themselves. The four days' grace allowed Don Guerau were for some cause extended, and gave him the chance of staying in England till the deed was done. Three times in the first week in January the assassins were lurking in the garden of Cecil House where Burghley was accustomed to walk. They observed his study window and the position of his head when he sat at work as a mark for a blunderbus. Horses were kept saddled on both sides of the Thames, and a boat lay ever ready at the stairs at Charing Cross. Yet day passed after day and Cecil still lived, and it seemed

²⁹⁵ Confession of Mather, January 8: MS. Ibid.

²⁹⁶ Confession of Mather, January 8: MSS. Eatjield. i Mather claimed to have been the writer after his arrest, perhaps to save his life, as he could feel satisfied that no one would come forward to dispute his pretensions. The letter itself is at Hatfield, written in a bold remarkable hand, and endorsed by Cecil, "A letter brought by the post in London." It was addressed, "To my Lord of Bourlay at the Court in haste." The contents were as follows: — "My Lord, — Of late I have upon discontent entered into conspiracy with some others to slay your Lordship, and the time appointed. A man withaperfitt hand attended you three several times in your garden to have slain your Lordship. The which not falling out and continuing in the former mischief, the height of your study window is taken towards the garden, minding if they miss these means to slay you with a shot upon the terrace, or else in coming late from the Court with a pistolet. And being touched with some remorse in so bloody a deed, in discharge of my conscience before God, I warn your Lordship of their evil and desperate meaning, and would further declare their whole meaning if I should not be noted of infidelity, being so near and dear to me as they are. For the thanks I deserve I shall, I doubt not, best receive them hereafter at your hands at more convenient time when these storms are past; but lastly, I require your Lordship, in God's name, to have care of your safety."

as if Chapin Vitelli had rightly judged the English character. Some disease of conscience or want of boldness in a bad cause made Englishmen the worst conspirators in the world. The preparations for flight required confederates, and one of them, perhaps Mather himself in an interval of remorse, wrote to Cecil to put him on his guard.¹ The warning brought no information to the intended victim. He had already discovered what it told him, for his own traitorous agent of the Marshalsea, Herle, had found his way among the confederates. They had a week in which they might have done their work, but they let it pass, and it was then too late. Cecil calmly watched them till he had the clue in his hands to all their proceedings; and then a company of the City Guard dropped upon the nest, and Mather, Berney, and their friends were transferred to the Tower dungeons. The Spanish Ambassador had been forced to leave London before their capture, but he had lingered at Canterbury under pretence of waiting for letters from the Duke of Alva; and on him too the ever-present eye was fixed, penetrating, when least he dreamed of it, into his inmost secrets. Sir John Hawkins, who was still in the eyes of Philip and his ministers the faithful servant of Holy Church and the Queen of Scots, was sent with Sir Francis Knollys to take charge of him as far as Calais. He persuaded the Ambassador that he had duped Cecil into giving him the appointment that he might be of use to his Catholic friends, and the harassed Don Guerau opened his heart to Hawkins in return.²⁹⁷ Thus all parties to the intended murder, the

²⁹⁷ The following letter, written by Don Guerau from Canterbury to Philip how he
 TM «» "•*»' "The Queen and Council, or rather the Lord Burghley who alone rules u,
 sent a secretary to tell me I must leave London on Christmas Eve, r "dIDf rePeatedly
 with sufficient discourtesy to our treatment of Doctor Man. I said what I thought
 necessary, but I was obliged to comply. I waited nme or ten days at Gravesend,
 where I was joined by Hawkins and cS W'? Te With orders from the Queen to see me
 across to V ais. Hawluns, who is sincerely anxious to serve your Majesty, is of great
 use to me -far different from Knollys, who is an accursed heretic and communicates
 daily by post with the Lord Burghley. The Queen means to try the Duke of Norfolk
 at once, and that is the cause of my being sent with so much haste out of the country.
 I have said that without permission from your Majesty or the Duke of Alva I will not
 go unless I am forced. So that I am still here, the posts flying to and fro, and Burghley
 f l am eXCUSEs for remaining. This gentleman is so frightened that nothing can
 reassure him. He has received threatening letters, and he tells the Queen that if I
 am in England during the trial, the country will not be safe. The Queen means to
 sell all property of ours which is m her hands. The owners may have it at the price
 will be valued. If your Majesty or the Duke of Medina will send commissioners
 with unlimited powers something may be done; but aH events will go forward. It

instigator and the instruments, were alike in Cecil's hands; and one morning, while the Ambassador was still putting off his departure in the hope of hearing great news from Mather, he was confounded by an intimation from Sir Francis Knollys that a conspiracy had been discovered, and that his secretary's presence was required in London. He was "greatly appalled, especially when he was told further that Mather had been arrested and had made a full confession. He tried to shield Borghesi, but Knollys gave him to understand that the man was wanted, not to be punished, but only to answer certain questions. Don Guerau smiled grimly,²⁹⁸ complained of his grievous handling, and submitted. In a few days his secretary was restored uninjured, and he made his way to Brussels to join the English refugees in once more entreating the Spanish leader to move before it was too late.

The Duke of Alva was most unwilling to allow himself to be addressed upon the subject, fearing perhaps that it would injure the few chances of life which remained to the unfortunate Norfolk. The refugees pressed to be heard, however; and at length Westmoreland, Egremont, Radcliff, Morley, and a throng of priests were admitted to an audience, with the Countess of Northumberland at their head, and presented their petition.²⁹⁹

Meantime, we must look to those of our party who are still at liberty and learn their intentions.

is all done in contempt of your Majesty; and if this league with France come to anything, they will deal with us. Messengers pass every hour between Paris and London mg has without doubt, offered to make an alliance, offensive and defensive, with England. I he details only remain to be settled. Walsingham writes everything to Hawkins, and Hawkins tells it to me and shews me the Council's letters. The thing is at present incomplete, and it may be prevented yet if his Holiness will exert himself. If not, means must be found to prevent the English from getting good by it. It is said here that the King of France gave money secretly to Lord Fleming to be used in the defence of Edinburgh, not wishing to offend his old friends among the Scots till he has made sure of this Queen. "Situated as I am and with so many eyes upon me, I shall not be able to communicate at present with the prisoners in the Tower, but I will take care that they shall soon know that they have a friend in your Majesty

²⁹⁸He smiled somewhat, although it seemed to be risus Sardonicus mixed with some fear." — Sir F. Knollys to Burghley, January 16: MSS. Spain.

²⁹⁹Sanders, in a letter to the Earl of Northumberland, says that "the Countess was forced to press upon the Duke's Grace even against his will- MSS. Flanders., "1 "d he h*0* e™ of three thousand men well which shall shortly be conveyed to Scotland, with certain great artiUeiy and a promise of so much money as shall be sufficient to during three months." - John Lee to Burghley, February 4: MSS FIZ

"As soon as I am out of this country I will write at length to your Majesty of all which I think may be done, and by what means, in case of rupture with the French, we may transfer the war hither.

It was the old story of persecution and tyranny. Alva's opinion of the English Catholics, never favourable at best, was at its lowest ebb. Elizabeth still lived — Burghley still lived — and none of those confident boasters had had the courage to remove them out of his path. Had they been unanimous, under the existing circumstances he would have been deaf to their remonstrances. His unwillingness at that moment was encouraged by Leonard Dacres and his friends, whose hate for Norfolk reconciled them to the probability of his execution, and who were persuading Alva to lend them troops and money for an expedition to Scotland. The Duke replied with cold courtesy that he was a servant, and could not act without his master's orders; and the unfortunates, unable to part with their cherished hopes, — unable to understand how a conquest which every one but lately had imagined to be so easy should have suddenly become impossible, — carried their supplications to Philip.

" They had insisted from the beginning," they said, " that there would be no quiet in Flanders till England was again Catholic, and events had proved that they were right. The country was distracted. The Queen was despised as a ' harlot,' and hated for the obstinacy with which, in refusing to allow the succession to be settled, she exposed her subjects to the chances of civil war at her death. Should the Queen of England be deposed and killed, she had no heirs to avenge her quarrel, while the Queen of Scots was pitied, and loved, and had a son to inherit her rights. The merchants were furious at the ruin of their commerce; Ireland was disaffected; and in England there was not a fortified port or an experienced soldier. They had but to land with the King of Spain's authority for the whole people to flock to them. The Queen's own troops would desert her: one victory, and all was their own. An army of priests would go back with them to feed their starving flocks; and as Elizabeth had made Flanders serve her turn, so Philip might make use of England. There was needed but a little money and a little courage, and the King might provide Don John of Austria with a kingdom, and Spain with better neighbours. He might crush the Flanders rebels, reconcile half Europe to

the Church, save his own credit, and restore God to His honour." ³⁰⁰ So the poor Catholics pleaded, to little purpose. Philip was willing to help them, but allowed himself to be guided by Alva; and Alva had not the slightest confidence in men who talked as if England was at their devotion, yet were unable to set foot upon its soil unless escorted by an army of strangers. It was universally believed that the Queen of Scots would now be executed; and Spain would not move to save her. The appeals of the Archbishop of Glasgow to Charles and Catherine were equally in vain. Mary Stuart's head would be a cheap price for the English alliance, ³⁰¹ and Walsingham prayed that Elizabeth would see her opportunity and relieve herself and her country of that danger forever. ³⁰² Once again Mary Stuart's life depended on the resolution of Elizabeth; and if the opinion of Don Guerau was

³⁰⁰ Reasons to persuade the King of Spain to invade England, February, 1572: MSS. Queen of Scots. Don Guerau supported the petition with a memoir which he had ineffectually submitted to the Duke of Alva. Flanders," said Don Guerau, "can never be at peace till the Government of England is changed. Cecil would have had open war with us had not others on the Council prevented him. He seized the treasure to drive our army into mutiny for want of their pay — "para incomodar quanto fuese posible el. pagamento del ejercito a Flandes." He encourages the pirates in plundering our commerce. He has turned the restitution treaty to smoke, and he is now at work at an alliance with France. Cecil rules everything. The Council, part of them, have good intentions, but they are without power weak and timid. She dare not rule her Council. The Counand Cecil rules the Council. They insult our ministers; they practise with our rebels; and his Majesty has so long borne with their injuries that they believe now that he dare not or cannot resist them. His Majesty is bound to rouse himself. His interest requires that the Government of England be in friendly, and if possible, in Catholic hands; for the Catholics will hold France in check and cease to trouble Flanders. The arrest of Norfolk and the other Lords may make the difficulty greater, but if the Duke lives things will remain as they are. If they kill him, he has a son who is growing to manhood, and the others are too numerous to be made away with. Plymouth may be taken and fortified at any moment, and the King has but to say the word for Ireland to revolt." • Memoir forwarded by Don Guerau, February 8: MS. Simancas.

³⁰¹ "En estos" (the King and his Queen Mother) "no halla el dicho Embajador amparo ny asistencia alguna, aunque le dan mil esperanzas, pero todo son mentiras, dandole a entender no solamente que proveeran esto y otro, pero que lo han ya proveydo y halla ser todo falso, y ya no sabe que hacerse." — Secretario Aguilon a Felipe lido, December 5: Teulct, Vol. V.

³⁰² "Surely so long as that devilish woman liveth, neither her Majesty must make account to continue in quiet possession of her crown, nor her faithful servants assure themselves of safety of their lives. God open her Majesty's eyes to see that which may be for her best safety." — Walsinjf ham to Cecil, January 30: MSS. France.

correct, that Elizabeth was a cipher in the hands of Burghley, the best grace she had to look for was a priest to make her ready for her end.

Norfolk's turn came first, however; and with him Burghley could write that "the Queen would deal more substantially than many did imagine."³⁰³ Among the Peers by whom the Duke would have to be tried, many would inevitably have to take their seats as his judges who were in heart as guilty as himself; but care was taken that there should be at least a majority on whose loyalty Elizabeth could depend. Lord Shrewsbury was named High Steward for the same reason for which he was chosen to be the Queen of Scots' guardian. Twenty-six noblemen formed the Court over which Shrewsbury presided; and in the list almost every Peer was included who had been created by the Queen, or owed his station to her father and the Reformation. Hertford, who for two years had been in disgrace and forbidden to sit in Parliament, was restored to his honours. Reginald Grey, the representative of the ruined family of Grey de Ruthyn, was made Earl of Kent for the occasion;³⁰⁴ and of the Queen's own relations, Lord Hunsdon alone was absent, being unable to leave Berwick.²

The occasion was extremely critical. With a shaking throne, an uncertain people, and in the midst of the great Catholic reaction which was threatening all over Europe to overwhelm the work of the Reformers, light matter to erect again a court of treason, the chapter of political trials and executions, which it had been Elizabeth's honourable distinction to have hitherto held closed. However great and

³⁰³Burghley to Walsingham, December 7: Digges.

³⁰⁴The Peers who tried Norfolk were the Earls of Shrewsbury, Kent,, Sussex, Warwick, Pembroke, Worcester, Huntingdon, Bedford, Hertford, Leicester, Lords Clinton, Burghley, Mountjoy, Wentworth, Mordaunt, Chandos, St. John of Bledsoe, Hereford, Howard of Effingham, Grey de Wilton, Sandys, Burgh, St. John, Rich, Norton, Buckhurst, and Delawarre. Of these, Shrewsbury, Worcester, Clinton, Mordaunt, Howard, Grey de Wilton, Sandys, Burgh, St. John, and Rich were in Ridolfi's list. i(1 The vituperative eloquence which has been poured upon Buchanan's "Detectio" has failed to expose a single serious error in it, and in the few trifling points where a question can be fairly raised upon Buchanan's accuracy, is it clear that the fault does not lie after all in the inadequate information of his critics? The book has been called slanderous from the completeness of the case which it establishes. The sentimentalism which cannot tolerate the notion of the Queen of Scots' guilt denounces the evidence against her as forged. But to denounce is not to prove. The account which was now published was the deliberate plea of Protestant Scotland at the' bar of Europe; and as the passionate aspect of the story gives place to calmer consideration, it will receive at last the authoritative position which it deserves. 21

however evident were Norfolk's offences, he was the highest English subject, and the crime for which he was to be brought to the bar was no crime at all in the eyes of half the nation. To leave him unpunished, or to try him and to fail in obtaining a verdict, would be v "La Reyna ha creado un nuevo Conde de Kent para tener su voto seguro." — Don Guerau to Philip, January 7: MS. Simcincas. equally fatal. To prepare the way with the public, a compendious account of the conspiracy and its discovery was drawn up and published; and another step was taken of far more importance, which, though too long delayed, was still in time to be of use.

As careful of the Queen of Scots' honour as she had been careful of her life, Elizabeth had been contented to endure the misconstruction of Europe, to allow a vague belief to spread that the evidence produced against her at Westminster was incomplete, and to give her a chance of recovering the fair fame which she had so foully blotted.

Elizabeth had not only refused, against the advice of her wisest ministers, to publish the story in her own defence, when it would have silenced the murmurs of the Catholic world, but she had forced the Scots to suffer also the disadvantage of a doubtful cause. Now, at length, she withdrew her prohibition. A narrative of the events which had led to the Queen of Scots' deposition was drawn up by George Buchanan.¹ Versions of the casket letters in French and Latin were attached to the narrative, and the whole was printed under the title of "The Detection of the Doings of Mary Queen of Scots, touching the Murder of her Husband. and her Conspiracy, Adultery, and Pretended Marriage with the Earl Bothwell." Copies were circulated in Scotland, England, and the European Courts. La Mothe complained to Elizabeth, but the Queen declined to interfere.³⁰⁵ She had shielded the Queen of Scots too long for her own safety, and Mary Stuart's mode of recognising the obligation was not calculated to encourage her to persist further. Sir Thomas Smith, who had gone to Paris to assist Walsingham in the negotiation of the league, explained to the French Council, that the time for forbearance was passed; that the English Government was now resolute; and that if the Queen of Scots gave any more trouble, the difficulties about her would be promptly

³⁰⁵ Among the copies sent to France one was given to "one Montaigne of Montpelier," supposed then to be writing 'The Universal History of the Times.' — Killebrew to Cecil, January 10. Montaigne had been a pupil of Buchanan. "The Universal Story" was perhaps merged in the work of his friend De Thou.

ended.³⁰⁶ With these precautions, and with the gauntlet as it were flung down to Catholic Europe, Westminster Hall was once more prepared for a trial for High Treason. On the 16th of January, at half-past eight in the morning, Lord Shrewsbury, with the Peers, Judges, and Lords of the Council, took their places; a lane was formed through the crowd at the lower part of the hall, and the Duke was led in between the Lieutenant of the Tower and Sir Peter Carew; the Tower Chamberlain following with the axe reversed.

The Duke was not so wholly degenerate but that in public and on great occasions he could bear himself in a manner worthy of his blood; as he came forward to the bar he ran his eyes rapidly over the noblemen who were to try him, bit his lip, and drew himself haughtily up.

The indictment charged him with conspiring the deposition and death of the Queen, with having endeavoured to bring foreign armies into England, to change the Government, and alter the religion established in the realm; with having sought to marry the Queen of Scots, knowing that she laid claim to the crown, contrary to his allegiance, contrary to the Queen's command, and in violation of his own plighted word.

³⁰⁶“I was fain to declare unto them all her behaviour, her adulteries, the killing of her husband twice (if it might be) with poison, and as some say strangling, besides fire and gunpowder, the shameful marrying of her adulterer and murderer of her husband, who had a wife living, her deposing by the nobility and Act of Parliament. Yet the Queen's Majesty would not believe it, but had it heard again in London; and though the thing was too manifest, yet for respect that she was a Queen of her alliance, her Majesty would not condemn her and would not absolve her. I hey seemed at last so persuaded that they durst not deny her evil deeds and deservings, but because she was married here and of parentage, the King could know no other King nor Queen in Scotland but her; and if she had done evil there was somewhat to be borne because she was kept so long in prison “That is true, quoth I, “Tlectere si nequeo Superos Acheronta movebo;” but if the Devil be called to help, it is reason she has the Devil's reward. In sum, rather than this should trouble the treaty, or the realm of Scotland be in longer dissention for this cause, or the Queen my mistress should not once have an end of the mischief and hurt that she hath hitherto brought, I know one expedient that shall soon make an end of this debate. Her Majesty shall follow the advice of her Council, the wise men of her realm. She shall take her head from her shoulders as justly she may do. “This appalled them so much, they had no more to say but that they thought better of the Queen's clemency and gentleness than so, although they could not deny that the Scotch Queen had deserved no such thing a her Majesty's hands, and they thought her guilty of all that was laid to her charge.” — Sir T. Smith to Burghle.v January 17: MSS. France.

In detail, he was accused of having assisted the rebels who had fled to Scotland after the late insurrection; of having in the March preceding sent Ridolfi to Rome, to Spain, and to the Duke of Alva, to concert measures for an invasion; and of himself intending to raise a fresh rebellion in England. He had corresponded since Ridolfi's departure both with him and the Pope, and had received "promises of help and assistance in the said wicked enterprise for the setting up of the said Mary late Queen of Scots.

The Duke, being required to plead, demanded the assistance of counsel. It was objected that in cases of high treason counsel was not allowed; but he said that the indictment was complicated; "he found himself entangled in a herd of laws," so that he did not know to what he was to answer; and he referred to the trial of Sir Humphrey Stafford, to whom, in a similar case, the indulgence for which he asked had been conceded.

Chief Justice Dyer replied that the precedent was not applicable: Stafford had been taken out of sanctuary,³⁰⁷ and counsel had been heard merely on the question whether the protection was legitimately violated.

The Duke, with a slight protest, submitted to the judgment of the Court, and enquired whether he must plead to the whole indictment, or to the parts of it separately, and whether all the offences with which he was charged were equally treason.

Dyer said, that if the facts were proved, each and all would bring him within the compass of the law.

On this answer the Duke said he was Not Guilty, and would be tried by God and his Peers — only, he continued — addressing himself to the Lord Steward, "he trusted he might have justice, and not be overlaid with speeches. Had he so pleased, he needed not to have been standing where he was; but he had preferred rather to abide his trial, than by a cowardly running away to leave a gap open to his enemies to slander him." Trusting to the absence of direct proof against him, he insisted that he ought not to be pressed with circumstantial evidence. He said that he was unlearned and uneloquent, and that

³⁰⁷ A 0 1. Hen. VII. Stafford and his brother had held out against Henry VII. for a few months after Bosworth. Finding their cause hopelessly lost, they took refuge in a sanctuary near Abingdon, from which they were forcibly removed and were hanged at Tyburn.

his memory was weak. He was ready and able to encounter only special charges of literal treason.

But a prisoner was not to be allowed to dictate the form of his prosecution. The case was exceedingly elaborate, involving the history of his proceedings from the time when he was sent as Commissioner to York; and the story is too well known to the reader to require repetition. It is enough to say, that the Government was acquainted with every important fact in the whole of it. The Duke fought over every detail, with a minuteness which showed that he had undervalued his powers. The confession of the Bishop of Ross was read to him. He said the Bishop was a false Scot, and cared not how many innocent Englishmen he might bring to destruction. He was reminded of his promise to deal no more with the Queen of Scots. He could not deny that promise, and he could not deny that he had broken it. It was proved, also, that after leaving the Court in Hampshire he had listened to a proposal to seize the Tower, and had gone down to Norfolk with a half-formed intention of rebellion.³⁰⁸ One witness only was produced in Court, Lord Shrewsbury's stepson, Richard Cavendish, Leicester's agent with the Queen of Scots, who finding that times were changing, turned round upon his friends and swore that the Duke had told him beforehand of the intended rising in the North.

To this the Duke answered that Cavendish was a lying slave; but the conviction was left upon the Court, and as the reader knows with entire justice, that he was aware of the Earls' purpose and at least had not revealed it.

Ridolfi's commission came next. To those who have seen what that commission contained, and the exquisite baseness which it revealed in Norfolk's character, the evidence with which the portions of it known to the Government were brought home to him can have but little interest. Either treason is an imaginary crime, or few politi-

³⁰⁸ Among other fragments of evidence which came out upon the trial, it appeared that the Duke had been playing with "a blind prophecy," something like Owen Glendower's "clipwinged dragon and finless fish." The words are: — "In exaltatione Lunas Leo succumbet, et Leo cum Leone conjungetur et catuli eorum regnabunt." The Duke had interpreted them thus: — "At the exaltation of the moon, which was the rising of the Earl of Northumberland, 'the Lion,' the Queen's Majesty, shall be overthrown. Then shall the Lion be joined with the Lion — i.e. the Duke With the Queen of Scotland, for they both bore lions in their their whelps shall reign." -Trial of the Duke of Norfolk: State Trial, Vol. I.

cal offenders have deserved the scaffold more emphatically than the Duke of Norfolk. The commission itself, however, never reached the hands of the Council. They knew no more than its general purport, the sketch of it contained in the letters of the Queen of Scots which had been found under the mat, and as much as could be learned from the confessions of the secretaries and the Bishop of Ross. The Duke denied everything, and swore that both the Bishop and his secretaries were lying. He was asked to explain, if he was innocent, the letters which he had written to them from the Tower entreating them not to confess. He was of course silent. The confessions all agreed, and not a doubt remained that the troops of Alva had been invited with the Duke's consent to land at Harwich.

Wilbraham, the Attorney of the Wards, who was conducting this part of the case, used the opportunity to touch the eternal chord of English national pride.

"If the Duke of Norfolk had been a true man," he said, "and angry at the matter as he now pretendeth, and had done his duty, though they had come, these Walloons, they might have been so beaten of the old English fashion as they were never so swinged in their lives."

This point, says an eyewitness, "Mr. Attorney spoke with such a grace and cheerfulness of heart and voice as if he had been ready to be one at the doing of it, like a hearty true Englishman, a good Christian, a good subject, a man enough for his religion, prince, and country."

"The Duke," the Attorney continued, with less rhetoric but more point — "the Duke said that the witnesses had spoken falsely, but their evidence had been taken separately in a great variety of complicated details, and it was all entirely consistent. Of what value, on the other side, was the Duke's assertion? He had broken his oath as Commissioner at York, he had broken his promise to the Queen, he had denied in his examinations what he had afterwards admitted to be true; it was not for the Duke of Norfolk to stand upon discrediting of witnesses and advancing his own credit which he had so much decayed."

The prosecution closed, and Shrewsbury asked the Duke what more he had to say. And what could he say? If indeed the Queen of Scots was an innocent woman — and the Duke, if any one, knew the truth about her — he might have appealed to the broad principles of justice; he might have proclaimed, in the face of England and the

Peers, the cowardice which had stained her with crimes of which her accusers themselves were guilty. He might have denounced Cecil, Bacon, Sadler, Knollys, Elizabeth herself, for their atrocious hypocrisy, and he would have carried with him the sympathies of the world. He was not standing before a Secret Tribunal in the dungeons of the Tower. He was at the open bar in Westminster Hall, in the presence of the English nation, and the words that he uttered there might be carried to every fireside in the land. Had no other evidence survived, were there no letters, no witnesses, no sworn depositions of those who had lived through the whole of that Scottish tragedy and knew it in all its parts, the Norfolk at this the supreme moment of his and Mary Stuart's, would be proof sufficient against her in the minds of all persons who can think upon the subject with reasonable modesty. The Duke knew the truth, and the truth made him dumb; he could but say that he trusted to God and his own consciousness of loyalty.

The Lords withdrew, the High Sheriff remaining in his chair. The winter day had long departed. The hall was faintly lighted with pine torches. At eight o'clock, after an absence of an hour and a quarter, they returned, and one by one gave in the fatal verdict of Guilty on all the counts. The Counsel for the Crown prayed sentence; and Shrewsbury, in the usual dreadful terms, told the Duke that he must die. Then, perhaps for the first time, his misdeeds came home to him. Conspiracy had presented itself to him in the disguise of piety and chivalry. He had dreamed of saving his country from the upstarts who were dragging the crown into ignominious alliance with revolution and heresy, of laying to rest the threatening spectre of civil war, and settling the vexed succession question. The sleep was broken, the vision was faded, and there remained only the axe, the scaffold, the masked headsman, and six feet of earth in the Chapel of the Tower.

"This is the judgment of a traitor," he said, "and I shall die as true a man as any that liveth." He beat his breast wildly. "Do not ask for my life," he cried; "I do not desire to live. My Lords, as you have put me out of your company I trust shortly to be in better company; only I beseech you intercede with the Queen for my children and for payment of my debts. God knows how true a heart I bear to her Majesty, how true a heart to my country, whatever this day has been falsely objected to me. Farewell, my Lords."

He was led away from the bar. The High Steward broke his rod and the trial was over, and a loud cry rose from the crowd, "God save the Queen." It was expected that the resolution which had brought Elizabeth so far would have carried her on to the conclusion, and that the execution would not be postponed beyond the usual time. The Duke evidently was without hope: face to face with death, he thought no more of the creed to which he had told the Pope he was secretly devoted, and he desired that John Foxe the martyrologist, his old teacher, might prepare him for his end.³⁰⁹ Lord Burghley considered that hesitation would be extremely dangerous. "No better hope could be given to the evil," he said, "than to see justice forborne against the chief offenders in so perilous an enterprise. It would be imputed to fear, to lack of power in the Queen's hand by God's ordinance," And in the highly wrought condition of Catholic imagination, "to the Scottish Queen's prayers and fastings."³¹⁰

But Elizabeth, among many faults, had two qualities which were extremely honourable to her. She detested political executions, and much of her popularity was attributed by her to the cessation of the scenes which had made Tower Hill so hideous.³¹¹ She possessed, besides, an insensibility truly regal to personal fear. Never at any time in her whole career was she driven by panic into cruelty. She had lived too long in the expectation of death to be frightened at the sound of it.

The very weakness of Norfolk's nature touched her. She let herself hope from the constancy of his denials that he had been less guilty than he seemed; and as he had accused Barker of perjury, she desired that he should be confronted with him. The Duke flinched from the ordeal,³¹² but Barker was reexamined by Knollys and Wilson, and made the most of every point which could tell in his master's favour. He blamed the Bishop of Ross, he blamed Southampton, Montague, Lumley — every one more than the Duke; he said that they were for-

³⁰⁹ Skipwith to Burghley, January 17: MSS Domestic

³¹⁰ Notes in Cecil's hand: MSS. Hatfield

³¹¹ "The Queen's Majesty has been always a merciful lady, and by mercy she has taken more harm than by justice, and yet she thinks she' is more beloved in doing herself harm." — Burghley to Walsingham, January 23: Digges.

³¹² "The Duke hath told me he would in no case be brought face to face with Barker for talking of that matter." — Skipwith to Burghley, January 20: MSS. Domestic.

ever complaining of the Duke's backwardness.³¹³ The Bishop of Ross, when again questioned, admitted that Norfolk had been forced into a position which he had not sought and from which he would have broken had he possessed the courage. It was thought that rebellion would fail without his help and sanction, and he had drifted from step to step without his will if not against it.³¹⁴ The Catholics laid the blame of their failure upon him;³¹⁵ and although Elizabeth's judgment remained unaffected as to the broad bearings of his conduct, she dwelt upon every favourable feature of it. She allowed him to know that she thought of him with pity, and the Duke poured out upon her a stream of that voluble emotion which weak natures have so easily at command. "He loved her Majesty," he said, "with such transporting affection that he would not spare his own son's life if danger might rise by him to her Highness. He had done ill, but not all the ill with which he was charged; and she would find in time that Norfolk was not really such a traitor as he had given her too much cause to believe him." 3 but to sa.y I will hazard my house and my friends, I will not. Therefore would to God she would leave this passionate writing, and that the Bishop of Ross should not give ear to any such troublous practices, for it is time that must help her and nothing else; and I doubt not but in time the Queen's Majesty will deal with her to her contentation."

"The Bishop of Ross divers times was on hand with this matter, and as I remember, said he would be one himself and venture his cragge; and when he saw my Lord utterly denying it, he said, 'Well then my Lord wdl do nothing, and so nothing shall come of him. But there is no remedy but patience, and as for the Queen, my mistress, she is no castaway: if he will not do for her, there be enough that will.'" — Confession of Barker, January 23: MSS. Domestic.

³¹³When I brought the Duke the instructions from Ridolfi, he said if the Princes would help the Queen of Scots they might, but we were subjects; and if such a thing should come he saw another inconvenience, for then some should have that they long looked for, and that was, to rise' for religion; and then, as I remember, he named the Lord Montague, "wherewith," said he, "I will never deal to die for it. As touching the Queen of Scots, I am bound to her in honour. If I can comfort or quiet her I will

³¹⁴Confession of the Bishop of Ross: MSS. Mary Queen of Scots.

³¹⁵They said at Rome if the Duke had had in him that which they looked to have found in him, things had been far otherwise than they were." — R. Beseley to Burghley, January 27: MSS. Domestic. Norfolk to Elizabeth, January 23: Murdin. The Duke talked to Sii Henry Skipwith in the Tower in the same tone. He said that "to hit

Elizabeth was not deceived by all this nonsense. The Duke meant it perhaps when he wrote it, and he would mean something else when temptation came to him from the other side. But there were other considerations which inclined her to be merciful. "When she speaketh of the danger, wrote Burghley, "she concludeth that justice should be done; when she speaketh of his nearness of blood, and his superiority in honour, she stayeth." On the 9th of February she signed a warrant for the execution. The following Monday was fixed for it. The scaffold was prepared, and Tower Hill, at the appointed time, was choked with spectators. But on the Sunday night she sent for Burghley, and told him that the thought of Norfolk's death was too dreadful to her. She sent orders for his respite, and "the expectation of the people was answered" only by the appearance of Berney and Mather.³¹⁶ The Duke, in a flood of tears, prayed "that he might be able to make recompence for such overmuch mercy, if it were with the last drop of his heart's blood."³¹⁷ "The Peers," he said, "had done their duty, but mercy had overcome justice; and if his breach of promise had not too much discredited him, he hoped that the delay of execution was meant to tell him that he was to live." 3

It was but too certain that Elizabeth was relapsing into her habitual indecision. The experienced Sadler wrote that "the discredit which would grow of incon- eternal infamy he had dealt with the Queen of Scots and had broken his promise to his sovereign; but he vowed to God that if he was now offered to have that woman in marriage and choose that or death, he would rather have death a hundred times, and took his Saviour to witness of it" — Skipwith to Burghley: MSS. Domestic.

Btancj at such a time, in a matter of such moment, was so great, that all good subjects mourned and lamented, and the evil rejoiced and took comfort, thinking either that God had taken from her the power to punish, or else that she was afraid."³¹⁸ The Queen's plain-spoken cousin, Lord Hunsdon, was even more decided in his disapprobation.

"Her Majesty's carelessness of herself," he wrote to Burghley, "doth not only amaze me, but gives me to think it but labour lost to be so curious for foreign affairs, and so negligent for the preservation

³¹⁶Skipwith to Burghley, February 28: MSS. Domestic.

³¹⁷Declaration of the Duke of Norfolk February 26: Murdin.

³¹⁸Sadler to Birghley, February 27: Murdin.

of her own person, the destruction whereof is the only thing which the enemies seek and desire; for the compassing whereof no practice shall be omitted, or convenient time foreslowed. Although God has miraculously revealed the same, it follows not that He will do so still, the rather because He so mercifully discovers these practices to her, and she so carelessly neglects to provide for the danger thereof. This carelessness cannot come of herself, and therefore is the more to be feared; for naturally there is none but if they knew of any that determines and conspires their death, but they will seek all the ways and means they can to prevent the same in such sort as they may sleep without fear; and thus, what is it for her Majesty, who knows the malice of her enemies to be so great, as there shall be no practice left unsought for nor unexecuted; and yet, as I fear, she is made to believe she is in no peril. God grant, that if any do so persuade her, they be not such as would rejoice at her fall. The world knows her to be wise, and surely there cannot be a greater point of wisdom than for any to be careful of their own estate, and especially the preservation of their own life.

How much more needful is it for her Majesty to take heed, upon whose life depends a whole commonwealth, the utter ruin of the whole country, and the utter subversion of religion. And if by her negligence or womanish pity these things happen, what she hath to answer for to God she herself knows. God forbid that any should advise her to be bloody, if her surety may be without blood; but if matters fall out so that she cannot be sure without it, better for some members to be cut off than the whole body to perish. My Lord, I know you to be wise and careful of her estate. Let not the fear of offending others cause you to suffer her to run headlong into her own destruction. Let her remember the wise and politic government of all her predecessors, and of all the princes of the world, which is to spare none which shall dare touch God's holy anointed; no, not their own sons, if any be so unnatural."³¹⁹

Remonstrances like these, with the return at intervals of her own wiser judgment, produced some effect upon Elizabeth. More than once she repeated her order for the drawing of the warrant. At the beginning she said distinctly that her hesitation was at and that the execution should take place.³²⁰ But the uncertainty in herself, and

³¹⁹Hunsdon to Burghley, March 20: MSS. Border.

³²⁰Warrant for the execution of the Duke of Norfolk, April 9: MSB. Hatfield.

the influence of her favourites, once more undid her purpose. The time of grace was extended indefinitely, and the unhappy Norfolk persuaded himself that the bitterness of death was passed.

Nor with the lady at Sheffield could she any more resolve what to do. When the conspiracy was first discovered, neither Mary Stuart nor her friends expected any kind of mercy. Leaving vengeance out of sight, not a prince in Europe, on mere grounds of policy, would at that period have spared a competitor for the mwn who had tried the game of rebellion and ae ' -p °di Alva and Philip had expressed their fears, that if the plot was found out, she would be executed, and they did not pretend to think that her execution would be unjust. A sovereign who in Elizabeth's circumstances ventured to dally with her danger, was considered forsaken of God and given over to destruction. But time passed on, and except close confinement and the suppression of her correspondence, Mary Stuart experienced no further inconvenience. Buchanan's "Detectio" was published; Elizabeth announced at last that she could never more be restored to Scotland, and she was publicly termed "the late Queen;" but there was no talk of bringing her to trial as well as the Duke; no private assassins came down to Sheffield to do the work which but for English interference would have been completed at Lochleven; and at last, at Christmas, just before Norfolk was brought to the bar, she tried the effect of a letter, in the hope of saving him. Notwithstanding the wrongs which she had suffered, she said, she could not forget that Elizabeth was her nearest relative, -who had once seemed to love her. She had listened, poor fool that she was, and had laid herself open to be injured through her confidence, and she had been rewarded with slander and imprisonment. She had said from the first, that if the Queen of England would not help her, she would seek assistance elsewhere; she had but kept her word, and had done no wrong in keeping it. But she had wished to be Elizabeth's friend, and she wished it still. She was ready still to forget and forgive all her injuries if Elizabeth would restrain her anger and hurt no one on her account; she would be glad if they might be reconciled before the convulsion which was approaching in England burst out, and it was too late. "Do not think I flatter you," she said, "out of fear for myself. You may make a dishonourable profit out of my life, if you please to take it from me; but my heart is my own; I have done my duty in laying these considerations before you, to prevent the mischief which may otherwise ensue.

God move you to listen, to His glory, your own credit, and the public good.”³²¹

Elizabeth took no immediate notice of a letter which, after the admissions of the Bishop of Ross, implied too much contempt for her understanding; but, when Shrewsbury was summoned to London to the trial, Sadler took his place at Sheffield, and used the occasion to point out to the Queen of Scots “that no prince, having such matter against her as the Queen of England had, would have used her so graciously.” She said, in reply, that she had done nothing against the Queen of England — nothing that the Queen of England could resent. She knew nothing of Ridolfi. The Bishop of Ross was a lying priest, and she was innocent of all practices. What Norfolk might have done she could not say: Norfolk might answer for himself.²

It was difficult to see what she hoped to gain by such words, for Sadler was not a man to be fooled out of his convictions by hard swearing. When Shrewsbury returned he brought with him Elizabeth’s answer. 1 Mary Stuart to Elizabeth, December 25: Labanoff, Vol. IV.

“The Queen of Scots,” she said, “complained of injuries. She had herself been the first to do wrong, by laying claim to the crown. The Queen of England might have retaliated by taking her own crown from her with the consent of her subjects. When she was afterwards dethroned, imprisoned, charged with murder, adultery, and maintaining the Earl of Bothwell, the Queen of England had saved her life; and now the Queen of Scots reproached her because she was not at liberty to stir more rebellions, to bring in foreign armies, and compel the Queen of England to allow her to marry the Duke of Norfolk. She had promised the Queen of England to think no more of that marriage but she had pursued it without intermission; and no reasonable person could believe that she was not seeking to deprive the Queen of England of crown and life. The injuries were all on one side and the benefits on the other; and ‘indifferent persons marvelled more that the Queen of Scots’ proceedings were not avenged after other sort than merely detaining her in the realm’ with an expensive establishment. Foreign princes could not honourably assist her to recover her kingdom, when she had abandoned it upon causes, of which it would provoke her to grief and impatience to be reminded. The Queen of England desired to treat her kindly and favourably, but she must

³²¹Sadler to Cecil, January 9: MSS. Queen of Scott.

first give some proof of the good-will she professed to entertain — by deeds as well as words; and at once, and as a first step, she must ratify the treaty of Leith.”³²²

It was sharp winter weather when Shrewsbury came back to Sheffield with this message. He brought permission with him to relax the strictness of the Queen of Scots’ confinement; and when she was first allowed to go outside the castle door, “she plunged over her shoes into the snow.”³²³ Untamed and intractable as of her own mountains, she pined for liberty; was but one price which she would not pay for it. Sweet as was the air, and the open sky, and freedom, the hope of revenge was sweeter. Could she even then have abandoned her conspiracies, accepted the friendship which she affected to desire, and ceased to dream of revolutions, a few years, a few months perhaps, would have seen her clear of all her troubles. But it was not in her nature to submit: her proud spirit would sooner break than bend, and she could not part with the visions of triumph on which she had feasted in imagination so luxuriously.

The strictness of the watch over her was no sooner relaxed, than Shrewsbury found her again bribing his servants, smuggling letters out of the house to her friends abroad — busy incessantly at the old work. The net had to be drawn tight again. Her people were briefly told, that if there was more of such work they would be sent to London and hanged;³²⁴ and “the Lady” had to fall back upon her “stormy manners and threatenings;” “never so unquiet since Shrewsbury had the care of her.” The Earl understood her character at last. He “so decyphered her doings,” that she exhausted the respect which he had long continued to entertain for her. One good effect resulted from her eternal restlessness — she had made the Catholic Shrewsbury loyal to his own sovereign; and of the Queen of Scots “he made no more account than the laws required.”³²⁵ Driven in upon herself, and for the present deprived of other weapons, the Queen of Scots could only have recourse to her matchless power of sarcasm. If she could not hoodwink Elizabeth, she might at least wound and sting her.

³²²The Queen of England to the Queen of Scots, February 1: Burghley’s hand, abridged: MSS. Queen of Scots. von. x. 22

³²³Shrewsbury to Burgh ley, February 14: MSS. Queen of Scott.

³²⁴Same to the same, February 24.

³²⁵Same to the same, March 4 and March 9: MSS. Queen of Scott.

"It was not her fault," she said, "if the Queen of England persisted in complaining of her assumption of the title. She had always professed herself willing to abandon her present claim if her place in the succession was acknowledged. The Queen of England said that she ought to be grateful to her for having declined the offer of the Scotch crown. She was sorry she had been so remiss in acknowledging the obligation; but it was the first time that she had heard of it. If the Queen of England had received such a proof of her subjects' treason, she was surprised that the Queen of England should have supported them; but she thanked her, at all events, for such valuable information. As to saving her life, the Queen of England had been the chief maintenance of those who had threatened it; and her good offices, therefore, amounted to little. Her own gratitude in the matter was due, she conceived, first to God, and then to the King of France. That the Queen of England had interceded for her she had never heard, except from the Queen of England herself; and, looking back over the whole transaction, she could not feel her obligations to be great. She had been told that shortly before the Earl of Murray's death the Queen of England had proposed to replace her in his hands — with what intentions she left her good sister to settle with God. As to the expense of her maintenance, she had not the slightest desire to eat the Queen of England's bread. The Queen of England might be relieved of it at any moment by restoring her to the crown which she had assisted her subjects to take from her. The Queen of England complained that she had attempted to bring strangers into Scotland. She was Queen of that country, and if she had accepted the assistance of neighbouring princes to rebels who had themselves been assisted by against their sovereign, the Queen of England had nothing to complain of. The Duke of Norfolk had been recommended to her as a husband by some of the Queen of England's own ministers. It to expect her to know that it was against the England's wishes. Her Majesty said that in other countries she would have been treated less leniently. She did not see very well how this could be. She had come into England on the Queen's invitation; she had been held a close prisoner ever since; and her subjects had been allowed to scatter libels over Europe against her. She supposed, now, that the Queen of England was advised to put her to death. She did not expect the Queen of England would venture on such a step; but fear of death should not

make her do what otherwise she would not have done.³²⁶ She had required an acknowledgment that she stood next to her Majesty in the succession to the crown, and the English nobility had made the same demand in her name. She was willing to give all necessary securities for the Queen of England's safety, and they could then be friends instead of enemies."³²⁷

Even this language failed to irritate Elizabeth into severity. It seemed as if she desired by the extremity of forbearance to wear out the interest of English gentlemen in Mary Stuart's fate and fortunes — to give her scope and rope to convince the most fanatic and incredulous of the real character of the idol on which their hearts were set.

And as it was with the Queen of Scots, so it was with Scotland.

. The Mure at Stirling and the death of Lennox continued to weaken further the failing strength of Mary Stuart's party. The Regency had fallen to the Earl of Mar, who was personally popular. The murder of the father of Darnley had reawakened the higher conscience of the people, and the Hamiltons, compromised in each of the three great crimes of the past years, became more and more detested. The slightest action, or even a purpose decidedly announced on the part of England, would have completed their overthrow. The Castle of Edinburgh would have surrendered, and the unfortunate Scotland, for two years now given' over to anarchy, would have been restored to order and peace.

On the first discovery of the Ridolfi conspiracy, Elizabeth yielded as usual to an impulse of good sense. She wrote to Mar to say that the late practices for setting on fire both the realms having by God's goodness been brought to light, he should have no further cause to doubt her intentions; she would assist him in bringing all Scotland to the obedience of the King; and she had empowered Hunsdon to treat with him "on the course to be pursued.¹

Mar at once moved from Stirling to Leith to prepare to besiege the castle. Hunsdon and Drury sent word to Maitland that further resistance was useless. Their mistress intended to interfere at last to real pur- 1 Elizabeth to the Earl of Mar, October 2: MSS. Scotland. pose; and if they refused to surrender, "there was force imminent upon

³²⁶i. e. ratify the treaty of Leith.

³²⁷Declaration of Mary Stuart, February 14, abridged: Labanoff, Vol IV.

them utterly for their extermination.”³²⁸ The Castle party were well supplied with money and provisions. They had no fear of the Regent, and the Gordons in the North had just gained what passed at the time for a considerable success. In two skirmishes Adam Gordon had cut up and destroyed the whole clan of Forbes. Lady Forbes shut herself up with her children and servants in Towie Castle. Adam Gordon came under the walls, broke an opening through them with pick and crowbar, and flung in blazing faggots of brushwood. The children, choking with “the reek,” sprang over the battlements, were caught on pikes, and tossed back into the flames. Mother, family, household, all perished, save one woman who struggled through the fire and escaped.

The “victory” secured Aberdeenshire for the present to Lord Huntly; and Alva, though out of humour with England, was still thinking seriously that he might effect something in the Northern kingdom. Lord Seton, supported by Leonard Dacres, had so far worked upon him that the Aberdeenshire coast had been carefully surveyed, and one or two places with accessible harbours had been selected to be fortified.⁸ If Elizabeth sent men and guns to reduce Edinburgh Castle, their hopes in this quarter would instantly disappear, and it was necessary, if possible, to amuse her with negotiations to give time for the Spaniards to come.³²⁹

They knew her character only too well. It was with the greatest reluctance that she had acknowledged at last the necessity of interference. She was most anxious to induce the party in the Castle to surrender of themselves, and insisted that the very easiest terms should be offered them consistent with their submission to the King. The mention of terms gave Maitland the opportunity which he wanted. It enabled him to raise a series of questions on the government of Scotland, on the restoration of forfeited property, on the endless difficulties, in detail, in the proposed reconciliation, and Elizabeth was willing to go on indefinitely allowing these points to be argued over. It was to no purpose that she was warned of the intrigues going for-

³²⁸ Drury to Maitland, October 6: MSS. Scotland.

³²⁹ This infernal wickedness was celebrated by the Queen’s friends at Edinburgh with a fast and a thanksgiving. The later penitence of Scotland has preserved the memory of the deed in the most touching of all the Northern ballads. “Give ower your House, ye lady fair, Give ower your House to me,” &c. — *Percy Relics*, Vol. I. p. 125. » Articles of the Lord Seton’s negotiations with the Duke of Alva MSS. Queen of Scots.

ward at Brussels; of the danger of delay; of the certainty that when her troops were once in motion the castle would be surrendered at discretion. The Queen only recalled the powers to use force which she had given to Hunsdon; and Hunsdon vainly told her that she was throwing away time, words, and money in endeavouring to deal with the difficulty in any other way.³³⁰

So the wretched uncertainty drove on. After three months' debate, it came to this. Elizabeth would not restore Mary Stuart, but would consent that during the King's minority the administration should be divided between the two factions; and she insisted that all the estates and offices which had been taken from the Queen's friends should be restored to them. The Regent naturally replied that he and those who had acted with him had mined themselves to maintain the King's authority — as much in Elizabeth's interest as their own — and that those who had raised the civil war ought to pay for it.³³¹ Elizabeth might have met this objection by paying something herself; but every farthing of money which she advanced to these poor Protestant noblemen was wrung from her drop by drop as if it were her life's blood. The Regent's troops were in mutiny for want of wages, and Maitland laughed in his sleeve as he watched her wearing out their patience.³³²

The Queen, *semper eadem*, as she fitly named herself, was resolute only not to part with money, and otherwise changed her mind from day to day. She allowed Burghley to draw up conditions favourable to the Regent, and to threaten the Castle party with compulsion: when it came to the point of action she perpetually

³³⁰"They of the castle will not yield to persuasions or threatenings. I would her Majesty had used some other instrument to make demonstrations of having the castle by force; for it is neither honourable to her nor credit to me, and doth verify their saying. They did always affirm and give out that what shew soever her Majesty made she would send no forces. I pray God when they shall find that her Majesty will send no forces that they make not another alteration among themselves small to her Majesty's contentment." --Hunsdon to Burghley, December 4: MSS. Scotland.

³³¹Mar to Hunsdon, January 15: MSS. Scotland.

³³²"You will perceive the hindrance to the King's side by the delay of her Majesty's resolution and want of money. I assure you, if her Majesty tract the time any longer they will be overthrown. The soldiers at Leith refuse to watch or ward, so as the noblemen and gentlemen are fain to watch themselves. It is feared lest for want of pay the soldiers will, if they can, deliver the Regent and the rest to their enemies. Surely it stands her Majesty better in honour and surety to resolve one way or the other, lest when now she may rule both sides, by lingering she may lose both." --Hunsdon to Burghley, January 26: MS. Ibid.

refused to turn her menaces into reality, or to assist the Regent with men or subsidies to drive or tempt them to submit.³³³ With such a mistress over him, Burghley could but struggle with impossibilities. He knew that unless Mary Stuart's faction in Scotland was put down, the danger to England was scarcely less than from the Ridolfi conspiracy; but his threats were wasted words. Elizabeth was capable of letting Maitland know secretly that he need not regard them. In Burghley's presence she could be argued into reason; when he left her she fell back under the persuasions of Leicester and the poisonous household clique, the nest of the traitors male and female who were forever busy undermining her wiser judgment and thwarting the influence of her ministers.

In February Thomas Randolph was called out of his retirement and sent down to Edinburgh to attempt a composition. He found the Regent in the last stage of exasperation, complaining that Murray had been ruined by Elizabeth's falsehood, and that now Ke himself "was finding nothing but words of which he had already had too much." At this moment Alva was coming to a resolution to strike in. The battle of Lepanto in October, and the splendid victory of Don John of Austria, had revived the spirits of the Spaniards, and gave Philip leisure to employ his arms elsewhere. Seton had completed his arrangements for the landing of the troops at Aberdeen, and was hastening home with money and instructions to prepare for their reception, when the vessel in which he was crossing the Channel was driven by a storm into Harwich. Seton, to lose no time, passed through England disguised as a sailor, taking the money with him. The ship was to follow as soon as the weather moderated, and believmo- that no suspicion could attach to her, he left his papers and ciphers on board. Information was given to the officers of the port, the ship was searched, the documents were found and sent to London, and as the ciphers were gradually read they revealed the plans for the invasion of Scotland, with a correspondence between the Countess of Northumberland and Douglas of Lochleven for the release of the Earl. Some few days elapsed, however, before

³³³"Of that which it hath pleased your Lordship secretly to inform us, and so earnestly to charge us to keep in counsel, that no force shall be used against the Castilians if the treaty can take no effect, and that peremptory refusal thereof, nor yet that they may be won with that wherein persuasion could not prevail, we can but promise in silence in the matter, and to deal with the other the best we can." — Randolph and Drury to Burghley, March 31: MSS Scotland.

the key was made out, and meanwhile Randolph and Sir William Drury, who was in commission with him, had been admitted to the Castle to an interview with the Marian leaders. Seton had arrived, and not having heard of the miscarriage of his papers, they were in high confidence and spirits. Chatelherault, Huntly, Seton, Maitland, Hume, Grange, the Bishops of Dunkeld and Galloway, Sir Robert Melville, and Ker of Fernihurst, and many others, were assembled there. They had collected to consider Alva's plans and how best they could forward them.

The Castle was tolerably comfortable. Morton had hoped that the cold winter would have starved the garrison out, but they had destroyed the largest merchants' houses in Edinburgh to make fuel of the timber, and so had held the frost at bay. Mons Meg was fired in honour of the coming of the English envoys. The Lords received them standing, all but Maitland, who was too ill to rise from his seat. They found the Duke "the fool he always was;" Huntly "full of malice;" Seton "vain, despitiful, dishonest, unreasonable;" "the two worthy Prelates neither learned nor wise."⁵ Maitland was the one person of ability among them, and of him Randolph said, "he had never found in so weak a body a man less mindful of God or unnatural to his country." They said that they were ready for peace, but peace on their own conditions, which would virtually give the control of Scotland to themselves. They would not acknowledge either King or Regent. Most of them had been concerned in the murders of Murray or Lennox, and they insisted on being secured from undesirable consequences; it was plain to Randolph "that if they were able to set all the devils in hell loose to make mischief, they would not leave one untied."

At length they drew up a paper of conditions, such as Maitland knew would be likely to work upon Elizabeth, in which, while declining to make concessions to the other party, they affected to throw themselves entirely upon the Queen of England's discretion. They offered that the Government of Scotland should be vested in a Council of Nobles whom Elizabeth should name, and that difficult questions should be referred to her arbitration. Nothing, seemingly, could be more fair — nothing, read by the light of Seton's papers, could be more profoundly treacherous. They desired, as Burghley saw, merely to keep their hold upon the country till Alva came, and the game

would then be their own.³³⁴ Alva's coming, however, could be prevented. The knowledge that his intentions were discovered would of itself be a motive to him to keep quiet, and if not, there were now means by which he could be held in check; while so long as danger from Spain could be avoided Elizabeth herself was well pleased to be addressed as the arbiter of Scotch disputes. But the intimation of a treaty being on foot for the release of the Earl of Northumberland was seriously alarming. She felt it necessary at all hazards to get the Earl into her own hands; and she sent word to Mar that if Northumberland was given up to her, she would at least insist that the Castilians should acknowledge the King and submit to the authority of the Regent.³³⁵³³⁶³³⁷³³⁸

It was a relief to Mar to find at least something which gave him a hold upon Elizabeth's interests. He did not mean to affront Catholic Europe and violate Scotch prejudices for nothing. The cost of the Earl's maintenance for two years had been considerable. The Countess of Northumberland offered Sir William Douglas £2,000, and it was not to be expected that he would make a present to England of a person whose detention had been so expensive and dangerous. The Regent undertook that the prisoner should not be released, but he said that if Elizabeth looked for more she must change her attitude. She had promised to support the King and assist in the pacification of the country; if she would keep her word and put an end to the rebellion, Scotland and all it contained would be at her disposition; but hearing "the brag of the adversaries that they would outshoot him with his own bow at her Highness's hands, her Majesty meantime continuing her own estate in such uncertainties," he could not "provoke the King of Spain by delivering up a man who called him-

³³⁴Terms sent from the Castle, with marginal notes in Lord Burghley's hand. burghly's notes. Corpus sine capite. Doimit securus. ARTICLES.

³³⁵Government to be composed of the Lords of both sides, to be chosen indifferently by the Queen of England.

³³⁶These persons shall promise and give security that Scotland shall continue in good amity with England.

³³⁷Foreign soldiers not to be received into Scot land.

³³⁸tout erant in principio.

self the said King's subject," with no assurance after all as to what he was to look for at her Highness's hands.³³⁹³⁴⁰³⁴¹³⁴²³⁴³³⁴⁴³⁴⁵

Elizabeth saw that she was trying the Regent too far. The occupation of Leith and the demonstration against Edinburgh had cost Mar and his friends many thousand pounds. Elizabeth, as a great act of munificence, sent them a thousand, "of which they made as much account as if they had received so many pence." But Randolph was permitted afterwards to open a negotiation with the Lord of Lochleven, who undertook to put Northumberland in the Queen's hands for the sum which had been offered by the Countess, intimating at the same time that if she refused his price he would make his bargain elsewhere.³⁴⁶

Lochleven was evidently in earnest. The Queen could not lose her prize, and the money was sent to Berwick to be paid on receipt of the Earl's person. Morton still attempted to make delays, less in pity for Percy than in indignation at Elizabeth; but £2,000 was a temptation too considerable for a needy Scotch gentleman to resist. To Sir William Douglas it was indifferent whether he received it from England or Flanders; but to have restored Northumberland to liberty would have been to part with the last faint thread of dependence which the Regent continued to place in the Queen's word. He contented himself, therefore, with entreating that at all events the Earl's life might be spared; and the unlucky nobleman was exchanged at Coldingham, on the 29th of May, for a bag of gold. The bargain was a bitter one to Scotland. The passions of the people were heated sev-

³³⁹Mar to Randolph, April 8: MSS. Scotland.

³⁴⁰Religion not to be changed, whereby both realms may be knit together in amity.

³⁴¹Difficult points to be reserved to her Majesty, who will be conservatrix of the treaty.

³⁴²Particular questions to be settled by Parliament.

³⁴³Forfeitures to be declared null, and the dis- possessed to be returned to their lands.

³⁴⁴Her Majesty must see orders taken for repara- tion of losses which we and our friends have sustained.

³⁴⁵Provision for Grange to remain in the Castle during the King's minority. 10 These terms to be extended in the treaty for their honour, surety, and weal. 11 Convenient that these heads come not to the knowledge of our adversaries, but ye may open some points thereof as from yourselves. *Nemo potest duobus dominis servire. Verba sunt hsec. Btatuta mathematica, ante leges aut sine legislature. Per quam regulam. Ad quid haec. Qui potestatem sibi assumit odietur. Venenum assiduum sub labris ipsorum. Vee quam profundi estis corde, et dioitig quis videt nos.*

³⁴⁶Randolph and Drury to Hunsdon, April 10: MS. Ibid.

enfold; the treaty was spoken of no longer, and the fighting recommenced in all its fury. But Elizabeth had obtained what she desired; and the wounds of the poor country, whose interests she had so long trifled with, were not worth a thought to her. Her Ministers entreated her for her own sake to interpose, but she persisted in her peculiar policy of breaking every promise by which she had bound herself, when its fulfilment was inconvenient. Randolph and Drury were recalled; and so intense was the exasperation that they were twice shot at, and hardly extricated themselves with their lives; while Queen's-men and King's-men flew like wild beasts at each other's throats; no quarter was given; prisoners on both sides were hanged. The citizens of Edinburgh fled for their lives, and their houses were occupied and plundered by the castle soldiers.

Both sides being too weak for ordinary war, the struggle was reduced to a series of murderous skirmishes and raids and massacres; while Elizabeth was allowing Maitland to play upon her vanity and fool her with fair words only less hollow than her own.³⁴⁷

Nor -was Scotland the only scene of her diplomatic eccentricities. The Anjou marriage having come to nothing, France and England were feeling their way towards a league which would answer as a substitute, although all parties seemed to feel that it would be a league of smoke, unless cemented by a union with Anjou's younger brother;³⁴⁸ and both Burghley and the Huguenot leaders were more anxious than hopeful that the Queen might be induced at last to accept the *Due d'Alençon*. An incident had occurred in Paris, in December, which showed the precarious character of the situation,

³⁴⁷ As for instance: — "The stream we see will not serve, and therefore we must have recourse to the fountain. We have always since the beginning of the treaty had a good will to please your Majesty. We have for your Highness's only respect abstained from some foreign practices which perhaps might have served our turn. We know your Majesty to be a Princess of honour and great courage, and in that point to resemble the noble nature of the lion which ye give in your arms, that the more we bow ourselves and yield to your Majesty the better speed we shall have. We have tasted your Highness's goodness heretofore, and that ye will not disappoint them that put their trust in your Majesty." — Maitland to Elizabeth, May 8: MSS. Scotland.

³⁴⁸ Entre el Key de Francia y la Reyna de Inglaterra hay una liga de humo, pero dicese que es por la esperanza del casamiento entre la dicha Reyna y el hermano mas pequeno del Rey, aunque todo el mundo es de opinion que la Reyna no casara jamas, y assi los amigos son de opinion que la liga no durara mucho tiempo." — Avisos de Inglaterra, 1572; MS. Si • mancas.

and the extreme weakness of the King's Government. In the year 1569, two Protestant merchants, known as the brothers Gastines, had given offence to the then all-powerful Cardinal of Lorraine. They had been tried for treason and executed. Their property had been seized, their houses levelled to the ground, and on the spot where side by side their two houses had stood, the Catholics of Paris had erected a splendid cross. On the return the Gastines' children petitioned for the rethe offensive symbol, and Charles directed the Provost to see the cross taken away. The service was considered so dangerous that the order had to be given three times before it was 'obeyed, and the young Duke of Guise, who had just returned from Alva, hastened to the neighbourhood of the capital to be on the spot if anything should happen, "thinking it was good policy for him if he could drive the Protestants to renew the war." Happily the business was over before Guise reached the scene; but enough had taken place to show that the Catholic volcano was on the brink of an eruption., The Provost, after some difficulty, removed the cross; but the Catholic mob flew to arms and surged about the streets, cursing the King, and "crying out to kill the Huguenots." Two or three houses were gutted, and the families found in them were murdered. The people wanted only leaders to commence a general massacre; and when the riot ceased, it was "rather by God's providence than by any good policy used by the heads of the town."³⁴⁹ The sedition died down, but the film had been removed for the moment, and revealed the fury which was boiling in the populace of the city; and the fears of the Huguenot leaders, so often repeated to Walsingham, that the proscription and persecution would be revived if the English alliance broke down, received a signal confirmation.

Sir Thomas Smith went over in January to discuss the terms of the treaty with Catherine. She instantly reopened her proposal for the Alençon marriage. She undertook that there should be no difficul-

³⁴⁹ Advertisement from Mr. Walsingham from Paris, December 29: MSS France. A highly curious and detailed account of this *emeute* is contained in a letter from some one at Paris to Sir William Fitzwilliam. It is especially interesting, because, being within six months before the *massacre* of St. Bartholomew, it describes a state of feeling which, in the writ was leading inevitably to some such catastrophe. Character William Fitzwilliam being Lord Deputy of Ireland, the letter the arrangements at the Record Office among the Irish MSS. although it does not contain a single reference to that country. I Sir T. Smith to Burghley, January 9, 10, 11: MSS. France. vol. x. 23

ties with religion. The Duke, she said, should order himself as the Queen pleased. The objections on the score of age were so strong in the case of Anjou, that the slight addition to them was of little or no moment. A marriage with either of the two brothers would not have been thought of except for political reasons; and it made little difference whether Elizabeth was twice as old as her intended bridegroom, or his senior only by sixteen years. Sir Thomas Smith was decidedly of opinion that his mistress ought to close with an offer which promised such splendid results. The marriage once completed, the war for the liberation of Flanders would immediately begin. There was no doubt of the sincerity of the King, "who was of like disposition towards Elizabeth as was his grandfather towards her father;" "and if her Majesty would proceed to take profit of the time, she might have what amity she would," and might dictate the future of Europe. Only he told Burghley that there must be no delay. "Her Majesty must show herself more resolute than she had done in the other matter, or it would breed offence." ¹ The Queen of Scots would be no difficulty. When Sir Thomas Smith informed Charles that she would probably be put to death, the King shrugged his shoulders and said nothing. When her later performances were detailed to him, he merely answered "that he saw she would never rest till she had lost her head; he had done his best to help her, but she would not;" ³⁵⁰ and Walsingham, who had talked the matter over with the Queen Mother, impressed on Burghley, who was already of the same opinion, that of that devilish woman " " was the great obthe permanence of the alliance. If she were once dead, all questions about the English succession, the disposal of her person, and the government of would be at an end. Elizabeth's want of in punishing the Duke of Norfolk, and her of her own safety, left it possible that she might still be murdered, and that the Queen of Scots might succeed. "That doubt taken away, the King would be content to yield to anything which Elizabeth might desire." ³⁵¹

But Walsingham said — and he reported the words as the opinion of Coligny — "Unless her Majesty did proceed roundly in cutting off inward diseases at home, the outward medicine of treaties would stand her in no stead;" and Sir Thomas Smith more plainly: "If her Majesty deceive herself, and with irresolution make all princes to un-

³⁵⁰ Sir T. Smith to Burghley, March 22: Digges.

³⁵¹ Walsingham to Burghley, April 4: Ibid.

derstand that there in no certainty in her Majesty nor her Council, but dalliance and farding off of time, her Majesty shall first discredit her Ministers, which is not much, but next and by them discredit herself, to be counted as uncertain, irresolute, unconstant, and for no prince to trust unto — but as to a courtier who hath words at will and true deeds none.”³⁵²

Elizabeth, however, would give no answer about Alenon, and could not decide whether to punish or pardon the late conspirators. The same in everything — with Norfolk, with the Queen of Scots, with Scotland, with her marriage, with the terms of the alliance — she could decide on nothing. From a mixture of motives, some honourable to her, some merely weak, some rising from the twist in her mental constitution, she hesitated to adopt, and she would not reject, the means which were pressed upon her for securing her throne, and she laid with flapping sails drifting in the gale.

With such spirits as they could collect under these hard circumstances, the English envoys went to work upon the treaty, encountering obstacles which only the steadiness of the French King prevented from being insuperable. The Pope, knowing well the stakes which were being played for, entreated, prayed, and threatened. If Charles would come back to his allegiance to Holy Church, he offered to make him General of the Holy League against the Infidels, and “Emperor of Constantinople.”³⁵³ He sent his blessing, and substantial tokens of it, to his saintly child Anjou; who, as Smith said in scorn, would make the Pope, in recompense, Caliph of Bagdad — Summum Pontificem Babylonige. The pressure of all Catholic France was brought to bear against the King’s resolution; and, considering his age and training, his perseverance was not a little creditable to him.

Among the first conditions discussed, was a clause binding the two Governments to stand by each other in case of invasion. Walsingham, knowing the loopholes provided by Papal dispensation, desired France to bind itself to support the Queen of England if she was invaded in the name of religion.³⁵⁴ The King promised the most liberal interpretation of the general phrase. He would undertake to assist the Queen for “any cause,” and “any cause” implied religion;

³⁵²Same to the same, April 22; Sir Thomas Smith to Burghley April 22 ‘bid.

³⁵³Sir T. Smith to Burghley, January 18: MSS. France.

³⁵⁴“Etiam si causa religionis.”

but he said that he dared not encounter excommunication and rebellion with no better security than so far Elizabeth would offer him. He feared, as Walsingham explained, that "with her overmuch lenity she could not in policy long stand;"³⁵⁵ if she would marry his brother, he would say anything and do anything that she pleased.³⁵⁶ Burghley had argued in England to the same purpose. He told La Mothe that he would gladly pass many a sleepless night to bring the Queen to consent; but he doubted much if he could succeed. La Mothe, to quicken her movements, told her that if she maintained her present attitude, an article would have to be introduced in favour of the Queen of Scots and Scotland; and Elizabeth, in a rage, directed Sir T. Smith to put in a counter-reservation for the protection of Philip and Philip's dominions.³⁵⁷

Desperate at so extraordinary a proposition,⁵ Walsingham requested to be recalled, confessing, u that the evil proceedings of things at home moved him the rather to make that motion.' "If her Majesty, he added — in language which was as well deserved when the words were written, as a few months later it must have sounded like a mockery — "if her Majesty do think that this prince is of any value, who is towards all men sincere, and towards her Majesty well affected, she must not weigh him in one balance with Spain."³⁵⁸ Charles was too anxious for the success of the treaty to press heavily on points of difference. To the intercession for the Queen of Scots, Lord Burghley replied that "it would be mere open folly in her Majesty to yield to anything which would better her condition."³⁵⁹ He told La Mothe he would rather advise the Queen to accept

³⁵⁵Walsingham to Burghley, March 2: MSS. France.

³⁵⁶"If you can put me in comfort that the Due d'Alenpon shall not be refused, you cannot ask the thing at their hands but it shall be granted." — Sir T. Smith to Burghley: MS. Ibid.

³⁵⁷"If they continue to make difficulties about Scotland, you shall move that there be a reservation made for the King of Spain and his countries by name." — Elizabeth to Sir T. Smith: Digges. "The article of the provision for the King of Spain is strangely taken here. The end of the league being only to bridle his greatness, to provide for his safety who seeketh both our destructions, they cannot tell what it meaneth." — Walsingham to Burghley, March —: Ibid.

³⁵⁸Walsingham to Burghley, March —: Digges.

³⁵⁹Notes in Burghley's hand, March 28: MSS. Queen of Scots.

war with France and Spain combined than set her at liberty.”³⁶⁰ But the move in the Queen of Scots’ favour had been made for form’s sake, or as a spur to Elizabeth. The discoveries at Harwich had again proved that Mary Stuart’s hopes and interests were now exclusively with the Spaniards, and the Queen Mother said that they would speak for her no further.⁴ The difficulty on the invasion clause was got over by the King consenting to write an autograph letter under the great seal of France, construing the language of the treaty as the English desired. The Scottish question was postponed to a more convenient season, the two Governments agreeing to act in concert about it; ⁵ and on the 19th of April, the treaty so much dreaded by the Catholics between France and England was sealed and signed — the Queen of Scots, to the dismay of her friends, being passed over in silence.³⁶¹ Would it hold? that was the question; without the guarantee of the marriage, there were doubts whether it was worth the parchment on which it was written. No sooner were the terms agreed on, than Montmorency, the heir to the name and policy of the great Constable, “a lover of England as much as any in France,” was sent over with De Foix to receive the ratification of Elizabeth; and at the same time, for the closer union of the two countries, and for the welfare of Christendom, to make a formal offer of the *Due d’Alençon*, and sue at the Queen’s feet for the alliance with which she had so long been trifling. The choice of Montmorency for such a mission removed from the proposal all appearance of sectarianism. The was not sought in the interest of the Huguenin the interest of the free spirit in France, which was struggling to check the Catholic reaction, and labouring nobly to save the fruits of the great movement of the past half century from being drowned in blood. u ‘pjjgy were going”* — so ran the instructions of the French Government to the two Envoys “they were going to England to complete a treaty which had been the subject of so much anxious expectation; and after receiving the oath of the Queen, they would offer her, in his Majesty’s name, the hand of his youngest brother. Marriage, they would say, was the surest bond of treaties. The

³⁶⁰Sir T. Smith to Elizabeth, April 3: Digges. “Consideration of the matters of Scotland, how the same may be ordered to the contentation both of France and England, March 28,” Burghley’s hand: MSS. Scotland

³⁶¹“En la dicha liga no se trata nada de la restitucion 6 libertad de la Reyna de Escocia, por lo qual parece que ella quedara como prisionera en Inglaterra.” — Avisos de Inglaterra: MS. Sima/ncas.

King had thought at that a union might be brought about between d' Anjou and the Queen of England; objections had arisen from differences of religion, which could not be overcome; but being, unable to part with his hope, he desired now to make a second proposal of the Due d'Alençon, who was better fitted in many ways for her Majesty's acceptance." The Envoys would dwell on the benefits which might be confidently expected from such a union. They would say, that there was nothing in the world for which the King and the Queen his mother were more ardently anxious; and so sincere was Charles in his eagerness, that in the belief that Leicester was still the secret obstacle, Montmorency was empowered to offer him the hand of a princess of the House of Bourbon as the price of his support.³⁶²

They arrived in London to witness the opening of the most remarkable Parliament which had met since the Queen's accession. Shifting y from hour to hour, now inclining to France,, and now to Spain; now resolute to send Norfolk to the scaffold, and indict the Queen of Scots for treason, to send troops to Scotland and end disorder there with a high hand; now dreading that decision upon one point would bring with it decision upon all, and perhaps oblige her to accept her French suitor; listening now to Burghley and Bacon, now to the insidious tongues which whispered about her closet — Elizabeth had consented at last to the calling of a fresh Parliament, where she could learn the opinion of so much of England as was loyal to the throne. On the 8th of May the session began. The Lord Keeper's speech intimated generally that the country was in danger. There was no special mention of persons or things; but the Council had made up their minds to introduce a Bill of Attainder against the Queen of Scots, and to invite both Houses to join in a petition for justice against the Duke of Norfolk.³⁶³ At the desire of the Lords, who, after the arrest or flight of the leading Catholics, were under Burghley's control, a Committee of the two Houses met immediately in the Star Chamber, to devise "how to proceed with the Scotch Queen;" and on the 19th, the Commons, after receiving the Committee's report, resolved to attain her, and so "touch her in life as well as in title."

³⁶²Commission to Montmorency and M. de Foix going to England, April t La Mothe, Vol. VII.

³⁶³Leicester to Walsingham, May 21: Digges.

Mary Stuart, who took her notions of the disposition of the English people towards her from priests and fanatics, so far from conceiving that she was in any danger from the Parliament, had threatened Elizabeth, that if • an attempt was made to cut her off from the succession, she would appeal by deputy and raise the Houses against the Queen.³⁶⁴ She little guessed the temper which she had succeeded at last in rousing. Mary Stuart, the next in blood to the Crown, the half-known Queen of reformed Scotland and tolerant of another creed though true to her own; Mary Stuart, the wife of Darnley, and sprung herself from a marriage devised by the forethought of Henry VII. for the union of the Crowns: such a Mary Stuart had been looked upon by Catholic England with passionate hope, and by half-Protestant England with more than favourable expectation. Mary Stuart, the murderess, the conspirator against the life of the Queen; Mary Stuart, who had sought to bring England again under the yoke of the triple Crown and sell its liberties to the Spanish King — this Mary Stuart might continue still an object of interest to the proud nobles of the old blood, to whom liberty was detestable, or to the venomous bigots who knew no crime but heresy, and no virtue but allegiance to Holy Church. But to most even of the ruling families, England was dearer than prejudice. The revelations on the Duke of Norfolk's trial, and the publication, late though not too late, of the true history of Darnley's murder, had gone like an electric shock through the masses of the people; and the same men who had been the Queen of Scots' friends in past sessions were now ready and but too willing to send her to the scaffold.

As soon as the Commons had passed their resolution, Convocation instantly took it up. The Queen was understood to be still determined to protect the Queen of Scots. On the 20th the Archbishops and Bishops waited upon her in a body at St. James's Palace to explain to her that it would be a crime in the sight of God to prevent justice from being done.³⁶⁵ Their arguments were mainly theological. "Magistrates," they said, "were instituted by God for the suppression

³⁶⁴"Je me suis contrainte par cette lettre, n'ayant autres moyen, protester que si en aucun parlement il se pretend faire quelque chose au prejudice de non droit aprés vous, mon intention est de m'y opposer et le debatre en l'assemblde d'ung parlement." — Mary Stuart to Elizabeth, April 30: L&banoff, Vol. IV.

³⁶⁵MS. endorsed in Burghley's hand, "A Writing exhibited by the Clergy of the Higher House to the Queen's Majesty at St. James's to move her Majesty to assent to Justice against the Scottish Queen, May 20:" MSS Mary Queen of Scots.

of wickedness; Mary Stuart was wicked, and the Queen would therefore offend in conscience if she did not punish her. "Respect of persons" was partiality, which God had forbidden; and whether the late Queen of Scots was Queen or subject, stranger or citizen, kin or not kin, "by God's word she deserved to suffer, »and that in the highest degree." Saul spared Agag Because Agag was a king, and for that fault God took the kingdom from Saul. Ahab pardoned Benhadad, and Ahab's life was forfeited. The sentence of the prophet on Ahab "was spoken to the Lord James Stuart, the late Regent of Scotland, when with too great lenity he proceeded there;" and judgment was executed but too faithfully upon the Lord James. The special Providence of God had placed the Queen of Scots in her Majesty's hands to be punished; and if her Majesty was found wanting, the Bishops said they could but pray that her own fate might not be like that of the Regent's. Those who seduced the people of God into idolatry were to be slain; there was an express order that no pity should be shown them. The Queen of Scots had sought to seduce God's people in England: she was the only hope of God's adversaries in Europe, and the instrument by which they trusted to overthrow the Gospel. She had heaped together all the sins of the licentious sons of David — adulteries, murders, conspiracies, treasons, blasphemies. If she was allowed to escape, God's wrath would surely light on the Prince who spared her. The safety of England the death of the devilish woman who had bring it to confusion: conscience, prudence, duty pointed to the same conclusion. Her Majesty feared for her honour: the shadow of honour had deceived Saul, and Ahab thought it dishonour that one king should slay another. But God's judgment was not as man's. Joshua, in the spirit of true honour, slew five kings at once, and slew them rudely. The wicked Jezebel and the wicked Athaliah, both inferior in mischief to the Queen of Scots, had been executed with God's approval. To show pity to an enemy, a stranger, a professed member of Antichrist, convicted of so many heinous crimes, with the evident peril of so many thousands of bodies and souls of good and faithful subjects, might justly be termed *crudelis misericordia*."

So spoke the English Bishops, conveying in the language of the day the conviction of the soundest under standings; yet Elizabeth's reluctance to allow a Bill of Attainder to be proceeded with, was not removed by their arguments, and she was possibly provoked by their interference. Her answer has not been preserved, but it was so little

satisfactory that Burghley became dangerously ill with anxiety. The great minister would yield neither to objections nor to sickness. He could not stand, but he was carried in his litter to Parliament. He was carried in his litter to the Queen's presence. He strained every nerve to move her; but he still failed.³⁶⁶ The Commons had expressed impatience that Norfolk was left unpunished. Leicester informed Walsingham that he saw no likelihood of the Duke's execution.³⁶⁷

Profoundly depressed, Burghley nevertheless held on in his course. If he could not prevail upon the Queen by persuasion, he could maintain the pressure of the Parliament upon her. The success of the French treaty, the future policy of the French Government, depended on the energy to which Elizabeth could be roused. Neither Charles nor Catherine would risk the chances of a European war by the side of a woman whose life at best was all they had to trust to, and whose purposes seemed variable as the wind.

The agitation of the House of Commons continued, and the Queen at length was forced in some degree to give way. She persisted still that the Bill of Attainbe dropped; she said "she could not put to bird that had flown to her for succour from;" but she sent the Commons word that she resist a measure of inferior severity. The answer did not satisfy them. While the Queen of Scots lived no Succession Bill would make her a single degree less formidable. They continued to insist upon hard measures; and on the morning of the 28th of May a message came from the palace that the Queen would receive a deputation from the two Houses and hear what they had to say. Court and Parliament were early in their habits, and at eight o'clock the Joint Committee which had recommended the attainder were in Elizabeth's presence.

They said briefly that God had given them a sovereign with whose administration they were generally satisfied, and that they did not desire to lose her. The Lady Mary Stuart, a Queen of late

³⁶⁶The Commons are sound throughout, and in the Lords there is no lack; but in the Highest person such slowness and such stay in resolution as it seemeth God is not pleased that the surety shall succeed. With this and such like I am overthrown in heart. I have no spark of good spirits left in me to nourish health in my body, so as now I am forced to be carried into the Parliament House and to her Majesty's presence. To lament openly is to give more comfort to our adversaries. I see no end of our miseries. The fault is not with us, yet it must be so imputed for saving the honour of the Highest." — Burghley to Walsingham, May 21: Digges.

³⁶⁷"Great suit is made by the Nether House to have execution of the Duke, but I see no likelihood." — Leicester to Walsingham, May 21: Ibid.

times, but through her own acts justly deprived of that dignity, had taken refuge in her Majesty's dominions, her Majesty having once already saved her from certain penalties which "by her horrible doings" she had entirely deserved. Her Majesty might have legitimately proceeded against her for past attempts upon her crown. Instead of doing so she had befriended and protected her, and the unnatural lady had rewarded her hospitality by fresh conspiracies. Her Majesty considered that she would be sufficiently punished if she was declared unworthy of a place in the succession, and if it was understood that should the Queen of Scots conspire again, "she should suffer death without further trouble of Parliament." The Committee said that for themselves they believed any such measure would be found entirely inadequate. To disable the Queen of Scots from the succession would indirectly be an admission of her right, and so far from discouraging either her or her friends, it would make, them only more desperate and determined. Experience of Mary Stuart's character had proved that she neither respected law nor feared danger. Threats would not work upon her. She wanted neither wit nor cunning, and "many would venture deep to win a kingdom." Her Majesty was supposed to fear the opinion of foreign princes. It was no wise anxiety to think so much of her honour as to lose state, life, and honour also; and should the Queen of Scots escape, foreign princes would only think that she had been culpably weak. Her adversaries would consider it a miracle, and no heavier blow could possibly be dealt to the cause of Christ in Europe. The Committee therefore entreated her Majesty "to deal rather certainly than by chance." Merely to disable the Queen of Scots would be more beneficial to her than injurious, and would be dangerous in many ways to the commonwealth. A king in another king's realm was a private person, a king deposed was no king, and the dignity of the offender increased the offence. "Justice and equity were to be preferred before private affections;" "and to spare offenders in the highest degree was an injury to the Prince and the realm." ³⁶⁸ The Queen, whatever may have been her private impatience, was too prudent to reply, as she had replied before on other subjects to the representatives of the people. She admitted that the course which the Committee recommended was "the best and surest way. She was perfectly aware that so long as the Queen of Scots lived, she

³⁶⁸Journals of Parliament, 14 Elizabeth: D'Ewes.

would never herself be secure; yet partly from weakness, partly from the peculiar tenderness which from first to last had characterised her dealings with her cousin, partly, it may be, from an instinctive foresight of the hard construction of posterity, she shrank from granting what she could no longer positively refuse. She thanked the Houses for their care for her safety. She asked them only to "defer their proceedings" for a time, and pass the less extreme measure meanwhile. The Law Officers of the Crown, she said, could contrive means of evading the particular difficulty which the Committee had raised..

However carefully expressed, the meaning of this was but too obvious. "The bosom serpent was still to be shielded from justice, and the Catholics abroad and at home were to construe Elizabeth's infirmity into fear, or into blindness inflicted upon her by Providence. There was no present remedy: the Queen of Scots was safe; but the same plea could not be urged in defence of the companion of her treasons. The Duke of Norfolk was no anointed prince whose sanctity might not be violated, and the suspense with him too had been set down to miracle. Their first request being evaded, the Lords and Commons were the more determined that their second should be granted; and they petitioned in form that the Duke should be executed without further delay.

On this point, with the deepest reluctance, Elizabeth felt that she must yield. She desired only that the petition should be withdrawn, that she might save her credit and be supposed to be acting freely. She once more signed the warrant, which this time was not withdrawn, and early on the 2d of June the Duke was led out to suffer on Tower Hill. In the few words which he addressed to the people, he still called himself innocent. He said, as he had said at his trial, that treasonable overtures had been made to him, but that he had not consented to them; and he declared that he had never been a party to any conspiracy for bringing the Spaniards into England. His protestations cannot avail his memory. His instructions to Ridolfi, and his own letter which survives at Simancas, leave no room for doubt that he was lying. He added, and he called God to witness, "that he never was a Papist since he knew what religion meant," "that he had always detested Papistry and still detested it." The Spanish agent of the Duke of Alva, who witnessed the execution, could suppose only

that in making an assertion so opposite to his declaration to the Pope, he was nourishing to the last some hope of pardon.³⁶⁹

He was desired to be brief. No respite came, if he looked for it. He shook hands with all who were standing round him, gave the executioner a purse of sovereigns, knelt, said a few prayers, and recited the 51st Psalm. It was observed that at the 18th verse he altered the words, and for "Build thou the walls of Jerusalem," said, "Build thou the walls of England." He then threw off his cloak, refused to allow his eyes to be blinded, laid his head upon the block, and died at a blow.

It has been eloquently said that the grass soon grows over blood shed upon the battle-field, but never over blood shed upon the scaffold. Treason is an offence which rarely exists without seeming excuse. It pleads of history as an effort, if an unwise one, to an honourable cause; and when the calamities which it 'has occasioned or threatened to occasion are forgotten or have ceased to be feared, compassion for the sufferer is changed by an easy transformation into condemnation of his judges. The most exaggerated sentiment will scarcely venture to censure the punishment of Norfolk. Others were perhaps more faulty than he had been. He was drawn unwillingly into the conspiracy, and his infirmity of purpose was the principal cause of its failure; but his reluctance was an aggravation of his guilt, for it was the confession of the absence of any generous motive which could have excused him. He was no Catholic fanatic burning with misplaced zeal for God's honour; he was no patriot legitimately displeased with the misgovernment of his country. He was tempted into disloyalty by the poor personal ambition of becoming a husband of a woman whom he knew to be infamous, and he had dishonoured his lineage with perjury and cowardice.

Parliament meanwhile was occupied with the second measure against the Queen of Scots which Elizabeth had affected to recommend. The one effective means of cutting her off from the succession would have been the recognition of her son; but Elizabeth, for her own reasons, would not hear of this; and on the 5th of June the Attorney-General brought in a Bill which to have received her approbation, with an in from her Majesty that she wished it to be passed as soon as possible. The provisions are but generally known,

³⁶⁹"Algunos han juzgado que decia esto con esperanza de perdon." — An tonio de Guaras al Duque de Alva, June, 1572: MS. Simancas.

for it never became law, and Elizabeth never seriously intended to sanction it. She professed to fear that it would give offence to France. The meaning of this will be presently seen. She had made her position extremely perplexing — perplexing to herself and perplexing to all who had to deal with her. The French Government, till they were sure of her, still kept on hand their double policy. The despatches of La Mothe, who as a Catholic was not admitted to a full knowledge of State secrets, are full of interest in the Queen of Scots, and imply or seem to imply an equal interest on the part of Charles and Catherine. Yet Walsingham at the same time could write from Paris, "that as long as the Queen of Scots lived there would never grow good accord in Scotland, nor continuance of repose in England, nor perfect and sound amity between her Majesty and the French Crown."³⁷⁰ The situation is generally intelligible, the details on many points remain obscure.

The Bill, in compliance with Elizabeth's seeming wishes, was laboured over by Lords and Commons, forming almost the entire business of the remainder of the session. At length it was passed. On the 30th of June the Queen came down to the House of Lords to give her consent, but, instead of consenting, she said she would think over it during the summer, and prorogued the Parliament till October. "We made a law," Burghley wrote to Walsingham, "to make the Scottish Queen unable and unworthy of succession to the crown. It was by her Majesty neither assented to nor rejected, but deferred to All Saints. What all other good and wise men think thereof you may guess.

Some here have, as it seems, abused their favour about her Majesty to make herself her worst enemy. God amend them. I will not write to you who are suspected.⁵⁹ And now what answer was to be given to Montmorency and to the offer of the Due d'Alençon? More tremendous issues were hanging upon Elizabeth's decision than she knew of. But she did know that France was looking to her reply — was looking to her general conduct, to ascertain whether she would or would not be a safe ally in a war with Spain, and that on her depended at that moment whether the French Government would take its place once for all on the side of the Reformation.

³⁷⁰Walsingham to Burghley, June 28: Digges. 24

An event which had just taken place on the coast of Holland had increased the gravity of the situation, and made the Queen's decision more than ever momentous.

It was seen that the expulsion of Don Guerau was a signal for the refugees to make fresh efforts to rouse Philip. The language of Reginald Pole was revived by the Ultramontane faction, whose own desire was to see Don John of Austria come northward with the squadron of Lepanto, and commence another crusade against the Turks of their own country.³⁷¹ As the Catholic party was losing its national character and passing into vulgar conspiracy, the conduct of it fell more and more to the brood of English clergy at Louvaine. They were men whose all in all in earth or heaven was the faith of the Church; and one among them especially, Nicholas Sanders, once an Oxford student, who had kindled his piety at the flames which burnt Cranmer, was sent for to Rome, to Pope Pius, to consult on the best means of setting the rebellion on its feet again.³⁷²³⁷³

In England, meanwhile, there remained to represent Spain, when Don Guerau was gone, the two Commissioners, Antonio de Guaras and M. Schwegenhem, who had been employed by Alva to negotiate the commercial quarrel. With the Ambassadors on both sides dismissed, and the privateers which infested the Channel, Elizabeth and Philip were at war in all but the name; but the conspiracy having come to nothing, both they and Alva had their reasons for wishing to avoid an open rupture. Alva was beginning his great scheme of taxation, by which the Netherlands were to pay the cost of their conquest. His ability in the field was rivalled by his incapacity as an administrator; and the manufacturers and artisans of Bruges and Ghent and Antwerp, who had learnt to endure the Inquisition, were threatening to resist in arms the confiscation of their property. The Prince of Orange was watching his opportunity to turn the mutiny

³⁷¹ir Francis ENGLEFIELD.nglefield writes in the same strain to some one in Spain « Ego quidem nee breviorē nee commodiorē viam his mails subveniendis video, quam ut Sure Majestatis mandato Illustrissimus Prmceps Don John de Austria revocetur et in Oceanum ex Man Mediterraneo.terraneo cum spa

³⁷²N. Sanders to the Earl of Northumberland, January 23: MSS. Flaw den.

³⁷³« Our contraries say they will have help now, m consequence of the great overthrow that Duke John of Austria hath given to the Turk; and that his next enterprise shall be to subdue the English Turks, which may easily be performed as they say, considering the great force of foreign powers which he shall bring with him, together with the great aid he shall have as well with us as with the Scots.” - Lee to Burghley, December 7. 1571. Lee was one of Cecil's spies in Flanders....

to guis copiis veniat remque feliciter aggrediatur. Quod si fecerit, spes remedii certa est; nee profecto ita luculenta spes lucri ad Rempublicam Christianam perventuri effulget, si tarn numerosa veterum Christianorum multitudo permittatur se in novos Turcas convertere; dum incerta, spe insistatur veteri ex Turca novos Christianos effici posse." — Sir F. Englefield to -: MB.

Bimaneas. account, and Alva was well aware of the intentions with which France and England had drawn together. His object was, if possible, to divide them, and when the Spanish Ambassador was dismissed, he bore the insult and did not recall the Commissioners, and Elizabeth, for her own purposes, was willing that they should remain. The reopening of the Flanders trade was of great importance to London, and the Queen was glad to keep in play with Spain as a means of escape, should all else fail, from the embraces of Alenon. She began, therefore, at last, to interfere seriously to put down the privateers; their prizes were occasionally taken from them and restored to the owners; and although De la Mark, the admiral, complained that "he was but making war against the common enemy, the Duke of Alva," he was told that if he remained any longer on the English coast, he would be treated as a pirate.³⁷⁴ The officers of the ports were forbidden to furnish him with supplies, and the English sailors on board his ships received orders to leave them. It had been argued in the Admiralty Courts that "the Prince of Orange, having his principality of his title in France, might make lawful war against the Duke of Alva; the Queen would violate the rules of neutrality if she closed her ports against his cruisers."³⁷⁵ Schwewas informed, however, that this objection would no longer be maintained; the privateers should be obliged to withdraw; and her Majesty trusted that the Duke of Alva would recognise the good faith with which she was acting. English noblemen, English priests, and others engaged in levying war against their native country, were notoriously entertained and assisted in the dominions of the King of Spain; the Queen expected that the King

³⁷⁴De la Mark to the Council, January, 1572.

³⁷⁵"Aliqua ratione injuriosum videri potest immiscere se actibus et litibus exterorum principum qualis est iste Princeps Oregianus, quern constat liberum esse Principem Imperii; et, ut apparet, eum ipsi Impel atori et Statubus Imperii acceptum turn etiam Galliarum Regi, in quo regno possessiones multas obtinet, satis gratum." - Responsio Articulis quibusdam a Domino Schwegenhem propositis, February 22: MSS. Flanders. "Sum of the answer made to M. Schwegenhem attending for the King Catholic, February 22." Burghley's hand: MSS. Spain.

would follow her example, and in return for the expulsion of the Prince of Orange's fleet, would send these persons about their business.

Deep treachery on both sides lay concealed beneath these hollow courtesies; yet both Elizabeth and Alva desired to leave a loophole for reconciliation in case of a rupture with France. The outstanding differences were not settled; the captured money was not restored; but a temporary commercial treaty was drawn up, to last for two years, and trade between England and the Low Countries was reopened by proclamation on the 30th of April.

The secret conspiracies, meanwhile, were not relaxed on either side. The refugees still remained at Louvaine, as busily employed as ever, and Alva continued to aim through Scotland at Elizabeth's unguarded side; while the private meaning of the expulsion of De la Mark was revealed in an exploit which had been long concerted, and which formed a notable comment upon the good faith with which the English Government pretended to be acting.

The order to leave England was sent down to De la Mark the last week of February. He lingered at Dover, with the connivance of the officers of the harbour, till the end of March, when a convoy of Spanish traders on their way to Antwerp appearing in the Straits, he at last put to sea. It has been said that he started with no definite intentions, that by Elizabeth's orders he was unsupplied even with provisions, and that what he accomplished was under the impulse of desperation.³⁷⁶ It was convenient both for Elizabeth and De la Mark that it should be so represented to the world; but the Spanish Ambassador had sent a sketch of the projected movement six months previously to at Dover to have allowed such instructions to have been executed were it true that they had been seriously given.

De la Mark's first step on clearing the harbour was to dash upon the merchant fleet. Two large vessels, one of which was worth, it was said, 60,000 crowns, were taken, and their crews flung overboard.⁸ The rest fled up Channel with the rovers in close chase. A few days later the privateer squadron was seen anchoring," at daybreak, in the mouth of the Meuse, opposite the town of Brille. A boat came on shore, with a summons to the Governor to surrender to the Admiral of the Prince of Orange within two hours. He might, perhaps, have resisted, for the batteries were well armed; but the terror of De

³⁷⁶Rise of the Dutch Republic, Vol. II. p- 351.

la Mark's name struck the citizens into a panic. They fled in all directions, taking with them as much property as they could carry. The crews landed, burnt the gates, and entered without difficulty. The churches were plundered, thirteen miserable monks and priests, who had neglected to escape, were murdered; but there were no further outrages, and "the sea beggars" had firm and quiet possession of an important station which by land was all but impregnable. Count Bossu, Alva's Stadtholder, flew from Utrecht to the rescue; but he found the dykes cut and the country under water. Brille, for the present, was lost. Rotterdam was likely to revolt at the news, and thither Bossu hastened, to find the gates closed and entrance refused. Promises made to rebels and broken when they had answered their purpose, were the legitimate stratagems of Spanish warfare. Bossu entreated only that his men might be allowed to pass through, and swore that no hurt should be done to any one. The burghers weakly consented, and to prevent the contagion from spreading, there was a general massacre of men, women, and children. But Bossu gained little by his treachery. Preparations had been made all along the coast towns for a rising, and De la Mark's arrival was the signal for it to break out. The success at Brille was scarcely known in England, when news came that Flushing had risen also, overpowered its garrison, and fired upon Alva's fleet. The English Government had lighted the train, and looked quietly on. The excitement in London was uncontrollable. Torrents of money poured out of the Protestant churches, and streamed May' across the Channel converted into guns and powder. The Flemish exiles formed in companies and went to join their comrades, accompanied by hundreds of English volunteers, and the cry rose in Parliament and out of it to drive the accursed Spaniards out of the Provinces forever.³⁷⁷ The Bishops

³⁷⁷ On the 24th of May De Guaras writes: — "Es increíble cosa las pasiones desta gente: con toda la solitud que pueden, envian todas las municiones, dineros y ayuda, k la Brilla y Flushing, y mucha gente dellos, y asimismos persuaden a muchos Ingleses ir alia. Por las calles hay grandes lamentaciones por la fama que han echado, de que en Rotterdam no solamente mataron a todos los hombres, pero a todas las mugeres y niños, y asi lo creen todos los Ingleses, que la mejor palabra es que somos tiranos, y a proposito desto en este parlamento hacen gran instancia los que se nombran Obispos especialmente que conviene al estado de Inglaterra publicar guerra contra su Magd, y esto lo tratan con gran vehemencia. And again on the 29th: — "De las nuevas que vienen de ay de los trabajos que hoy se ofrecen es increíble el contentamiento que nuestros rebeldes y cassi todo este pueblo y lo menos que dicen todos con grandes voces en la Bolsa y calles, es que esos Estados son per-

petitioned to declare war and complete the work. But at first as if no help was needed. Through Holland, Utrecht, Overijssel, port after port the example of Flushing. Enkhuizen, the Spanish arsenal on the Zuyder Zee, Dort, Leyden, Haarlem, Alkmaar, all rose, destroyed or expelled their garrisons, and raised the standard of freedom. The time was come for which Orange had been so long looking and preparing. While the Prince himself collected an army in Germany, Count Louis, La Noye, De Genlis, and other Huguenot leaders, with the connivance of the French Court, stooped suddenly upon Hainault, seized Mons, and threw into it 2000 of Coligny's bravest troops. Montgomery joined him a few days later with 1500 more, and De Genlis went back to Paris to bring up reinforcements which Charles himself had promised.³⁷⁸³⁷⁹

The Duke of Alva had been on the point of relinquishing his government; his successor was at last actually on his way, and he believed that he had extinguished in blood the last spark of the insurgent spirit. He had raised a monument to his own greatness in the Great Square at Brussels, as Conqueror of the Netherlands, and now the Netherlands were not conquered; the great marts of industry were nests of maddened hornets; and the dreaded French were in a fortified town a few leagues distant from the capital. Disasters came thick on one another. Medina Celi sailed into the Scheldt, with

didos del todo; y que vuestra Excellencia con los Espafioles que ay se hallan han de salir de la tierra." Antonio de Guaras al Duque de Alva: MS. Simancas

³⁷⁸Para saber mas a los Franceseses y asegurarles desta voluntad, me hizo la Reyna de Inglaterra salir de su Reyno, que hasta entonces los Franceses decian que aquella Reyna pretendia la amistad de Francia, solamente para negociar mejor con V. Magi, y assi con mi salida penso darles seguridad desta sospecha, como ello ha sido, y asi han concludido su liga, para la confirmacion de la qual en Inglaterra se celebra gran lamento, y se guardau all! el Marshal de Montmorency, y en Francia el Almirante de Inglaterra: y en el entretanto ha tralado lapresa de Brilla y levantamiento de las tierras de Zeeland. Desta presade la Brilla tuvoel Embajador aviso en Inglaterra seii meses antes que se executase, y did aviso della al Duque de Alva. No entien- den sino en robar los subditos de V. Mag, y alterarle los Parses Baxos, para repartirlos entre si y el Duque de Anjou y Principe de Orange, y destruir la Religion Catolica en toda parte," &c. — Relacion dada por Don Guerau de Espes. Autograph: MS. Simancas.

³⁷⁹La tlote de Flandres qui revenoit d'Espaigne est passde le xxviii. de Mars dans l'estroict de Calais; et les vaisseaulx du Prince d'Orange ont Lvonnd sur la queue; qui ont prins deux ourques bien riches; dont l'una g'estime valloir plus de soixante mille escus, y ont jettd la pluspart de ceulx qui estoient dedans hors bort dans l'eau." — La Mothe Fenelon, April U Depeches, Vol. TV

some thousands of fresh troops, and chests of bullion to pay them. Dreaming of no danger, he passed under the guns of Flushing, and lost half his fleet and all his money. A thousand Spanish soldiers were taken, and half a million crowns in gold and jewels. Alva well knew the meaning of these symptoms. Unless he could divide France and England, or bring about a Catholic revolution in one or both of those countries, in a few months the armed hand of the united Protestantism of the world would be upon him, and crush him into dust. The Catholics of England had failed him, and he had no leisure now for Scotch experiments; would the French Catholics succeed better? "He tore his beard for despite," and to one who saw and spoke with him, "he seemed to despair that things would any more succeed as they had done." But Alva knew better than to sit down in despondency. Walcheren was not lost, for Middleburgh held out, and was safe for the summer. Leaving the revolted towns to enjoy their freedom, he concentrated his force at Ghent, Brussels, and Antwerp. A change of government at such a time was not to be thought of. Medina Celi, by his own act, suspended his commission. Mons was chosen for the first point to be attacked; while the Duke directed all the resources of diplomatic adroitness on the Anglo-French alliance. In England, his best hopes were with Elizabeth herself, on whom he could work through the back influences of the bed-chamber; in France, he looked to Catholic fanaticism, which was lashing itself to madness at the ascendancy of the Huguenots at the Court, and at the control which they were assuming over the public policy of the nation. Whatever skill, courage, and ferocity could achieve in the way of assistance, he could calculate upon with certainty from the Cardinal of Lorraine, the Duke of Guise, and the mob of Paris. Had the Royal Family been as Protestant as Coligny himself, they could not maintain themselves in a liberal policy without England to support them. They must have yielded to the Catholics, or they would themselves be the first victims of an otherwise inevitable collision.

So matters stood when the English Parliament rose, and Elizabeth had to decide on the Alençon marriage. The French Court were at the moment giving another proof to Europe of their Huguenot sympathies. A second marriage had been arranged between the Princess Margaret and the young King of Navarre. The Catholics had struggled desperately to prevent it, but Charles had been resolute. At the

beginning of June, a magnificent state reception was given to the bridegroom at Paris. After a week of splendour the Court broke up, and went into the country, to reassemble in August; when the whole French nobility, Protestant and Catholic, were to be present at the royal nuptials. Lord Lincoln, who had come over for the ratification of the treaty, returned to England loaded with presents; and the King at his departure expressed a hope that his sister's would not be the only marriage on which those who wished well to Europe would have to congratulate themselves.

Two honourable courses were open to Elizabeth, either of which would have satisfied the French Government, and would have been equally advantageous to the cause which she ought to have had at heart. If she could not bring herself to accept Alenin, she might have declined without offence on the ground of inequality of age, but at the same time she should have given Charles a security for her political constancy by declaring war against Spain. He feared, and feared with justice, that she was trying only to excite confusion on the Continent; and that when France had once committed itself, she would fall back on the hereditary English policy, and either stand neutral in the quarrel, or perhaps, if France was likely to be too successful, even join with Philip.³⁸⁰

Of the willingness of the English people to assist the Netherlanders there could be no doubt. Captain Morgan, one of the privateer captains, went over with 500 volunteers on the instant of the news of the revolt. A few weeks after, Sir Humfrey Gilbert followed with a second detachment, having gone with the sanction of Cecil certainly, and almost with the sanction of the Queen — almost, but not entirely. The French King flattered himself that war must follow had not come, and so long as doubt recontinued to press the other point.

Alenon was under twenty, stunted in size, pitted with the small-pox, and in all ways not beautiful. His person, however, was never supposed to be his recommendation. The Queen said reasonably, 'July' that in a matter of public importance this objection was of no

³⁸⁰ *Angli quibus has turbas in his locis excitat® sunt non hoc consilium nee scopum sibi proposuerunt ut Belgicam ditionem ad Gallos aliquando transferant; id enim sibi valde incommodum et suae politione contrarium fore vident; sed ut his artibus Regem Philippum Belgicis tumultibus hic implicant, utque is cogatur opes copiasque suas in suis rebus recuperandis ac tuendis consumere, quod Galli his proximis duobus circiter annis, illorum pessimis artibus etiam vehementer ad hoc impulsus, facere coacti sunt.* — to Sir F. Englefield, June 1572: MS. Simancas.

consequence. She could not resolve at once, but she promised to give an answer in a month.³⁸¹

As usual, the days passed on and brought no decision with them. All the Council, unless Leicester was a secret exception, wished her to consent; so much she knew, but the effect was only to make refusal difficult. One day "she would not marry a boy with a pockspoilt face." The next, "she was moved by the importunities of those who worked upon her mind. On the 23d of July, she told La Mothe Fenelon positively that it could not be; on the 25th she bade Walsingham ask Alençon to come and see her, that "she might try if she could like him." "Surely," wrote Burghley, on the 27th, "her Majesty finds the marriage to be necessary for her, and yet the opinion of others, misliking the party for his person, doth more hinder her purpose than her own conceit. I see such extremities on both sides as I can make no choice. Without marriage all evils must be looked for; by marriage without liking, no good can be hoped.

Events in those fierce times would not wait for the irresolution of queens. Alva had commenced the siege of Mons. The Prince of Orange was on the Rhine, with 25,000 Germans preparing to advance to its relief. An army of Huguenots was assembling in France, which the Admiral, after the marriage, intended to lead in person to Brussels. Genlis, conceiving that Mons was in danger, pressed forward first with a few thousand men. Count Louis warned him to be careful how he approached the city, and advised him to join his brother; but Genlis was confident; wishing to have the credit of raising the siege, he pushed heedlessly and hastily on; and Chapin Vitelli and Don Frederick of Toledo fell upon him and dashed him to pieces. Genlis himself was made prisoner, and afterwards strangled in prison. Twelve hundred of his followers were left dead on the field, the rest scattered everywhere, and were either murdered by the country people, or taken and shot by the Spaniards.

In itself, this disaster was of little consequence. The Prince's army was untouched, and the Admiral would soon be in the field. But it was ill timed, it added to Charles's difficulties, and shook the fortitude of the Queen Mother. The fierce blood of the Paris Catholics was simmering. "Such of the religion," Wal singh am wrote on the 26th of July, to Burghley, "such of the religion as before slept in secu-

³⁸¹La Mothe Fenelon, July 1, July 3, July 5: Depeçliet Therefore to God I leave it. The Queen is very irresolute." 1

rity, awake to see their danger, and to conclude that, unless their enterprise in the Low Countries have good success, their cause grows desperate. They have of late sent to the King, who is absent from home, to show him, that if the Prince of Orange quail, it shall not lie in him to maintain them in his protection by virtue of his edict. They desire him, therefore, to resolve upon something, offering to employ therein their lives, lands, and goods. Considering the earnest help which the Pope is giving to the other side, they see, that unless her Majesty and the Princes of Germany in like sort join with this Crown, there is no doubt what shall be the event. As you tender God's glory and her Majesty's safety, see if you can induce Tier, upon overtures first to be made by the King in their behalf to join with him in yielding assistance. If God had not raised up the Prince of Orange to have entertained Spain, the fire would have kindled before this in our own home. the Prince is to assist ourselves. For God's us declare ourselves openly. The Catholic Powers show their courage and zeal. England will only act underhand, without heart or spirit. No enterprise accompanied by fear can succeed; for there is no greater enemy to good counsel than fear. If the Prince fail, the edicts cannot be maintained."

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Her own interests, her obligations to Orange, her duty to the cause of which she was made by her position the principal representative, alike urged Elizabeth into one bold honourable course: what motive could have prompted her to the step which has now to be described, it would be unsafe and unjust, in the absence of proof, to conjecture. At every difficult stage in her career there was always in her conduct something strange, something unexpected, and on the surface reprehensible. It seemed forever as if she doubted the success or disliked the character of Burghley's general policy, and as if she desired to secure for 1 Walsingham to Burghley and Leicester. July 26: Digges. herself, in case of difficulty, a retreat into another and an opposite course. It is possible now that she was worried out of her senses by her troubles with Alen-Şon; it is possible that she was disheartened by the defeat of Genlis; it is possible that she was trying some cunning stroke of diplomatic treachery: or again — but conjectures are useless. It is enough to say that if she was sincere, she was without excuse; if she was insincere, never was a trick more stupidly played, or a moment more, unfortunate selected to play it.

³⁸²Burghley to Walsingham, July 27: Digges,

On learning that the French were in Mons, the Duke of Alva had made fresh overtures for a reconciliation with England. De Guaras, in a private audience, gave the Queen a letter from him, and De Guaras may himself relate what followed: She told me, he wrote, "that emissaries were coming every day from Flushing to her, proposing to place the town in her hands. If it was for the service of his Majesty, and if his Majesty approved, she said that she would accept their offer. With the English who were already there, and with others whom she would send over for the purpose, it would be easy for her to take entire possession of the place, and she would then make it over to the Duke of Alva or to anyone whom the Duke would appoint to receive it." 383

On such a subject, and at such a moment, it is not credible that the Spanish emissary would have misrepresented the language of the English Queen. It is barely possible, though that too is most unlikely, that he could have allowed himself to misunderstand her words. The reader will determine the interpretation which he will place upon them. There were those about Elizabeth who, at a later period, deliberately recommended her to do what De Guaras says that she herself proposed to do. She then refused to listen to them, and received the thanks of the Prince of Orange for refusing. The substantial uprightness of her conduct in the long run forbids the belief that she would have carried out such an act of baseness, even though she had really in one of her varying humours contemplated the possibility of it. Had she been herself so far lost to honourable feeling, she would have been saved by Burghley from her own weakness. But whatever opinions may be formed of her intentions, the effect was equally frightful. She gave Alva the advantage for which he was longing; it enabled him to irritate the worst suspicions of the Queen and distract and frighten the perplexed and Charles. Companies of Huguenots were pouring into Flushing and Walcheren: the rumour of intended treachery roused the national jealousy into active and violent distrust, and plans were formed for driving the English out before they had betrayed the liberties which they had sworn to defend. Sir Humfrey

³⁸³ "La Reyna de Inglaterra le habia dicho, dandole el unas cartas del Duque de Alva, que los de Frexelingas le venian cada dia a offiescer de «entregarle aquella villa. Si convenia al servicio y contentamiento de su Magd que estoviesse en su poder, ella lo aceptaria, y se apoderaria dello con los Ingleses que en ella habia, y con los- que a este effecto enviaria para entregarle luego al Duque de Alva 6 4 quien el ordenase." — Punt'os de Cartas de Anton de Guaras al Duque de Alva, June 30: MS Simancas.

Gilbert, little knowing the service which Elizabeth had rendered him, was at a loss to comprehend the hostility with which he found himself regarded. Conscious of his own integrity, he suspected the French of foul play, and, encouraging unfortunately the very fears which were beginning to be entertained, he proposed to turn them out of Flushing, and take possession of the town.

"They practise here," he wrote to Burghley, "to use our soldiers very evil, and to banish those of the townsmen that are our friends; and 811 do in effect starve the English soldiers by practice, only to cause mutinies to have the soldiers to run away, to have the French practice the better brought to pass; so that I and those few English that be in this town are sure to be murdered if I continue here. Therefore my most humble suit is, that I may know without delay what her Majesty will have done touching this island and town. If her Majesty, or your Honour, will have me do it, I will procure a mutiny, if I can, between the townsmen and the French, and will take the townsmen's part, and will die for it and all my people, except we cut all the Frenchmen in pieces and the Governor also. I know there is the like plot laid for us." ³⁸⁴

This was bad enough, but it was nothing to the effect produced on the Queen Mother and the King of France. There is no positive proof that Alva communicated Elizabeth's offers to them, but he was more foolish than he gave the world reason to believe him to be if he let such a weapon lie idle in his writingdesk. It is certain, at any rate, that at the beginning of August rumours of some coldness on the part of England³⁸⁵ were in circulation at the French Court. On the defeat of Genlis the Catholic leaders presented a remonstrance to the King against sending further assistance to the Low Countries. Charles himself continued firm. "But for the King," said Walsingham, "all had quailed long before." He had meant to send the Admiral forward without waiting for the marriage, but some news or other "had terrified the Queen Mother." She had represented to him "that without the Queen of England's assistance he would not be able to bear the brunt of so puissant an enemy;" "without England the expedition would miscarry;" and she had entreated "with tears" that he would at least wait till Elizabeth had declared herself. Her misgiv-

³⁸⁴Sir H. Gilbert to Burghley, August 13: MSS. Flanders.

³⁸⁵The form which the report assumed was that the Queen intended to recall Gilbert and leave the insurgents to themselves.

ings were confirmed by a representation through Walsingham that Alencon would not be accepted. She felt more than ever that the marriage and the marriage only could give her the security which she required. She would not accept the refusal. She told Walsingham "that the marriage was now the only means of establishing a perfect amity between the Crowns." She sent M. de la Mole, Alencon's dearest friend, to England, to make one more effort.. She said she trusted "God would so dispose the Queen of England's heart as she should prefer public before private affairs." The King himself wrote to La Mothe, telling him that he must do his very best, and even if he failed or was likely to fail, that he must prevent the negotiation from being finally broken off; while Walsingham could but add his own prayers that either she would take Alencon, or, if not, that she would join openly with France in assisting the Prince of Orange. He implored Burghley and he implored Leicester not "to allow her to be deceived by the fair words of Spain," for Spain would change its language when its difficulties were over, and "fearful effects would follow unless God put to His helping hand." ³⁸⁶ The fearful effects were nearer than Walsingham believed. Elizabeth at first encouraged De la Mole to hope, and both he and La Mothe wrote to Paris in good spirits. A little after, she sent Walsingham a letter of the old sort, that she would and that she would not: that perhaps she would: that she must see Alencon, and that she could then make up her mind. Sir Thomas Smith, by the same post, begged that Alencon would come over, "else nothing was to be looked for but continual dalliance and doubtfulness;" and Burghley added to the packet a letter to Coligny which was never to reach his hand.

"What God shall please to do in the cause I know not," he said, "but I see the marriage of my lady and Queen is of more moment to the weal, both particularly of this realm and publicly of Christendom for the benefit of religion, than I fear our sins will suffer us to receive. But as hitherto our good God hath mightily preserved this our estate, so I trust the same will not leave His marvellous work, but will bring it further perfection. Herein I trust that you ploy your help there, and I for my poor part will do my best here." 1

³⁸⁶The King to M. de la Mothe Fenelon, July 20, August 9; The Queen Mother to M. de la Mothe Fenelon, August 10; Depeches, Vol. VII. De U Mothe Fenelon to the King, July 29, August 3, August 7; Walsingham to Sir T. Smith, August 10; Walsingham to Burghley. August 10; Wal gingham to Leicester, August 10; Digges.

The date of this letter was the 22d of August. While Cecil was writing it, the Admiral was lying wounded in his bed. Before the couriers reached Paris he was dead, and the gutters in the streets were running with Huguenot blood. Elizabeth had trifled too long. The bars of hell's gates were broken, and the devils were loose. It is not pretended that she ought to have sacrificed herself. She might have declined, had she pleased it, both the marriage with Alençon and all interference for good or evil with the 1 Burghley to Coligny, August 22: MSS. France. the Continent. But "to practise" as she deliberately for so many years with the subjects of other princes; to encourage insurrection for her own purposes, and then to leave the fire to bum; to hold out hopes and disappoint them; "to build, as Walsingham expressed it, "with one hand and overthrow with the other;" all this might be sport to her, but it was death to those with whom she toyed so cruelly.

A. few more sentences will bring down the fortunes of the other actors in the story to the eve of St. Bartholomew.

The Queen of Scots, being satisfied that Elizabeth would not be persuaded into extremities against her, at Sheffield, contemptuous and defiant. T. he of Norfolk appeared to affect her, and she had an attack of illness which Shrewsbury half doubtingly attributed to grief; ³⁸⁷ but two days later the Earl relieved the Court of their anxieties about her: she had merely overdosed herself with some convenient medicine. ³⁸⁸

A Commission went down to examine her on her transactions with Ridolfi, Elizabeth at the same time informing her of the measures which had been proposed against her in Parliament, and adding that, while she had "no intention of revenge," and would persevere in dealing mildly and gently with her, other princes would probably have been less forbearing. ³⁸⁹

Thus encouraged, the Queen of Scots received the Commissioners with mere disdain. "She continues in great enmity," Shrewsbury said, "and gives no hope of other intent. It is too plain that her heart is overhardened with deadly hate against the Queen's Majesty; the more, therefore, her Majesty's safety is to be thought upon."

³⁸⁷"If she be so sick as in appearance she seemeth and her people make report of."
— Shrewsbury to Burghley, June 10: MSS. Queen of Scott.

³⁸⁸Same to the same, June 12.

³⁸⁹Elizabeth to the Queen of Scots, June 11: MSS. Queen of Scots.

In Scotland, after desperate fighting, in which quarter on neither side was given nor asked, an armistice for two months was agreed upon at June's beginning of August, and the citizens of Edinburgh returned to the shells of their houses.

It remains to mention only the fate of the unlucky Earl of Northumberland. For many weeks after he was given up he was left at Berwick. After so long confinement in Lochleven, the change, with all its danger, was a relief to him. He was sometimes "abashed and sorrowful," but he rallied often, "talked of hawks and hounds, and other such vain matters," craving most, it seemed, for the green woods of Alnwick and the note of the huntsman's bugle. Hunsdon was uneasy at having the charge of him, for in Berwick there was no convenience for the safe keeping of State prisoners. But he made no attempt to escape: he talked freely of the rebellion, telling all that he knew; excusing Westmoreland and taking the blame upon himself; and Hunsdon, touched with his "simplicity," endeavoured to move Elizabeth in his favour. She paid no attention to his intercession. The Earl had been attainted, and his trial was therefore no longer necessary. The second week in July an intimation came down that a warrant was to be issued for his execution, that he was to suffer at York, and that Hunsdon must conduct him thither.

Lord Hunsdon, irritated at his failure, replied that it was not his business to carry noblemen to execution, and briefly, he would not do it; "he would suffer some imprisonment rather;" if it was to be, only done at all, Sir John Foster, the Warden of the Middle Marches, was the proper person; and if the writ came directed to himself, he would not act upon it.³⁹⁰

There was a slight pause, of which he took advantage to intercede again. The Earl's death, he said, would be of no advantage either to the Queen or to the State. Sir Henry Percy, who would succeed to the title, had been implicated with Ridolfi, and was as guilty as his brother. "Her Majesty had and did show mercy to a number that had as well deserved to die as he,"³⁹¹ and "she would do herself a worse turn by setting up Sir Henry than by keeping the Earl alive." Elizabeth found afterwards that Hunsdon was right, but for the present Sir Henry Percy had made his peace, and the order for the execution

³⁹⁰Hunsdon to Cecil, July 11: MSS. Border. a Hunsdon to Burghley, July 14: MS. Ibid.

³⁹¹Same to the same, August 9: MS. Ibid.

was sent down. She did not care to provoke resistance by insisting that her cousin should see it obeyed. Sir John Foster carried the Earl by slow stages along the line of the rebellion to Raby and Durham, to his own house at Topcliff, and to York; and there, on the 22d of August, very simply, nobly, and quietly, he left the world by the hard road which his father had trodden before him.

CHAPTER XXIII

The Founder of Christianity, when He sent the Apostles into the world to preach the Gospel, gave them a singular warning. They were to be the bearers of good news to mankind, and yet He said He was not come to send peace on earth, but a sword — He was come to set house against house and kindred against kindred: the son would deliver up his father to death; the brother, his sister; the mother, the child; the strongest ties of natural affection would wither in the fire of hate which His words were about to kindle. The prophecy, which referred in the first instance to the struggle between the new religion and Judaic bigotry, has fulfilled itself continuously in the history of the Church. Whenever the doctrinal aspect of Christianity has been prominent above the practical, whenever the first duty of the believer has been held to consist in holding particular opinions on the functions and nature of his Master, and only the second in obeying his Master's commands, then always, with a uniformity more remarkable than is obtained in any other historical phenomena, there have followed dissension, animosity, and in the later ages bloodshed.

Christianity, as a principle of life, has been the most powerful check upon the passions of mankind. Christianity as a speculative system of opinion has converted them into monsters of cruelty. Higher than the angels, lower than the demons, these are the two aspects in which the religious man presents himself in all times and countries.

The first burst of the Reformation had startled the Powers by surprise. It had spread like an from town to town, and nation to nation. No conscientious man could pretend that the Church was what it ought to be. Indiscriminate resistance to all change was no longer possible; and with no clear perception where to stand or where to yield, hence the educated world had been swept away by the stream. But the first force had spent itself. The Reformers had quarrelled among themselves; the Catholics had recovered heart from their divisions; the Council of Trent had given them ground to stand upon; and with clear conviction, and a unity of creed and purpose, they had set themselves steadily, with voice and pen and sword, to recover their lost ground. The enthusiasm overcame for a time the distinctions of nations and languages. The Englishman, the Frenchman, the Spaniard, the Italian, the German, remembered only that he was a son of the

Church, that he had one master the Pope, and one enemy the heretic and the schismatic. In secular convulsions the natural distress at the sight of human suffering is seldom entirely extinguished. In the great spiritual struggle of the sixteenth century, religion made humanity a crime, and the most horrible atrocities were sanctified by the belief that they were approved and commanded by Heaven. The fathers of the Church at Trent had enjoined the extirpation of heresy, and the evil army of priests thundered the accursed message from every pulpit which they were allowed to enter, or breathed it with yet more fatal potency in the confessional. Nor were the other side slow in learning the lesson of hatred. The Lutheran and the Anglican, hovering between the two extremes, might attempt forbearance, but as the persecuting spirit grew among the Catholics European Protestantism assumed a stronger and a sterner type. The Catholic, on the authority of the Church, made war upon spiritual rebellion. The Protestant believed himself commissioned like the Israelites to extinguish the worshippers of images. "No mercy to the heretics" was the watchword of the Inquisition; "the idolaters shall die" was the answering thunder of the disciples of Calvin; and as the death-wrestle spread from land to land, each party strove to outbid the other for Heaven's favour by the ruthlessness with which they carried out its imagined behests. Kings and statesmen in some degree retained the balance of their reason. Coligny, Orange, Philip, even Alva himself, endeavoured at times to check the frenzy of their followers; but the multitude was held back by no responsibilities; their creeds were untempered by other knowledge, and they could indulge the brutality of their natural appetites without dread of the Divine displeasure; while alike in priest's stole or Geneva gown, the clergy, like a legion of furies, lashed them into wilder madness.

On land the chief sufferers had been the Protestants: on the sea they had the advantage, and had used it. The privateers had for the August' most part disposed swiftly of the crews and passengers of their prizes. Prisoners were inconvenient and dangerous; the sea told no tales, and the dead did not come back. With the capture of Brille and Flushing the black flag had been transferred to the shore. Sir Humfrey Gilbert, following the practice which he had learnt in Ire-

land, hung the Spaniards as fast as he caught them.³⁹² The Hollanders had shown no mercy to the priests; they had been the instruments of Alva's Blood Council, and the measure which they had dealt was dealt in return to them. The Prince of Orange crossed the Rhine in July, coming forward towards Mons. He took Ruremonde by assault, and the monks in the abbeys and priories there were instantly murdered. Mechlin opened its gates to him, and after Mechlin some other neighbouring towns followed the in all of them the Prince could not prevent from being dishonoured by the same atrocities.³⁹³

While these scenes were, in progress the Admiral and Count Louis were preparing for the great campaign which was to end in the expulsion of the Spaniards, the death or capture of Alva, and the liberation of the Low Countries. For the French Government to go to war with Spain as the ally of the Prince of Orange, would be equivalent to an open declaration in favour of their own Huguenots; and with examples of the treatment of their brethren before them, the French priests and monks had reason to be alarmed at the prospect of Calvinist ascendancy. The Paris clergy, confident in the support of the populace, had denounced throughout the summer the liberal policy of the King. One of them, De Sainte Foix, in the very Court itself, had held out the story of Jacob and Esau to the ambition of the Duke of Anjou; and the favour shown to Count Louis, the alliance with excommunicated England, and the approaching marriage of the Princess Margaret had not tended to moderate their vehemence. The war was pronounced to be impious; the Catholic King was fulfilling a sacred duty in crushing the enemies of God; and those who would have France interfere to save them were denounced as traitors to Holy Church.

Yet as the weeks passed on, it seemed as if all their exertions would be wasted. The traditions of Francis I. were not dead. The opportunity for revenging St. Quentin and tearing in pieces the treaty of Cambray was splendidly alluring. The Catholic leaders, Guise, Nevers, Tavannes, even Anjou himself, implored and threatened, but Charles was carried away by the temptation, and perhaps by nobler motives. Coligny said that whoever was against the war was no true Frenchman, and the Court appeared to agree with Coligny. The Princess

³⁹²"The Spaniards would be glad to make good war with us, for that we have hanged so many of them, and are liker to take of them than they of us." Gilbert to Burghley, September 28: MSS. Flanders.

³⁹³Alva to Philip, July 28 and August 21. — Correspondence of Philip II. Gachard.

Margaret's marriage, independent of its political bearing, was in itself a defiance of the Papacy. Pius V. had refused absolutely to allow or sanction it, till the King of Navarre was reconciled to the Church. Pius had died in the May preceding, but his successor Gregory XIII. had maintained the objection, and though less peremptory, had attached conditions to his consent to which Charles showed no signs of submitting.

The only uncertainty rose from the attitude of England. Catherine de Medici had acquiesced in the war, with the proviso from the first that France and England should take up the quarrel together. As the Catholic opposition increased in intensity, Elizabeth's support became more and more indispensable. If the King risked the honour of France alone in a doubtful cause, and experienced anything like disaster, whatever else happened his own ruin was certain. As soon, therefore, as it was discovered that Elizabeth was not only playing with the Alençon marriage, but was treating secretly with Alva to make her own advantage out of the crisis, the Queen Mother's resolution gave way — or rather, for resolution is not a word to be thrown away upon Catherine de Medici — she saw that war was too dangerous to be ventured. Religion, in its good sense and in its bad sense, was equally a word without meaning to her. She hated and she despised Calvinism; it was a new superstition as overbearing as the old, and without the sanction of traditionary existence; it had shaken her own power and her son's throne, and though, if it would serve her purpose, she was ready to make use of it, she was no less willing, if it stood in her way, to set her foot upon its neck. The impatience of the Huguenots would not endure disappointment, and their own safety was as much involved as that of the Prince of Orange in the intended campaign. The idea of a general massacre of the Huguenots had been long familiar to the minds of the Catholics. If the project on Flanders was abandoned, they knew that they would be unable to live in the districts of France where they were outnumbered, and they declared without reserve that they would fall back into the west, and there maintain their own liberties. But the reopening of the civil war was a terrible prospect. Coligny still had a powerful hold on the mind of the King. The Queen Mother when she attempted to oppose him found her influence shaking; and even she herself, as late certainly as the 10th of August, was hesitating on the course which she should adopt. On that day she was still clinging to the hope that Elizabeth

might still take Alençon; it was only when she found distinctly that it would not be that she fell back upon her own cunning.

The French Court, as the reader will remember, had broken up in June, to reassemble in August for the marriage of the Princess. The Admiral went down to Chatillon, and while there he received a warning not to trust himself again in Paris. But he dared not, by absenting himself, impair his influence with the King. His intentions were thoroughly loyal. He said that he would rather be torn by horses than disturb again the internal peace of France; and he had been many times within hearing of the bells of Notre Dame with fewer friends about him than he would find assembled in the Capital. The retinues of the King of Navarre and the Prince of Cornffi, his own followers, the trains of Rochefoucault, Montgomery, and Montmorency, the noblemen and gentlemen of Languedoc and Poitou — all these would be there, and these were the men who for ten years had held at bay the united strength of Catholic France, and were now gathering in arms to encounter Alva. If evil was intended towards them some other opportunity would be chosen, and personal danger, at least for the present, he could not anticipate.

Thus at the appointed time the Admiral returned to the Court, and notwithstanding Elizabeth's tricks, he found the King unchanged. The Duke of Guise shook hands with him in Charles's presence, and Charles again spoke to him with warmth and confidence of the Flanders expedition. On the 18th of August the great event came off which the Catholics had tried in vain to prevent, and which was regarded as the symbol of the intended policy of France. The dispensation from Rome was still withheld, but the Cardinal of Bourbon ventured in the face of its absence to officiate at the ceremony in the cathedral. The sister of the King became the bride of a professed heretic, and when the Princess afterwards attended mass, her husband ostentatiously withdrew, and remained in the cloister. A few more days and Coligny would be on his way to the army. Though England had failed him, and might perhaps be hostile, the King still meant to persevere. The Queen Mother had tried all her arts — tears, threats, entreaties — and at times not without effect. Charles's instincts were generous, but his purpose was flexible, and his character was half formed. His mother had ruled him from the time that he had left his cradle, and he had no high convictions, no tenacity of principle or vigour of will, to contend

against her. But there was a certain element of chivalry about him which enabled him to recognise in Coligny the noblest of his subjects, and he had a soldier's ambition to emfather and grandfather. The Duke of Anjou, who related afterwards the secret history of these momentous days, said that whenever the King had been alone with the Admiral, the Queen Mother found him afterwards cold and reserved towards herself. Anjou himself went one day into his brother's cabinet; the King did not speak to him, but walked up and down the room fingering his dagger, and looking as if he could have stabbed him. If the war was to be prevented, something must be done, and that promptly. Guise, notwithstanding his seeming cordiality with Coligny, was supposed to be meditating mischief, and the King, by Coligny's advice, kept the Royal Guard under arms in the streets. Catherine, who hated both their houses, calculated that by judicious irritation she might set the Duke and the Admiral at each other's throats, and rid herself at once of both of the too dangerously powerful subjects. The Admiral's own declaration had failed to persuade the Guises that he was innocent of the murder of the Duke's father — Poltrot was still generally believed to have been privately instigated by him — and Catherine intimated to the Duchesse de Nemours, the late Duke of Guise's widow, that if she would, she might have her revenge. Were Coligny killed, the King would be again manageable. The Huguenots would probably take arms to avenge his death. After a few days of fury a little water would wash the blood from the streets of Paris, and the catastrophe would be explained to the world as the last act of the civil war.³⁹⁴³⁹⁵

In becoming acquainted with the women among whom she was educated, we cease to wonder at the Queen of Scots' depravity. To the Duchesse the assassination of the Admiral was the delightful gratification of a laudable desire. The Duke of Guise and his uncle the Duke of Aumale were taken into counsel; an instrument was found in a man named Maurevert, who had tried his hand already in enterprise, and having failed, was eager for a new opportunity. He was placed in a house between the Louvre and the Rue de Bethisi, where his intended victim lodged; and after waiting for two days, on the

³⁹⁴This is the explanation given by the Duke of Anjou of his mother's conduct; and as he made no attempt to palliate either her treachery or his own, there is no reason to question his truth. — *Histoire de France*, Martin. Vol. IX.

³⁹⁵The 19th or 20th of August-

morning of the 22d, as the Admiral was slowly walking past, reading, Maurevert succeeded in shooting him. The work was not done effectually; the gun was loaded with slugs, one of which shattered a finger, the other lodged in an arm. The Admiral was assisted home — the house from which the shot was fired was recognised as belonging to the Guise family, and the assassin was seen galloping out of St. Antoine on a horse known to be the Duke's. The King, when the news reached him, was playing tennis with Guise himself and Teligny the Admiral's son-in-law. He dashed his racket on the pavement, and went angrily to the palace. Navarre and Condé came to him to say that their lives were in danger, and to ask permission to leave Paris. The King said it was he who had been wounded, and he would make such an example of the murderers as should be a lesson to all posterity. Conde and all who were afraid might come to the Louvre for protection. Charles placed a guard at Coligny's house; he sent his own surgeon to attend him, and went himself to his bedside.

The Queen Mother and Anjou, not daring to trust the King out of their sight, accompanied him. The Admiral desired to speak to Charles alone, and he sent them out of the room. When he followed them, they pressed him to tell them what Coligny had said. Charles, after a pause, answered: "He said that you two had too much hand in the management of the State; and, by God's death, he spoke true."

So passed the 22d of August. The next morning Guise and Aumale came to the palace to say

that 11 their presence in Paris caused uneasiness, they were ready to leave the city; and the King bade them go. His words and manner were so completely reassuring that the Huguenot leaders put away their misgivings.

The Vidame of Chartres still urged flight, distrusting Charles's power to protect them; but Conde, Teligny, Rochefoucault, Montgomery, all opposed him. To retire would be to leave the Admiral in danger.

His wound appeared only to have increased the King's resolution to stand by him; and being themselves most anxious to prevent disturbance and give no cause of offence, they would not even permit their followers to watch in the streets. A few hundred of them paraded in arms in the afternoon under the windows of the Hotel Guise; but not a single act of violence was committed to excite a Catholic ris-

ing; and when they broke up at night, they left the city ostentatiously to the ordinary police and the Royal Guard.

So far, the Queen Mother's plot had failed. The Admiral was not dead. The Huguenots had not broken the peace. The Guises were disgraced; and, if they were arrested, they were likely to reveal the name of their instigator. That same afternoon Catherine sent for the Count de Retz, Marshal Tavannes, and the Due de Nevers, to the gardens of the Tuileries: all these were members of Charles's Council, ardent Catholics, and passionately opposed to the Spanish war. After some hours' consultation, they adjourned, still undecided what to do, to the King's Cabinet. For many years — ever since his father's death — to get possession of the King's person had been a favourite scheme of the Prince of Conde and the Admiral. They had wished to separate him from his Italian mother, to bring him up a Protestant, or to keep him, at all events, as a security for their own safety. The conspiracy of Amboise had been followed once, if not twice, by similar projects. The Admiral especially, ever prompt and decisive, was known throughout to have recommended such a method of ending the civil war. That at this particular crisis a fresh purpose of the same kind was formed or thought of, is in itself extremely improbable, and the Court after vol. x. 26 wards entirely failed to produce evidence of such a thing. It is likely, however, that impatient expressions tending in that direction might have been used by the Admiral's friends. The temptation may easily have been great to divide Charles from his Catholic advisers at a time when he was himself so willing to be rid of their control, and, at all events, past examples gave plausibility to the suggestion that it might be so. With some proofs, forged or real, in her hand that he was in personal danger, the Queen Mother herself to her son. She told him that at the that she was speaking the Huguenots were Sixteen thousand of them intended to assemble in the morning, seize the palace, destroy herself, the Duke of Anjou, and the Catholic noblemen, and Charles. The conspiracy, she said, extended France. The chiefs of the congregations were waiting for a signal from Coligny to rise in every and town. The Catholics had discovered the did not mean to sit still to be murdered. If refused to act with them, they would choose another leader; and whatever happened, he would be himself destroyed.

Unable to say that the story could not be true, Charles looked enquiringly at Tavannes and De Nevers, and they both confirmed the

Queen Mother's words. Shaking his incredulity with reminders of Amboise and Meaux, Catherine went on to say that one man was the cause of all the troubles in the realm. The Admiral aspired to rule all France, and she — she with Anjou and the Guises, had conspired to save the King and the country. She dropped all disguise. The King, she said, must now assist them or all would be lost. The first blow had failed, but it must be repeated at once. The Admiral, with the rest of the Huguenot leaders, must die.

A grown man, in possession of his senses, would have suspected the story from the proposal with which it ended. Had there been truth in it, the hands which could murder could arrest; the conspirators could be taken in their beds, and, if found guilty, could be legally punished. It was easy to say, however, that the Huguenots were present in such force that the only safety was in surprise. Charles was a weak, passionate boy, alone in the dark conclave of iniquity. He stormed, raved, wept, implored, spoke of his honour, his plighted word; swore at one moment that the Admiral should not be touched, then prayed them to try other means. But clear, cold, and venomous, Catherine told him it was too late. If there was a judicial enquiry, the Guises would shield themselves by telling all that they knew. They would betray her; they would betray his brother; and, fairly or unfairly, they would not spare himself. He might protest his innocence, but the world would not believe him. For an hour and a half the King continued to struggle.

"You refuse then," Catherine said at last. "If it be so, your mother and your brother must care for themselves. Permit us to go." The King scowled at her. "Is it that you are afraid, Sire?" she hissed in his ear.

"By God's death," he cried, springing to his feet, "since you will kill the Admiral, kill them all. Kill all the Huguenots in France, that none may be left to reproach me. *Mort Dieu!* Kill them all."

He dashed out of the cabinet. A list of those who were to die was instantly drawn up. Navarre and Cond were first included; but Catherine prudently reflected that to kill the Bourbons would make the Guises too strong. Five or six names were added to the Admiral's, and these Catherine afterwards asserted were all that it was intended should suffer. Even she herself, perhaps, was not prepared for the horrors that would follow when the mob were let loose upon their prey.

Night had now fallen. Guise and Aumale were still lurking in the city, and came with the Duke of Montpensier at Catherine's summons. The persons who were to be killed were in different parts of the town. Each took charge of a district. Montpensier promised to see to the Palace; Guise and his uncle undertook the Admiral; and below these, the word went out to the leaders of the already organized sections, who had been disappointed once, but whose hour was now come. The Catholics were to recognise one another in the confusion by a white handkerchief on the left arm and a white cross in their caps. The Royal Guard, Catholics to a man, were instruments ready made for the work. Guise assembled the officers: he told them that the Huguenots were preparing to rise, and that the King had ordered their instant punishment. The officers asked no questions, and desired no better service. The business was to begin at dawn. The signal would be the tolling of the great bell at the Palace of Justice, and the first death was to be Coligny's.

The soldiers stole to their posts. Twelve hundred lay along the Seine, between the river and the Hotel de Ville; other companies watched at the Louvre. As the darkness waned, the Queen Mother went down to the gate. The stillness of the dawn was broken by an accidental pistol-shot. Her heart sank, and she sent off a messenger to tell Guise to pause. But it was too late. A minute later the bell boomed out, and the massacre of St. Bartholomew had commenced.

The Admiral was feverish with his wounds, and had not slept. The surgeon and a Huguenot minister, named Malin, had passed the night with him. At the first sounds he imagined that there was an emeute of the Catholics at the Court; but the crash of his own gate, and shots and shrieks in the court below the window told him that, whatever was the cause, his own life was in danger. He sat up in his bed. "M. Malin," he said, "pray for me; I have long expected this." Some of his attendants rushed half-dressed into the room. "Gentlemen, save yourselves," he said to them; "I commend my soul to my Saviour."

They scattered, escaping or trying to escape by the roofs and balconies; a German servant alone remained with him. The door was burst open immediately after, and the officer who was in charge of the house, a Bohemian servant of Guise, and a renegade Huguenot soldier, rushed in with drawn swords.

"Are you the Admiral?" the Bohemian cried.

"I am," replied Coligny; "and, young man, you should respect my age and my wounds: but the term of my life does not rest in the pleasure of such as thou." ³⁹⁶

The Bohemian, with a curse, stabbed him in the breast, and struck him again on the head. The window was open. "Is it done?" cried Guise from the court below, "is it done? Fling him out that we may see him." Still breathing, the Admiral was hurled upon the pavement. The Bastard of Angouleme wiped the blood from his face to be sure of his identity, and then kicking him as he lay, shouted, So far well, Courage, my brave boys! now for the rest." One of the Due de Nevers's people hacked off the head. A rope was knotted about the ankles, and the corpse was dragged out into the street amidst the howling crowd. Teligny, who was in the adjoining house, had sprung out of bed at the first disturbance, ran down into the court, and climbed by a ladder to the roof. From behind a parapet he saw his father-in-law murdered, and, scrambling on the tiles, concealed himself in a garret; but he was soon tracked, torn from his hidingplace, and thrown upon the stones with a dagger in his side.³⁹⁷ Rochefoucault and the rest of the Admiral's friends who lodged in the neighbourhood were disposed of in the same way, and so complete was the surprise that there was not the most faint attempt at resistance.

Montpensier had been no less successful in the Louvre. The staircases were all beset. The retinues of the King of Navarre and the Prince had been lodged in the palace at Charles's particular desire. Their names were called over, and as they descended unarmed into the quadrangle they were hewn in pieces. There, in heaps, they fell below the Royal window under the eyes of the miserable King, who was forced forward between his mother and his brother that he might be seen as the accomplice of the massacre. Most of the victims were killed upon the spot. Some fled wounded up the stairs, and were slaughtered in the presence of the Princesses. One gentleman rushed bleeding into the apartment of the newly-married Margaret, clung to her dress, and was hardly saved by her intercession. By seven o'clock the work which Guise and his immediate friends had undertaken was finished, with but one failure. The Count Montgomery and the Vidame of Chartres lodged in the Faubourg St. Germain, across the water, on the outskirts of the town. A party of assassins had been sent

³⁹⁶"Aussi bien ne feras-tu ma vie plus br&ve." — Martin, Vol. IX.

³⁹⁷News from Paris, September, 1572: MSS. France.

to dispatch them, but had loitered on the way to do some private murdering on their own account. When the news reached Montgomery that Paris was up, he supposed, like Coligny, that the Catholics had risen against the Court. He ran down the river's bank with a handful of men behind him, opposite the Tuileries, intending to cross to help his friends; but the boats were all secured on the other side. The soldiers shot at him from under the palace. It was said — it rests only on the worthless authority of Brantome — that Charles himself in his frenzy snatched a gun from a servant and fired at him also. Montgomery did not wait for further explanation. He, the Vidame, and a few others, sprang on their horses, rode for their lives, and escaped to England.

The mob meanwhile was in full enjoyment. Long possessed with the accursed formulas of the priests, they believed that the enemies of God were given into their hands. While dukes and lords were killing at the Louvre, the bands of the sections imitated them with more than success; men, women, and even children, striving which should be the first in the pious work of murder. All Catholic Paris was at the business, and every Huguenot household had neighbours to know and denounce them. Through street and lane and quay and causeway, the air rang with yells and curses, pistol-shots and crashing windows; the roadways were strewn with mangled bodies, the doors were blocked by the dead and dying. From garret, closet, roof, or stable, crouching creatures were torn shrieking out, and stabbed and hacked at; boys practised their hands by strangling babies in their cradles, and headless bodies were trailed along the trottoirs. Carts struggled through the crowd carrying the dead in piles to the Seine, which, by special Providence, was that morning in flood, to assist in sweeping heresy away. Under the sanction of the great cause, lust, avarice, fear, malice, and revenge, all had free indulgence, and glutted themselves to nausea. Even the distinctions of creed itself became at last confounded; man or woman who had a quarrel to avenge, to settle, a wife or husband grown inconvenient, or a prospective inheritance if obstacles could be removed, found a ready road to the object of their desires.

Towards midday some of the quieter people attempted to restore order. A party of the town police made their way to the palace. Charles caught eagerly at their offers of service, and bade them do their utmost to put the people down; but it was all in vain. The

soldiers, maddened with plunder and blood, could not be brought to assist, and without them nothing done. All that afternoon and night, and the and the day after, the horrible scenes continued, till the flames burnt down at last for want of fuel. The number who perished in Paris was computed variously from two to ten thousand. In this, as in all such instances, the lowest estimate is probably the nearest to the truth.

The massacre was completed — completed in Paris, only, as it proved, to be continued elsewhere. It was assuming a form, however, considerably larger than anything which the contrivers of it had contemplated; and it became a question what explanation of such a business should be given to the world. The age was not tender-hearted; but a scene of this kind was as yet unprecedented, and transcended far the worst atrocities which had been witnessed in the Netherlands. The opinion of Europe would require some account of it, and the Court at first thought that half the truth might represent the whole. On the 24th, while the havoc was at its height, circulars went round to the provinces that a quarrel had broken out between the Houses of Guise and Coligny; that the Admiral and many more had been unfortunately killed, and that the King himself had been in danger through his efforts to control the people. The governors of the different towns were commanded to repress at once any symptoms of disorder which might show themselves, and particularly to allow no injury to be done to the Huguenots. Aumale and Guise had gone in pursuit of Montgomery, and at the moment were not in Paris. The Queen Mother used the opportunity to burden them with the entire responsibility. But her genius had overshot its mark, and she was not to escape so easily. Guise returned in the evening to find the odium cast upon himself. He at once insisted that the circulars should be recalled. The Parlement of Paris was assembled, and the King was compelled to admit publicly that the troops had received their orders from himself. The story of the Huguenot conspiracy was revived, systematised, and supported by pretended confessions made at the moment of death by men who could now offer no contradiction. The Protestants of the provinces, finding themselves denounced from the throne, were likely instantly to take arms to defend themselves. „ Couriers were therefore despatched with second orders that they should be dealt with as they had been dealt with at Paris; and at Lyons, Orleans, Rouen, Bourdeaux, Toulon, Meaux, in

half the towns and villages of France, the bloody drama was played once again. The King, thrown out into the hideous torrent of blood, became drunk with frenzy, and let slaughter have its way, till even Guise himself affected to be shocked, and interposed to put an end to it; not, however, till, according to the belief of the times, a hundred thousand men, women, and children had been miserably murdered.³⁹⁸

The guilt of such enormous wickedness may be distinguished from its cause. The guilt was the Queen Mother's; the cause was Catholic fanaticism. Catherine de Medici had designed the political murder of a few inconvenient persons, with a wicked expectation that their friends in return might kill Guise and his uncle, whose power was troublesome to her. The massacre was the spontaneous work of theological frenzy heated to the boiling point. No imaginable army of murderers could have been provided by the most accomplished conspirator to have executed such a work in such a way. The actors in it were the willing instruments of teachers of religion as sincere in their madness as themselves. The equity of history requires that men be tried by the standard of their times. The citizens of Paris and Orleans may be pardoned if they were not more enlightened than the Sovereign Pontiff of Christendom and the Most Catholic King of Spain. Philip, when the news reached him, is said to have laughed for the first and only time in his life. He was happy in being saved from a combination w'hich had threatened him with the loss of his Low Countries. But a deeper source of gratification to him was the public evidence that his brother-in-law no longer intended to tamper with heresy, that France was in no further danger of following England into schism, and that the seamless robe of the Saviour was not to be parted among His executioners.

At Rome, in the circle of the saints, the delight was even more unbounded. Where the blood was flowing the voice of humanity could not utter. Septembw terly be stifled, and expressions of displeasure began early to be heard.³⁹⁹ In the Holy City there was a universal out-

³⁹⁸The number again may be hoped to have been prodigiously exaggerated; with all large figures, when unsupported by exact statistics, it is sa'« to divide at least by ten

³⁹⁹It is much lamented to see the King's cruelty even by the Papists. Many be sorry that so monstrous a murder was invented, and presently they dread their own lives. The Duke of Guise himself is not so bloody, neither did he kill any man himself but saved diverse. He spoke openly -that for the Admiral's death he was glad, for he

pouring of thanksgiving to the Father who had taken pity on His children. The cannon were fired at St. Angelo, the streets were illuminated, Pope Gregory with his cardinals walked in procession from sanctuary to sanctuary to offer their sacrifice of adoring gratitude. As, for an act of hostility committed five centuries before, a prophet of Israel commanded the extermination of an entire nation; as then the baby was not spared at the breast, the mother with child, the aged, and the sick were slaughtered in their beds — all murdered; as the hideous fury was extended to the cattle in the field, and all living things were piled together in a gory mass of carnage: so another slaughter of scarce inferior horror had again been perpetrated in the name of religion, and the Vicar of Christ, like a second Samuel, bestowed upon the deed the especial blessing of the Almighty. The scene of the massaere was painted by the Pope's orders, with an inscription immortalising his own gratification and approval.⁴⁰⁰ He struck a commemorative medal, with on the one side his own image, on the other the destroying Angel immolating the Huguenots. He despatched Cardinal Orsini to Paris to congratulate the King; and the assassins of Lyons, on whose hands the blood of the innocents was scarcely dry, knelt before the holy man in the cathedral as he passed through, and received his apostolic blessing. Such was the judgment upon the massacre in the Catholic world, where no worldly interests obscured the clearness of the sacred vision.

In England, meanwhile, to the latest moment, the Alençon marriage was still the subject of perpetual discussion. The Court was on progress: the Queen had been at Woburn and Gorhambury, and was spending the last week of August at Kenilworth and Warwick — shooting, hunting, and, in the intervals, playing the spinette to the French Ambassador, talking of her boy-suitor, and speculating on the possibility of accepting him. As usual, she objected her age; as usual, La Mothe F and his companions insisted that time had no effect on beauty like her Majesty's. The small-pox was a more considerable difficulty. If some skilful doctor could mend Alençon's face, the worst objection, it was hoped, might be removed. Three couriers arrived close on one another at Kenilworth from Paris, bringing letters

knew him to be his enemy; but he thought for the rest that the King had put such to death as, if it pleased him, might have done good service." — *News from Paris, Septemter, 1572: MSS. France*

⁴⁰⁰"Pontifex Colignii necem probat."

from Charles to the Ambassador, and letters from Coligny and Montmorency to Leicester and Burghley. All were in the same strain, pressing either for the marriage or else for a declaration against Spain; all urging the Queen not to let the opportunity pass from her. If England would commit itself, Charles promised to follow, and to contribute at once 200,000 ducats towards Elizabeth's expenses.⁴⁰¹

The Queen intimated that if the King; of France would repeat the same promises in a letter under his own band to herself, she would consider his proposal. For the present she would help the Prince of Orange underhand with men and money, but she could not venture into open war single-handed.² With this answer De la Mole took his leave, intending to return home at once and persuade Alençon to pay Elizabeth a visit. La Mothe went with him to London, where they met the news of the massacre, and found the city filled with panic-stricken Huguenots, who had crossed the Channel in open boats.

The French alliance had been the work of statesmen, and had never been liked by the English people. They had submitted to it as a necessity, but with a bad grace, and with no expectation that good would come of it. In an instant, with the shock of irresistible conviction, the belief spread that the treaty, the suit of Alençon, the marriage of the Princess Margaret, the affected anxiety of Charles to interfere in the Netherlands, were all parts of a conspiracy to throw the Huguenots off their guard, and thus destroy them. Armed with the letter which Charles wrote the day of the massacre, and in which he laid the blame upon Guise, La Mothe attempted to check the torrent of invective;⁴⁰² but he was himself obliged after the next post to change his language, and his double story was taken as a fresh evidence of treachery. The atrocities in the French provinces furnished fuel to the indignation.

⁴⁰¹“En este tiempo que alii estuvo el Mot, que fueron 20 dias, le vinidron tres correos despachados por el Rey con cartas suyas para 51, y en todas ellas le decia que con toda instancia dixese y hiciese con la Reyna que rompiese con su Magd Catolica, pues habia tan urgentes razones y causas para ello, vistas las diferencias que entre ambos habia, no perdiendo tan junction de tiempo, y que habiendolo asi, se moverian con ello tas para que el hiciese lo mismo publicamente, y para que supiese su buen animo y voluntad que para esto tenia, en rompiendo ella dentro de quinze dias le daria luego 200 mil ducados. Mostrandole siempre el Mot a la Reyna las proprias cartas que el Rey le escribia.” — Antonio de Fogaça a Ruy Gomez. Londres, Setiembre 8, 1572: MS. Simancas. a Ibid.

⁴⁰²La Mothe Fenelon au Roy, September 2: Depeches, Vol. V. J Antonio de Fogaça to Ruy Gomez, September 8: MS. Simanca*. I Edwyn Sandys to Burghley, September 5: Illustrations of British Hit tpry, Yol. II.

English witnesses of the scenes at Rouen shut La Mothe's mouth and made explanation impossible. The universal and not unnatural opinion was that, finding themselves baffled in the field, the Papal, French, and Spanish Courts had laid a plot for the general murder of Protestants all over Europe, English and Scotch Catholics were secret it, and that the festival of the Gallic nuptials was to be celebrated everywhere as the opportunity offered.

The accounts from Rome confirmed the most sinister interpretation. The cry rose in the pulpits of blood for blood. Every Papist was regarded as a murderer in disguise; and the symptoms were so alarming of an intention to give them "Paris justice," that Burghley had to hurry up to London to keep his friends in order. The Bishops sent a representation to the Queen that, for the quiet of the realm, such Catholic priests and gentlemen as were in prison for having refused the oath of allegiance should be immediately put to death.¹ Edwin Sandys, the Bishop of London, intimated to Burghley that if this could not be done, the Court at least should be cleared of Catholics and "such as by private persuasion overthrew good counsel;" notorious Catholic noblemen should be sent to the Tower; and the consciences of good Protestants should be no longer burdened with the Queen's taste for idle church ceremonies; above all, and without a moment's delay, that "the Queen of Scots' head should be struck from her shoulders." 1

This last advice, though she could not accept it literally, Elizabeth was not disinclined to accept. She had excused her past hesitation in dealing firmly with Mary Stuart, on the plea that she could not offend France. If France was now about to make common cause with Spain, the Queen no longer felt called on, either by principle or by prudence, to obstruct the demands of justice. She shrank still from being the avenger of her own wrongs; but Sir Henry Killegrew was sent down in haste to the Earl of Mar, to say that the Queen of Scots' presence in England dangerous to be allowed to continue; that it was necessary to come to a conclusion with her; and that although she might be tried and executed in England for her crimes against the Queen, yet that "for certain respects" it was thought better that she should be given up to the Scots. That there might be no mistake in the meaning of the message, Lord Burghley added, that it was not meant that she was to exchange an English for a Scotch prison: "To have her in Scotland, and to keep her, was of all things the most dan-

gerous;" the Queen desired to be rid of her, but only "with good assurance that the Scots would without fail proceed with her by way of justice, so as neither Scotland nor England should be any more endangered by her." The particular arrangements were trusted to the messenger's discretion. Some near relations, both of Mar and Morton, would be required as hostages to ensure the execution, before Mary Stuart parted with; and Killegrew was instructed the Regent, if possible, himself to make the first move, and desire that she might be given up.⁴⁰³

The "certain respects" were a desire to escape the odium of an act which nevertheless required to be done; and a wish, that when the Queen of Scots' punishment came, she should be punished for a crime which neither France, nor Spain, nor the Pope, nor the English Catholics could dare to defend. In England, she could be put on her trial for treason; but the law was doubtful, and the offence in the eyes of religion was a virtue. In Scotland, she could be convicted in the presence of the world of adultery and murder.

This momentous step was followed by another of no less marked significance. Elizabeth believed that the long-dreaded Catholic League, in its most frightful form, was about to become a reality; that England, as well as all other Protestant countries, must look to encounter the entire force which the Pope could direct against them; and that she must at length adopt the open policy which Burghley had urged upon her so long, set her house in order, put an end to Scotch anarchy, ally herself in earnest with the Netherlands and the German Princes, and prepare for the struggle which was to decide the fortunes of European liberty.

The Prince of Orange was lying at Ruremonde waiting for the French to advance to relieve Mons. Elizabeth remembered for the moment, in the words of Walsingham, that unless God had raised up the Prince to entertain Spain, she would have had the fire long since at her own door. There was no hope of French assistance now. She ordered Sir Thomas Gresham to raise thirty or forty thousand pounds and take it to Hamburgh for the Prince's use; and she prepared to improve at last in seriousness the footing which she already held on the coast of Holland. Sir H. Gilbert, who was laying siege to Tregouse, wrote that both that town and Middleburg; could

⁴⁰³Secret instructions to Sir H. Killegrew, September 20, in Burghley's hand: MSS. Hatfield.

be reduced with a slight additional effort. The Queen, with the consent of the people, might then be placed in entire possession of Walcheren and the other islands. The Zealand fleet would hoist her flag; the islands themselves would pay the expense both of that and of the troops which she might send to defend them; and with the command of the Scheldt, and complete mistress of the seas, the Queen might dare the worst which France and Spain could do.⁴⁰⁴

Believing the extremity to be really come, she allowed 8000 men to be raised and armed with precipitate haste, and transports to be provided to carry them to Flushing. The musters were called out; the fleet at Portsmouth was ordered into the Downs to hold the Channel; and Sir John Hawkins, with twenty ships, equipped with Philip's money, and manned in part with the crews whom he had duped Philip into releasing from the Seville dungeons, sailed for the Azores to lie in wait for the Mexican gold fleet.⁴⁰⁵ So desperate was the English Government at that moment, so determined to use any means to harass and embarrass the Catholic Powers, that cannon and muskets were sent to the Mediterranean for the Corsairs of Barbary;⁴⁰⁶ whilst to make all sure at home, the Prince of Orange was told that if he could plunge down upon Louvaine, seize the English refugees and send them home, he could not demand a price which Elizabeth would refuse to pay for them.⁴⁰⁷

⁴⁰⁴Sir Humfrey Gilbert was not afraid of responsibility. "Sir," he wrote to Burghley, "presuming of your wonted favours I will desperately enter into the matter. I do know that her Majesty and my Lords of are many times enforced to pretend that they nothing desire. what letters soever shall be sent me from my Lords of the Council for revoking of me home, I will think them but for form, except your Honour do write me your private letters to return." — Gilbert to Cecil, September 7 s MSS. Flanders. 27

⁴⁰⁵Antonio de Foga?a to Ruy Gomez, September 8 and September 16; Antonio de Guaras to Alva, August 30, September 5, and September 18: MS. Simancas.

⁴⁰⁶"Que se habia dado licencia para llevar por mercaderia a Berveria, artilleria de hierro colado y arcabuzes, y que se llevaria cantidad." Philip, who had borne with equanimity the more serious information, wrote opposite to this paragraph "ojo"!!

⁴⁰⁷"La causa por que Gresham mas va de procurar es de que si en los lugares que al dicho Orange se han rendido hubiese hallado en ellos a la dicha Condesa de Northumberland la qual residia en Malinas, y al Conde de Westmoreland, y a Milord Morley, y a los demas Ingleses que los mas estaban en Lovayna, procure de haberlos, aunque de por ellos muchos dineros, y los envie aqui, que esto es un negocio que ellos mucho desean y assi si los pobres no se hubieren salido de los dichos pueblos rindiesen, ciertamente ellos vendrian a manos destos, aunque les

So much for Spain and Flanders. It was more difficult to determine what attitude to assume towards the wretched Charles and Catherine. The ratifications had but just been exchanged of a treaty of the closest friendship, and the whole affair was as inexplicable as it was monstrous. Fears at first were entertained for Walsingham and his suite. It was ascertained, on this point, that the alarm was unnecessary. A guard had been placed at the Embassy, where all the English in Paris had collected, and one or two only had been killed who had neglected to take refuge there. But with regard to the catastrophe itself, Walsingham's first letters were brief and obscure. He wrote under evident restraint, not daring to speak out lest his words might fall under eyes for which they were not intended.

Many days passed before the Queen could bring herself to receive La Mothe Fnelon. The wish of the people was to tear the treaty to shreds, drive La Mothe out of the country, and fling defiance at the whole French nation. But impulses which may be honourable and right in individuals who risk only their own lives and fortunes are forbidden to those who are responsible for the safety of the commonwealth. It might be heroic, but it would hardly be prudent, to fling the gauntlet in the face of England's solitary ally. The quarrel was likely enough to come; but the Queen had work enough upon her hands, and while she was preparing for the worst, she felt that she could do no solid good by anticipating it.

At length, towards the middle of September, the Ambassador was informed that he would be admitted. The Court was at Woodstock, on its way from Warwick to Windsor. The whole Council was collected. Bedford and Bacon, though both unwell, had been particularly sent for. Queen, Ministers, attendants, were all in mourning; and when La Mothe Fénelon was introduced, he was received in solemn silence. On such occasions the littleness of Elizabeth's character entirely disappeared, and the imperial majesty of her nobler nature possessed her wholly. If any misgiving crossed her mind on her own past proceedings, she showed no signs of it. She rose with a grave but not unkind expression. She drew La Mothe aside into a window, and asked him if the dreadful news which she had heard could possibly be true. La Mothe Fénelon, who was by this time perfect in his lesson, produced the story of the Admiral's conspiracy, the

cueste grandissima suma de dineros." — Fogaqa to Ruy Gomez, September 16: MS. Simancas.

plot for the surprise of the Court, the King's danger, and the necessity of a desperate remedy in a desperate case.

Elizabeth did not say that she disbelieved him; but if the charge was true, the King, she said, had brought a stain upon his reputation from which she had hoped he would have been able to clear himself. She had persuaded herself that the miserable scenes in Paris had risen from some extraordinary accident which time would explain; but it appeared now from what La Mothe told her, that the King had himself sanctioned an insurrection in which thousands of innocent persons had lost their lives.

The Ambassador explained, protested, equivocated. He expressed a hope that at least the friendship between the two countries would not be disturbed.

The Queen replied, coldly, that she feared that a King who had abandoned his subjects might desert his allies. She could only hope that for his own sake he would produce evidence of the alleged conspiracy, and would protect such of the Protestants as had no share in it.

La Mothe, to turn the subject, said that the Queen of France was near her confinement, and he ventured to remind Elizabeth that she had promised to be godmother to the child.

She told him that she had intended to send to Paris on that occasion the most honourable embassy that had ever left the shores of England. She felt now that she could trust no one whom she valued in a country where his life would be unsafe.

With these words she left him. He turned to the Council, but only to hear the truth spoken to him in plainer language. The Queen had been at least courteous; but he was not to go away with the belief that the English Government accepted his excuses.

Lord Burghley said that the Paris Massacre was the most horrible crime which had been committed in the world since the crucifixion of Christ. The very Spaniards and Italians would condemn such unheard-of cruelty. He could not say on whom the guilt most rested, but the plighted word of the King had been violated, and a deed of unexampled infamy had been committed in his presence.

Words of this kind, La Mothe intimated, might lead to a breach of amity, but the Council was indifferent to consequences.

In France, at the focus of the danger, Walsingham used the same language. A letter to Charles had been found among the Admiral's

papers, putting him on his guard against Spain and England. The Queen Mother showed it to Elizabeth's Minister, and he nobly answered, "that, however the Admiral was affected to England, he had shown himself in that letter a most faithful servant of the Crown of France."⁴⁰⁸ As little did he deign to conceal his disbelief of the pretended plot. He had been in daily communication with Montgomery, whom Catherine especially accused. He was able to assert on his own knowledge that Montgomery was innocent of every evil intention; and he insisted fearlessly that, were the proofs against him and others as clear as they were futile, they ought to have been arrested and tried.⁴⁰⁹

Had the massacre been really intended, the Queen Mother would have cared little for the world's reception of it; but as the thing itself had been sudden, so it found her unprepared, and left her uncertain what to do. She had wished merely to avoid a war with Spain, in which she feared Elizabeth would forsake her, and to give the heads of the two factions a chance of destroying each other; but she was no more willing to throw herself into a Catholic crusade than into a Protestant war of liberty. The crown of Poland was likely to be vacant, and she was looking to the German Princes to elect the Duke of Anjou. She showed no resentment, therefore, either at Elizabeth's language or at Walsingham's; she took no advantage of the Pope's approbation; she endeavoured to divest the massacre of all religious character, and to represent it as a political misfortune; and she seemed to expect that the Alengon negotiation might go on as if nothing had happened. But Walsingham's confidence in her or Charles was shaken to the ground. The King told him that he could justify himself; Walsingham answered that, under every conceivable aspect, his conduct was without excuse. If the Huguenots had committed offences, they should have been punished with justice, and not with "the bloody sword of murderers." "The King's conscience," he wrote to England, made him repute all those of the religion at home and abroad his enemies, and wish none of them alive; and, if he might himself give his opinion without presumption, he thought it less peril to live with them as foes than as friends."⁴¹⁰

⁴⁰⁸Walsingham to Sir T. Smith, September 14* Ibid

⁴⁰⁹Burghley to Walsingham, September 19; Sir T. Smith to Walsingham October 13: Digges.

⁴¹⁰Walsingham to the Council, September 24: Diggos.

"If the Admiral and his friends were guilty," said Sir Thomas Smith, "why were they not apprehended and tried? So is the journeyer slain by the robber, so is the hen by the fox, so the hind by the lion, and Abel by Cain. Grant that they were guilty — that they dreamt treason in their sleep — what did the innocent men, women, and children at Lyons? What did the sucking children and their mothers at Rouen, at Caen, at Rochelle? Will God sleep?"

There were some who, even at that wild moment, believed Charles to have been innocent. La Mothe told Leicester privately that the King detested the massacre, and would soon revenge it;⁴¹¹ and Sir Thomas Smith said, "he was sorry for the King, whom he esteemed the most worthy, the most faithful prince in the world; the most sincere monarch living."⁴¹² But Charles, at all events, was powerless. His weak intentions were drowned in wretchedness and desperation, and in him there were no grounds for England's future confidence; while Catherine had to feel also that she had not been more successful in renewing the good-will or disarming the suspicions of Spain. Philip himself had been inclined at first to see in what had happened an earnest of better things, a guarantee for the future of Christendom, an opening for a possible reconciliation of Catholic Europe, cemented by a marriage between Anjou and the Queen of Scots, and a league for the overthrow of Elizabeth.⁴¹³ But Alva, who saw deeper into the undercurrent of feeling, trusted France no more than before, and knew better than his master the magnitude of the problem which he had himself on hand. The catastrophe had relieved him of a combination which a few weeks previously had threatened him with certain destruction. The revolt of the Provinces which that combination had caused was in itself sufficiently formidable, and, if supported by England, might still be too much for him. It was no time for leagues against Elizabeth; it was no time to assist France to extricate itself from the confusion into which it was precipitated. France, for some years to come, would be unable now to meddle with its neighbours; and Alva concluded, with clear practical sense, that his own and his master's business was rather to take advantage of the irritation against France and England, to prevent the alliance from

⁴¹¹ Leicester to Walsingham, September 11: Digges.

⁴¹² Sir T. Smith to Walsingham, September 26.

⁴¹³ Aguilon to Cayas, November 6: Teulet, Vol. V. i The Queen Mother and the King to La Mothe F, September and October: Depeches, Vol. VII.

growing up again, to revive the Burgundian league, to contrast Spanish honour with French perfidy, and, instead of attacking Elizabeth, tempt her by every conciliatory offer to desert the unlucky Prince of Orange.

Thus Catherine found that, with all her skill, she could not blind Europe. She had forfeited the friendship of England; she had the civil war again upon her hands at home, and she had gained nothing but the Pope's blessing. The Protestants of the southwest Provinces, rallying from their first panic, were everywhere in arms. Rochelle closed its gates, and the great towns of Languedoc and Guienne followed their example. Montgomery, with help in England, reestablished the privateer fleet of the south; and the Queen Mother, bankrupt in money and credit, had to begin the old work over again with twenty Colignys in the field for one, to clamour in the midst of the world's scorn that the massacre was an accident, and to sue in the very dirt to Elizabeth for her consent still to be her grandchild's godmother,¹ to let the treaty stand, and to entertain Alençon's suit.

But her efforts were for the most part useless. Walsingham was not recalled, but the intercourse between the two Courts was reduced to cold courtesy. The Queen Mother's anxiety was construed into a further step in the conspiracy, and for a second *noce Galliques* to be enacted in England.

Confidence in France was gone, and English statesmen had now to decide whether they should maintain or desert the Netherlands. It was seen that they at first thought the alternative would not be offered them; that they would have war immediately on their hands with France and Spain combined. But they soon perceived that of this there was at least no immediate danger; while the prospects of Orange were certainly not favourable enough to tempt Elizabeth unnecessarily to his side. On the news of the massacre, his army had at once dissolved. He had himself retired into Holland, and Count Louis capitulated in Mons when he found that no relief could reach him from any quarter. The garrison was at its last extremity, and in a few more days must have surrendered unconditionally. To his own and the world's surprise, the Duke of Alva consented to terms rarely granted to insurgents by the most lenient commander. The Huguenot troops marched out with the honours of war, to be cut to pieces by their own countrymen when they crossed the French frontier; and

Count Louis himself, after being received with marked distinction in the Spanish camp, was permitted to go where he pleased.

The Duke apologised to Philip for his unusual clemency, saying simply that he had reasons for it, on which he would not dilate. It became immediately evident that he desired to create a favourable impression upon England. Ferocity at that particular moment would have exasperated the passions of the people beyond control, while forbearance would contrast with the atrocities of Paris, and give Elizabeth an excuse, of which he believed that she would avail herself, for leaving the Netherlands to their natural master. Antonio de Guaras supplied the Duke daily with the most minute account of the English movements, and he had soon reason to congratulate himself on his prudence. The old friends of the Spanish alliance were busy again. De Guaras spent money freely, giving as much as ten thousand crowns to some one unnamed who had influence with the Queen; and he ascertained in a little while that the reinforcements which were to have gone to Gilbert were suspended, that Gresham's departure had been counter-ordered, that money had been sent the Prince, but less than was originally intended; and that the Government was watching only to see what became of his enterprise. If he failed this time, England would leave him to his fate, and accept the friendship which Alva was so unexpectedly offering.⁴¹⁴

The Spanish Government left no stone unturned to November encourage the yielding humour. Submitting to the opinion of Alva, Philip himself sued to the Queen for a reconciliation, in terms which to the jealousy of the French Ambassador appeared beneath the dignity of so great a Prince.⁴¹⁵ The Duke, referring with gracious irony to St. Bartholomew, observed that she had gained little by

⁴¹⁴“Considerando lo que ha pasado en Francia todos a una mano tratan de la amistad de la casa de Borgona; v tenga Va Exeellencia por cierto que estan la Reyna y su consejo como rendidos, y que desean la amistad mas que jamas. Aqui tenian seis naos y ocho mill hombres prestos levantados en la costa, para si el de Orange prevaleceria como he escripto, y en lueat del dicho Gresham enviaron en dinero con correos pasadas de 20 mill libras para que el de Orange como se dice por falta del dinero no dexase de executar, pero de presente estan rendidos como digo.” — De Guaras to Alva, October 6: MS. Simancas.

⁴¹⁵“Le Roy d’Espaigne luy a escript une lettre fort pleyne d’affection et d’offres, et d’une quasi soumission, qui semble ne convenir gu, ny it la grandeur d’un tel prince, ni a la recordation des injures qu’il a re. Tant y a qu’en la dicte lettre aprfes beaucoup de belles et bonnes paroles il insiste au renouvellement des anciens traictds et de l’ancienne confederation d’entre ceste couronne et la mayson de

exchanging the friendship of Spain for that of France. The promoters of the Blood Council affected horror at the massacre at Paris, and professed an ardent desire for the restoration "of the ancient amity between the Crown of England and the House of Burgundy."⁴¹⁶

The Prince's cause after the breaking up of his army appeared to be irretrievably lost. No sane politician could believe that a few towns, a few marshy islands, and a population to be counted by thousands, could resist successfully the first military Power in the world. It might be noble to rush forward in defence of liberty. If a struggle for life and death became inevitable, England might have to stake her fortunes on the chance, and sink or swim with the revolted Provinces; but Elizabeth and her Ministers might well doubt whether they ought to venture needlessly so tremendous a risk in a quarrel which was but half their own. It might be that, looking to the broad interests of the Reformation, England was better fulfilling her duty by maintaining her own freedom, than by undertaking to fight the battles of every country with whose cause she sympathized.

Could England and France have understood and trusted each other in the past summer, then, indeed, the face of Europe might have been changed; but the characters of the sovereigns of the two countries, and the dispositions of their subjects, were alike unfavourable. Each Government had with too much justice the sincerity of the other. France had seen corresponding with Alva in the midst of the most opposite professions, and the catastrophe of August had justified the misgivings all along entertained by the opponents of the French alliance. The opportunity, at all events, had now passed. It remained for Elizabeth to do the best that she could for her subjects and herself, and her manifest interest pointed to the prudence of deserting the Low Countries and accepting Philip's offered friendship. If she entertained any doubts about it, she must have been fortified in her conclusions by the consternation which was produced among the Catholics. At the moment when the massacre at Paris seemed to have opened the way to their immediate triumph, the refugees and the friends of Mary Stuart found their hopes utterly blighted. With the Pope at their back, and European

Bourgoigne et qu'il est prest de la confirmer et la jurer de nouveau." — La Mothe Fnelon to the King, November 15: *Depeches*, Vol. V.

⁴¹⁶ to Sir William Fitzwilliam. November 12, 1572: MSS. Ireland I have not discovered Alva's original letter, but it is fully described by Fitzwilliam's correspondent.

fanaticism enthusiastic to take arms in their cause, they found their movements paralyzed; and if the Protestants on one side reproached Elizabeth for abandoning the Prince, the reconciliation of Philip with an excommunicated sovereign was more terrible and more destructive to the Catholics.

For a long time they could not believe their senses, and they continued to besiege the Court of Madrid with plans for the conquest of England, and with reproaches for Alva's coldness in executing them. Doctor Sanders, in the name of the Louvaine exiles, repealed in the usual language that England was the cause of the Netherlands' rebellion, and that till England was subdued, the rebellion would never be put down. He drew a picture of the great English Catholic party — one in heart, one in creed, and one in feeling, while the heretics were split into a hundred sects — Lutherans, Calvinists, Anabaptists, Puritans, hating each other, distrusting the Queen, and looking with dread to what would follow on her death. He sketched Elizabeth as she was represented in the Catholic imagination — a woman detested for her avarice, abhorred for the infamy of her life; setting herself up above all that was called God; and with her married clergy and her shameless favourite who had murdered his wife at her side, pretending to be the Head of the Church of Christ. Don John of Austria, he said, need but land alone in an open boat upon the English shore, to be welcomed as a deliverer. The heretics, made effeminate by vice and luxury, would fly at the first shot, and God would be on his side.⁴¹⁷ "The King," wrote one of Sanders's companions, "should remember his honour, and not allow France to take his place as the champion of the Holy See — France, which by its exploit of August, had gained immortal glory with the good throughout the world."⁴¹⁸ In England too, among the Protestants, there was some dissatisfaction. There was many a gallant gentleman who would have rather

⁴¹⁷ Doctor Sanders to Philip II., 1572; Parecer acerca las cosas de Irlanda jr Inglaterra, October 11, 1572; Informacion dada por Don Guerau, November, 1572: MS. Simancas.

⁴¹⁸ "Es increíble quanta honra y fama este solo hecho del Franpes el verano pasado le ha ganado por todo, y quanta e ahora todos los buenos de todas las naciones tienen en el. Por tanto conviene cierto mueho que el Rev Catolico sobre todas las cosas hiciese algo para resuscitar su nombre. en estas partes occidentales del mundo." - to the Duchess of Feria- MS. Ibid. From the rest of the letter the writer appears clearly to have been one of the English in the Low Countries, but cannot be identified more closely. It is worth observing that the only emphatic and unqualified admirers of the massacre were the Pope and the English Catholics at Louvaine.

died in fighting Span have shaken hands with the Duke of Alva, when Alva, having been reproached for his gentleness at Mons, began to show himself again in his true colours. In return for the murder of the monks at Mechlin, he gave up the town to be sacked by the Spanish soldiers, and for three days it was a scene of horrors which sent a shudder through Northern Europe. One day, De Guaras said the London people looked on him as their best friend, and the next, they were ready to stone him. The sack of Mechlin revived the terror that the Protestants would be massacred in detail all over Europe, and at the end of October a sermon was preached at St. Paul's to an enormous crowd, inflaming the passions of the people, appealing to Papists as well as Protestants to be true to their country, and threatening both alike with Philip's galleys.⁴¹⁹

But both in Spain and in England temperate counsels prevailed. Philip could not without a pang submit to have his piety suspected, but he allowed Himself to be guided by Alva; while pressing danger in Ireland, of which the reader will presently hear, the deeper detestation of France, the interests of commerce, the despair of the Prince's success, and the sincerity of Spain in desiring a reconciliation, of which Alva's correspondence leaves no kind of doubt, continued to determine the policy of Elizabeth and her cabinet. Sir Humfrey Gilbert was recalled in earnest, and the prospect of a liberal reconstruction of Europe having failed on the one hand, and Philip on the other having shown so great a disregard of the Pope as to be willing to renew his relations with England, Lord Burghley considered that it would be well if by some other means the great questions of the time could be amicably composed. In a remarkable conversation with De Guaras he renewed the proposals made long before by Henry VIII. to Philip's father. "He said that if the King of Spain would consent to some truly general council in which all opinions could be fairly represented, and if the practical abuses of the Holy See could be reformed, neither England nor Elizabeth would refuse to return to communion with Christendom. His mistress was neither Calvinist nor Huguenot, and she believed as much as Philip in the need of authority in the Church. The general interests of the world required reconciliation and peace, for the sake of which all parties ought to be

⁴¹⁹"Vosotros Papistas tened fuerte con nosotros Protestantes, porque da otra manera vosotros y nosotros iremos a remar en las galeras del Rey Felipe. —" De Guaras to Alva, October 28: MS. Simancis.

ready to make sacrifices; and to make a beginning, the Queen would feel herself happy if the King of Spain would allow her to mediate between the Crown of Spain and the Prince of Orange.¹ England, Lord Burghley said, was willing to restore the treasure which had been the original cause of the quarrel, to put down piracy and privateering, and to discontinue the protection hitherto afforded to the King of Spain's revolted subjects. A commission might sit to determine the outstanding claims of Spain and England one upon the other; and as soon as they were settled, the ancient league could be renewed. The Catholic King would be expected to forbid the English refugees to reside any longer in his dominions, and pending the general settlement of religion, English merchants and 1 De Guaras to Alva, October 12 and November 4: MS. Simancas sailors trading to Spain were not to be molested by the Inquisition as long as they complied in public with the laws."

The Duke of Alva, had he been left to his own judgment, would have accepted these conditions December, without scruple or hesitation. The Hollanders were preparing for a desperate resistance, and the Spanish commander estimated their ability to hold their ground against him considerably higher than Elizabeth or Burghley. But, great as his powers were, he dared not conclude a treaty on his own authority, which would close Spain and the Low Countries against the English Catholics. To himself they had been only a source of irritation and trouble, but they were pensioners and favourites of his master; and, before he could reply, he had to refer for instructions to Philip. The States-General of Holland made use of the delay to send a deputation to Elizabeth to entreat her not to desert them. She paused upon her answer, till Philip had decided; and, to show that she was not afraid, the English fleet continued rigorously to scour the Channel, and arrest every ship on its way from Spain to Flanders. But the bolder the front which she maintained, the more eager was Alva for peace with her, the more he pressed his master not to hesitate in compliance. His army had sat down before Haarlem after the sack of Mechlin. He found the town defended with a skill which the ablest engineers and the best trained troops in the world could not have exceeded. He was losing his men by thousands in a winter siege, and he said that if England interposed the rebellion would never be suppressed.⁴²⁰

⁴²⁰ Alva to Philip, January 17: Cor' esjxmdence, Vol. II.

Philip's difficulties were dreadful; to come to terms at all with a Power which had treated him with such insolence was more than humiliating. To consent to limit the power of the Inquisition, and to expel from his dominions those English friends who had been exiled for their faithfulness to the Church, was more than he could bear. His condition was pitiable. When he learnt that the English Catholics were now looking to France rather than to him to be their champion, he covered the margins of his despatches with interjections and lamentations; and the refugees plied him with complaints and reproaches, which cut the deeper because they were moderately urged. One of the party at Louvaine, whose name does not appear, wrote a remarkable letter to the Duchess of Feria, which was intended for Philip's eyes.

"Although," so it ran, "your Grace's words to us are always consolatory, yet we are dispirited by the long delay, and by seeing that nothing is done for us. We are driven to fear that we are deserted, and, against our natural inclinations, we turn our eyes towards the French, in whom alone we see the necessary courage, energy, spirit, and resolution. Your Grace may be assured that we neglect no exertions to keep our people loyal to the Crown of Spain; but, in our own defence, and in return for the confidence which his Majesty places in us, we beseech your Grace to explain to him that we shall be powerless, if he allows France to forestall him in moving on our behalf. All the world sees that conscience, duty, loyalty, justice, even gratitude, will then oblige us to go with the rest, and in the service of God and of our lawful sovereign (the Queen of Scots), accept the assistance of the first prince who will espouse our cause.

"The King can receive no more from us than we possess. Our hearty desire is to be his in all sincerity, and, without doubt, had our powers equalled our goodwill, the position both of England and Scotland towards him would have been now far different from what it is.

"You can hardly imagine the honour and glory which the French have gained for themselves by their exploit last summer. The good all the world over now look to them. And it is the more necessary that the Catholic King should exert himself to retrieve his name and credit. The French, as he well knows, are quick to resolve and swift to execute. Their influence at present is immense, both with the Holy

See and with the English Catholics.⁴²¹ If they undertake the reformation of our country, they will win the admiration not only of the English, but of all people everywhere who facause of religion. When they have begun it will be small honour to the Catholic King suit with them; and, if he is prudent, he will the entire field for them to occupy. After all the hopes which, for fourteen years, have been fixed upon his Majesty, it will be strange indeed to see another step in and do the work, and that other one from whom, four months ago, no one expected anything. In justice and reason, the Queen of Scots and her subjects will be most obliged to those who are the first to help them. The French Cardinals at Rome are now certain that their own people will take the initiative, and they count on securing the whole advantage to themselves. For our own part, we can but hope that his Catholic Majesty will forestall them, for his interest's sake as much as for his honour.

The pretended Queen of England is endeavouring to place the Government of Scotland in the hands of the Earl of Morton, who murdered the Secretary and the late King. Through his means, Cecil looks to get possession of the Prince; and not Cecil, but the other,⁴²² will make an end of the good Queen. This once done, the French will carry all before them. As long as she lives, his Majesty can turn the tables on them, but he will lose his advantage when she is dead, unless he has the Prince in his hands, where the Queen, his mother, desires to see him. She knows that France will not allow Scotland and England to be under one crown, unless she marries the Duke of Anjou; and for this reason she prefers the Catholic King. If, however, the Prince dies, or is carried to England, she will then, without doubt, be put to death, and Spain will be without a party in the whole Island.

"Inform his Majesty of the commissioners sent to England by the States. We are told that the pretended Queen has promised to supply funds for six thousand men in the coming spring. If it be so, you can force his Majesty to see the profound cunning with which she is acting. She pretends to be unresolved upon her answer, when she has already consented to what the States ask of her: while she will say in public that she can take no part against her dear brother the King of

⁴²¹"Bien entiende su Magd las resoluciones pressuroras y las executions cabega abaxo naturalmente in la nacion Fran; su reputacion ahora es grande con la Sede Apostolica, y su credito grande con todos los Catolicos de nuestra nacion."

⁴²²"El otro que Cecil." I suppose this means Morton.

Spain; she will entertain the envoy of the Duke of Alva with conspicuous courtesy; and she will heap favours on him, that he may stand her friend at Brussels." ⁴²³

The fears and jealousies which divided Catholic Europe are nowhere better expressed than in this letter. The writer believed — or, at any rate, he wished Philip to believe — that Elizabeth was tottering to her fall; and, being a warm friend of Spain, he affected lest the French should step in and sweep Pope's blessing, the glory, and the prize. The arguments were well calculated to work on the King of Spain; but, unfortunately, the Duke of Alva's views of the situation were totally different. In the first place, he disbelieved in the completeness of the Catholic revolution in France. He knew that the Queen Mother was working day and night to recover Elizabeth's confidence. When a French Princess was born in October, she solicited her so earnestly to fulfil her promise to be the child's godmother, that Elizabeth had at last consented; and the Earl of Worcester went to represent her at the ceremony. That an English nobleman — one, too, of notoriously Catholic tendencies — should go in state to Paris so soon after the massacre, was considered by the Protestants a hideous scandal — so hideous, indeed, that the Earl was attacked by a privateer midway between Dover and Calais. Four of his men were killed, and seven others wounded.⁴²⁴ But to Alva the continuance of any kind of friendly relations was alarming. He was not satisfied that the projects of France on Flanders might not still be revived. Even the Alençon marriage did not yet seem wholly impossible. Elizabeth still talked of it, and Burghley still wished it;⁴²⁵ while, so far from believing in the resources of the English Catho

⁴²³ — to the Duchess of Feria, January 23, 1573.

⁴²⁴ The attack was believed in London to have been instigated by some of the English bishops. A Spanish agent writes: "Creese que fudportrato de los Obispos de Inglaterra que deseaban que la Reyna no enviase personage al dicho bautismo." — *Relacion de las Cartas de Antonio Fogaca a Cayas, Enero 1573*: MS. Simancas.

⁴²⁵ Wherever documents survive, which reveal what was passing under the surface, we find everywhere in Europe organisations of complex treachery. At the end of 1572 a person appeared to London professing to come from the Duke d'Alençon, with a private message that the Duke detested the atrocities committed by his mother and brother, that he wished to escape to England, and afterwards, with the Queen's assistance, to place himself at the head of the Huguenots; when, by doing service to the good cause, he hoped to win his way to her hand. The following letter, which was apparently one of a series, will explain the principal points of the transaction. The original is among Burghley's papers at Hatfield. How it fell into English hands

is unexplained. Don Lucidor is the Due d'Alençon, Madame de Lisle is Elizabeth: — "A Don Lucidor. M. Lucidor, This will be the last of my letters. You will see by it that after having carefully looked into the state of things here, I conclude, as the sum and result of all that I have seen and heard since my arrival, that your best course will be to follow your first impulse and come over. I am confident that when you are once here, your affairs will go as you desire. You must understand in the first place that Madame de Lisle's coldness arose from the distrust which she had been taught to feel of myself. She could not wisely have promised anything in a matter of such consequence on the credit of a letter merely signed by your hand. Secondly, having seen their neighbour's house so lately on fire, they fear that the massacre may be a menace to all Europe, that there will be confusion and wars everywhere, and that those who wear, the same livery as the late victims should be on their guard against a similar fate. They are wise enough to see the advantage of your proposal. While you are in this country you will be a centre round which all the French will be to rally who would defend themselves against the enemies of Consider, then, whether they have not good cause to wish Don Lucidor here. They would give their lives and fortunes to keep you. "Moreover, so far as I can learn from Madame de Lisle's words, there is no prince in the world whom, if she marry, she would prefer to yourself; and that she does intend to marry I have already assured you. When she spoke to me about you she said, with a vehemence of affection, that there was nothing in her power which she would not do to help you. She would risk everything sooner than allow harm to befall one who might one day stand in so close a relation towards her. She would not use the precise words which you desire, but her eyes seemed to say to me, 'Bid your friend come and despair of nothing. He, if anyone, shall be my husband.' Do then as you proposed, and come. She desires to marry you, but nothing will be done through Madame la Serpente (the Queen Mother); you can imagine why; all advances from that quarter are suspect, because of the massacre. They are taken as an invitation to a second Paris banquet.

- Separate yourself from the Court. While you remain there no one here will speak for you. Let them see that you have taken the bit in your teeth, that you will have no more to do with the tyrants. All will then go well. Take up the cause of the Gospel, and England will stand by you, and so will your noble countrymen. "To the day of the massacre Madame de Lisle was all that was favourable. She changed and cooled afterwards; nor has she anyone now to advise her to think of you. Convince her of your innocence; show that you will be the protector of the Protestants, and they will pray you then to come you will give the law to Christendom. Germany is arming, are volunteering to serve with the Huguenots. The living God calls you. Fear not to fall between two stools, *le cul a terre*. There is nothing for you to fear. If a poor Prince of Orange and a Count Louis have achieved so much, what may not be done by a Due d'Alençon, a son and brother of a King? who leaves his own country because he will not be an accomplice in the most unworthy deed, the most vile and monstrous atrocity, of which the annals of the world contain a record," &c. The letter is in French, the writer unknown. Evidently he had been really in England, and had really talked with the Queen. It appears from a letter of Leicester's to Walsingham of the 8th of January, that "the Queen was loath to discredit Alençon, and was borne in hand that her love for him was great." — Digges. Walsingham, however, thought that "it was a dangerous practice not to be meddled with." And Burghley took the same view. On the desirableness of the marriage generally, however, he remained

lies, he felt nothing for them but increasing repugnance,⁴²⁶ and, with a coldness amounting almost to contempt, he discussed and pulled to pieces the objections of Philip to renewing his intercourse with the Queen.

"The King," he said, "appeared to fear that, treaty or no treaty, English pirates would still prey on Spanish commerce,' and English Protestants would send help to the Prince of Orange. It might be so. But connivance was less dangerous than open and avowed support. His Majesty was afraid of discouraging the English Catholics. But if, for the sake of the English Catholics, he was to lose the Low Countries, not much would be gained to the Catholic cause; and, after all, the treaty was no such considerable thing, nor would there be any necessity for observing it with particular strictness. Kings of course, like other people, ought to keep their words. But throughout his life," the Duke of Alva said, "he had observed that the dealings of princes with one another depended on conditions different from those which determined the obligations of private gentlemen. He had learnt that lesson from the conduct of that noble cavalier and great Prince, his Majesty's noble father the Emperor.¹ The present difficulties would never have arisen if his Majesty would have been guided by himself about Ridolfi. The later complications had all arisen from that one disastrous error. He was sorry that his advice did not please his

of his old opinion. Writing on the 20th of March, he said that France would certainly attack England when its own troubles were composed, but that the Queen would adhere to the league till France broke it. "As to the marriage," he went on, "I see the imminent peril to the State, the succession to the crown so manifestly prejudicial to the state of religion that I cannot but persist in seeking marriage for her Majesty, and finding no way that is liking to her but this with the Duke, I force myself to pursue it with desire." — MSS. France, Solis House,

⁴²⁶ Lord Westmoreland continued to say that if Alva would land in Northumberland he would himself undertake that ten thousand men would join him. Alva's character is curiously marked in a conversation on the subject which another English gentleman, whom he consulted, reported to Cecil: — "His Excellency asked me," says this person, "what assurance he might have that my Lord of Westmoreland would perform what he said. I told his Excellency that his word was the word of a nobleman: and his Excellency's answer to me was that his word was the word of a nobleman out of and not like his word who is a nobleman in his country and in his Prince; which was as profound a sentence as ever I heard." Ed. Woodshaw to Burghley, 1573: MSS. Flanders. I "Entendi que las negociaciones de los reyes pendian de muy diferentes cabos que los negocios de los particulares Caballeros que audamos por el mundo, y desta manera lo vi tratar a su Padre de V. Magd que era tan gran caballero y tan gran Principe." — Alva to Philip, March 18, 1573: Correspondence of Philip //., Vol. II.

Majesty. His Majesty's letters to him consisted of little else but answers to his arguments. He did not pretend to be invariably right, but the differences of opinion between his Majesty and his representatives occasioned infinite evils. For his own part, he could but repeat that, at a time when every soldier who could be spared from Spain was required in the Netherlands, his Majesty's notion of entering upon a religious crusade was simply a temptation of the devil."

Still struggling against the degradation, yet convinced that Alva was right, Philip after this letter withdrew his objections, and gave the Duke his way. He still required, however, that, although the refugees might be required to leave the Low Countries, he was not to be obliged to surrender them to "the knife" of Elisabeth.⁴²⁷ He reserved a power of refusing the ratification should the progress of the war in Holland prove more favourable than the Duke anticipated; and, not altogether accepting Alva's theory of his obligations, he introduced a clause which limited the duration of the treaty to two years.

Thus sanctioned, Alva sent orders to De Guaras to make final arrangements with Burghley. By the middle of April the ports of Spain and the Low Countries were formally opened to English commerce without danger of the Inquisition, and Philip, Alva, and Elizabeth became again nominally friends. The provisional character of the alliance was understood on both sides, and although other and more embarrassing conditions were verbally introduced, it was not thought desirable to strain a weak chain, and the execution of them was tacitly suspended.

Westmoreland and his companions continued a little longer unmolested at Louvaine, and the Flemish merchants and artisans remained in London. The pirates still preyed on Spanish commerce, and the London citizens supplied what was wanting in their rulers by subscribing 250,000*l.* for the Prince of Orange. But the dreaded alliance between Elizabeth and the insurgent Provinces was postponed, the two Governments returned to relations which were amicable in more than name, and Alva and the Queen of England left each other to settle their own difficulties in their own way without interfering with one another, and with a mutual security against France. The Prince of Orange had a terrible time before him; but the discouragement produced among the English Catholics by the open apostasy of Spain

⁴²⁷"Al cuchillo de aquella muger."

did more, perhaps, to advance the general interests of the Reformation than a Protestant league, which would have brought on everywhere the internecine struggle between the two creeds. The fairer prospects of the previous summer had been ruined on the day of St. Bartholomew.

One country, at any rate, was to derive profit from the relaxation of Elizabeth's embarrassments. It is time to return to Sir Henry Killigrew and his tous mission to Scotland. In the spring and of 1572, the alliance between England and France, the abandonment of Mary Stuart's interests by Charles and Catherine, and their apparent intention of taking up the cause of European liberty, had broken the spirits of the defenders of Edinburg Castle. Fair words were occasionally sent to them from Paris to keep up their spirits, but more substantial help had long ceased to reach them. The country people no longer supplied them with food, and they were too weak to foray.

The suspension of arms at the beginning of August gave them a respite; but Maitland, in entire despondency, informed Mary Stuart that unless they received assistance they could not renew the struggle. "Her cause would not perish as long as they could keep the castle;" but they had nothing left to pay their soldiers with, and he thought her best course would be to submit to Elizabeth, "who if she now made good offers, would show her more favour than she did when she had more friends." ⁴²⁸

The catastrophe of the 24th of August appeared at first to complete the prostration which already had gone so far. Grange was a sincere Protestant — his brother James Kirkaldy, who was in Paris at the time on a mission to the Court, narrowly escaped murder, and was horror-struck by the scenes which he witnessed there; ⁴²⁹ and Killigrew, who, besides his secret commission for the surrender and execution of Mary Stuart, was directed to use the moment to bring about a general reconciliation, found this part of his duty seemingly of easy accomplishment. The nobler mind of Scotland was startled out of its petty feuds. A heartfelt indignation worked in all parties to extinguish the latest remnants of French sympathies; and every one, whatever his creed or politics, was eager to wash his hands of all connexion with a Court which was presided over by assassins.

⁴²⁸ Maitland to the Queen of Scots, August 10 (decipher): MSS. Scotland.

⁴²⁹ James Kirkaldy to them of the Castle, August 24: MSS. Queen of Scots.

"Those that have any fear of God," reported Killegrew, "break out into open speeches of de- 'es;ng the cruelty, and have exhibited a sup to the Regent to take counsel in time, and the danger apparent from drawing nearer. Every man crieth out to join with England in some straighter league." ⁴³⁰

The nobles, long "nuzzled" in bloodshed, would not in themselves have been very deeply affected: but the power of the nobles was fast declining; a middle class, made strong by faith in God, was stepping forward into energy and self-reliance; and in worldly strength as well as spiritual power, they were making good their place in the commonwealth. They had bought arms and had learnt to use them, and were no longer at the mercy of the steel-coated retainers of the earls and barons. Their ministers were as ready with hand as tongue. Durie of Leith, a friend of Knox, was famous in the pulpit, but "the gown na sooner off, and the Bible out of hand, when on gaed the corslet, and fangit was the hackbut and to the field." ⁴³¹ They had taken to the sea like the Protestants of the West, "and their navy was so augmented as was a thing almost incredible." Killegrew noted the change, and gathered hopes from it for Scotland's future. ⁴³²

On men like these the massacre of St. Bartholomew told with tremendous effect, and for a time their indignant passion threatened to carry all before it. John Knox, to whose teaching- they owed their national existence, had been residing for the last years with failing health at St. Andrew's. He could no longer walk unsupported, but still Sunday after Sunday he dragged his frail body to the church, and there with keen political sagacity he interpreted out of the Bible the Scotland of his own day. ⁴³³ To him the government of the world by Almighty God was a living reality; he considered that good men were placed in it to wage war not with shadowy doctrines, but with the incarnation of the evil spirit in wicked men and wicked deeds. He spoke of Mary Stuart — he spoke of the Hamiltons, tul he made the St. Andrew's students "grue and tremble" to listen to him. He knew that there would be no end to Scotland's miseries till the last

⁴³⁰Killegrew to Burghley, September 29: MSS. Scotland.

⁴³¹Diary of James Melville of St. Andrew's.

⁴³²Killegrew to Burghley, November 11: MSS. Scotland.

⁴³³"I saw him," writes Melville, "every day of his doctrine gae hুলie and fear, with a furring of marticks about his neck and a staff in his hand and godly Richard Banatyne his servant holding up the other oxter. He was lifted up into the pulpit, where he leaned at his first entry."

remnant of Mary Stuart's faction was utterly extinguished, and he knew that sooner or later England would be compelled to extinguish it. Cutting through the mist of words and spurious patriotism, "he spoke of the Castle of Edinburgh, that it should rin like a sandglass, and spew out the Captain with shame;" and when the power of passion was upon him, the sinews of his weak body became strong again, "and he was like to ding the pulpit in blads and fly out of it.
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Such was Knox, the greatest of living Scotchmen, in that last year of his life on earth, still lifting the voice which long before had stirred his countrymen "like ten thousand trumpets," still strong in his infirmity till he had finished his task upon the earth.

After the armistice he returned to Edinburgh at the earnest entreaty of the people, stipulating only that he should not be required "to temper his tongue, or "cease to speak against the men of the Castle. He crossed the Forth to Leith on the 23d of August; on the 31st he preached in St. Giles's, but the church was too large for his strength, and for his few remaining Sundays a side aisle was curtained off where he could speak with less exertion.

It was easy to see how the news of St. Bartholomew -would affect him. A Convention of the Esoctober. tateg wa§ capieq by the Regent in October, and Knox rallied his powers for the last time to preach to them. Du Croc the French Ambassador was present; turning to him as a Hebrew prophet might have turned, Knox said, "Go tell your King that sentence has gone out against him, that God's vengeance shall never depart from him nor his house, that his name shall remain an execration to the posterities to come, and that none that shall come of his loins shall enjoy that kingdom unless he repent." The prediction was bold, for the Queen of France was pregnant, and the news of the birth of a Dauphin was hourly looked for. Du Croc bade the Regent check the tongue which was reviling an anointed King. The Regent said he might not silence the minister of God, and the Ambassador left Edinburgh in anger. Some twenty months later Charles IX. lay dying of hemorrhage — he was haunted with hideous dreams; the darkness was peopled with ghosts which w'ere mocking and mowing at him, and he would start out of his sleep to find himself in a pool of blood — blood — ever blood. The night before his end, the nurse — a Huguenot — heard him sob and sigh. "Ah!" he

⁴³⁴Melville.

muttered, "but I was illadvised. God have mercy on me and on my country; what will become of that? what will become of me? I am lost — I know it but too well." The nurse told him that the blood would be on the heads of those who had misled him — on them and on their accursed counsels. He sighed again, and blessed God that he had left no son to inherit his crown and his infamy.⁴³⁵

While the Scots were in this humour the second commission of the English envoy was no less welcome than the first. The Queen of Scots was the representative of the creed which had caused the perpetration of the massacre, and which blessed it afterwards by the mouth of the Pope. The Queen of Scots by her crimes had caused Scotland's misery. To her had been traced the murder of the Regent Murray. To bring her to justice at last — to try, convict, and execute her, would be one act in vindication of honour and right amidst the stream of universal iniquity. The Earl of Mar, after consulting Morton, told Killegrew that it would be the best, and as it were the only, salve for the cure of the great sores of the commonwealth." There might be difficulties in the details, but with good-will on both sides they would be overcome; and as Elizabeth had given Killegrew his inwith her own mouth, and as there could be that Burghley would do his best to hold her to her purpose, there was hope at last of a good end to the problem. Mary Stuart being dead, all other would perish with her. Grange would surrender the Castle. Burghley might revive his friendship with Maitland, and Scotland could be gratified at last by the recognition of James as Elizabeth's successor. England must, of course, stand conspicuously forward, and take its share in the responsibility of the; and nothing would then be wanting for the pacification of Scotland, and the union of the whole island in a common policy.

The Earl of Mar's confidence that Elizabeth would commit herself to more than the surrender November. nQt by Killegrew. She had charged him on no account to allow her name to appear.¹ He believed — he probably knew — that having made up her mind that she wished the Queen of Scots to be iut away, her Majesty wanted to shift upon the Scots both the deed and the reproaches of the world.

⁴³⁵Martin, *Uisloire de France*. l "I forgot not the great charge her Majesty gave me at my coming hither, saying that no more was privy to the matter but your Honours; and I could but promise her Majesty it should be to me as my life, which I trust I have kept. If it shall be proved hereafter that I used her Majesty's name therein, or passed the bounds of my commission, I will never more desire favour." — Killegrew to Cecil and Leicester, November 23: H'iS. Scotland.

He declined to make engagements beyond the letter of his instructions; and the Regent at once drew up in writing the conditions on which he was prepared to become the judge and executioner of his late -sovereign.

The Queen of England must openly and without reserve acknowledge the young King, and constitute herself his protector; and the English Parliament must pass an Act declaring that the prosecution and conviction of Mary Stuart should not affect the claims upon the Crown which the King would inherit from his mother. A league must be made between England and the State of Scotland "for resisting all those who would invade either of the realms for religion or for any other cause. The Castle of Edinburgh must be compelled or induced to submit to the King's authority; and finally, the Earls of Huntingdon and Bedford must be present at the execution," with two or three thousand English men of war.⁴³⁶

Killegrew had been despatched to Scotland' in the first excitement which followed the massacre, when Elizabeth expected an immediate union of the Catholic Powers against her, when she was uncertain altogether of the position in which she was about to find herself either towards France or Spain or the Prince of Orange. If, as there was too much reason to suppose, the death-struggle for Catholic reascendancy was at last to begin, there would then have been an adequate reason for dealing decisively with Mary Stuart; but it seemed as if nothing short of an extreme exi- 448

[Ch. xxm History of England. gency of this kind could nerve the Queen to sufficient resolution — as if, the moment that the strain was taken off, she relapsed into her old uncertainty. Maitland ever maintained, and defended his own conduct by maintaining, that whatever Elizabeth might threaten, or might at times believe that she meant to do, she would end by restoring Mary Stuart to her throne. Maitland had accurately judged the Queen's natural tendency, and there were traitors about her who for ever encouraged her weakness, and whose influence was perpetually at work to thwart her wiser advisers.

Under no circumstances would she have consented to the Regent's last demand. Before the conditions reached her, she had already repented of her momentary firmness, and Leicester on the 2d of November had to write to Burghley that "her Majesty had been in

⁴³⁶Certain notes given to Killegrew on the part of the Regent and Morton, October 28: MSS. Scotland.

strange resolutions," that "he never saw her further from that they looked for" from the time that the Queen of Scots had first begun to trouble her peace, and that he could but pray that God would put a better determination in her heart for her own sake and for theirs.¹

At this moment the unfortunate Scotland was again convulsed by the death of the Earl of Mar. Poison or natural illness — it was uncertain which — threw the Regency open, after every one except the party in the Castle had acquiesced in Mar's authority. The rivalries of the great families and the suspended feuds and hatreds were at once revived. The natural command of the section who had adhered throughout to the King devolved on Morton. At one time Morton had maintained almost the entire weight of the civil 1 Leicester to Burghley, November 2: Murdin. war, and he alone had never truckled to France, or lent himself to the thousand intrigues for the restoration of the Queen. There was no other nobleman in Scotland on whom the English Ministers could rely. Yet Morton was licentious in his private life, and in public avaricious and unprincipled. His creed was purely political; and if the times made him necessary to the Protestants, they none the less distrusted his principles and censured his character. His power was great, however, and his ability considerable. If Mar had nominally governed Scotland, Morton had governed Mar. None but he could carry on the policy on which the settlement of the country had been so far advanced. And there was a special reason for uneasiness in the position of the young King; for Lady Mar, in whose hands he was left at Stirling, was a fanatical Catholic, and was supposed to desire to send him either to France or Spain.

On this matter decision could not be postponed. Burghley was absent from London when the news arrived; but he impressed on Leicester, who was left with the Queen, the paramount importance of maintaining Morton; and Leicester, who had at last abandoned his own hopes, and was working cordially at Burghley's side, used all his powers of persuasion. His task was not an easy one, for the household influences which he himself had once fostered were against him — now in greater strength than ever — and at their old work in Mary Stuart's interests.⁴³⁷ He urged his mistress to be quick and prompt "in showing herself careful for the maintenance of her friends, whose

⁴³⁷"I have learnt here since you went that this House is no less infested, and grown unto such persons as you would never suspect. You see how far this Canker has passed. I fear a fistula irrecoverable." — Leicester to Burghley, November 4: Murdin.

ruin would be her own danger." He told her that she must send men and money to the Borders, and give Lord Hunsdon discretionary powers to act in Scotland. "Her Majesty talked to and fro what was best" — but as usual could not resolve. Leicester reminded her "of her long cold dealing, which had caused many to fall away from the cause when, with hope of maintenance, they would have clung to it." That cause, without assistance, now "would quail." The Queen asked what Burghley thought. Leicester showed her Burghley's letter, which was expressed so powerfully that it frightened her, and she said she would "stick at nothing." But still, to every distinct suggestion she did but raise objections, when every moment was precious, when "hours were days, and days were years, and too many were gone already." Leicester ventured to say "that never prince had been better advised than she; that she could now perceive how well it was for princes to trust faithful and known councillors;" that if she had but listened to one among them all "the trouble like to happen would not have been possible." But his words were wasted. She had fallen into one of her periodic fits of tenderness about the Queen of Scots, which she conceived that her improved relations with Spain enabled her to indulge, and Leicester could but entreat Burghley to hurry back to her side: "Burghley could do more with her in one hour than others in seven years."⁴³⁸ On the back of this conversation, a Captain Errington came from Edinburgh with a message from Morton, who, ignorant of the change in Elizabeth's feeling, that she still entertained the same wishes which she had expressed through Killegrew, and professed himself ready to meet them on the conditions which she now saw for the first time. She pronounced them at once "to be absurd and unreasonable." The request for an English army to superintend the Queen of Scots' execution she supposed must have been made in "mockery." Could the thing have been done at all, "neither the English Council nor she herself should have been touched in the matter."⁴³⁹ Another request of Errington was hardly less disagreeable. The election of a Regent could not be delayed. Morton seemed to have no anxiety for the office. He knew what Mar's difficulties had been, and that his own would probably be greater; and, so far from seeking power, he intimated that he would decline the nomination unless Elizabeth would give him a distinct and positive

⁴³⁸ Leicester to Burghley, November 4: Murdin

⁴³⁹ Killegrew to Burghley and Leicester, November 23: MSS. Scotland.

promise of support. The meaning of this was explained by Killegrew, who wrote at the same time that France was pouring in money; that, notwithstanding the horror caused by the massacre among the people, if Elizabeth "spared to spend a little in return," the nobles would choose some one in French interests; and "what that would mean, her Majesty was well able to judge."⁴⁴⁰

That the request for money at least was reasonable Elizabeth could not deny. The party of the Queen of Scots had been maintained by steady contributions from France, Spain, and Italy, in addition to her own dowry. The supplies had been suspended for a time, but were now to be renewed; while Elizabeth, however gracious in her promises, had limited her substantial assistance to a thousand pounds, grudgingly bestowed, while she had withheld the single measure which would have been more valuable to her friends than millions, and had all along refused formally to acknowledge James as King of Scotland. Grange and Maitland had recovered from their despondency as France began again to show them favour. Handsome sums came in to them from Paris, and more was promised; and, well informed from the Palace at Westminster of Elizabeth's humours, they had cast aside their intention of surrender, and presented as bold a front as ever. The civil war was about to recommence, with all its cost and uncertainty, and Morton was determined not to enter upon it on the old terms. Elizabeth was more interested than he was in maintaining the King. He at any time could make his own terms with the other party, and she was not any longer to reap the chief benefit, and pay nothing for it.

The Queen felt the weight of Morton's argument, and her behaviour under it was eminently characteristic. She wrote to him, expressing a sincere desire that he should take the Regency: she gave him in general terms the promise which he desired, and she empowered Killegrew to use the same language to the noblemen who were assembled for the election. She trusted that this would be enough, and she forbade Killegrew to commit her to anything more definite.

The nobles had received words enough already, and knew what they were worth. Both they and Morton insisted on a distinct statement of the degree of help on which they might rely, saying at the

⁴⁴⁰Killegrew to Sir Thomas Smith, November fi: MS Ibid.

same time that if Killegrew would not give it, the election would be postponed.

The envoy knew what was expected of him, and did his duty like a loyal servant. He was to have appeared before the Convention of the Estates with the required explanations, and he was well aware that they would be unsatisfactory. He put it off, therefore, till the day when the Regent was to be chosen, when Morton came for his answer; and "because" — it was thus that he related his manoeuvre to his mistress — "because I would keep the Earl of Morton in hope till the election was passed, I excused myself upon sickness, and desired his Lordship to bear with me for a day or two, assuring him that your Majesty had as great care of the King's welldoing and safety, and of himself in particular, as ever your Majesty had heretofore; with such like general speeches, tending all to encourage him to take upon himself the Regency. So he parted with me for that time, and I continued sick till the day after he was proclaimed Regent." i

Great in her general attitude, great in her own heart and bearing at special moments of danger, Elizabeth could yet stoop to these poor tricks, which, after all, were not to serve her. "The Regent," Killegrew reported to Burghley, "was a shrewd fellow." When he found that he had been duped, he too affected a few days' illness to think over his position. He then told the English envoy that he could do nothing without money; the King's cause and his own life would both be in danger; and therefore, "if the Queen's Majesty would not help him in that which of necessity he must have, and which should be as little as might be required with reason, he would renounce the regiment."

⁴⁴¹ In the midst of these chicaneries, an event had taken place by the side of which they were doubly contemptible. The apostle of the Reformation had passed away — passed away, noble in death as in life, the one supremely great man that Scotland possessed — the one man without whom Scotland, as the modern world has known it, would have had no existence.⁴⁴²

Shortly after Knox's last sermon, a paralytic stroke prostrated his remaining strength; he became unable to read, and for a day or two his mind was wandering. He recovered his senses, but only to know that the end was not far off; and still thinking of his country, and of his country's present trials, he sent for the elders of the Kirk, to

⁴⁴¹ Killegrew to Burghley, January 1: MS. Ibid.

⁴⁴² Killegrew to Elizabeth, December 2: MSS. Scotland.

charge them for the last time to be constant. His next anxiety was for Grange. Grange, who, as a boy, had shared in that forlorn enterprise at St. Andrew's when Beton went to his account, was a person whom Knox had long loved and prized. In the last years, by some fatality, he had been led by Maitland into the ways of foolishness; beyond and beside the spiritual aspects of the matter, none knew better than Knox in which way the long obstinacy of the defenders of the Castle would end at last, and he made a final effort to save his old friend from destroying himself. "Go," he said to David Lindsay, a minister who came to his bedside, "Go to yon man of the Castle. Tell him I warn him in the name of God to leave that evil cause, and give over the Castle. If not, he shall be brought down over the walls with shame and hung against the sun." Lindsay went as he was bidden and saw Grange, and "somewhat moved him." But he talked to Maitland, and Maitland turned the warning into ridicule. "Go, tell Mr. Knox," he said at last in answer, "that he is but a drytting prophet." « Well, well," said Knox, when the words were brought back to him, "I have been earnest with my God anent they twa men. For the one, I am sorry that sa should befall him; yet God assures me there is mercy for his soul. For tlv other, I have na warrant that ever he shall be well."

On the 17th of November the elders of the congregation came to his bed to receive his last instructions. He went over the chief incidents of the last year with them. "He had done his best to instruct them," he said, "and if at any time he had spoken hardly, it was not from passion or ill-will, but only to overcome their faults. Now that he was going away, he could but charge them to remain true — to make no compromise with evil — especially to yield in nothing to the Castle — rather to fly with David to the mountains than remain at home in the company of the wicked."

Two days later, the 19th, Morton came, and Ruthven and Glencairn; and to them he spoke at length, though what passed none ever knew. Afterwards some fine lady came "to praise him," to flatter him in a foolish way for the great things which he had done. "Hush, hush!" he said; "flesh is ower proud, and needs no means to esteem the self."

He was rapidly going. On the 23d he told the people who were about him that he had been meditating through the night on the troubles of the Kirk. He had been earnest in prayer with God for it. He

had wrestled with Satan, and had prevailed. He repeated the Apostles' Creed and the Lord's Prayer, pausing after the first petition to say, "Who can pronounce so holy words!" It was the day on which a fast had been appointed by the Convention for special meditation upon the massacre. After sermon, many eager persons came to his bedside, and, though his breath was coming thick and slow, he continued to speak in broken sentences.

The next morning the end was evidently close. He was restless, rose, half-dressed himself, and then, finding himself too weak to stand, sank back upon his bed. He was asked if he was in pain. He said "it, was no painful pain, but such as would end the battle." Mrs. Knox read to him St. Paul's words on death. "Unto Thy hand, O Lord," he cried, "for the last time, I commend my soul, spirit, and body." At his own request she then read to him the 17th chapter of St. John's Gospel, where he told them he first cast anchor.

As night fell he seemed to sleep. The family assembled in his room for their ordinary evening prayers, and "were the longer because they thought he was resting." He moved as they ended. 14 Sir, heard ye the prayers?" said one. "I would to God," he answered, "that ye and all men heard them as I have heard them, and I praise God of the heavenly sound." Then, with a long sigh, he said, "Now it is come. The shadow was creeping over him, and death was at hand. Bannatyne, his secretary, sprang to his side.

"Now, Sir," he said, "the time ye have long asked for — to wit, an end of your battle — is come; and, seeing all natural power fails, remember the promise which oftentimes ye have shown me of our Saviour Jesus Christ, and that we may understand ye hear us make us some sign."

The dying man gently raised his head, and "incontinent thereof, rendered up his spirit."⁴⁴³

"There lies one," said Morton, as, two days later, he stood to watch the coffin lowered into the grave, — "there lies one who never feared the face of mortal man." Morton spoke only of what he knew: the full measure of Knox's greatness neither he nor any man could then estimate. It is as we look back over that stormy time, and weigh the actors in it one against the other, that he stands out in his full proportions. No grander figure can be found, in the entire history of the Reformation in this island, than that of Knox. Cromwell and Burghley rank

⁴⁴³Narrative of Richard Bannatyne.

beside him for the work which they effected, but, as politicians and statesmen, they had to labour with instruments which they soiled their hands in touching. In purity, in uprightness, in courage, truth, and stainless honour, the Regent Murray and our English Latimer were perhaps his equals; but Murray was intellectually far below him, and the sphere of Latimer's influence was on a smaller scale. The time has come when English history may do justice to one but for whom the Reformation would have been overthrown among ourselves; for the spirit which Knox created saved Scotland; and if Scotland had been Catholic again, neither the wisdom of Elizabeth's Ministers, nor the teaching of her Bishops, nor her own chicaneries, would have preserved England from revolution. His was the voice which taught the peasant of the Lothians that he was a free man, the equal in the sight of God with the proudest peer or prelate that had trampled on his forefathers. He was the one antagonist whom Mary Stuart could not soften nor Maitland deceive; he it was that raised the poor Commons of his country into a stern and rugged people, who might be hard, narrow, superstitious, and fanatical, but who, nevertheless, were men whom neither king, noble, nor priest could force again to submit to tyranny. And his reward has been the ingratitude of those who should most have done honour to his memory.

The change of times has brought with it the toleration which Knox denounced, and has established the compromises which Knox most feared and abhorred, and he has been described as a raving demagogue, an enemy of authority, a destroyer of holy things, a wild and furious bigot. But the Papists whom Knox grappled with and overthrew — the Papists of Philip II., of Mary Tudor, and Pius V. — were not the mild forbearing innocents into which the success of the Reformation has transformed the modern Catholics. When their power to kill was taken from them, when they learnt to disclaim the Inquisition — to apologise, to evade — to fling the responsibility of their past atrocities on the temper of other times — on the intrigues of kings and statesmen, or on the errors of their own leaders — then, indeed, their creed could be allowed to subside into a place among the *religiones licitæ* of the world. But the men who took from Popery its power to oppress, alone made its presence again endurable; and only a sentimental ignorance or deliberate misrepresentation of the history of the sixteenth century can sustain the pretence that there was no true need of a harder and firmer hand.

The reaction when the work was done, a romantic sympathy with the Stuarts, and the shallow liberalism which calls itself historical philosophy, has painted over the true Knox with the figure of a maniac. Even his very bones have been flung out of their resting-place, or none can tell where they are laid; and yet but for him Mary Stuart would have bent Scotland to her purpose, and Scotland would have been the lever with which France and Spain would have worked on Eng- 'and. But for Knox and Burghley — those two, but not one without the other — Elizabeth would have been flung from off her throne, or have gone back into the Egypt to which she was too often casting wistful eyes.

On the 1st of January the fighting began again. The Castle guns fired upon the town; and the attempt to entangle Morton in the respon- January' sibilities of government, without committing the Queen of England, having broken down, she was obliged to comply with his terms, to give him money, to acknowledge the King without more subterfuge, to avow openly that she intended to support him, and to threaten once more that if Maitland and Grange did? not submit, she would send a force to compel them.

Engineers came from Berwick to survey the Castle, and reported that it could be taken with no great difficulty; but it was thought that the recognition and the menace would be sufficient, and that Maitland, when he found Elizabeth serious, would surrender.

Being supplied with funds to pay soldiers, Morton was able to establish a close blockade. The Castle guns did little harm. The garrison was short of water. The men had been provided in part from a well at the foot of the cliff; but Morton poisoned it, and they were reduced to the two springs inside the fortifications, which yielded but a scanty supply. There were in all inside the Castle a hundred and ninety-two persons, of whom thirty-two were women and thirteen were boys. The Gordons, Hamiltons, Kerrs, Scotts, Setons, were all away in their own counties, waiting for the turn of events. Grange, Maitland, Hume, Sir Robert Melville, and the Bishop of Dunkeld, held on at Edinburgh with as small a number of followers as were thought 460 sufficient for the defence. Maitland was so ill that, "when the cannon were fired, he was car- February- ried down into the vaults below St. David's Tower, because he could not abide the shot. If the rest of Scotland could be brought to terms — and the rest of Scotland was simply waiting to see what Elizabeth intended to do — there was nothing to

lead any one to suppose that the Castle would not follow the example. The noblemen were possessed with a belief, which Maitland had everywhere impressed upon them, that Elizabeth would grow weary of keeping Mary Stuart, and would, sooner or later, reinstate her. If they were again to be her subjects, their interest recommended them to adhere to her faction, to be friends with her friends, and to intrigue with the Spaniards and the French. If, on the other hand, this was not to be — if Elizabeth herself could be depended on, and the King was to be maintained — they were themselves tired of the struggle, and they were beginning to see that if the Queen of England was true to herself, there was now little chance of a successful Catholic revolution.

The recognition of James was the turning-point for which they were waiting. No sooner was it proclaimed than signs appeared everywhere that there would be no more resistance. Many difficult questions remained to be settled. Argyle and Huntly were compromised in the murder of Darnley; Chatelherault and his sons in the deaths of Murray and Lennox. Elizabeth advised that the prosecution in all these cases should be allowed to drop. Religion was a further difficulty. While the civil war lasted, the Mass had been restored in the north and west. Several noblemen were still Catholics, and Eglinton, in the Convention which was held for Morton's election to the Regency, ventured to speak for toleration. In this matter, however, compromise was less possible. Morton said that the Catholics must submit to the common consent of the realm, and Eglinton would not press his desire. "He accompanied the Regent to the sermon," and afterwards took pains to express his horror at the effects of Catholic fanaticism in France.⁴⁴⁴

A conference was afterwards held at Perth, at the "lodgings" of the English Ambassador, who offered to mediate under Elizabeth's direction. Huntly and Arbroath were present, and at length, when they and the other professing Catholics agreed to swear "to withstand all those who should go about to put in execution the bloody decrees of the Council of Trent," the Regent consented to accept the oath as a

⁴⁴⁴ "When the Act for the League with England was read many gave their voices to it, and especially the Lords Eglinton and Sempell, with open detestation of the French butchers and late horrible murders, saying they would willingly venture their lives, lands, and goods against such." — *Advices out of Scotland*, February 10: MSS. Scotland.

substitute for conformity, and they were left to use whatever service they pleased in their own houses.

These and other points of difference being thus disposed of, the heads of all the families who had hitherto held out for the Queen, acknowledged their allegiance to her son and accepted Morton as lawful Regent. The French had no longer a party among them. England was at last accepted as Scotland's natural and only ally. On the 25th of February the work of pacification was finally completed, and Edinburgh Castle remained the sole spot in her forfeited dominions where Mary Stuart's authority was maintained.

The fire was not extinguished, however, till the Castle was reduced; and, unexpectedly, under various excuses, Maitland and Grange continued obstinate. Their pretended reason was the want of sufficient security for their own lives and estates; but money coming from France to them was continually intercepted, and letters telling them that they should be relieved if they could hold out till summer.⁴⁴⁵

Maitland was satisfied that the Castle could never be taken by the Scots; that, however Elizabeth might threaten, she would never really interfere, and that he was still safe in holding out.

Illusion and obstinacy must have combined to blind his otherwise clear intelligence; but it will be perceived that he really did see deeply into the Queen of England's character, and that it was not without reason that he built hopes upon her reluctance to extinguish the remains of Mary Stuart's party.

Immediately after the general pacification, Morton sent to Grange to require him to submit with the rest, and to trouble Scotland no further. Grange answered (or Maitland, for Grange was clay in his hands) that he would acknowledge the King, if he might keep the Castle; and that he would bind himself to introduce no foreign troops, if Elizabeth would undertake that "they should enjoy their lives, lands, rooms, offices, and honours," "and would give them money to pay their debts."⁴⁴⁶

Morton at once said that he would listen to no such conditions. "There could be no sound peace" while the Castle was independent of his authority, nor could Grange, or Maitland, or any other subject

⁴⁴⁵Killegrew to Sir T. Smith, February 26: MSS. Scotland.

⁴⁴⁶Answer of Lidington and Grange, March 2: MS. Ibid

of the Scotch, be permitted to make stipulations with the sovereign of another country.

The Castle party still persisted, declaring that if their proposals were refused they were "prepared for all extremities." The Regent, therefore, requested that a force should be sent from England at once to bring them to reason; and neither he himself, nor Killebrew, nor the officers at Berwick, anticipated that Elizabeth would make further difficulty. At last she was supposed to be convinced that the thing must be done. Sir William Drury wrote to Burghley for instructions, intimating that the sooner the English troops moved forward the better. "The inconstancy of that nation was well known," and delay would be dangerous.⁴⁴⁷ Morton, in talking over the state of the country with the English Ambassador, confined himself to considering the measures which should be taken after the reduction of the Castle, assuming, as a matter of course, that it was really to be reduced. Both he and Killebrew were under an impression still, that Elizabeth would consider her assistance well repaid if she could be relieved of the Scottish Queen.⁴⁴⁸

But Elizabeth, reassured, by her treaty with Spain, was far away from the thoughts into which she had been frightened by the massacre in Paris, and was endeavouring, as usual, to forget the engagements into which she had been forced with Morton. She felt that the fall of the Castle would be a final end of the schemes which she had so long fostered. She would not now give up the Queen of Scots to be executed, even if the Scots would consent to execute her. If the King's Government were firmly and completely established, the last hope of a "composition" would be gone, and Mary Stuart would remain a burden on her own hands till she died. She had promised assistance, but when it came to the point she would not give it. She haggled about terms. She said if she sent troops the Regent must pay for them, when she knew that the Regent could scarcely keep his household at Dalkeith from starving. The next post brought word that she "had stayed her purpose," and "that no force was to be sent." The terms offered by the Castle were reasonable, and the Regent had no sufficient ground to reject them.

⁴⁴⁷Drury to Burghley, March 7: MSS. Scotland.

⁴⁴⁸Morton said that "as long as the Scotch Queen lived there would be trouble, treason, and mischief." Killebrew answered "that he that." Morton replied, "that when the Castle was taken, at the liament to be holden he would prove the noblemen to see what might be done." — Killebrew to Burghley, March 4: MS. Ibid.

Sir Henry Killegrew simply dared not give these messages. He told Burghley plainly that if the Queen broke her promise this time, "there would be foreign interference, with great danger to herself and her own realm." He knew, from an authority which it was impossible to doubt, that "the offers from the Castle were all dissimulation." "They were made only because they could not be granted." "Maitland, by his wit, enchanted Grange, saying that for all Lord Burghley's letters, her Majesty would never send in her forces, but only boast them; and that for all Scotland could do they would keep the Castle till France came in. These were Maitland's* very words. Killegrew had seen them in his own handwriting. If the Queen was really "resolved to stop her aid," he could only say, « God's will be done;" but, "if the Castle was not recovered, and that with expedition, he saw the beginning of sorrows, and her Majesty's peaceable reign decaying, as it were, in post." "He would rather go to Rome barefoot than deliver that answer to the Regent, If her Majesty could be brought no farther,- and if there was no good meaning to provide in the cause," he begged that he might be recalled immediately, "or he would come home with no good news." ⁴⁴⁹

Elizabeth was so far affected by this letter that she lowered her tone. She bade Killegrew tell Morton that many heavy demands had been recently made upon her; she was in real difficulties, "and if he could spare her the additional expense, it would be thankfully taken."

To this Morton answered briefly that Lady Mar and the young Earl "being Papists," were already in treaty with the French to place the King in their hands. He was afraid to remove him from their charge, because there was no other "place of assurance" in which he could keep him; nor while the Castle of Edinburgh was held by Grange "did he dare offend them of Stirling." He had offered Grange priories, bishoprics, estates, anything which he might desire in exchange for the Castle, but to no purpose — he insisted upon holding it.

Killegrew suggested that if Grange would give securities for his good behaviour, he might be allowed his way. "With this," wrote the Ambassador, "the Regent was amazed;" "he said that though he would be so mad yet the nobility would never grant thereunto; it was a thing not to be thought of, and he desired me not to ask it again; he was already in danger for yielding so far; to allow more would cause

⁴⁴⁹Killegrew to Burghley, March 9: MSS. Scotland.

so much offence as would endanger the King's estate and his own life." ⁴⁵⁰

Once more Errington was sent to the Castle; every security was offered short of leaving Grange in pos it, "everything," said Killegrew, "that I for my own father if he were there;" but evasive answers came back which meant nothing, while Errington observed that the garri-son had been busy on the fortifications; "the place was stronger by ten lasts of powder and a hundred men than wdién he had seen it before; the men looking ill from overworking and watching," but all seemingly resolute, with provisions to last till Michaelmas, and expecting help from France before midsummer.

Conscious at last that words would serve her no longer, that if she faltered longer she would lose every friend that she possessed in Scotland — conscious, at all events, that if the French did come the consequences might be irreparable, Elizabeth now agreed to do what Sussex had urged upon her after the rebellion of Yorkshire, and which, had she done it then, would have saved Scotland all its misery. To this it had come at last; and the shuffling, and the falsehood, and the broken promises had been thrown away. A few plain words would have sufficed then to annihilate the hopes of the party of the Queen of Scots, which Elizabeth herself had created, and had kept alive by her uncertainty. She had encouraged them to take arms; she had led them to believe that in heart she was on the Queen of Scots' side; and in the end, after the Regent had been murdered, and her true friends brought to the edge of ruin, after having brought her own throne in danger, and imperilled the very Reformation itself, her diplomacy broke down, and she was obliged to trample out the sparks with her own feet which she and only she had kindled.

The necessary orders went down to Berwick- Heavy siege guns — u her Majesty's peace-makers. as Sir Thomas Smith called them — were sent round to Leith. Drury, who was to conduct the siege, went forward with a party of pio- AprU'neeis to determine the position of the batteries, and five hundred Scotch labourers were set to work at the trenches.

Edinburgh Castle stands on the extreme end of a long ridge of rock, which rising gradually for three quarters of a mile terminates in a broken area several acres in extent, connected with the ascending slope by a narrow neck, and everywhere else falling off in precipices 200

⁴⁵⁰ Same to the same, March 27: MS. Ibid. 30

feet deep. The ridge itself runs nearly east and west. The High Street of the Old Town follows the line of the crest, rising from Holyrood and the Canongate to what is now the parade ground in front of the Castle. At the time of the siege the defences extended beyond the present moat in a projecting work then called the Spur, the angle of which was within 200 feet of the opening of the street. Through this lay the ordinary entrance from the town to the Castle, the road leading circuitously upwards through a series of intricate turnpikes and passages to St. Margaret's Chapel and the old Palace on the summit, overhanging the Lawn Market. The area enclosed within the fortifications was a rude oval, the sides for fourfifths of the circuit being inaccessible everywhere except to practised climbers, and made impossible to them by the faintest resistance from above.

The attack of such a place by artillery was a novel experiment. The main assault could only be made at, the Spur, which was defended by tiers of guns rising one above the other. The trenches for the principal battery were dug at the head of the High Street, and a high bank of sand was thrown up behind them, to cover the inhabitants from the Castle shot. A second smaller battery was to be placed on the south, where Heriot's Hospital now stands; two more towards the west and northwest, and a fifth about the middle of Princes Street. The object was to leave no part of the place unsearched by the fire, and especially to cover the approaches to the principal water-spring, which was on the edge of the east bastion, and not protected by the walls.

The garrison did not allow the works to proceed without interruption. They fired furiously on the trenching parties at the head of the street. They made sorties out of the Spur, and flung wild-fire among them, or sprang in upon them sword in hand; but they did no great damage; and as it became evident that the English meant seriously after all, their hearts began to sink. Maitland, who had hitherto been a god among them, lost their confidence; and • one of the castle soldiers flung a glove over the cliff, with a note inside it, to ask if there was hope for their lives.

On the 17th of April the English army arrived from Berwick. On the 25th the siege guns were landed at Leith; and Killegrew, who had assured Burghley that Maitland "would not abide the cannon," "was at his wits' end," as he said, to comprehend his obstinacy. But the statesman who had long ruled supreme in Scottish counsels was now too proud to yield. He fed the garrison with hopes that the French

fleet might be looked for any day in the Forth; and when Morton and Drury, for the last time, summoned the Castle to surrender, Grange hung out Mary Stuart's banner on the rock from which Mons Meg looks down over Edinburgh, and Meg herself, and fifty other guns, replied for linn with cannon-balls.

The hardness of the rock made the trenching a loner O O operation. To save expense, too small a number of pioneers had been employed: and three weeks had still to pass before the English batteries were completed. Drury himself, and all his officers, handled spade and pickaxe. On the evening of the 11th of May, a volunteer arrived, in the person of Thomas Cecil, Lord Burghley's eldest son, who had come, as he said, without commission from his father, to learn to be a soldier.

On the 17th of May the guns in front of the Spur were in position. Attempts had been made to frighten the English with stories of intended treachery. "The sky may fall, and we shall catch larks," was the confident answer of Killegrew. Scots and Englishmen stood arm in arm together, intending only "to race which should be foremost when it came to the assault." On the 20th the four remaining batteries were ready. On the 21st they opened fire; and as the shot told and the stones began to fly, and Meg, though she could throw a granite ball into the Forth, could not silence Drury's artillery, a long wild wail of despair was heard to rise behind the battlements. First the bastion fell above St. Cuthbert's Church, and then David's Tower fell, carrying the red standard among its ruins. Down on all sides came bulwark and turret, guns, platforms, carriages, rushing amidst dust clouds over the cliffs. The College students had heard Knox say that the walls at the end would be as sand; and now, "gaeing up to watch the firing, they saw the Castle rinning like a sandy brae."⁴⁵¹

The supply of water was cut short after the first day's work. One precious well was choked with rubbish, another was commanded by the fire; and the men were reduced to an allowance of a pint a day.

A messenger from France attempted to enter, who had been sent to encourage the defenders to hold out; but « he was caught and hanged for his pains." The bombardment continued for five days, and in that time three thousand balls were thrown into the Castle — a feat till then unapproached in the practice of artillery. On the 27th a flag of truce was hung out, and Sir Robert Melville came down to "parley."

⁴⁵¹Diary of James Melville

He tried to create a jealousy by desiring to treat alone with the English, but Drury refused to take part in any conference from which the Regent was excluded. Melville then demanded security that the lives and properties of every one in the Castle should be safe. Lord Hume and Maitland required permission to reside in England, and Grange either to remain in Scotland or go abroad, as he pleased. The Countess of Argyle, the Earl's divorced wife, who had taken refuge with them, stipulated also that "she might not be delivered into her husband's hands."

Morton at once declined to consent to any such terms. At dawn next morning a false at- May 28' tack was made at the back of the Castle, while two divisions of Scots and English stormed and carried the Spur. The Scots were led by Crawford of Jordanhill, the hero of Dumbarton. The loss was heavy for the numbers engaged. Twenty English and Scots were killed at the Spur, and eight more on the precipices behind; but the work was done more effectively than Drury knew at the time, for the last spring of water on which the garrison depended was in the part of the fortifications which had been taken. At the beginning there were but a hundred and sixty men in the Castle. Of these some were killed, some wounded, some ill, and all "outwearied, having no time to take rest."⁴⁵² "Some were no soldiers, and had come in for friendship," and some had no sympathy with the cause for which they were fighting. Nothing remained but to accept whatever conditions Morton would grant. A flag of truce again appeared. Grange and Melville were lowered down by cords over the inner wall, and, putting a bold face on their position, redemanded what Melville had asked the day before. Both they and Maitland might then have obtained their lives. Now the Regent was ready to let the garrison go where they pleased, taking their own property with them, but he insisted that Grange, Maitland, Melville, Hume, and four others, should surrender unconditionally,⁴⁵³ to be dealt with as the Queen of England should advise.

They were allowed till nine o'clock in the evening to consider. Grange was a soldier, and preferred to die sword in hand; and the others who were excepted in the pardon expected no mercy, and desired to fight to the last. But the men had no wish to sacrifice their own lives. They had long loved Grange, but they hated Maitland as

⁴⁵² Causes of the surrender of the Castle, May 28: MSS. Scotland.

⁴⁵³ Conditions offered by the Regent, May 28: MS. Ibid.

the cause of all their troubles, and threatened to hang him over the walls. Then all was over. Before sunset Edinburgh Castle was in the hands of the Regent, and Mary Stuart's cause was extinguished in Scotland forever.⁴⁵⁴

So strange had been the revolutions of parties, that the last maintainers of that cause were men who had long stood at Murray's side, and had long been the keenest promoters of the Reformation and the English alliance. Grange had begun his public life on the memorable morning at St. Andrew's when wild justice was done upon the Cardinal. Maitland had been Cecil's pupil, the adviser of the marriage between Elizabeth and Arran, which would have dispossessed his mistress of her throne; and Hume did more than any one to help Murray to win the Battle of Langside.

But Maitland, who looked on God as a "nursery bogle," and among his splendid qualities wanted faith in all great principles, had spun a diplomatic net about himself which at last was too strong for him to break; and Hume and Grange, pursuing the will-of-the-wisp of Scottish patriotism, followed him to their own ruin in a blind belief in his infallibility.

It was over at last — over in shame and disgrace. In consideration of his illness and of Elizabeth's known regard for him, Killegrew intended to have received Maitland as his own guest; but the rage of the people against him when he was brought down out of the Castle was so violent that he was in danger of being torn in pieces, and he was sent for his own safety under a strong guard to Drury's quarters at Leith.¹ His fate and that of the others were referred to Elizabeth's consideration; but a letter from Alva was found in the Castle which showed how deeply they had been implicated in the late conspiracies, and, in forwarding it to Burghley, Killegrew was unable to advise that either he or Grange or Hume should be spared. Maitland had burnt the greater part of his correspondence on the last night of the siege; but this letter, which remained, and others of equal importance from France, removed the last traces of uncertainty, if uncertainty remained, as to the real meaning of the long and obstinate resistance of the Castle. "The Edinburgh ministers preached daily that God's plague would rest on such as should pronounce favour for traitors. The unthankfullest thing which could come from England would be

⁴⁵⁴The account of the siege is taken from the despatches of Drniy and Killegrew in the Scotch and Border MSS.

a suit for suspending the execution." And Killegrew's own opinion was "that they were fitter for God than for the world."⁴⁵⁵

Elizabeth, who could never bring herself without reluctance to consent to executions, after thanking Drury for his services, regretted that she should be called on to express an opinion "for the punishment of offences done in another Prince's Kingdom;" but since the fate of the prisoners was referred to her, she said she must have "particulars in writing of the quantity and quality of the charges against them;" and she desired Killegrew to see them "lodged" meanwhile "where they should be in no danger of murder from their mortal enemies."⁴⁵⁶ She commended Lady Argyle to the care of Morton. She was "loath," as she said, "to interfere between husband and wife," but she feared if the Countess was carried off to Inverary she might come to a hard end there. Elizabeth intended clearly to save them all if she could; but before her letters reached Scotland one, at least, was beyond the reach of her protection or of Morton's vengeance. Eleven days after the surrender Maitland died, and it was generally believed that, to save himself from the ignominy of the scaffold, he had taken poison.⁴⁵⁷ He was constitutionally more likely than any of his contemporaries to have taken refuge in a Roman death; but although the particular letter in which Sir William Drury describes his end is not preserved,⁴⁵⁸ yet Killegrew mentioned it two days after in a tone in which he would hardly have spoken of something so unusual as suicide, and the popular rumour was probably unfounded. "Lidington," wrote Lord Burghley, "is dead from his natural sickness, being also stricken with great melancholy, which he conceived of the hatred that he did see all his countrymen bear towards him since he came out of the Castle, in such sort as Sir William Drury was forced to keep a strong guard to save him in his own lodging from the fury of the people."⁴⁵⁹

His companions remained in confinement at Holyrood in Morton's sole charge. The English guns were; the shot were gathered

⁴⁵⁵Killegrew to Burghley, June 5: MSS. Conway.

⁴⁵⁶Elizabeth to Killegrew, June 8; Elizabeth to Morton, June 9: MS Ibid.

⁴⁵⁷Memoirs of Sir James Melville.

⁴⁵⁸Killegrew says, in a letter of the 13th of June to Sir T. Smith, "Of Lidington's death my Lord General did advertise." — MSS. Conway.

⁴⁵⁹Burghley to the Earl of Shrewsbury, June 14: Illustrations of English History, Vol. II. *

up again; a bawpaid for every bullet which was brought in.⁴⁶⁰ Sir William Drury led back his troops to Berwick, and Killegrew carried to London an intimation that Morton was ready now to undertake the dispatch of Mary Stuart.⁴⁶¹

Mr. Thomas Cecil, after his lesson in the wars, went back to the great house at Burghley;⁴⁶² and "religion" in Scotland began to prosper marvellously. The long fever of uncertainty was past. The few recusant Papists came in, and made their peace; and it remained. only for justice to be executed upon one who, next to Maitland, was responsible for all the blood that had been shed. The letters found in the Castle, when Elizabeth saw them, deprived her of an excuse for interfering; Morton told Burghley that "the future quiet of Scotland depended on her consent;" and she felt that she had trifled long enough, and that she must now leave the Regent to do what he thought best.

The most passionate intercessions were made by others for Grange's life. His relations offered any security which Morton might desire, that he should cause no more trouble. "His hail heritage, and the "The removing of the Bosom Serpent." — Morton to Burghley,

⁴⁶⁰Drury to Burghley, June 5: MSS. Scotland.

⁴⁶¹"I shall bring with me some articles touching the League, and I hope somewhat touching the great matter whereof I thought good to forewarn your Honour." — Killegrew to Burghley, June 26. "I have thought good to put in memory how the ground of the trouble yet remains in her Majesty's hands and power, whereunto I doubt not but will put order when she finds time; and thereanent I must further curious till I receive knowledge of her Majesty's pleasure." On the margin opposite this passage there stands, in Burghley's hand

⁴⁶²A fact memorable only as having furnished occasion for the Steward there to write a letter to Lord Burghley, in which we catch a glimpse worth observing of old Mrs. Cecil: — "My duty to your Honour, — Yesternight, about three of the clock, Mr. Thomas Cecil came home well and merry, God be thanked; and my Mistress, your mother, was come to Burghley two hours before him. The gown that you would make it must be for every day; and yet because it comes from you, except you write her to the contrary, she will make it her holiday gown, whereof she hath great store already, both of silk and cloth. But I think, Sir, if you make her one of cloth with some velvet upon it, with your letters to desire her for your sake to wear it daily, she would accustom herself with it, so as she would forget to go any longer in such base apparel as she hath used to have a delight in, which is too mean for one of a lower state than she is of. She likes well of all things as yet; but for that there is not one that is in the ministry to do service daily there, which she much desires, that she may serve God twice a day; you may have at your pleasure from Cambridge some one that, from lack of exhibition, would be glad for a year or two to do service there daily, which would much content her." — Peter Kemp to Lord Burghley, June 7: MSS' Hatfield

June 26: MSS. Scotland. band of manrent of all his friends," was placed at Morton's disposal, if only his life could be spared. But the Regent, "considering what had been and daily was spoken by the Preachers, that God's plague would not cease till the land was purged of blood;" considering "the demands of those who, by the death of their friends, the destruction of their houses, the taking away of their goods, could not be satisfied by any offer made to him in particular," "deliberated to let justice proceed." ⁴⁶³

Thus it was that on the 3d of August the second Wallace, as Grange had fondly called himself, was drawn in a cart from Holyrood to the cross in the High Street. David Lindsay, who had carried to the Castle the last fruitless message from Knox, attended him at his own request. The first part of the prophecy had been but too well fulfilled; the words had now become precious with which Knox had received his answer — that for "the body there was no longer hope, but that there was mercy for the soul." Grange told Lindsay that, when the moment came, "he hoped to give him a sign of that assurance, according to the speech of the man of God." He was hung with his face looking up the street towards the Castle. It was four in the afternoon, and the August sun shone full behind him; but, as the cart drove from under him, the body swung slowly round. The light gleamed upon his face. He raised his hands slowly, dropped them, and died. ⁴⁶⁴

So fell the curtain upon the cause of Mary Stuart in Scotland. Many a murderous struggle lay yet before the people there, as the Prince grew to manhood, and became the plaything of fresh intrigues; but never more was sword drawn there to bring back the murderess of Kirk-a-Field to the throne which she had forfeited.

⁴⁶³Morton to Killegrew, August 5: MSS. Scotland.

⁴⁶⁴Diary of James Melville, p. 35.

CHAPTER XXIV

To -preserve some kind of clearness in a narrative where the threads are so many and so confused, I have set apart the history of Ireland for separate treatment, although the condition of that country affected materially the action of Elizabeth's Government, and prevented the Queen from assuming the bolder position which circumstances so many times appeared to thrust upon her. What the Low Countries were to Spain, Ireland was to England, a dependent province occupied by a population alien in blood, in creed, and in temperament; the vulnerable point where foreign princes were sure of welcome who offered to assist the people in shaking off their oppressors. Both in London and Madrid there was a tacit understanding that if Elizabeth became the protectress of the revolted Provinces, Philip would send an army to Waterford or and the feeling of English statesmen was repby a memorandum of Cecil's that "it was folly to lose a kingdom in possession" for the grandest of uncertainties elsewhere. Cecil indeed, as well as every other minister who had attempted so far to deal Irish difficulty, had found the task too hard The "kingdom" was one which had yielded no fruit to its owners except expense and perplexity; and the qualities in the people from which alone improvement could be expected were terribly slow in appearing. Nevertheless, there were times and places where happier symptoms prevented absolute despair. As with the great central morasses the bog in some capricious humour for a while recedes, and the margin dries and meadow- grass takes the place of the rushes and the peat, so with the Irish people a disposition to industry displaced sometimes for brief intervals the usual appetite for disorder, and the administration would flatter itself that the new era was commencing. Such a fallacious period succeeded on the fall of Shan O'Neil, and in the harbour towns in Cork, Waterford, Youghal, Limerick, to some extent even in Galway, trade began to grow, and with trade a sense of the value of order and law. The steady hand of Sidney had made itself felt especially in the South; the pretended right of the chiefs to levy tribute on the citizens had been abolished; and for a circuit of a few miles about the walls the farmers were cultivating the ground on some better terms than as being sheep to be periodically shorn by the O or Mac of the adjoining castle.

"God be praised," wrote the Mayor of Waterford to Cecil, "the poor people which were so miserably overhauled, begin to savour what it is to live under a most worthy prince, by whose providence they are of slaves become subjects, having felt the benefit of justice whereof they never tasted before, such was the tyranny of their Irish lords. Where before the poor people were so pitifully oppressed as they had no joy of their lives, now they fall to such plays and pastimes as the like was never seen in Ireland; so as if this government continue but three years more, they doubt not to live as merrily in Ireland as they do in the very heart of England. Lands that lay of long time waste, and of no profit to the owners, are now inhabited; and that which before was let for a groat now yields twelve pence. The honest husbandman, whom coyn and livery had so impoverished that he was fain to drive away his servants and family, as not able to sustain them, now calleth them home again, and retaineth more; the that lived before upon coyn and spoil, now husbandry, and earneth his living by labour; and where before there was so little manurance and so much devouring by those raveners as that the country folk were not able to maintain themselves but by fetching their relief of grain from the good towns, now the country is so replenished that they come daily to the market to sell their superfluous store, so as the towns shall not need from henceforth to travel beyond the seas for their provisions as they have in times past been accustomed. To this time this poor country had in manner no feeling of good order, neither knew the poor fools God nor their prince, but as brute beasts lived under the miserable yoke of their ungodly Irish lords. Now, God be praised, the world is otherwise framed, for they consider that there is a God, and under Him a most worthy prince, by whom they are preserved to live in better estate than ever their ancestors did."

¹ This flourishing description did not continue of long application, and the morass soon returned to its ancient limits. Nevertheless, in and about the towns, there was a certain degree of enduring industry, and the reader will be interested in seeing an account of the same part of the island which was drawn up a year or two later by a person who was under no temptation to exaggerate either the virtues or the vices of the Irish race. Philip II., finding himself besieged by the entreaties of the Irish bishops and chiefs to come to their rescue, and having but a vague conception of the 1 George Wise to Cecil, June 20, 1567: MS S. Ireland. country of which he had once been tit-

ular sovereign,⁴⁶⁵ sent an emissary to examine into the capabilities and condition of the people. The following extract contains the more curious parts of the report which was brought back to him: — “Waterford,” says Diego Ortiz, “contains nearly a thousand houses. It is surrounded by a stone wall, something less than a mile in circumference, with seventeen towers, and cannon on them to keep off the savages. It is the richest town in Ireland, after Dublin, and vessels of from three to four hundred tons lie at the quays inside the fortifications. The trade of the port is with Galicia, Portugal, Andalusia, and Biscay, where they send fish, hides, salt meat, and, at times, wheat and barley. The towns control the adjoining country, for the people depend on them to buy such things as they need, and to dispose of their flocks and wool. As a nation, the Irish are most improvident. They live almost wholly on meat, and use but little bread.⁴⁶⁶ The fault is not with the land: it is extremely fertile, and if properly cultivated would produce all that Spain produces, except olives and oranges; but the people are lazy, and do not like work.⁴⁶⁷ What four men sow, a hundred come to reap; and he who has most success in robbing his neighbours is counted most a man. There is little order among them beyond the jurisdiction of the towns. Every petty gentleman lives in a stone tower, where he gathers into his service all the rascals of the neighbourhood; and of these towers there is an infinite number.”

It was the old story, seen from a friendly point of view. Two solitary virtues only Don Diego was able to find — constancy to the Catholic Church, and hatred of the English.

“They all look to Spain,” he said, to “deliver them from English tyranny, to save their Souls, and give them back the blessed Mass.

⁴⁶⁵Philip has left on record an amusing illustration of his ignorance. Don Guerau in one of his despatches spoke of Waterford as a desirable post of occupation for a Spanish force, and seemed to describe it as twelve miles from London — doce millas de Londres. The mistake probably arose in the decipher, but Philip gravely wrote on the margin, “No entiendo donde es este puerto, que en decir que es doce millas de Londres parece que es en Inglaterra, y por otras cosas en Irlanda. No se si el Duque de Feria sabia algo de este puerto.” — Descifrada de G. de Espes, xiv. Jumo 1569: MS. Simancas.,.

⁴⁶⁶“Comiendo mucho came y poco pan.” The fact of a meat diet being usual in Ireland is confirmed by a curious complaint of Sir John Perrot, President of Munster, who accounted for the excessive mortality in the English troops by saying that “the continued eating of fresh beef had brought many of them to the flux.” - Demands of the Presides of Munster, August 14, 1571: MSS. Ireland.

⁴⁶⁷“La gente es muy olgazana, enemiga de trabajar.”

The Mass, indeed, they everywhere still use in their own houses. In Youghal there are yet two monasteries, a Franciscan and a Dominican. The friars are much troubled by the English. When their persecutors are in the neighbourhood, they emigrate to the mountains, or hide in their cellars; when the coast is clear again, they return to their houses.⁴⁶⁸ Everywhere, both in the cities and in the country, there is a universal desire for the appearance of a Spanish armada to deliver them from slavery, and to restore their churches to them. There is an English proverb in use among them which says, — “He who would England win, In Ireland must begin.”

The English Government had added largely to their difficulties by attempting to force the Reformation upon Ireland while its political and social condition was still unsettled. Of the prelates who were in possession of their sees at Elizabeth's accession,⁴⁶⁹ the Archbishop of Dublin, who had changed with every change, undoubtedly gave his countenance to the revolution. The Bishops of Meath and Kildare refused, and were deprived; and there is no evidence that any other bishop in all Ireland who was in office at Queen Mary's death either accepted the reformed Prayer-book, or abjured the authority of the Pope. But for the question of religion, the towns would have been loyal, for their prosperity depended upon the maintenance of order; while the native chiefs, however turbulent, would never have seri-

⁴⁶⁸“En Youghal hay dos monasteries de frailes, uno de Dominicos y uno de Franciscos. Pasan gran trabajo a causa de los Ingleses que pasan por alli que los persiguen. Se van a la montana 6 se esconden en la tierra y Suego vuelven a los monasteries.”

⁴⁶⁹I cannot but express my astonishment at a proposition maintained by Bishop Mant and others that the whole Hierarchy of Ireland went over to the Reformation with the Government. Dr. Mant discovers that of Kildare and the Bishop of Meath were deprived for refusing supremacy. The rest, he infers, must have taken the oath because they remained in their places. The English Government, unfortunately for themselves, had no such opportunity as Dr. Mant's argument supposes for the exercise of their authority. The Archbishop of Dublin, the Bishops of Meath and Kildare, were alone under English jurisdiction. When Adam Loftus was made Archbishop of Armagh, the Primacy became titularly Protestant. But Loftus resided in Dublin, the see was governed by a Bishop in communion with the Pope, and the latter, and not the former, was regarded in Ireland, even by the correspondents of the English Government, as the lawful possessor of the see. In a survey of the country supplied to Cecil in 1571, after death and deprivation had enabled the Government to fill several sees with English nominees, the Archbishops of Armagh, Tuam, and Cashel, with almost every one of the Bishops of the respective provinces, are described as *Catholici et Confederati*. The Archbishop of Dublin, with the Bishops of Kildare, Ossioy, and Ferns, are alone reckoned as “Protestantes.” — MSS. Ireland, Rolls House.

ously desired to transfer their allegiance to Spain, for Philip, they well knew, would have been as intolerant of anarchy as the English Viceroy at Dublin. The suppression of the Catholic services, enforced wherever the English had power, and hanging before the people as a calamity sure to follow as the limits of that power were extended, created a weight of animosity which no other measure could have produced, and alone, perhaps, made the problem of Irish administration hopelessly insoluble. Notwithstanding the fair speeches of the Mayor of Waterford, neither that city nor any other in Ireland, except Dublin, would receive an English garrison within their walls. When they admitted the English Prayer-book, it was with a reluctance which was nowhere concealed. A strong fort, armed and garrisoned, stood at the mouth of Waterford River, but it was held, as the inhabitants significantly pointed out to Philip's commissioner, for the town, and not for the Queen.⁴⁷⁰

The death of Shan O'Neil had for the present put an end to open rebellion. Shan had been the focus round which the disaffection had centred, and when he was gone, there was no rallying point left. His many brothers had shared his fortunes and had perished along with him, and the lordship of the O'Neils passed to his kinsman Tirlogh Lenogh, whose elevation divided the clan and relieved Sidney of further immediate alarm. The Papal Primate Creagh, who had been with Shan before his defeat, was betrayed to the Deputy by one of the O'Shaughnessies. As he had escaped once before, Cecil thought it would be better to make an end of him, and unless Sidney saw objections he recommended that the Archbishop "should be indicted and ordered to receive that which in justice he had deserved, for example's sake to restrain the traitoring to Rome."⁴⁷¹ The poor wretch was spared the fate which was intended for him. The Deputy for some reason suggested a doubt of "the indifferency of his trial" in Dublin. Before he could be sent to London he escaped out of prison once more, made his way to Scotland and thence to the Continent to disappear from history. The see, however, was filled by a nominee of Cecil's, "a lusty good priest" named Lancaster, whom Tirlogh Lenogh promised to support, and the English Government began to be sanguine that Protestantism would at last make progress. Elizabeth, anxious to indemnify herself for her enormous expenses, be-

⁴⁷⁰ Narrative of Diego Ortiz. - MS Simanca\$.

⁴⁷¹ Cecil to Sidney, July 5: Elizabeth to Sidney, July 22: MSS. Ireland.

gan to enquire after abbey lands and confiscated estates, and ancient rights and rents of the Crown; and Cecil so far gave way to his hopes of better times that he thought of going in person to Dublin and joining Sidney in the settlement of the country.⁴⁷²

A very short time sufficed to show that the Irish Millennium had not absolutely arrived. Doctor Lancaster, for one thing, could not venture to take possession of his Cathedral. Notwithstanding the fair speeches of Tirlogh Lenogh, he had reason to fear that if he ventured beyond the Pale he would be snatched up and sent to Spain, and he loitered at Dublin like his predecessor Adam Loftus.⁴⁷³ The peace of the country could not be preserved without soldiers, the soldiers could not be kept under discipline without regular wages; and money as usual, and especially money for Ireland, was a subject on which not one of her ministers approached Elizabeth without terror.⁴⁷⁴ Cecil, with the utmost difficulty, extracted sufficient sums from time to time to stave off mutiny, but the Irish debt was frightfully increasing. The Queen insisted that Ireland should be made to pay at least the cost of its police duty, and the Council once more went to work on the interminable problem. The obvious method, unless the practical difficulties proved insuperable, was to people the country with military colonies.

The exclusive right of a savage population over lands which they will not cultivate is always disputable. The Irish chiefs might be held to have forfeited such title as they possessed by their repeated re-

⁴⁷²Cecil to Sidney, July 6: MS. Ibid.

⁴⁷³The Archbishop of Armagh to Elizabeth, November 12, 1568: MS. Ibid. Doctor Lancaster being unable to go to his diocese, amused himself apparently with studying medicine. Hearing that Cecil had been suffering from the gout, he sent him the following prescription: — "Take two spaniel whelps of two days old, scald them and cause the entrails to be taken out, but wash them not. Take five ounces of brimstone, four ounces of turpentine, five ounces of parmaceti, a handful of nettles, and a quantity of oil of balm, and put all the aforesaid in them stamped and sew them up and roast them, and take the drops and anoint you where your grief is, and by God's grace your Honour shall find help." — The Archbishop of Armagh to Cecil, March 25, 1571: MS. Ibid

⁴⁷⁴The duty was thrust on Cecil, who, writing to Sidney, says: — "In all I only am forced to break the ice, and if I might be answered as reason requireth, the pains were tolerable, but truly, my Lord, as it is used I cannot further endure it. Every other councillor is burdened but with assenting and commanding; and I am like a slave put to all the drudgery to carry out all disgraces. But it is good for me to open this gate I should lead you into a bottomless pit of my Cecil to Sidney, February 2, 1569: MSS. Ireland.

bellions, and might be fairly required to surrender a part of their domains as the price of their pardon. A thousand English soldiers who had been just dismissed were ready made for the purpose; there were many "husbandmen, ploughwrights, Cartwrights, smiths, and carpenters" among them. They might form a settlement at once at some point in the North, where they could defend themselves at least with as much success as the Scots; and afterwards fishermen might be tempted with privileges to form establishments at the mouths of the rivers, which in time "might grow into haven towns."⁴⁷⁵ The difficult j was still the expense. The colonists would require an outfit, which the Queen would be unwilling to provide, and Sidney recommended a subscription among the wealthy English noblemen and gentlemen.⁴⁷⁶ A more developed plan was conceived perhaps by Cecil, which would have amounted to an organised invasion. It was proposed that one able-bodied emigrant should be selected from every two parishes in England. The expense of transporting them to Ireland and of maintaining them for the first year in their new settlement was to be defrayed by rates on the counties from which they were taken. Each of these persons was to have a farm allotted to him, and the distribution was to be so arranged that the colonists might "dwell together in manner of towns to the number of one hundred households at least." The lands were to be secured to them and their heirs, subject to a small annual payment to the Crown. Every gentleman who would go over at his own expense might have an increase of grant in proportion to the number of servants that he might take with him. The Queen should provide depots of food till the first year's crops were got in, and the Crown payments would furnish a fund to re-

⁴⁷⁵Mr. Vice-Chamberlain's opinion in the causes of Ireland, July 7, 1567: MSS. Ireland.

⁴⁷⁶"For Ulster too true it is that the charge will be intolerable for her Majesty either to defend that province by soldiers or to plant it with people at her own charge; and yet one of these two ways must be taken before reformation of revenue can be looked for. In my opinion, persuasion •should be used among the noblemen and gentlemen of England that there might at sundry men's chaiges without exhausting the Prince's particular purse, be induced here some colony. If it were to the number of two thousand men or more, here were room enough for them; but then they must be furnished with money', apparel, victuals, and means to till the ground, and seed for the same, as if they should imagine to find nothing here but earth, and indeed little else shall they find, saving only flesh and some beasts for earing of the ground. There liveth not the two hundredth man which might well be nourished here." — Sidney to Cecil, November 20, 1568: MS. Ibid

imburse the counties for the cost of the original outfit. Any which might be raised in England would be it was thought, by a circular explaining the expense which the existing administration of Ireland entailed upon the Crown, and through the Crown upon the people, with the waste of life among the English troops "sent thither to serve in the wars." The Queen possessed lands enough, either by forfeiture, escheat, or just title of inheritance, to enable her to carry out the scheme without invading the rights of the Irish chiefs; and she was ready to bestow these lands for the benefit of the commonwealth. If her declined the proposal she would then be to require their aid to collect and maintain soldiers to live there in o-arisons." ⁴⁷⁷

© The care with which the details of this large project were drawn out implies that it was seriously considered. Either, however, the country did not respond to the invitation, or it was set aside in favour of another, at once more practicable, more audacious, and more questionable.

The suppression of Shan's rebellion reopened the disputes between the Earls of Ormond and Desmond, which Sidney's skill had held for a time suspended. The points at issue between them were so many and so complicated that the Irish lawyers could not see their way through them — but the House of Butler had been as faithful to the English Crown as the Geraldines had been disloyal. Lord Ormond had been educated in London as the playfellow in childhood of Elizabeth and Edward, and the Queen had insisted that, with law or without it, the right should be found on Ormond's side. But for the disobedience of the Deputy she would have driven Desmond into an alliance with Shan O'Neil; and now when the danger was over, although Desmond had kept clear of treason, and although Lord Winchester and Cecil strongly dissuaded her, she determined to bring him to trial. The Earl at the first summons surrendered to Sir H. Sidney, and was sent as a prisoner to London.

The Geraldines, both in Kildare and the South, it is true, were a dangerous race: Elizabeth perhaps thought it politically wise to bring them on their knees. The trial was put off, and Desmond, more lucky than his kinsmen of the past generation, escaped a dungeon in the Tower. He was allowed to live at large on his own recognizances, but he was forbidden to leave England. At last when, weary of his

⁴⁷⁷ Motion for the sending men out of certain parishes into Ireland, January, 1568: MSS. Ireland.

restraint, he attempted to escape out of the country, he was arrested and made to purchase his life by a surrender of everything that he possessed. A brief entry in the Records informs us "that on the 12th of July, 1568, the Earl of Desmond — — acknowledging his offences, his life being in peril, his goods liable to forfeiture, and himself in danger to her Highness for the forfeiture of 20,00(R. by his securities — relinquished into her Majesty's hands all his lands, tenements, houses, castles, signories, all he stood possessed of, to receive back what her Majesty would please to allow him, and engaging to make a full and complete assurance to her Majesty of all which she might be pleased to keep."

So enormous were the feudal superiorities pretended by the Munster Geraldines that half the province could be construed by implication to have fallen into the Queen's hands. A case for forfeiture could be made out with no great difficulty against the Irish owners of the remainder. In the scheme which had been drawn out by Sir Henry Sidney for a Southern Presidency, the MacCarties, the O'Sullivans, and the other chiefs were to have been associated in the Government, in the hope that they would be reclaimed to "civility" by the possession of legitimate authority. A project briefer and less expensive was submitted to the Queen from another quarter.

It was an age of enterprise, restlessness, and energy. of English knights and gentlemen, no longer with the old routine of duties and a station in the social scale, were out in search of adon the wide world. The ancient order of Europe had broken down. The shores of the political ocean were strewn with wrecks for the boldest hand to plunder. The Atlantic was a highway where the privateer, with no more risk than gave flavour to the employment, could fill his sea-chests with doubloons or ingots from the Indian mines. And caring little for legality, the young English rover was craving only to do some deeds which would bring him name and fame, or at least would better his private fortunes.

Excited by the difficulties of the Government, or perhaps directly invited to come forward, a number of gentlemen of this kind, chiefly from Somersetshire and Devonshire — Gilberts, Chichesters, Carews, Grenvilles, Courtenays — twenty-seven in all, volunteered to relieve Elizabeth of her trouble with Ireland. they had already tried their fortunes there; them, in command of pirates and privateers, had made acquaintance with the harbours of Cork and Kerry.

They were prepared to migrate there altogether on conditions which would open their way to permanent greatness.

The surrender of the Desmond estates created the opportunity. They desired that it should be followed up by the despatch of a Commission to Munster to examine into the titles of the chiefs, and where the chiefs had no charters to produce, to claim the estates for the Crown. The whole of the immense territory which would thus be acquired these ambitious gentlemen undertook at their own charges to occupy, in the teeth of their Irish owners, to cultivate the land, to build towns, forts, and castles, to fish the seas and rivers, to make roads and establish harbours, and to pay a fixed revenue to the Queen after the third year of their tenure. They proposed to transport from their own neighbourhoods a sufficient number of craftsmen, artificers, and labourers to enable them to make good their ground. The chiefs they would drive away or kill: the poor Irish, even "the wildest and idlest," they hoped to compel into "obedience and civility." If the Irish nature proved incorrigible, "they would through idleness offend to die." The scandal and burden of the Southern Provinces would then be brought to an end. Priests would no longer haunt the churches, the countries possessed by rebels would be inhabited by natural Englishmen; and Kinsale Valentia, Dingle, through which the Spaniards and the French supplied the insurgents with arms, would be closed against them and their machinations. The English settlers would have the fish, "wherein those seas were very fortunate," and "the strangers who now sold fish to the country people would be driven to buy for their own markets, to the great enriching of good subjects." Her Majesty would be spared her present expense, and would be strengthened in the command of the Channel; while the adventurers asked nothing but the grant, undertaking to do the rest themselves, requiring only that they should not be looked upon "as banished men," and declaring that they meant rather "to carry England to Ireland," than to leave, as so many else had done, their own nationality behind them.⁴⁷⁸

This enormous scheme was submitted to the consideration of Cecil. His sense of justice and his caution were alike alarmed by the magnitude of the intended operations. "Forfeiture," he wrote in the margin of the petition, "could not be enforced before attainder by some order of law, nor before offence found." He was disposed to agree that

⁴⁷⁸Petition of sundry her Majesty's good subjects, February 12, 1569 MSS. Ireland.

they might have the lands, if the owners "could be either adjudged felons by common law, or declared traitors by proclamation of the Lord Deputy;" but he suggested that the young gentlemen should begin their experiment with the county of Cork, and advance as they found their ground secure.

But the projectors knew what they were about. If their adventure was to succeed at all, they conceived that it could succeed only if tried on an Imperial scale. The Irish might prove too strong for them, if they could gather on their flanks and were left with harbours through which they could bring in the Spaniards.

They insisted that they must have the whole coast-line from the mouth of the Shannon to Cork harbour included in their grant. They would then have but a single frontier to defend on the short line from Cork to Limerick.⁴⁷⁹ Wild as this project may appear at first acquaintance with it, nevertheless, if to extinguish an entire people be to solve the problem of governing them, it promised better for the settlement of Ireland than any project which had been as yet suggested. The action of the Crown was hesitating, embarrassed by a sense of responsibility, and hampered by considerations of humanity. The adventurers, it is plain, understood the problem which they were undertaking, and meant to hesitate at no measures, however severe, which would assist them in dealing with it. The Irish people were to become "civil" and industrious, or else "through idleness would offend to die." These Western gentlemen had been trained in the French wars, in the privateer fleets, or on the coast of Africa, and the lives of a few thousand savages were infinitely unimportant to them. In collision with such men as these, the Irish would have shared the fate of all creatures who will neither make themselves useful to civilisation, nor have strength enough to defend themselves in barbarism. Their extinction was contemplated with as much indifference as the destruction of the Red Indians of North America by the politicians of Washington, and their titles to their lands as not more deserving of respect. The Irish, it is true, were not wholly savages; they belonged, as much as the English themselves, to the Arian race; they had a history, a literature, laws, and traditions of their own, and a religion which gave half Europe an interest in their preservation; but it is no less certain that to these intending colonists they were of no more value than their own wolves, and would have been exter-

⁴⁷⁹Settlement of Munster, April, 1569, with side notes by Cecil: MSS [rtland,

minated with equal indifference. Accident only, which betrayed the project prematurely and gave the chiefs time to combine, prevented the experiment from being tried.

It has been seen that the Irish septs, taking advantage of the civil war in England in the 15th century, had reoccupied large portions of the interior of the island, from which they had before been driven by the Normans. Many English families had been forced to leave the country; their estates had been abandoned without prospect of recovery; and their great-grandchildren retained title-deeds which long had no value except as historical curiosities. The fall of Shan and the energy of Sidney, however, gave a hope that England would now recover its ascendancy. The parchments, become again of importance, could be made use of as pretexts against the Irish, or to assist the intended forfeitures, and several of the twenty-seven speculators, Sir Peter Carew, Sir Warham St. Leger, Sir Richard Grenville, Humfrey Gilbert, and others, having acquired claims of this kind either by purchase or inheritance, set out for Munster to look after their so-called properties, without waiting for the resolution of the Council upon the general project. Nor were they contented with a mere survey; they carried with them, under the name of servants, considerable numbers of their retainers, and believing justly that at such times no title was so good as solid possession, St. Leger and Grenville laid hold of a number of farms and castles in the neighbourhood of Cork, which MacCarty More and Desmond supposed to belong to themselves. The estates thus seized lay within the line of the intended confiscations. Desmond's property had been surrendered, and MacCarty was marked for forfeiture.

Sir Peter Carew was imprudent enough to trespass upon the jurisdiction of Lord Ormond, to lay claim through a title-deed a century old upon estates in Kilkenny belonging to Lord Ormond's two brothers. Sir Edward and Sir Edmund Butler, and in the same style to march in, eject their tenants, and quarter his own men in the best houses on the property. Ormond at the time was in England, pushing his suit against the Geraldines. His brothers, seeing themselves dispossessed of their lands by such an extraordinary process, and hearing rumours at the same time that Carew and his friends were the advanced guard of a general invasion, flew to arms in their own defence. The English, Sir Edward Butler said, "were coming to Ireland to make fortunes by the sword, and none but fools or slaves

would sit still to be robbed.'⁷ They raised the Ormond war-cry, drove out Carew's servants, and, wild with rage, came down upon an Irish chief who had played into his hands, burnt his house, drove his cattle, and plundered his granaries. If report spoke true, their violence did not rest in these (for Ireland) legitimate measures of retribution. A number of poor Irish dependents of Carew collected their movable goods in the churches, and sent their women there for protection. The Butler kerns respected neither place nor person; they burst the doors, misused and ravished the poor women, young and old, married and unmarried, and after two days and two nights of unrestrained brutality, went off "with the spoil of three hundred chests and coffers."⁴⁸⁰ Carew, knowing Elizabeth's regard for the House of Ormond, was for the moment afraid to retaliate, and meanwhile the Munster clans caught fire; MacCarty More, James Fitzmaurice the Earl of Desmond's brother, and the Southwestern chiefs, held a meeting in Kerry, and determined to use the opportunity of the quarrel between the Butlers and the English for a common rising to save themselves from the impending destruction. To them the struggle was for their lands and lives, and as the colonisation scheme leaked out, it became easy, with such a cause, to unite all Ireland against the invaders. The religious cry and the land cry fell in together. The land was the rallying ground among themselves: religion gave them a claim on the sympathy and the assistance of the Catholic Powers. A Catholic rebellion was known to be impending in England, and of Spain was supposed to be secretly encourdisaffection there. The cause was the same in the two countries, and the chiefs concluded natuPhilip would prefer the easier enterprise of conquest, which he might hope to maintain, to the political perplexities in which he would involve himself by placing Mary Stuart on the throne of Elizabeth. They determined, therefore, to offer the Irish crown to any prince of Spanish blood whom Philip might please to give them. The Celts and the Norman Irish were equally interested, for all believed themselves threatened, and all equally detested Protestantism. Messengers went round the provinces collecting signatures to the intended address to the Spanish King, and not a single chief or nobleman refused his name, except the two Butlers, who in the midst of their own agony, "spotted," as Ormond himself proudly complained, "with the name of traitors," called rebels in Dublin, and protected only by dread of Elizabeth

⁴⁸⁰Terellaugh MacBreene Ardye to Cecil: MSS. Ireland.

from being hunted down as wild beasts, declined to abandon their loyalty. Sir Edmund Butler told Fitzmaurice that "he could die to be revenged upon Carew," and that he would fight to the death to preserve his lands; but "he would not meddle with the bringing in of Spaniards, or with the setting up the Mass."⁴⁸¹ The Ormond family held on, notwithstanding the provocations which they had received, to their old allegiance; but they stood alone against the whole island beyond the Pale, and three Archbishops and eight Bishops, the Earls, Barons, chiefs, the entire noble blood of the country, combined in one common effort to transfer to Spain the sovereignty of Ireland.

The Archbishop of Cashel, Maurice Macginn, or Maurice Reagh, as he was called, was chosen to be the bearer of the petition, and "escorted to his ship by James Fitzmaurice "as if he were a god, he sailed from a harbour in Kerry in February, 1569, at the moment when the confiscation project was assuming a practical shape in London.

His commission was addressed to the Pope as well as to Philip.⁴⁸²

Beginning with St. Patrick and the first conversion of Ireland, the petitioners dwelt upon the constancy of the Irish people to the faith which their first apostle had planted among them. They said that they desired to remain, like their fathers, in union with the Church; that they so detested heresy that they would rather forsake their homes and emigrate to some other country than live under the rule of schismatics or acquiesce, in the errors of their oppressors. In the reigns of Henry VIII. and Edward VI. the English had pillaged their churches, destroyed their monasteries, proscribed their bishops, expelled and persecuted the religious orders, and had thrown the whole of Ireland into confusion. The present Queen was treading in the steps of her father, imprisoning prelates, and otherwise doing evil, as he had done. She had sent over of heresy; she had introduced heretical books the minds of the multitude; and now, therefore, in all humility, they prayed God to have pity on their sufferings and to move the hearts of his Holiness and the Catholic King to deliver them. Long and patiently said that they had looked to the King of assistance. To him and to the Pope the sovereignty of Ireland of right belonged; and to escape of inconstant and uncertain England they were ready, with the blessing

⁴⁸¹ Edmund Butler to the Earl of Ormond, August 24, 1569: MSS. Ire -

⁴⁸² The signatures of the Archbishops and Bishops would decide the question of their attitude towards the Reformation, if on other ground there was the slightest reason to feel doubtful about it.

of God, to accept any Catholic prince of the King of Spain's blood whom he would be pleased to name. Such a one they would obey and acknowledge as their lawful and natural sovereign. They would establish the succession in his children, and they would then have one faith and one ruler, and their ancient monarchy would be revived. They prayed Pope Pius to sanction and confirm the King of Spain's choice. Ireland might then hope to remain in perpetual obedience to the Holy See in the pure communion of the Church of Christ, and in alliance with the Royal House of Castile, from which their own nobles claimed also to be descended. Their country was inferior to England neither in climate, soil, nor natural resources, and, could it be justly and orderly governed by a Catholic prince who would reside among his subjects, it would be as rich and as strong as England. The people with one consent detested the tyranny and inconsistency of the English domination over them, especially they detested their heresies, and they desired to hold no further intercourse with them beyond the exchange of the common courtesies of neighbours." ⁴⁸³

Of this "villany," for "villany" it of course appeared to the English gentlemen whose prospects were threatened by it, information was immediately furnished to Sidney by Sir Warham St. Leger. "The end of that Devilish Prelate" — so St. Leger called the Archbishop — "was to resist the good devices which had been formed for the welfare of Ireland," and he could but hope that the Queen would "presently, with all the speed that might be, send over the well-minded persons who intended to adventure their lives and livings in the conquest."

Finding Elizabeth slower than he wished, Sir Warham and Grenville hastened back to London to quicken her resolutions, and the moment of their absence was seized by Fitzmaurice to call his people under arms. A small vessel which belonged to Sir John Hawkins, and was one of the two which escaped from St. Juan de Luz, was in the harbour of Kinsale. There were a few pieces of bronze artillery on board, of which Fitzmaurice possessed himself; and with these, in company with the Earl of Clancarty, he came down upon the lands of which they had been robbed. Lady St. Leger and Lady Grenville, who had been left in possession, had just time to escape into Cork; the whole establishment — tenants, servants, farm

⁴⁸³"Exposition del Estado do los negocios de Irlanda que se ha de hacer a bu Santa y a la Magd Catolica de la parte de los Obispo? 3- nobles de aquella Isla." — MS. Simancas.

labourers — had their throats cut; ten thousand of their cattle were driven off into the hills, and Clancarty announced ostentatiously that he was henceforward plain MacCarty More, and would never wear his Earl's coronet more.

The towns throughout the provinces, one after the other, opened their gates to the two chiefs. Mass was said in the churches again wherever it had been dropped. The suspended Desmond rents were levied in kind, or paid gratefully under the excuse of compulsion. The same course was followed everywhere, and is described in a letter to Sir H. Sidney, from "the Suffreyn and Citizens of Kilmalloch." Fitzmaurice came under their walls, required them to surrender, and threatened to kill them if they refused. He levied money on them; he exacted an oath from "they would use none other divine service but the old divine service of the Church of Rome;" he made them "promise to find him and his host in victuals for their money," as often as they should corhe thither, and regard him as Desmond's representative until the Queen sent his brother back to them."⁴⁸⁴ English settlers were swept away wherever they had established themselves. Fitzmaurice desired to cool the ardour of the intending colonists, and showed no mercy "either to them or to their friends."⁴⁸⁵ By the middle of the summer he came with his guns and some thousands of his ragged warriors to Cork, and he sent a demand to the Mayor, "to abolish out of the city all Huguenot heretics," especially Lady Grenville and her family, and to unite with him in purging the churches of all traces of their presence.⁴⁸⁶ The sudden blaze of insurrection found

⁴⁸⁴The Suffreyn and his brethren of Kilmalloch to the Lord Deputy, July 3: MSS. Ireland.

⁴⁸⁵"They torment her Highness's true subjects whom they understand to be furtherers of civility with more cruel pains than either Phalaris or any of the old tyrants could invent." — The Mayor of Waterford to Cecil, July 8: MS. Ibid.

⁴⁸⁶The letter is curious and not discreditable to Fitzmaurice. "Mr. Mayor, — I commend me unto you; and whereas the Queen's Majesty is not contented to dispose all our worldly goods, our bodies, and our lives as she list, but must also compel us to forego the Catholic faith by God unto his Church given, and by the See of Rome hitherto prescribed to all Christian men to be observed, and use another newly invented kind of religion, which for my part, rather than I would obey to my everlasting damnation, I had liefer forsake all the world if it were mine, as I wish all others who profess Christ and His true faith to do: therefore this shall be to require you in the way of charity that ye ought to have towards all them that profess to be Christian men, to abolish out of the city that old heresy newly raised and invented, and all them that be Huguenots, both men and women, and Grenville's wife and children, and to set up the service after the due form and manner which is used in

Sir H. Sidney without money as usual, and with a mere handful of troops, insufficient for the police duty of the Pale. He was himself heartily in favour of the colonisation scheme, and if "the commotion" assisted in overcoming Elizabeth's objection to it, he was inclined to be rather glad than sorry that it had broken out. It satisfied him, and he hoped it would satisfy her, that if a Spanish army came over, and the chiefs were still in possession of their lands and castles, the country could not be held, unless with a larger force than England could afford to keep there. He wrote to Cecil to recommend him to impress this fact strongly upon her, and he himself, meanwhile, prepared to move down into Munster with as many men as he could collect.

The Butlers had hitherto been the immediate resource in times of sudden danger. The fear now was that they would join the rebellion. Elizabeth, on hearing of the outbreak, sent Ormond back to take charge of his people, and so far as the Earl was concerned, she left him without a request ungratified, or a complaint unredressed. The Desmond cause was decided in his favour on every point. He was empowered to seize as many castles and manors as would compensate for the injuries which he professed to have received. He was relieved of all payments to the Crown upon his own vast estates. He was even allowed, and Sidney received strict orders not to interfere, to revive the abominable system of coyn and livery which had with so much difficulty been abolished.

The Deputy, unfortunately, did not like Ormond. He considered these extravagant concessions at once unjust and mischievous; especially at a time when the peace of the country had been broken by his family. While Ormond was hastening over from London, Sidney summoned the two brothers to Dublin, to answer for their rebellion. They appealed from the Deputy to the Queen, and refused to appear, and Sidney proclaimed them outlawed as contumacious. Carew, recovering courage, collected a party of English, attacked the Butlers near Kilkenny, and killed some hundreds of them. This done, he set

Rome and throughout all Christendom, and as our forefathers have ever used to fore. Assuring you that if you follow not this our Catholic and wholesome exhortation, I will not nor may not be your friend; and in like manner I wish and require the Chapter and all the Clergy of Cork and of the Bishoprick thereof to frame themselves to honour God as your ancestors have done, and destroy out of the town all the Huguenots with the first wind. 'From Martyrstone this 12th of July, 1569. "Spes nostra Jesu Maria. "Yours if ye be in good faith, MSS. Ireland. "James Fitzmaoejce of Desmond.

upon Sir Edward's house, and massacred every man, woman, and child that he found within the walls, not sparing even a little boy of three years old.⁴⁸⁷ It was the beginning of the general extermination which was contemplated in the scheme of settlement; and it will be seen that the gentlemen interested in the intended partition imitated Carew's example wherever they had an opportunity, with the deliberate and expressed approval of Sir Henry Sidney.

Sir Edward Butler, being without hope of justice from the Deputy, challenged Carew "to mortal combat." "As to the Queen," he August' said, "he loved her so, that he would be a slave in her kitchen if she commanded him;" but he would not sit still while those who depended on him for protection were murdered under his own roof, and while he himself "was proclaimed a traitor," as "an excuse to take his lands from him." He would make war to the death "against those that banished Ireland and meant a conquest." He was ready to fight these would-be colonists one after another, man to man, in Sir Henry Sidney's presence, and before the whole English army.¹

The news of Carew's atrocities were spread fast over Ireland, and every chief prepared to take the field. Tirlogh Lenogh forgot his short-lived loyalty, and unfurled the banner of the O'Neils. Clanrickard and Thomond combined in the west, and Kildare was waiting only to see how the scale would turn. If a Spanish fleet appeared in the Irish seas before the fire had burned down, Sidney felt that nothing could save him. There were but 2000 able-bodied Englishmen in the whole island, and had the fighting power of the Irish been equal to the loudness of their talk, they could have been swept into the sea, as it was, without help from strangers. That they were able to hold their ground at all, if the hatred of England was as intense as every account from the country represented it, was⁴⁸⁸ a mystery; and Cecil, perplexed altogether with the extraordinary stories which came over to him, sent young Edward Tremayne 1 to examine into their truth, and to let him know quietly the real condition of the country.

Tremayne, on his first arrival, reported "that the matter was more fearful than hurtful." "The rebels showed no valour except where

⁴⁸⁷"Sir Peter the third time gathered a great company, my brother being and assaultc 1 my brother's house having in it eight men and put them to be sword, and also did execution upon all the children that were in the house, and among them was an honest gentleman's son in the house not three years old that was also murdered." — Ormond to Cecil, July 24, 1569: MSS. Ireland.

⁴⁸⁸Sir Edward Butler to the Earl of Ormond, August 24: MSS. Ireland.

there was no resistance; and the English, if they had only courage, might count on victory wherever they met them. Being a Devonshire man, and a friend of Gilbert and Grenville, he saw the Irish through their eyes, and believed what they told him; so miserable "the naked knaves" appeared to him, that he thought "birchen rods" would be fittest weapons to use upon them. He considered the combination a good opportunity for a "general reformation;" "the forfeitures and confiscations deserved by the rebellion of the Irish would pay for the charge of their correction;" "and he " "could only pray that it might be severely followed."⁴⁸⁹

A few months' experience sufficed to correct these hasty views. Tremayne learnt that the conspiracy was universal. "West, north, and south, all tending to subvert the English Government." "The naked knaves" proved less contemptible than he imagined, and he came to see that confiscation was as unwise as he at first regarded it desirable.

Ormond, evidently, was not made a party while in England to the colonisation scheme. On his landing, the truth became for the first time known to him, and in language scarcely ambiguous he gave Cecil to understand that favour to himself should not make him untrue to Ireland. If the lands of the ancient owners were to be seized for the benefit of strangers, he said plainly that he would make common cause with his countrymen.⁴⁹⁰⁴⁹¹

The apostasy of so powerful an interest was a risk too formidable to be ventured. To drive Ormond into combination with Fitzmaurice, would make either colonisation or military government alike impossible, except at a cost which Elizabeth could not undertake. Carew's covetousness had exploded the mine at once prematurely and in the most unfortunate direction; and he and his companions were com-

⁴⁸⁹ Edward Tremayne to Sir Hugh Pollard, July 7: MSS Ireland.

⁴⁹⁰ "This is the order now-a-days to come by the possession of my brother's lands; and to make the better quarrel to his living my Lord Deputy proclaimed him rebel. I hope the Queen's Majesty will think of this manner of dealing with her subjects. I assure you Sir Peter's dealing for my brother's land has made all the lords and men of living, dwelling out of the English Pale, think there is a conquest meant of all their countries. I do hear that certain foolish letters, written in some fond sort by Sir Wark am St. Leger or some others, be come into the hands of divers here. By God, if it be as my men tell! me, those that have hitherto always served the Queen faithfully are now in doubtful terms. I mean some of great calling." — Ormond to Cecil, July 24: MSS. Ireland.

⁴⁹¹ Tremayne of Sydenham, in Devonshire, brother of the twin who was killed at Havre.

pelled to suspend their ambition, and to wait till the law had decided in their favour, before taking armed possession of other men's properties. The scheme from which such great results were expected was allowed to drop, to be revived a few years later at the further extremity of the island, with more modest pretensions; and Munster, the first object of English avarice was left to the "savage" proprietors.

It was less easy to lay the storm which had been raised, or even to quiet Ormond's suspicions. Sir Henry Sidney, after being reinforced from England, had hurried down to the south. He moved first on Waterford, expecting the citizens to join him; but the corporation pleaded their liberties, refused to open their gates, or spare a man for his service. The two Butlers were in strength at Cashel; where, after reconnoitring their position, he "found those people in a quarter of such difficulty from bog and wood," that he dared not meddle with them. He went on, therefore, burning villages, blowing up castles, killing the garrisons, and flinging their bodies from the battlements, "for a terror of all others."⁴⁹²

Fitzmaurice, on hearing of his approach, fell back from before Cork, into the Kerry mountains. The smaller chiefs withdrew into their strongholds. Sidney stormed them one after another, putting every man to death whom he caught in arms, and leaving detachments wherever they could best overawe the country. To punish Kilmalloch for receiving the rebels, he carried off the mace and keys, suspended the liberties of and stationed 500 men there, under Humfrey who, being disappointed of his estates, remained to serve as a soldier.

Sidney himself marched on to Limerick, to Galway, to Roscommon, and thence across to Armagh and the borders of Tyrone; making a complete circuit through the disturbed districts, and intending to finish the campaign visit to Tirlogh Lenogh. In this quarter, he found himself fortunately relieved of immediate trouble. Tirlogh Lenogh had married the widow of James M'CONNELL'Connell.⁴⁹³ Some wild domestic injury was connected with the alliance, and the new chief of the O'Neils was shot through the body one night as he was sitting at supper, and dangerously wounded. The Deputy, therefore, contented himself with a rapid raid across his borders, and returned at the beginning of October to Dublin.

⁴⁹²Sir Henry Sidney to the English Council, October 26: MSS. Ireland.

⁴⁹³Sister of Shan's Countess and a daughter of the House of Argyle.

The expedition had been swift, vigorous, and not without effect. The destruction might have satisfied the propensities even of an Irish chieftain. Two garrisons had been left in the heart of Munster. Clanrickard and Thomond had presented themselves at Limerick, and made an affected submission; and Sir Edward Fitton, a Dublin judge, was placed with a third detachment at Galway, as President of Connaught. The Butlers only remained to be dealt with, and having, as he supposed, awed into quiet the rest of the country, the Deputy addressed himself to his most serious difficulty. The brothers had broken up from Cashel after he had passed south, and had used the time in completing the clearance of the intending settlers. Sir Edward had revenged the destruction of his own house on a tenant of Carew's at Inniscorthy, committing, as Sidney said, "outrages too horrible to hear." It is needless to dwell upon the details. Sidney may have exaggerated the worst features of the story. If he told but the bare truth, the English had set the example of ferocity, and had little right to complain.

However it was, he sent for Ormond to Dublin, and required him to bring his brothers with him. While Sidney was still in the field, the Earl had written a second letter of serious remonstrance to Cecil. He reminded him of the long-trying loyalty of his family, when England had no other friend. The rebellion was provoked, he said, by a universal belief among the people that their lands were to be taken from them by the sword, and he warned him that such a project could never be carried out without the destruction of the whole people.⁴⁹⁴ When Sidney's message came he at once obeyed; and his brothers, on receipt of a safe conduct, consented to accompany him. They were charged with rebellion. They said boldly that they had a right to defend themselves against oppression. Sidney said that they must remain in Dublin till the Queen's pleasure could be ascertained; as they appeared contumacious, he declined to hear them further, and made Ormond responsible for their detention; a few hours later one of them escaped; the other, notwithstanding the safe conduct, was arrested and thrown into the castle.

Amidst the conflicting evidence it is impossible to measure accurately the extent of their real offence. The intention to confiscate three fourths of Munster and divide it among a number of gentlemen, of whom Carew was the leader, is proved by the English

⁴⁹⁴Ormond to Cecil, September 7: MSS. Ireland.

State Papers; and, if Sir Edward Butler murdered Carew's intruding colonists, he could at least plead provocation. Sir Henry Sidney was a high-natured, noble kind of man, fierce and overbearing, yet incapable of deliberate unfairness. A correspondent of Cecil's, who was present when the Butlers appeared before him, remarked "the singular gravity, the stoutness and wisdom, with which he spoke." On the other hand, maintained that Sidney "sought the overthrow of his family;" that he was himself endangered as well as his brother; and "that their cause could have no fair hearing, for that the Lord Deputy himself was their accuser."⁴⁹⁵

Mr. George Wise, the correspondent alluded to, was doubtless right in concluding that "the real cause of the mischief was the Devil, who would not have Ireland reformed." ¹ But the land question, and Sidney's known views upon it, with the vindictive and ferocious attitude assumed by the English soldiers towards the people, was of considerable moment in furthering the Devil's purposes. For it seems certain that the patience of Sidney and the patience of England generally was worn out; that the Irish were no longer looked upon as subjects of the Crown, to be reclaimed with severity or tenderness, but as having themselves lost their rights as citizens by their turbulence, and as deserving only to be hunted down and destroyed.

Sir Peter Carew has been seen murdering women and children, and babies that had scarcely left the breast; but Sir Peter Carew was November not called on to answer for his conduct, and remained in favour with the Deputy. Gilbert, who was left in command at Kilmallock, was illustrating yet more signally the same tendency. Gilbert's instructions were to tread out the sparks of the fire which Sidney had beaten down. His jurisdiction extended over the west of Cork, Kerry, and Limerick. At the end of two months he sent in a report of his proceedings, which were regarded as eminently successful. He supposed himself to have established profound peace. MacCarty More had been on his knees before him. Fitzmaurice had fled to Kilkenny, and "Kerry was so quiet that he had but to send his horse-boy for any man and he would come."

"My manner of dealing," he wrote, "was to show them all that they had more need of her Majesty than she of their service; neither yet that we were afraid of any number of them, our quarrel being so good.

⁴⁹⁵ Same to the Same, October 27: MS. Ibid.

I 1 George Wise to Cecil, October 29: MSS. Ireland. slew all those from time to time that did belong to, feed, accompany, or maintain any outlaws or traitors; and after my first summoning of any castle or fort, if they would not presently yield it, I would not afterwards take it of their gift, but won it perforce, how many lives so ever it cost, putting man, woman, and child of them to the sword. Neither did I spare any malefactors unexecuted that came to my hands in any respect; using all those that I had protected with all courtesy and friendship that I might, being for my part constantly of this opinion that no conquered nation will ever yield willingly their obedience for love, but rather for fear.”⁴⁹⁶

The English nation was shuddering over the atrocities of the Duke of Alva. The children in the nurseries were being inflamed to patriotic rage and madness by tales of Spanish tyranny. Yet Alva’s bloody sword never touched the young, the defenceless, or those whose sex even dogs can recognise and respect.

Nor was Gilbert a bad man. As times went he passed for a brave and chivalrous gentleman, not the least distinguished in that high band of adventurers who carried the English flag into the Western hemisphere; a founder of colonies, an explorer of unknown seas, a man of science, and, above all, a man of special piety. In this very Irish service he displayed signal and splendid courage. He held a ford near Kilmallock single-handed against a troop of Irish horse, to cover the passage of his people. He regarded himself as dealing rather with savage beasts than with human beings, and when he tracked them to their dens he strangled the cubs and rooted out the entire broods.

And not he only, but Elizabeth’s representative, the statesman, the gentleman, the accomplished Sidney, he, too, for these doings could find but words of praise, nay, could scarce find words sufficient to express his admiration of them. “For the Colonel,” he wrote to Cecil, “I cannot say enough.” “The highways are now made free where no man might travel unspoiled. The gates of cities and towns are now left open, where before they w’ere continually shut or guarded with armed men. There was none that was a rebel of any force but hath submitted himself, entered into bond, and delivered hostages, the arch-rebel, James Fitzmaurice, only except, who is become a bush-beggar, not having twenty knaves to follow him. And yet this is not the most nor the best that he hath done; for the estimation that he hath won to

⁴⁹⁶Humfrey Gilbert to Sir H. Sidney, December, 1569: MSS. Ireland.

the name of Englishman there, before almost not known, exceedeth all the rest; for he in battle brake so many of them, wherein he showed how far our soldiers in valour surpassed those rebels, and lie in his own person any man he had. The name of an Englishman is more terrible now to them than the sight of a hundred was before. For all this, I had nothing to present him with but the honour of knighthood, which I gave him: for the rest, I recommend him to your friendly report." 1

Sir Henry Sidney was premature in concluding that the troubles of the country were at an end. January The Gilbert method of treatment has this disadvantage, that it must be carried out to the last extremity, or it ought not to be tried at all. The dead do not come back; and if the mothers and the babies are slaughtered with the men, the race gives no further trouble; but the work must be done thoroughly; partial 1 Sidney to Cecil. January 4, 1570: MSS. Ireland. and fitful cruelty lays up only a long debt of deserved and ever-deepening hate.

In justice to the English soldiers, however, it must be said that it was no fault of theirs if any Irish child of that generation was allowed to live to manhood. One more group of examples shall be mentioned to show what their conduct was. The facts themselves happened two years after Gilbert's doings at Kilmallock. But it is desirable to bring the subject before the reader with all its distinctive features; the language in which the story about to be related is told, implies even more than it says, and by its commonplace, business-like, and altogether natural tone, indicates rather a deliberate and habitual principle of action than an exceptional outburst of violence.

To the west of the Wicklow mountains, on the frontier of the Pale, a few soldiers were stationed to protect the farmers of Dublin and Kildare. The officer in command, or serjeant-major as he was then called, was a certain Mr. Agard, and he had four other officers under him, Captain Hungerford, Captain George, Lieutenant Parker, and Captain Wingfield Agard's services were in high esteem with the Government. When it was proposed to appoint a President for Ulster, Sir Humfrey Gilbert was thought of for the post, as being likely to govern the North as Agard governed the O'Birnes and the O'Tooles. In May, 1572, a report was sent in by this gentleman of one week's duty, which was endorsed briefly at the castle "A note of the Serjeant-major his Services since the 16th of May." 1 At the time to which the report

refers there was no open rebellion. The Wicklow marauders had been simply stealing cattle in the 1 MSS. Ireland, M*y, 1572.

Pale, and it was thought desirable to read them a lesson. In the eyes of the Government they were robbers; in their own eyes they were patriots; just as Drake and Hawkins were called by the Spaniards "pirates," while to the English they were the champions of Israel sent forth to spoil the Philistines. The principal offenders were the families of MacHughs, the Eustaces, the Roes, and the Garralds, who inhabited the slopes of Lugnaquilla, and the glens between Lugnaquilla and Croghan Moira, the highest of the Wicklow hills.

The first expedition against these people — for, as will be seen, there was a series — was of no particular moment. A party of soldiers made their way to the Barony of Shillelagh, where, the report says, "they burned Garrald's house, with sixteen towns or hamlets, took a prisoner or two and forty-five head of cattle, and had other killing."

The day following, their work lay in the beautiful valley of Imale, between Baltinglas and Blessington. There, reported the sergeant-major, "they killed a foster-brother of James Eustace, Pat Tallon, and his brother David, whose heads were sent (like a bag of game) to the Lord Keeper;" another young fellow was run into and dispatched after a chase of three miles, and "much spoil was taken." After a few hours' rest, the soldiers swept round the base of Lugnaquilla to the upper waters of the Avanagh, and fell upon the MacHughs. Feagh MacHugh, of whom they were chiefly in search, was absent, but "they slew two of his foster-brothers, four or five kerns, and as many others as were in five cabins." This done they turned homewards. On their way they picked up a woman, whom Agard carried to the station, meaning, as he VOL x. 33 said, "to execute her, unless she would serve his purpose." Captain George, with a scouting party, ena party of Tallons, who had been abroad at one of them was killed; the rest, as the soldiers wanted amusement, were stripped naked, and "put in the bog."

The sergeant-major was moderately contented with these exploits, when spies brought him word that a further expedition might be made with advantage to a place called the Glennen, now Glenmalure. The cattle there went down out of the gorge in the mornings to feed in the meadows, and the soldiers might "have either kine or killing," so the report expressed it — either drive off the herds or catch the people in their murder them. "Whereupon," says Agard, Captain Hunger-

ford and the residue of the companies. On the 22d of this month, being Thursday, they marched all night, and lay still most part of the day. On Friday, at night, they marched again; and on Saturday morning they were at the Glenne mouth, where the spy offered, if they would stay, to warrant them to have five hundred kine, or else to enter to have some killing, which Captain Hungerford and Lieutenant Parker rather chose. At the break of day they entered in and had the killing of diverse: what they were I know not. They brought away five swords with six Galloglasse axes. They slew many churls, women, and children. One of the soldiers was shot through the thigh, who with much ado was brought away. They brought with them thirty kine, sheep, and other pillage, and left while they were killing five hundred kine which they saw."

Such, and so related, was a week's service of a detachment of English police. Agard was casually alluded to afterwards by the Deputy as an able and zealous officer, and this was all the notice which was taken of his performances. The inference is but too natural, that work of the kind was the road to preferment, and that this or something like it was the ordinary employment of the "Saxon" garrisons of Ireland.

Sidney, indeed, notwithstanding his approval of such measures, had never liked his office, and found it at last intolerable. He never wrote to England without imploring to be revoked from such an accursed country. He could not tell whether the Queen "allowed his proceedings." She neither approved nor disapproved, but said nothing. As usual, she let him go his own way, and left herself free to disclaim the responsibility if his policy failed.⁴⁹⁷ He hoped, however, that the severity would tell. If presidencies could be established in the provinces with sufficient force, he thought that "the country would now receive whatsoever print should be stricken into it;" but the opportunity ought not to be lost. "If the iron were allowed to cool, it might be found steel." The people were headstrong, and "if the curb' was loosed but one link, they would have the bit in their teeth."⁴⁹⁸

The truth of the words came home to him even, sooner than he expected. Ever fluctuating between two policies, adopting for months or years the most cruel measures of repression, and then in despairing economy withdrawing the means by which military as-

⁴⁹⁷Sidney to the English Council, May 4, 1570: MSS. Ireland.

⁴⁹⁸Sidney to Cecil, June 4: MS. Ibid.

cendancy could be maintained, Elizabeth's Government succeeded only in lashing the nation into madness. From Ireland itself came the most opposite advices; and to Ireland's misery the various physicians were each allowed to try their remedies.

"Absoluteness of power," wrote one, "combined to so many respects and considerations beside the law, will make England weary of this land. I wish the English countries were governed by law' and not by captaincy, ordering all things by the discretion of such as cannot discern right from wrong. The counties would by law be better governed and more to her Majesty's advantage than by this uncertain kind of regiment, whereof no good account can be yielded." ⁴⁹⁹ "So beastly are this people," wrote another, "that it is not lenity that will win them. It is not the image nor the name of a President and Council that will frame them to obedience; it must be fire and sword, the rod of God's vengeance. Valiant and courageous soldiers must make a way for law and justice, or else farewell to Ireland." ⁵⁰⁰

One permanent element of weakness there was which affected other interests beside those of Ireland — the poverty of the Crown. The cost of the Irish Government from the date of Elizabeth's accession had been 90,000/., and of this 70,000/. remained unpaid — remained in the form of outstanding debts to the farmers and contractors who had supplied the army, and of Exchequer bills bearing usurious interest. Elizabeth hated spending money. She was sparing, on principle, of her subjects' purses as well as her own; and after all, when the demands upon the treasury from France, from Flanders, from Scotland, the expenses of the navy, the expenses of the fortifications on the coast, are considered against the revenue, the wonder is rather at the greatness of the results which Elizabeth achieved, than at the shortcomings in the particular departments. The condition of the finances must have been as well known to Cecil as to his mistress, and as Cecil himself continually lamented her closeness, the limitation of the revenue is no complete vindication of it. Cecil doubtless would have preferred a more free application to Parliament, and a greater forwardness in complying with the Parliament's wishes. Yet, however it was, she did succeed with combined courage and cunning in holding at bay the Catholic Powers. England, with peace and immunity from taxation, grew

⁴⁹⁹Nicholas White to Cecil, February 9: MSS. Ireland.

⁵⁰⁰Rokesby to Cecil, April 15: MS. Ibid.

enormously in wealth and strength, and the Queen herself was gaining a hold on the affections of her subjects which palsied the arm of disloyalty.

This is some set-off against the thousand wrongs and injustices which Elizabeth inflicted on parties and persons dependent upon her; it does not amount to an excuse, but it is something in the opposing scale, to be allowed for and remembered in the estimate of her.

If England thrived, however, Ireland bled for it. No money came to Dublin to pay the wages of the soldiers, who were compelled, as before, to live upon the farmers on whom they were billeted. Gilbert, after his achievements at Kilmallock, was recalled, and not a trace remained of his work but his own knighthood and the hate which his cruelties had engendered. Fitzmaurice, whom he had described as a hunted fugitive, became sovereign of Munster the instant of his departure, and the few persons who had shown favour to the English were tried and hanged. It was mentioned that a Presidency was established in Connaught: the fortunes of it form a curious episode in Irish history. Sir Edward Fitton, like most men of his calling, could change his judge's wig for a steel cap when the times required; but he was a man whose profession was properly peaceful, and he became a soldier only on compulsion. When Gilbert's troops were broken up, he took part of them into his service, and commenced his duties by going on circuit in Clare. The Earls of Thomond were the hereditary rulers of the county. They were superseded by the new Commission, and Fitton, to make the transition easy, sent to Lord Thomond to say that he would be his guest at the Assize. The messenger, who had been one of Gilbert's officers, was admitted into Clare Castle, and he and his companions were told that they were prisoners. They resisted; some were killed, some were thrown into dungeons, and the Earl, who a few months before had appeared himself at Sidney's levee, set upon the town where the President was lying, maimed his horses, scattered his train, and left him to find his way back to Galway as he could.

The Deputy, made helpless by want of money, was obliged to swallow his pride, and applied to Ormond to help him to punish this new outrage. Ormond, though still loyal, was hampered by the division in his family, and could do nothing. A handful of soldiers were at last scraped together in Dublin, and sent to Fitton, who then marched into Thomond and fought a battle, where, though he gained what he

called a victory, he was himself wounded, and his men were so badly cut up that he was obliged to retire. Unable to trust himself again in Galway, he shut himself up in the Castle of Athlone, and there for a time he maintained a shadow of authority. But his own salary was unpaid, and no allowance was made him for the expenses of his office. When his own money was all gone, he borrowed to the extent of his credit. When this was gone, there was no resource but exaction. His followers became a company of ragged and starving ruffians; and the President, who was sent to introduce a higher order of justice into Connaught, had to confess that his own servants "were more grievous to the people than the rebels could be." In an interval of quiet he ventured a few miles out of the town. On his return he found the gates shut against him. The citizens declined "to receive or relieve the soldiers further." They attempted to force an entrance, but they were defeated with loss. The President was admitted to the empty honours of the castle; the men-at-arms were dismissed to the Pale, and Fitton wrote to the Council to be relieved of an office the duties of which were merely "to have to speak the Queen's enemies fair, to give his friends leave to bribe the rebels for their own safety, and to see the people spoiled before his face."⁵⁰¹

It cannot be said that England deserved to keep a country which it mismanaged so disastrously. The Irish were not to be blamed if they looked to the Pope, to Spain, to France, to any friend in earth or heaven, to deliver them from a Power which discharged no single duty that rulers owe to subjects.

That Philip allowed the opportunity to escape him was due in part to the causes which closed his ears against the English Catholics, and for which he endured for so many years the intolerable insolence of the privateers. He could not agree to any common course of action with France, and without France he durst not move; while again, it was only with extreme reluctance, and by extremely slow degrees, that he could bring himself to regard Elizabeth as an enemy, or consent to measures which might overthrow her throne. Yet, as with England he had been long perplexed and irresolute, so it was not without a struggle that he abandoned a second Catholic nation who flung themselves upon him for protection; and, after all, he might have lis-

⁵⁰¹ Rokesby to Cecil, April 15, 1570; Sidney to the Council, June 24, 1570; Fitton to Cecil, August 27, 1570; February 8, 1571; May 20, 1571; Fitton to the Council, October 29, 1571: MSS. Ireland.

tened favourably to the petition of which the Archbishop of Cashel was the bearer, but for a difficulty unforeseen by any one who did not understand the secret relations between the Courts of Rome and Madrid.

The Irish had dutifully addressed their request in the first instance to the Pope. For some mysterious reason, the ultimate sovereignty of Ireland was held to be vested in the Holy See. St. Peter had given it to the Normans. The grant was considered to have lapsed with English apostasy, and St. Peter's successor was entreated to transfer it to the Catholic King. No one in Ireland dreamt that the Pope would raise an objection. Having excommunicated Elizabeth, and commissioned the Catholic Powers to execute his sentence upon her, it was not so much as imagined that when the Irish people came forward of their own accord to do his bidding, he would obstruct their wishes. The King of Spain conjectured more accurately the Pope's probable feelings. His conduct with respect to England had given small satisfaction at the Vatican. He had stood between his sister-in-law and Paul IV. He had not interfered with her himself, and he had prevented the French from interfering. When the ruling Pontiff would wait no longer, and had fulminated his excommunication, Philip had forbidden the publication of the Bull both in Spain and in Flanders, When the Irish petition was, therefore, presented to him, he refused to reply to it till the pleasure of the Pope should be known; and the Pope soon justified his hesitation by expressing the strongest disapproval of the proposal. He was weary of the lukewarmness of Spain. He was expecting a Catholic revolution in England which would restore the faith, and give the throne to Mary Stuart; and he had not the slightest intention of allowing her expected dominions to be dismembered in favour of a prince who had done so little to deserve his favour. The Archbishop of Cashel had written a letter to Pius full of eagerness and confidence. The Cardinal Secretary replied, with cold brevity, that His Holiness was astonished that the Irish Church and people should have ventured to transfer their allegiance without his sanction. They ought to have remembered that Ireland was a fief of the See of Rome, which only a grant under the Pope's seal could alienate. If the Catholic King would ask the Pope to give him the kingdom of Ireland to hold under himself, his prayer would, perhaps, be taken into consideration.⁵⁰²

⁵⁰²Cardinal Alciati to the Archbishop of Cashel, January 9, 1570: MS. Simancas.

Words could scarcely express the surprise of the Archbishop at the Pope's displeasure. He expected encouragement and thanks, and he found himself rebuked for his officiousness. He could not understand such an answer, or sit down under it with patience.

"I have received your Excellency's letter," he replied, "and I am overwhelmed with confusion. The Irish, I assure you, never thought for a moment of trespassing on the rights of the Holy See. Our sole idea was to free ourselves from English tyranny. Is not England itself a fief of the Church? ⁵⁰³ and did not the Pope himself, with the Council of Trent, permit any Catholic prince who cared to do it, to overthrow the government of England by force of arms? I had hoped that on hearing of my commission, His Holiness would have been the first to exhort the King to undertake the enterprise. Are we to wait, then, till His himself interferes for our salvation, or is it to be the King of France, who can scarce keep his own crown upon his head? What prince in Christendom, I beseech your Excellency, has the power of the King of Spain? What prince is more truly Catholic, more devout, or more obedient to the Holy See? and who can blame a prisoner if he seeks his freedom by the first means that offer? Your Excellency will say that we shall be no more free than we are now — we shall only be subjects of another sovereign; and that is true, and if any one had asked me fifty years ago to which of the two empires I should prefer that Ireland should belong, I should then, perhaps, have answered, England. But now, as we are at present governed, to hear mass, to attend confession, to receive the sacraments of the Church, is treason; while in Spain the law not only permits these duties, but demands the performance of them.

"Your Excellency will say this is nothing to the purpose; ⁵⁰⁴ that whoever will be King of Ireland must sue to the Church for the crown. I acknowledge it; and the Catholic King, I doubt not, will acknowledge it but your Excellency should not impute to the Irish a lack of obedience for offering themselves to his Majesty. How else, busy as he is with other matters, could they bring him to attend to them? And surely, such is his piety, he would never listen to us without His Holiness's sanction. But your Lordship knows that unless either he or some one comes to help us, the evil will be past cure, either by Pope or King. The English are growing strong, and the question will soon

⁵⁰³"An non etiam et Anglia ipsa ad Ecclesiam nomine feudi pertinet?"

⁵⁰⁴"At rursum dicet omnia hsec nihil ad rem facere."

be, not of Ireland only, but of Scotland, France, Flanders, and all Europe.

"If His Holiness require me to desist from this commission, I am a servant, and I must obey. I will go home and make my neck ready for the axe, as many more of us will have to do, unless God send help from heaven. Write to me, I beseech you, quickly. Tell me whether the Catholic King may help us, and what I am myself to do, for I may not be longer absent from my country, and leave my flock to the wolves. The Viceroy has sacked one of my castles, and carried off the pall. Entreat His Holiness to send a second for me hither, as the ports of Ireland are for the most part in English hands; and meanwhile, let his Majesty know His Holiness's pleasure through his ambassador at your court." ⁵⁰⁵

No immediate reply seems to have been sent to this letter. The Pope was probably watching the progress of the Catholic reaction in England. Philip had not made up his own mind, and waited also before making the required application, and the Archbishop lingered on at Madrid, expecting his resolution.

But European politics, as has been already seen, assumed in the year 1570 a new phase. The Hugue nots recovered their influence at Paris. The Queen Mother turned her back on Mary Stuart. The old projects were revived for the conquest of Flanders, and with them the scheme for a marriage between a French prince and Elizabeth. The Queen of Scots flung herself upon Philip; and Philip, seeing her separated from France, began to look less unfavourably on her promotion to the English throne. Set at liberty by a Spanish army, and married to the Duke of Norfolk, as the leader of the great Burgundian faction among the English nobility, she would be no longer likely to be politically dangerous to him; and it became possible to reconcile his interests as King of Spain with his duty to the Catholics and to the Pope. With this change of sentiment came the adoption of the Pope's views with regard to Ireland, and the abandonment, if he had ever seriously entertained it, of all thought of accepting the overtures of the Bishop of Cashel. The Archbishop was the representative of Irish nationality, which desired, once for all, to sever its connexion with England. The English Catholics would be ill-pleased to see Mary Stuart the sovereign of a divided dominion; and, so the English Empire

⁵⁰⁵The Archbishop of Cashel to Cardinal Alciati, -, 1570: MS. Si mnncas.

was recovered to the Philip had little desire to embarrass him a troublesome addition to his own responsibilities.

The object now, therefore, was to direct the insurrectionary spirit in Ireland, not against England as against heresy and England's heretic Queen; instrument for this purpose came ready to Philip's hand in a person who has been already named in this history, Thomas Stukely.

Through the disappointment and jealousy of the Archbishop, who endeavoured in vain to warn Philip against him, a closer insight can be obtained into the history of this noticeable man than is to be found in the English Records. He was a younger son of Sir Lewis Stukely or Stuckley, of Ilfracombe in Devonshire. He went to London early in life to seek his fortune, and entered the household and wore the livery of the Duke of Suffolk. He was perhaps connected with Wyatt's insurrection, for, after the execution of his patron, he joined Peter Carew and the Killebrews, bought a vessel and made his first experiments in buccaneering. His occupation took him to the south of Ireland, where he contrived to acquire a shadowy title to some vast estates in Cork. In the time of Edward VI. two brothers — the name of the family is not mentioned — quarrelled over their inheritance. The elder was the favourite of the people; the younger appealed to the English Deputy, and, promising to hold his lands of the Crown and be a loyal subject, obtained a decision in his favour. Giving trouble however soon after, in religious matters, he too was in turn ejected. The Deputy bestowed the lands on an English soldier, and the soldier finding that he could make nothing of them and was likely to be murdered, sold his interest for some trifling sum to Stukely.

Shortly after, and before he could take possession of his purchase, he was arrested on a charge of piracy, sent to London, and thrown into the Tower. His friends interceded for him and obtained his pardon from Queen Mary; and being again adrift, he tried his fortune in another direction. He contrived, Othello-like, to bewitch the daughter of a rich London merchant with his fine talk and tales of adventures. The lady was beguiled into a secret marriage; the father broke his heart and died. She was an only child, and Stukely became possessor of her wealth. The accumulations of an industrious life were soon squandered in extravagance; in a few years but little remained, and with the wreck that was left he fitted out a small squadron and

obtained leave from Elizabeth to colonise Florida. He told her, in his vain style, that he "would rather be sovereign of a molehill than the greatest subject of the greatest king in Christendom." He said he would found an empire and would write to her "in the style of princes to his dearest sister." But the principality at which he was aiming was nearer home than Florida. He took to his old pirate trade, then made respectable by the name of privateering. He went back to Ireland, where Sir Henry Sidney condescended to make use of him, and Shan O'Neil became so charmed with him that he recommended Elizabeth to divide the country between Stukely and himself, and together they would convert it into a Paradise.

Elizabeth, however, would accept neither Shan's nor estimate of her scandalous subject. He had establish his title to the lands in Cork under the southern commission, and share with St. Leger and Carew in the partition of Munster; but the Queen, hearing reports of murders, robberies, and other outrages committed by him, ordered Sidney to lay hands upon him, and he was locked up in Dublin Castle.

Implicated as he had been in the spoliation scheme, and concerned also, it seems, in the pillage and destruction of certain religious houses, he had made no friends among the Irish except Shan, and when Shan was dead he was regarded with more than the detestation which was commonly bestowed upon Englishmen.⁵⁰⁶ Yet, understanding Philip's difficulties about Ireland, and feeling that he had no further favour to expect from Elizabeth, he contrived while in prison to establish a correspondence with Don Guerau, to pass himself off as a person of great influence among the chiefs, as an ardent Catholic, devoted to the Church, to Mary Stuart, and to Spain, and anxious to play a part by the side of the noblemen who were working for a revolution in England.

Having thus opened a way towards his reception in Madrid, he pretended to Sidney that he wished to go in person to his mistress and clear his reputation with her; and Sidney, instead of sending him over under a guard, apparently was contented with his parole.⁵⁰⁷

⁵⁰⁶ "Esta claro que ninguno en toda Irlanda hizn mayor destruction en iglesias, monasterios y imagenes; siendo natural Ingles y muy abhorrecido de los suyos, es muy mas abhorrecido de los Irlandeses, assi por el natural

⁵⁰⁷ The Archbishop of Cashel indicates that Sidney was afraid that he might be required to execute him. He says: — "La cual cosa el Viceroy concedio, porque ainsí pienso de escapar la invidia que podia haber incurrido de algunos en haber hecho justicia del, aunque justamente."

Stukely told him that his defence would require the presence of certain Irish gentlemen, who were willing to accompany him to the Queen. The Deputy permitted him to purchase and fit out a ship at Waterford to transport both them and himself; and when at last he sailed, it was pretended that no one on board suspected his destination. He had seven or eight Celtic cavaliers with him, with their servants and horses, and a miscellaneous crew of adventurers. They had embarked as if for London,⁵⁰⁸ and Sidney y comun odio que les Irlandeses tienen a los Ingleses, como por particular odio que todos le tienen a 1, por haber comprado y ocupado aquellas tierras, sabiendo la mayor parte de Irlanda que ni la Eeyna ni 41 tiene ningun derecho a ellas." — El Arzobispo de Cashel en Madrid a vi. de Diciembre, 1570: MS. Simancas. to believe that they were going there — but reads like collusion. When clear of the harbour they made for the ocean; a few days after they landed in Galicia, and sent messengers to Philip to announce their arrival. The Archbishop of Cashel, not at that time knowing much of Stukely, and hearing merely that a party of gentlemen had arrived from Ireland, supposed that their errand was like his own, and recommended Philip to receive them.¹ The Duke of Feria, who had perhaps heard of Stukely from Don Guerau, made himself responsible for his character, and the King sent for him to the Court, knighted him, loaded him with presents, gave him a palace at Madrid and a splendid allowance for his expenses. He threw himself into Philip's schemes. He represented his influence as enormous, and Philip was delighted to believe him. He was the very man to deal with the Irish difficulty as the Pope and the King of Spain desired.

It was to no purpose that the Archbishop remonstrated when he found how the wind was turning. The young Irish, who had come to Spain to do homage to their expected sovereign, when they discovered that they were still to remain attached to England, went over to the Archbishop, accused Stukely of having betrayed them, and denounced him as an adventurer. It was little to them whether Mary Stuart or Elizabeth was sovereign of England if they were themselves to continue slaves: but nothing moved the King.

⁵⁰⁸The account sent from Ireland agrees exactly with the Archbishop's story at Madrid. Stukely had with him two O'Neils, a Geraidine, a Macmahon, a Magenis, a MacPhilip, and another described as "Murty Paddy." In the Spanish list they are called "Salbaxes," savages. — Notes of the « Irish with Stukely in Spain, February, 1571: MSS. Ireland.

The Archbishop wrote Stukely's history: he represented him as an apostate buccaneer, a despised, detested, swindling rogue. But the political causes which rendered him distasteful to the Irish recommended him to Philip. His presence, his as- 1 El Arzobispo de Cashel al Key, Julio 26, 1570: MS. Simanca*. sumption, his audacious and enormous lies, bore down the weight of opposition; the recommendation of the English refugees contributed to strengthen the delusion, and, under Stukely's auspices, the Spanish Government began serious preparations for the invasion and conquest of Ireland. Ships were collected at Vigo with arms and stores. Ten thousand men were to be raised, and Julian Romero was to be recalled from Flanders to command. Stukely represented the Norman Irish, the Geraldines, the Butlers, the De Burghs, as waiting his orders and ready to rise at his call. He recommended that Scilly should be seized first for a depot, and, with Scilly in their hands, the Spaniards would command both channels, and a few weeks at most would then finish the work. His own services were, of course, to be splendidly rewarded. He no longer aspired to sovereignty, but nothing less than a Duke's coronet would satisfy his ambition. Duke of Ireland he already called himself — Duke of Leinster was the less ambitious title which Philip preferred for him; and, meanwhile, he amused the Spaniards with his fool's scandal about Elizabeth and the court, and with his fool's boasts of the great things which he was himself to do to her.⁵⁰⁹ He would bring the Pope upon her neck; he would give her crown to the good Queen of Scots, and he would make his friends as good Lords as Cecil. He would stay the Queen's "frisking and dancing," and teach her what it was to affront a soldier. He would eat his Christmas pie with the Lord Deputy, and pluck the George from his neck; and then, settled in his dukedom, he and his children after him, "he would live merrily, and build him a fair abbey, and

⁵⁰⁹"Master Stukely said to the King of Spain's Council and to other gentlemen of Spain, that the Queen's Majesty will beat Secretary Cecil about the ears when he discontenteth her, and he will weep like a child. The Spaniards asking him why the Queen's Highness doth not marry, he said she would never marry, for she cannot abide a woman with child, for she saith those women be worse than a sow. He also said he is no subject 'to her Majesty, but sworn subject to the King of Spain; 'but,' quoth he, what hurt I can do her or any of hers I will do it. I will make her vilely afraid. I will make her wish herself again in her mother's belly,' with other words of her Highness and her mother too loathsome to express." — Depositions relating to Mr. Stukely's Doings in Spain, August, 1571: MSB. Domestic. 34

have in it four-and-twenty friars, one to pray for him every hour of the day and night, and there be buried." ⁵¹⁰

Another glimpse of Stukely at Madrid comes through two letters from a certain Oliver King to Cecil. The convulsions of the Reformation had covered the Continent with wandering Englishmen seeking employment. King had been an officer in the train of the Duke of Guise during the French wars. He was paid off at the peace, and had gone to Spain to take service against the Moors. While at the Spanish Court "a certain Duke of Ireland," he wrote, "otherwise called Master Stukely, being advertised I had done against the Prince of Condd, that I might speak with him. When I came to him he offered me the greatest courtesy in the world, gave me apparel better than I was accustomed to wear, and entertained me with great and marvellous liberality. In a short time he declared unto me that he with diligence must depart unto his country of Ireland with ten thousand men, in the which army he would have employed me for to have undermined the forts of Dingle, Wexford, and Waterford, with many other castles which were enemies unto this good Duke Stukely. But when I did see all his provision of soldiers and his intentions against my Prince and country, I presently desired him of leave, and declared unto him that I came to serve the' King, and that I would not, while I had life, bear arms against my natural Prince, neither against my country wherein I was born. • On the which he called me a villain and a traitor', and caused me to be taken prisoner for a Luteryan in his house. But a certain knight, Don Francesco, -which kept him company, did well see every day that I did go to mass, and knocked my breast as well as they, and so he answered for me that I was no Luteryan. And when this good Duke did see that he might not put me to death by the Inquisition, he caused me to come forth in the presence of the knight and certain captains of his, with all his gentlemen and yeomen, and stripped me unto my shirt, and banished me the town of Madrid, giving me but four hours' respite to depart upon pain of the gallows."

King, having had enough of Spain, made his way to Pampeluna, and back through the Pyrenees into France. When beyond the frontiers, he wrote once more to Cecil to impress upon him the real danger from Stukely's machinations. The Spaniards certainly intended, he said, to make a descent either on Ireland or on England; and "he

⁵¹⁰Depositions relating to Mr. Stukely's Do-jigs in Spain. August, 1571: MSS. Domestic.

would only pray that the plagues might not light on his own noble country which he had seen in France — the fruits of the earth devoured by soldiers, and the widows, wives, and virgins defiled with strangers." "The Duke's Grace Stukely had received the Sacrament, and promised to render unto the King of Spain not only entrance within his duchy, but also possession of the whole realm of Ireland. The soldiers were amassing from all parts of Spain — Spaniards, Burgundians, Italians, the most part Bezonians, beggarly, ill-armed rascals, but their captains • old beaten men of war. The King was sparing no cost on the enterprise, and no honours to Stukely, hoping by such means to enlarge his empire." 1

For two years the farce continued. The Irish were discontented at the turn which Spanish policy had taken. The leading English Catholics were sickened at the favours which were heaped upon a charlatan. Yet they were both obliged to welcome Philip's assistance in the form in which he chose to offer it; and Stukely was maintained in glory at Madrid, or was sunning himself at Rome under the patronage of Pope Pius, till at length the discovery of the conspiracy in England, the execution of Norfolk, and the increasing difficulties in Flanders forced Philip to seek his own safety by abandoning his dreams and by returning to his old alliance with Elizabeth.

Ireland, meanwhile, remained simmering in half-explosive rebellion. Every day the armada was looked for at Galway or Dungarvan, while the English garrisons spent their time in plunder or mutiny, or in massacres as useless as they were brutal. Sir Henry Sidney obtained at last the recall for which he had sued so long. He had overrun the four provinces, he had blown up castles and harried towns, and had all the chiefs in the country one by one under his feet. It was the way of a bird in the air, the way of a ship upon the sea, the way of a serpent upon the rock. The reeds bent under the wind; when the wind had passed by they were in their old place, and he could only long to turn his back forever on the scene of so profitless a service. The Archbishop of Dublin entreated Cecil not to listen to his prayer. "In all the realm," he said, "there was no such pilot for stormy 1 Oliver King to Burghley, February 18, 1572: MSS. Spain. weather." ⁵¹¹ But Sidney's urgency submitted to no opposition, and on the 25th of March he left Ireland to its fate. The Queen, from whom he had received small acknowledgment, after an interval and not very graciously, offered him

⁵¹¹ Adam Loftus to Cecil, October 20, 1570: MSS. Ireland.

a peerage; but as she did not accompany his promotion with a grant of land or money, he declined an honour which would have burdened further his already impoverished estate.⁵¹² The government was left in the hands of the old Treasurer, Sir William Fitzwilliam, once an able soldier, but now past work; and his appointment was a tacit intimation that the attempt to coerce the Irish was for the present at an end. The Establishment at Dublin was again reduced; the garrisons in the scattered castles were dismissed or cut down; and the allowances which had been hitherto made to noblemen calling themselves loyal were stopped.⁵¹³ Scheme after scheme for the improvement of the country having failed, Lord Burghley had to find means of discharging the enormous debt which had been incurred in the attempt.

The outlook this way was not hopeful. The public officers, like the President of Connaught, had been left to maintain themselves on their private means. The soldiers had been paid with notes of hand, which for a time they had forced upon the country people; but the notes sunk at last so low in public esteem, that they had scarcely a nominal value, and the garrisons had then extorted what they required under the Cess to the Crown. They were thus mere gangs of organised robbers, who lived by plunder, and whose main occupation was to kill. They had become so worthless for fighting purposes, that Fitzwilliam thought a hundred of them would run before a score of Alva's Spaniards. "The despair of payment" had bred disorders; he said, which would move any Christian man's heart to solicit a reformation. The Crown did not pay the officers, the officers did not pay the men, the men did not pay the farmers, and the farmers could pay no rent to their landlords; all was poverty, confusion, and discontent. The state of the Pale and the countries bordering on it was so intolerable, that any remedy seemed better than none; and Burgh-

⁵¹²My husband is greatly dismayed with the hard choice offered him, either to be a Baron in the number of those more able than himself to maintain it withal, or, in refusing, to incur her Highness's displeasure. We have no ability to maintain a higher title than we now possess. Consider a poor perplexed woman to see her husband thus hardly dealt with. Since no better grace will be obtained to enable us to a higher title, let the motion be no further offered. Stay the motion of this title and surely we shall think ourselves most bound to you." — Lady Sidney to Burghley, May 2, 1572: MS. Ibid.

⁵¹³"Nor does it appear why her Majesty should continue to pay for a hundred Kerne serving the Earl of Kildare." — Articles for the reduction of Irish expenditure, March 3, 1571 MS. Ibid.

ley was recommended to buy up the depreciated bonds at for which they were being sold by the farmers. It was thought that the unfortunate people would gladly compound for what they could get, if only the exactions might cease, and if for the future they might have ready money for what they provided. Fitzwilliam made a schedule of the outstanding obligations, which he sent homo, with a prayer, that "God would deliver him for the future from such evil reckonings." He was himself drifting slowly to ruin, as he boldly said that Sidney had been ruined before him. He received some salary indeed, but he received it in the debased Irish coin, while he had to pay for everything in the exaggerated prices which the universal disorder had occasioned.⁵¹⁴ The country was swarming with "Spanish spies and vermin." He caught and hano-ed a few of them; but their numbers and their boldness seemed to multiply with the executions. The cloud of the threatened Spanish invasion hung still unbroken, and "he had neither money, victuals, armour, weapons, or men." If the armada came, he said he would sell his best lands in Milton to hold his ground; but all that he could raise in that way would be but a drop of water in the sea; and either death or captivity, or, at the best, "beggary," was the alternative to which he looked forward as the reward of his "fourteen years' service."⁵¹⁵ The Border tribes harried the Pale at their pleasure. Tirlogh Lenogh recovered from his wounds, and set about the old work with renewed vigour. The representative of the Majesty of England, in his desperate extremity, was driven to borrow some plate, and pawn it again to raise a handful of men to cover Dundalk;⁵¹⁶ while the O'Connors, the Roches, the MacShans, the Burkes, like clouds of their own midges, were stinging into his naked side.⁴ "The state of that dear jewel Ireland," he said, "was such a weight and burden to him, as jealousy thereof, with the danger of foreign

⁵¹⁴Petition of Lady Fitzwilliam, December 11, 1571: MSS. Ireland.

⁵¹⁵"Tirlogh Lenogh is in the held with all the power he can raise. I have sent such footmen as I could. To do it I was fain to pawn six score pounds' worth of plate which I borrowed for that purpose." — Fitzwilliam to Burghley, December 6: MSS. Ireland.

⁵¹⁶Same to the same, April 12

invasion, would not let him eat or sleep;" and he implored Burghley, either "to send him money, or else devise to bury him."⁵¹⁷⁵¹⁸

The spiritual disorganisation of the country was even more desperate than the social. Whatever might have been the other faults of the Irish people, they had been at least eminent for their piety. The multitude of churches and monasteries, which in their ruins meet everywhere the stranger's eye, witness conclusively to their possession of this single virtue; for the religious houses in such a state of society could not have existed at all unless protected by the consenting reverence of the whole population. But the religious houses were gone, and the prohibition of the Mass had closed the churches, except in districts which were in armed and open rebellion. For many years, over the greater part of Ireland public worship was at an end. The Reformed clergy could not venture beyond the coast towns, and in these they were far from welcome.⁵²⁰ The priests continued to con-

⁵¹⁷Fitzwilliam to Burghley, December 6: MSS. Ireland.

⁵¹⁸"The despair of payment is of all parts so great as offering, as they do, to strangers these bills and warrants for a third part less than the debt, it is to be presumed that if this were dealt withal by discreet and wellwishing commissioners, these debts to the country might be paid with great ease to the Queen's Majesty." — Notes on the state of Ireland, by Edward Tremayne. Endorsed by Burghley "A good advice," June, 1571.

⁵¹⁹Ibid.

⁵²⁰The intrusive religion was not recommended by the brilliancy of its moral influences. In the year 1570 Doctor Richard Dixon was appointed Protestant Bishop of Cork. Eighteen months later Adam Loftus, the Archbishop of Dublin, had to write the following letter about him to Lord Burghley: — "Please your Lordship, — Whereas Richard Bishop of Cork, notwithstanding he had and hath a married wife, did, under colour of matrimony, take and retain another woman of suspected life in the city of Cork as his wife, and thereof by public fame and crying out of that his deed, the matter coming to our ears, he being called before us to answer thereunto, same; and we, considering the heinousness of that turpitude great exclamation of the whole realm against him, and the slander engendered by that his fact against the professors of namely Bishops and their marriages, to the no little glory of the adversaries and grief of the godly, thought meet that, he should do public penance for the same, and also that we should depose him from his bishopric. For the first part it is already done. He, like a penitent, came to the Cathedral Church of Dublin, and there, standing under the pulpit, acknowledged his offence, though not in such penitent sort as was thought meet to put away the offence of so grievous a crime. For the deposition, doubting whether we were sufficiently warranted to depose a Bishop, we thought good to suspend our further proceedings until we were further resolved; and having no great trust in the lawyers here, our request is that it will please your Lordship, after conference with such learned lawyers as you shall think meet, to direct us what we may do. And if it appear that we may not proceed therein,

fess and administer the Sacraments, but it was in the chiefs' castles, or at stations in the mountain glens, to scanty and scattered families, and the single restraint upon the passions of the people was fast disappearing.

"Religion hath no place," reported Tremayne. "There is neither fear nor love of God, nor regard for faith nor oaths. They murder, ravish, spoil, burn, commit whoredom, break wedlock, change wives without grudge of conscience."

The bridges, the especial charge of the religious orders, fell to ruins. The chiefs took possession of the Church lands, the churches fell in and went to ruin, and the unfortunate country seemed lapsing into total savagery. Colonisation, once the remedy from which Tremayne had formed such brilliant hopes, he now after a year's experience, utterly abandoned. The English settlers, he found everywhere, became worse than the Irish, in all the qualities in which the Irish were most in fault. No native Celt hated England more bitterly than the transported Saxon. The forms of English justice might be introduced, but juries combined to defeat the ends for which they were instituted, and every one in authority, English or Irish, preferred to rule after the Irish system.

"None," Tremayne said, "will govern after English law that may be suffered to rule after the other sort; for it doth not only draw to the captains the obedience of the people, but the gains of all forfeitures almost own judgment; and in this kind of governown nation is grown so perfect, as if any do attain the rule of a country, he frameth himself by these means to attend his profit and authority. Such as have any settling are made the unfitter for all reformation, so much they regard their own particular beyond the general."

The destruction of religion, the corruption of justice, the perversion of law, were sufficient in themselves to account for Irish misery. If to these were added "the great abuse of the army, provided to be the defence of the good, and become the devourer of those that yielded the men their nutriment," it was no marvel to Tremayne why

it will please your Lordship to think of some good order to be taken therein, as by private commission to such as her Majesty shall please to appoint." — The Archbishop of Dublin to Lord Burghley, 1571: MSS. Ireland. In consequence of this letter a commission was appointed, of which the Archbishop was a member, to try the case; and Richard Dixon was deprived of his bishopric by the Queen's authority November 26, 1571 — MS. *Ibid.*

the country grew daily from bad to worse, and all was lost that was spent.

In conclusion, he could but emphatically dissuade Cecil from depriving the chiefs of their estates. The English who would come over to take their places, were men, for the most part, who were doing no good at home, and would do worse in Ireland. "Establish a sound government," he said; "give the Irish good laws and good justice, and let them keep their lands for themselves." ⁵²¹

It was easy to advise, it was impossible to execute. The most ordinary intelligence could perceive that the requisite of Ireland was a good government; but good government implied an outlay of money. With 5000 police regularly paid, and under proper discipline; with impartial justice, and the abandonment once and forever of all designs of confiscation; with a prompt end to the massacres which were bringing infamy on the English name, and with some reasonable policy in Church matters; with these and an intelligent Viceroy, duly supported from home at Dublin Castle, Ireland might have been kept quiet with ease till the people had forgotten to be troublesome; but it required money, and money was simply not to be had. The Queen could not give it, for she had not got it. The whole Protestant world were clamouring for help at the doors of the English treasury; had Parliament filled her lap with gold, little of it could have been spared for Ireland; and thus the poor country drifted on before the stream of the age from misery to misery.

In one only of the four provinces Elizabeth consented that exertions should continue to be made. If the Spaniards came, they would inevitably land in Waterford, Cork, or Kerry. To leave it in the hands of the Geraldines was to reward rebellion, and to open the door to invasion; and, as the confiscation scheme had broken down, the Queen consented at last, with extreme unwillingness, to the measures so long urged upon her by Sir Henry Sidney. The disaster of Sir Edward Fitton was a poor encouragement to provincial presidencies, but the experiment had been tried in Connaught under conditions which made success impossible. Another attempt was to be made in the South, and Sir John Perrot, a soldier by profession, reported by Catholic scandal to be a natural son of Henry VIII., was appointed President of Munster. Before Perrot would accept the offer, he stip-

⁵²¹"Causes why Ireland is not reformed." — Endorsed Mr. Tremayne. June, 1571: MSS. Ireland.

ulated that a year's salary to himself, and a year's wages to his men, should be paid in advance; that he should be supplied regularly from England with military stores; that he should be empowered to receive the dues of the Crown, and might deduct his own expenses before they were passed on to the Treasury.⁵²²

These demands were considered reasonable; and in the spring of 1571, Perrot arrived at Cork with a handful of English soldiers, and a Protestant Archbishop of Cashel to take charge — if he could get hold of them — of the flock of his Catholic rival. The new prelate was more zealous than wise, and before Perrot had drawn his sword, opened his own campaign by seizing and imprisoning a number of friars. A brief notice which was served upon him by Fitzmaurice, taught him that he was no longer in England, and that that kind might be dangerous. Fitzmaurice word that unless the friars were at once released, lie should be hanged; and that any living man who supported him, or paid him rent or cess, should have his house burnt over his head. Thus admonished, he thought it prudent to comply, and to be content for the future with a barren title.⁵²³

Perrot's work, when he began it, was more effectual, and his campaigns were a repetition of Sidney's. He went wherever he pleased, "trotting the mountains" from Killarney and Glengariff to Waterford. He could never catch Fitzmaurice. The Irish gentlemen would not help him, and the kerne were too swift of foot for the heavy English men-at-arms. Castles, however, could not run away, and castles contained men. After two years of work, he had killed in fighting, or captured and hanged, some eight hundred miserable creatures of one sort or another.⁵²⁴ He burnt or blew up every stronghold, large or small, which closed its gates against him. He took Castlemayne, in Kerry, after a two months' siege, and Fitzmaurice was reduced to a wandering life among the hills. The roads became again moderately safe, and travellers could pass between Youghal, Waterford, Limerick, and Cork with a chance of not being murdered. But a fatality hung over everything. To reach the principal rebel, Perrot challenged him, and offered. to refer the Irish quarrel to a combat of champions, twelve to twelve. Whether in case of defeat he was empowered to yield the country in his mistress's name, or whether Fitzmaurice's

⁵²²Requests of Sir John Perrot, 1571: MSS. Ireland.

⁵²³James Fitzmaurice to the Archbishop of Cashel, July 9, 1571: MS Ibid.

⁵²⁴Perrot to the Council, April 9, 1573 VIS. Ibid

death would be accepted as decisive by the other Irish chiefs, he did not stay to consider. Time and place were agreed upon, and the President, as a set-off against Sidney's harshness, wrote to Ormond to beg that Sir Edward Butler would make one of the English party.⁵²⁵ Ormond, "at his wits' end" at such an extraordinary piece of folly, repaired to the scene of action "to prevent the combat." Fitzmaurice, suspecting treachery, did not appear,² and Perrot had to fall back upon the hanging and burning which formed the principal subject of all his reports. This he was able to accomplish; but the ultimate success of such measures depended on a further condition, and in the attempt to extract a revenue out of the unhappy country, to make it pay for its desolation, he utterly failed. He could plunge through bogs and rivers, force his way among glens and gorges, and send the Irish flying like wild birds among their crags; but he could squeeze no money out of them and when lus yeai s pay was out, he was left like Fitton and Fitzwilliam. I Sir John Perrot to Ormond, November 18, 1571: MSS. Ireland.

His men grew mutinous, and he could not reconcile his soldier habits to a looseness of discipline. Complaints against his severity were showered across the Channel by his officers, to which Elizabeth gave ready hearing; Fitzwilliam, who sympathised in his sufferings, told Burgliley that "Perrot was but receiving the usual reward of Ireland to those who sought its reformation;" and Perrot himself, in fierce contempt, declared "that he had done his duty as well as his means would allow him, and if he was to be found fault with for every trifle, he would rather remain in the Tower seven years than continue in his Presidency."

One active episode broke the monotony of wretchedness. Fitzmaurice, in May, 1572, went up into Ulster, collected fifteen hundred Scots, and came down upon the Shannon. His first step was to burn Athlone. The scanty guard which was left in the castle watched the work from the battlements, and dared not venture out to interfere with it. Fitzwilliam expected that he would turn upon the Pale. He called out all the English force which remained to him. It consisted of five hundred ragged ruffians, all told. He sent an express to Elizabeth for assistance; he said that unless he was relieved, he would not answer for the country.⁵²⁶ Elizabeth shortly that she would be

⁵²⁵ Fitzwilliam to Elizabeth, February 28, 1572: MS. Ibid.

⁵²⁶ Fitzwilliam to Elizabeth, July 24, 1572: MSS. Ireland.

troubled with matter. She could spare neither men nor money, and he must take his chance.⁵²⁷ Fitzmaurice's views were fortunately fastened upon Munster. He moved from Athlone to Portumna, where he was joined by the De Burghs, and then crossed the river into Limerick. Perrot, who desired nothing better than to have Fitzmaurice within reach of his arm, hurried up to the woods, in which he was reported to be lying, between Kilmallock and the Shannon. The waters were out. The horses could not travel. The men splashed two abreast along the shaking turf tracks which crossed the bogs. He got at the Scots at last, cut them in two, hurled half of them into Lough Derg, and chased the rest into Tipperary. There, a few days later, he overtook, and might have destroyed them, but the army used the opportunity to mutiny, and told him that they would do no more fighting till they were paid their wages. Perrot swore he would hang the ringleaders. The men were respectful, but resolute. "If one was hanged," they said, "they would all hang for company;" and he was compelled to draw off, and see his prey escape him.⁵²⁸

By desperate efforts he pacified the immediate clamour. Again he surprised Fitzmaurice at Ardagh, and killed thirty wretches who were sleeping in their cabins. He apologised for the smallness of "the number," but "considering their cowardliness, and the careful watch they kept, it was thought as much," he said, "to kill thirty in Munster as a thousand in other places."⁵²⁹ A month later, the Butlers destroyed a hundred more, sent their heads to rot on the gates of Limerick, and so made a final end of the Scotch invasion.³

This success was the last, and the results of Perrot's exertions were soon summed up. He himself had shot and cut in pieces eight hundred Irish, and had drowned some hundreds of Scots. The Butlers during the same time accounted for four hundred. Forty or fifty petty chiefs had been hanged, and as many castles blown up. The supplies were finally stopped, and the troops had now to be disbanded. An intimation was sent to Fitzmaurice that he had now seen that he could chastise him if they pleased. They would profit by the lesson; and if he would promise to be a loyal subject for the future, he might now be pardoned. Fitzmaurice was satisfied with conditions which were a

⁵²⁷ Elizabeth to Fitzwilliam, August 5: MS. Ibid.

⁵²⁸ Perrot to Fitzwilliam, September 12, September 16, 1572 Perrot U Cecil, November 2: MSS. Ireland.

⁵²⁹ Perrot to Cecil, November 2: MS. Ibid.

confession of a want of power him further, and the President had the satisseing the Earl of Desmond's brother on his knees in the mud at his feet. Sir John's temperament was sanguine, and his mode of argument was peculiar. Fitzmaurice was profuse in his declarations that he would never offend again; and the President reported that, "although he would much have preferred having the rebel's head," yet as that could not be, "he thought verily he would prove a second St. Paul for the service which he was like to do." ¹ So ended the first Presidency of Munster. It would not support its cost, and, unless some plan could be found to govern Ireland which would pay its expenses, Elizabeth seemed contented that Ireland should not be governed. Fitzwilliam declared that he could not remain in office on those terms. Sidney was entreated to return, but Sidney roughly refused. Lord Grey de Wilton was applied to next, but Lord Grey declined also; and when pressed further, "fell sick from grief of mind" at the fate with which he was threatened. The Viceroyalty of Ireland had become in the eyes of English noblemen a synonym for lost credit, ruined fortune, vexation, disappointment, distraction, madness. No one could be found to undertake it, and Fitzwilliam, therefore, ¹ Report of the President of Munster, December 8 was compelled to stay and drift before the wind, trusting to chance, to the non-arrival of the Spaniards, and to the Earl of Ormond, whose solitary loyalty the new Archbishop of Cashel had done his best to shake by stirring the embers of the Butlers quarrel. Happily he had not succeeded, and all that Cecil could now do was to furnish Fitzwilliam with advice which it was impossible for him to follow — to recommend him to enforce the Act of Uniformity, which had been one of the causes of the mischief; to curtail the expenses, already pared so low that barely a thousand soldiers now remained in the four provinces; and "to devise means the old story — "to increase the revenue." ⁵³⁰

But Elizabeth's ministers were not utterly unreasonable. Having failed to crush the Irish, they saw that they must endeavour to conciliate them. The Presidency system was abandoned, and the Irish chiefs resumed their authority. To make the change of policy complete, the Earl of Desmond, who had been sent to London to be arraigned for treason, and whose lands were to have been quartered among the

⁵³⁰i Memorial for the better government of Ireland, 1572: MSS. Irdaml 2 Desmond to the Council, September 12, 1572. 35

spoilers, was permitted to return to Ireland. Had the confiscations been proceeded with, he would probably have been put out of the way. It was now thought imprudent to detain him longer.

He had never from the first been imprisoned except for a few days. He had lived at large on his parole, and the Queen had allowed him six and twenty shillings a-week for his maintenance; but it was too little for his necessities. House-rent had risen heavily in London, for he had to pay "twenty shillings a-week for his lodgings,"² and he had been "in great want and misery." He told Leicester that often "he had not a meal's meat nor a garment to shrowd him in,"⁵³¹ and long before his confinement was ended, he was ready to promise, if the Queen would let him go, "to assist in setting forward the Book of Common Prayer," "to restore quiet in Munster," "to submit his private to her Majesty's judges," and, "if she would shot and guns," "to bring all Ireland to obedience."⁵³²

Elizabeth preferred to wait till she had seen the result of Perrot's experiment. The shot and guns she justly thought might be used for other purposes: and thus three years passed over Desmond's head, while London had been seething with the great Catholic conspiracy, into some secrets of which he had been himself admitted. At length, weary of restraint, and Lady Desmond promising to present him with an heir, he began a second time to meditate flight. His child, if born in England, might be detained as a hostage, and he applied to Martin Frobisher, whose fame upon the seas was emulating the rising distinction of Drake, to assist him. Frobisher was one of the many Englishmen who had held out hopes to the Spaniards that they were ready to sell their services. It was thus, perhaps, that Desmond heard of and was led to trust him. But Frobisher's treachery was like that of Hawkins; he had affected to listen to Don Guerau only to betray him; in the same spirit he accepted the advances of Desmond, and when his preparations for escape were completed he gave notice to the Council.⁵³³ Happily for the Earl, it was at a time when the collapse of English power in Ireland was compelling Elizabeth to retrace her steps. The failure of Perrot was but one symptom of the universal break down. The weakness of the Government was one predominant cause, the meddling with the national religion was another, the

⁵³¹ Desmond to Leicester, February 7, 1571.

⁵³² Desmond to the Council, December, 1571.

⁵³³ Declaration of Martin Frobisher, December 4, 1572: MSS. Ireland.

atrocious local cruelty of the English garrisons was a third; but two additional influences had combined to stimulate a great explosion of passion. The intended Munster settlement had come to nothing, and the best advice from Ireland was strongly against fresh experiments in that direction; but, bent as the Queen was upon saving money, the scheme was intensely seductive. Ambitious enterprising subjects were still ready to tell her that, for a grant which would cost her nothing but her signature, they were willing at their own risk to invade, conquer, occupy, and pay her tribute. The theory was excellent. A mere handful of English at Knockfergus had held at bay the whole power of the O'Neils, and what had failed in one part of the country might easily prosper in another.

Sir Thomas Smith, who had succeeded Cecil as Elizabeth's principal Secretary, had a son who desired to make his fortune. The strip of coast between Knockfergus and the Giant's Causeway had been taken by the Scots from the Irish. Shan O'Neil's Countess had gone back to Argyleshire after his death, carrying half her people with her. There were now but a few companies of roving freebooters left upon the soil, which they did not attempt to improve; and Sir T. Smith undertook that his son would take their place and hold the country if the Queen would make him a present of it.

The Irish had been made suspicious by their experience in the South. As the rumours of this new project reached them, the angry hum was heard again from all corners of the island. They felt instinctively that in this way and this way only they could be eventually conquered; and the effect in Ulster was so violent that Captain Piers, who was in command at Knockfergus, thought it necessary to send Cecil a warning.

"Your Lordship knows," he said, "that the nature of the Irish is such that they would rather have their country lie altogether waste than that any man but themselves should inhabit it. I have devised the best to quench the imminent fire, and by feigning a letter to be sent from the Deputy with contrary news, have stayed the same. But it will be more perfectly known shortly to the Irishry, and they will all revolt." ⁵³⁴

"The like matter," wrote Fitzwilliam, through whom Piers sent his letter, "did no good in the South. God grant this drive us not to

⁵³⁴ Captain Piers to Cecil, January 3, 1572: MSS. Ireland.

greater expense: the Irish in a knot will rebel." ⁵³⁵ The Deputy particularly dreaded the effect upon the Butlers, whose jealousies and alarms would be revived. If Ormond became disloyal, he protested that he would leave Ireland with the next wind. ⁵³⁶

The remonstrances were not attended to. Young Smith came over in the summer and established himself near Knockfergus. He patched up a friendship with the remnant of the Scots, saw nothing of enemies, and flattered himself, as so many others had done, that there was no danger in Ireland which a sensible man like himself need fear. He wrote home the most brilliant accounts. He told Burghley that the Deputy was a frightened fool, and begged that neither he nor the Queen would attend to the "croakings" of a dotard.

He was soon to find to his cost that the folly was not Fitzwilliam's but his own.

The political passions were set on fire by attempts upon the land. The religious fanaticism was simultaneously kindled by the news of the massacre of St. Bartholomew. After being hunted down like vermin, or made sport of for the English officers who went among them "to have some killing," it was but natural that the people should hear with pleasure of the same game being played on the other side. A great Catholic Council was held in Galway, and another in Donegal. The friars came out of their hiding places, reoccupied the abbeys, or ranged about the country in tens and twenties, openly preaching a crusade.

There were Protestants in Galway, and it is creditable to the native Irish that they did not revenge their own treatment upon them. There were threats of "the Spanish Inquisition;" "extreme defiance against all professors of God's religion, as would pity Christian hearts to hear;" fresh and passionate resolutions "to subvert the English Government and set up their own wickedness;" ¹ but no one was murdered for his religion, and the worst that the Protestants had to complain of was that they dared not show themselves in the general enthusiasm. Every trace of English authority, however, was destroyed in Connaught. Sir Brian MacPhelim and Tirlogh Lenogh, when the nights grew long, swept young Smith's herds into the woods, stripped him of all that he possessed, and ¹ Fitzwilliam to

⁵³⁵ Fitzwilliam to Cecil, March 14: MS. Ibid.

⁵³⁶ Ibid.

Elizabeth, December 7 1572, pinned him into a corner of Antrim, where he could but shriek to England for assistance.⁵³⁷

The Pale was no longer safe. Cattle-driving had been common at all times, and was, "in the world's account, no great matter. But now the highland tribes of Wicklow came down in bands, in open daylight, out of the mountains, with their bagpipes blowing. Kildare, Queen's County, the very meadows round Dublin itself, were plundered with the utmost audacity. There was no one left to oppose them. With discreet coolness they spared the Irish farmers, and loaded their waggons with the spoils of every English settler. "The mischief overskipped, like the Passover in Egypt," and touched only those "who were marked men in birth or duty;" and Fitzwilliam concluded that they meant to make it impossible for any Englishman to live in the island, and to thrust the spade at their root." ⁵³⁸ "I pass over," he said, "the ordinary burnings, killings, and spoilings; I cannot help them; I may shake the scabbard, but I a sword to draw. Every Irish rascal is now insolent, the names of England and Englishmen so hateful, that before God in agony of soul I doubt the event. There lyeth some secret mystery in this universal rebellious disposition. God bless her Majesty. I can but die at my post. I only hope I may die with the loss of Ireland, rather than live in England to bemoan it. As her Majesty will spend no more money here, we must hazard our lives as we are, even with these falsehearted Pale men." ⁵³⁹

Thus it seemed as if all was over, and that the only remaining resource was to revert to the old ways and govern Ireland for and through the Irish themselves. The language of the Archbishop of Cashel to Cardinal Alciati shows that before the Government attempted to force a religion upon them which had not a single honest advocate in the whole nation, there was no incurable disloyalty. If they were left with their own lands, their own laws, and their own creed, the chiefs were willing to acknowledge the English sovereign. A firm administration and a rigid enforcement of order would have been by far the best for Ireland; but if this could not be because of the expense, the policy of conciliation graciously carried out would have been the only wise alternative. The disappointment of

⁵³⁷Thomas Smith to Cecil, November 21: MSS. Ireland.

⁵³⁸Fitzwilliam to Elizabeth, December 7: MS. Ibid.

⁵³⁹Fitzwilliam to Burghley, October 28: MS. Ibid.

the hopes which they had placed in Spain might have satisfied the Geraldines that they had nothing to look for from Philip; while the point of religion once disposed of, there was no further reason for their preferring Spain to England.

But wisdom after the event is proverbially idle. It was necessary to pretend to conciliate, and therefore Elizabeth showed no resentment at Desmond's attempt to fly from London. But she could not bring herself to acquiesce in toleration. She did not observe that in Ireland, where there were no Protestants, her objection to permitting two religions did not apply. She accepted only what circumstances would not allow her to refuse; and when she yielded, she yielded with reservations which she would have done better to have passed over in silence. She consented that the Earl of Desmond should go back to Munster and resume possession of his estates and his jurisdiction, but she exacted a promise from him before he left England that "he would assist and maintain all the laws established by Act of Parliament for maintenance of true religion;" that "he would suppress the Papal authority, remove from their sees the prelates in communion with Rome, and assist, encourage, and protect the ministers, bishops, and preachers sent from England to convert the Irish to the Reformation."⁵⁴⁰

The Earl, of course, consented. Conditions extorted as the price of freedom were rarely refused in words, and were as rarely observed when the doors of the prison were thrown open. The Government felt the weakness of their hold upon him. An order was signed for his release on the 21st of January. On his arrival in Dublin, he was again arrested and thrown into the Castle, and a fresh list of engagements was submitted to his acceptance. He was required to dispense with the retinue which formed the usual bodyguard of the Irish chiefs, to undertake to disarm his castles, and leave the English undisturbed in possession of Castlemayne and Castlemartyr. The Queen had insisted that "coyn and livery" should be continued to the Earl of Ormond; his rival was to abandon it forever. There were to be no more armed assemblies in the provinces, no Brehon law, and justice was to be administered according to English forms by judges under the writs of the Viceroy. Excellent regulations, all of them, if introduced

⁵⁴⁰Note of articles to be observed by the Earl of Desmond. Abridged January 3, 1573: MSS. Ireland. i MS. in Tremayne's hand. Endorsed by Burghley, "For Ireland. Diminution of Charges."

by England with the strong hand, or if sanctioned by Desmond from a conviction of their inherent fitness. But as the matter stood, the required to do everything which England had to do by force, and had failed. The Government had sent him back to his people because he alone to control them; and it was idle to expect that the Queen could bind him now by engagements which his liberation was sufficient evidence that she could not enforce.

Wiser advice had been given by Burghley's correspondent. Tremayne had recommended that immediately on Desmond's return the Irish noblemen should be invited to meet in a general council. They should be told distinctly that the Queen would not part with the sovereignty of the country, but that she was ready to listen to their opinions as to the manner in which the government should be administered. If they on their part would undertake to support the Crown and prevent oppression and anarchy, the English troops should be withdrawn. The administration of Sidney had not been without effect. Wherever order had been continuously preserved they had found the advantage of it, and Tremayne was convinced that the lesson had not been thrown away. If the people were trusted, he believed that they would deserve their trust, and that if the garrisons were removed they would settle down in peace.¹

The experiment might not have succeeded, but as the abolition of the new Bishops and clergy must have followed, it might have been worth trying; while conciliation alloyed by distrust was certain to fail.

Unfortunately, a fresh chimera had taken possession of the English imagination, and the Queen had been persuaded that conquest was still possible, though it was to cost her nothing. The settlement of Munster had broken down because it was undertaken by greedy adventurers in the mere spirit of personal acquisition; and Smith had fared no better in Antrim, because he had gone to work with insufficient means, and without those high and public aims which would make success either possible or desirable. An English nobleman now came forward to do battle with the Irish giant like a knight of King Arthur's table.

Walter Devereux, Lord Hereford, was one of the few peers who, in the Norfolk conspiracy, had been true throughout to the Queen. He had been selected to command with Hunsdon in the Northern rebellion, and more than once at moments of danger to take charge of the Queen of Scots. As belonging to the old blood he had especially

recommended himself to Elizabeth's favour by his loyalty, and in 1572 he had been rewarded for his services by the earldom of Essex. He was young, enthusiastic, generous; the first conspicuous representative of that illustrious company who revived in the England of Elizabeth the 'genius of mediaeval chivalry. He was burning to deserve his honours, and in Ireland — the despair of statesmen, the home of the evil demons of anarchy, Papistry, and confusion — he saw the opportunity which he desired. To the recovery of Ireland he determined to consecrate his life and fortune; not, he said, for any personal ambition, "but being of good devotion to employ himself in the service of her Majesty for the benefit of his country." Other enterprises had failed for want of unity or greatness of purpose. Essex was ready to undertake the entire outlay and the entire responsibility. He too, like Smith, saw in the country deserted by the Scots the most favourable position to make good his footing; and he petitioned the Queen to make over to him "that part of Ulster called Chandeboy," the district enclosed by a line from Belfast to the foot of Lough Neagh, and by the River Bann from Lough Neagh to the sea. He required authority "to build castles and forts," "to plant towns and incorporate them by charters," "power to make laws necessary for his government," "power to levy war upon the Irish," "to assemble forces," "to spoil, besiege, rase, or destroy the towns and castles of Irish outlaws," "to annoy them by fire and sword, or any manner of death," "to take to his use the goods and chattels of traitors, pirates, and felons, with all shipwrecks that should happen within the circle of his grant;⁵⁴¹ power also — "hard," as Burghley remarked, "to be granted for any natural subject" — "power to make slaves and to chain to ships and galleys all or any such of the Irishry or Scots Irish as should be condemned of treason, for the better furtherance of his enterprise."

On the Queen's consent to these demands, the Earl bound himself to conquer the district out of his own resources, and after four years of possession to pay a hundred pounds a year to the treasury. He was not alone or unsupported: many gentlemen, from good motives and bad, had volunteered to take shares in the expedition. Lord Hunsdon, Sir Arthur Champernowne, Sir Thomas Wilford, Sir Ralph Bouchier,

⁵⁴¹Opposite this paragraph Burghley writes: — "It were good that shipwrecks were more charitably used for the relief of the owners." — Offer of the Earl of Essex touching the inhabiting of the North of Ireland, May 26 1573; MBS. Ireland.

and several more, were ready to go with him in person, or to send their sons and servants.

Such was the proposal now submitted to Elizabeth for a new settlement. In its original form it infringed upon the Crown rights, and Sir Henry Sidney recommended Burghley to insert provisions for the protection of the Sovereign. "Independent jurisdictions," he said, "were the foundation of Irish disturbances;" and although the loyalty of Essex himself was above suspicion, "security was necessary that such as might succeed him should live in order and obedience." With this, and some other unimportant reservations, the petition was granted. The Queen gave Essex a last caution to "win the Irish by mildness," and he prepared to go.⁵⁴²

The military force was to be irresistible. It was to consist of 1200 men, who were to be settled on the land as they took possession of it, and to do service in the field for their tenures. The Queen undertook to pay half the wages for the first year, and she advanced Essex 10,000?. for the expenses of his outfit, which were secured upon his English estates. The loan was to be repaid in yearly instalments of 1000?., and, in default, a manor of that value was annually to lapse to her Majesty.⁵⁴³ So provided, in August, 1573, the young Earl and his companions set out upon their adventurous enterprise. A few years before, Sir Henry Sidney's progress through Ulster had been gravely compared to Alexander's journey into Bactria. The central plains of Australia, the untrodden jungles of Borneo, or the still vacant spaces in our maps of Africa, alone now on the globe's surface represent districts as unknown and mysterious as the northeast angle of Ireland in the reign of the great foundress of the modern British Empire. The wolves still roamed in the forests. In the plots or charts which

⁵⁴²Esstek to Elizabeth, November 2. Elizabeth's personal carelessness in affairs of the greatest consequence is curiously illustrated in the history of this transaction. Four months later, when the results began to be doubtful, she sent Burghley a series of questions, as to the Earl's objects — whether the country which had been granted to him was inhabited, and if so what he proposed to do with the people — whether they were to be expelled, or whether English colonists were to be introduced among them? How they were to be governed? How they were "to have use of the Christian religion? What were their laws and customs, and to whom the lands were supposed by themselves to belong? — Doubts moved by the Queen's Majesty, touching the Earl of Essex, whereof she requires to be resolved, December, 1573. The questions were most proper; so proper that they ought to have been asked before the grant was made.

⁵⁴³Remembrances for the Earl of Essex, August, 1573.

began to be made, the seas are peopled with monsters vaster than the northern serpent. Bare-legged chieftains, with mail and battleaxe, stride across Donegal and Londonderry, the Fingals of legend, half believed to have palpable existence. The three southern provinces had been explored with tolerable care; but Ulster was a desert, heard of only as a battle ground where the O'Donnells, the O'Neils, and the Redshanks had murdered each other from immemorial time. The fortunes of Shan O'Neil had thrown a brief light into its recesses, but only to reveal a life more wild and savage than the most random imagination could have pictured. When Shan was gone, the darkness settled down again; and Captain Piers, with his garrison at Knockfergus, and young Smith, who had taken shelter with him, did but hang to the shore like shell-fish, and durst not venture beyond their walls.

This was the country which a company of romantic English youths had come to occupy. Sir Peter Carew, scenting a chance of indemnifying himself for his Munster disappointment, gave the expedition the benefit of a soldier's arm and some Irish experience. And with servants and soldiers, Essex had under his command the strongest English force ever yet collected at any one spot in Ireland. Antonio de Guaras had prepared the way by sending word to the chiefs, that an English Lord was bringing over an army to cut all their throats. Rowland Turner, an English poet, added in a postscript, that if they allowed themselves to be robbed of their country, "they would be base, godless, cowardly slaves."⁵⁴⁴ Neither a Spaniard nor an Englishman was required to teach the Irish resistance when their land was threatened. The Scots had made an alliance with the O'Neils and Sir Brian MacPhelim, and while Essex was still upon the seas, Down, Newry, and Knockfergus itself, all but the castle, were in flames, lest they should form a shelter for the invading force.

The expedition began with misfortune. A storm „, dispersed the fleet: some of the vessels were driven down channel, some to the Isle of Man. Essex himself landed at the end of August, at Carrickfergus; and by degrees, but not before precious days of fine weather had been wasted, the whole force was assembled. At first, as usual, not an enemy appeared, nor any signs of an enemy; the country was beautiful in the dry days of early autumn; there was grass for the horses and meat for the men, and the Earl could scarcely believe that the smiling fields and the smooth-spoken people were the Ireland and

⁵⁴⁴ Antonio de Guaras to the Irish chiefs, June, 1573. — MSS. Ireland.

the Irish race of whom he had heard so terrible a report. H * set out a proclamation that he was come to be a father to Ulster, and his only fear was, that the difficulties too slight to test his skill and courage. The to their fastnesses at Red Bay. Tirlogh Lein his castle at Lough Neagh. The tremendous came in person, and made his submission on his knees. Sir Brian from henceforth promised to be a loyal subject; and for a pledge of his fidelity, placed 10,000 cattle at the new Governor's disposal.⁵⁴⁵

A few days dissolved the illusion. The Irish chieftain had desired merely to ascertain the number of the invaders: three nights after he disappeared, and with the morning, his own herds, and all the rest which Essex had collected, had vanished with him. The troops were reduced to salt beef, where the supplies of food but a few hours before had appeared inexhaustible. They had brought corn, but there were no mills to grind it; before they had been on shore a fortnight, they were mutinous for want of food, while Essex could only console himself with the determination that "he would not be so abused again." "He had begun with lenity," for the future he would be strict and severe.⁵⁴⁶ It was forever the same story with Ireland. Men came there full of confidence and enthusiasm. The inhabitants were so agreeable that they were credited with all the virtues, and the failures in managing them were set down to a want of understanding, or a want of sympathy with their character. Disappointment followed, and then anger and violence, with the old never-failing results. The Irish had laughed at Essex's fine speeches, and in time they ridiculed his threats; a fortnight later news came that young Smith had been murdered; and that the kerne who had been taken into employment to collect food for the army, had run away and joined MacPhelim. The season broke up. The rain fell; the wind blew; the rivers rose, and a campaign in the interior so late in the year was not to be thought of. Essex was obliged to entrench himself at Belfast, and wait for the spring; while the Irish, to whom weather was of no consequence, would not leave him to the rest which was all that he now desired. They hung about the camp in the day, cutting off the foraging parties, "never offering fight but upon great advantage, and flying when pursued, faster than the English could follow. If any of them were now and then killed, the keen

⁵⁴⁵ Essex to the Council, September 10: MS. Ibid.

⁵⁴⁶ Essex to the Council, September 29 •• MSS. Ireland.

for the dead rising at night out of the forest, filled the soldiers with wonder and fear. The November storms coming upon them while they were imperfectly sheltered, extinguished finally the ardour of the volunteers which the first disappointment had cooled, and home-sickness soon thinned the camp of all who could afford to leave it. Lord Rich, who had accompanied the expedition out of friendship for Essex, found that circumstances required his presence in England. Carew discovered that a visionary nobleman was no leader for a hungry man to serve under; and "the private adventurers," generally, remembering "the delicacies of their own firesides," and "wanting resolute minds to endure travail," followed the infectious example. The soldiers, not being in the Queen's service, began to say, "that Essex was a private man, whom they were free to leave if they pleased," and the Irish understood their humour, and fed the rising discontent. O'Donnell sent word that he would submit to the Queen, and hold his land at her hands, but that he owed no allegiance to a subject who had come over for "private gain;" and Essex, in the blight which had overtaken him, was driven, after a few weeks' trial, to request Elizabeth to "allow the army to appear hers," "that he might with better warrant at least punish mutiny and the base ignobility of the soldiers' minds." He sent to Dublin to Fitzwilliam for help, or at least for advice. Fitzwilliam could not help him; and not perhaps wholly unamused at the collapse of an enterprise which had been ushered in with so loud a flourish, not wholly displeased at so plain a proof that others could fail as well as he, "the Lord Deputy sat in his chair and smiled."⁵⁴⁷ The Earl in his despair poured out his griefs to Burghley, whom he called his father. "He had not come to Ireland," he said, "for his own advantage," but only in the service of his country. He was ready to surrender his patent, saving the rights and claims of the gentlemen who had shared the risk with him, if the Queen would take the control of the expedition, and would give him a commission as commanding in her name.

When matters had thus arrived at extremity, news came that the Earl of Desmond had escaped from Dublin Castle. He had refused to accept the last conditions which had been demanded of him. He had protested against the breach of faith which had placed him again in arrest, and his secret friends, encouraged by the disaster which had

⁵⁴⁷ Essex to Burghley, November 2: MSS. Ireland. 36

fallen upon Essex, opened the doors of his prison. His return to Munster, when he was clear of the city, was a triumphal procession. Kildare had lost his place as chief of the Norman Irish by trimming with the English Government. They had transferred their allegiance and their enthusiasm to his kinsman, and "there was now no God nor prince with the people of the Geraldines but the Earl of Desmond, and no law feared by them but Desmond's heste." He crossed the Pale into Tipperary like the nucleus of a comet, the wild horsemen gathering in clouds and streaming in his track. The Countess joined him, and both together flung off the hated "English apparel," and appeared at the head of their warriors in the costume of Irish chieftains. They went first to Limerick, where Jae citizens marched out in procession to receive therm Set free, as he supposed, by his second arrest from all his engagements, the Earl issued a proclamauecemDer. # tion that no sheriff, or constable, or minister of English law, should execute office in Munster. A company of soldiers who had been left in Castletown were expelled. Castlemartyr was taken by the Seneschal of Imokelly. Castlemayne had cost Perrot two weary months of labour to reduce. On Christmas-eve, when the garrison were sleeping off their deep draughts of ale, a treacherous porter opened the gates, and let in Fitzmaurice and his band. Adare Abbey "was stored again with friars," and the Catholic Bishop of Limerick, Hugh Larry, whom Perrot had deposed, was reinstalled in his Cathedral.⁵⁴⁸

Fitzwilliam sent a pursuivant to Desmond to order him to disperse his followers, and return to Dublin. as well have whistled to the eagles of Dunloe. answered that, "as long as he was allowed to rule his own country in peace, he would do no hurt to her Majesty's subjects," but he would not place himself again in the power of her officers, of whom he had seen enough and too much already.⁵⁴⁹

The shock was felt in the castle of every Irish chief. A wild meeting was held in Connaught, where Shan Burke, Clanrickard's son, "drew his skene, and wished it were driven into his belly if ever he submitted to the Deputy except on his own conditions, and swore he would make prey to the gates of Dublin."⁵⁵⁰ The situation of Essex, already

⁵⁴⁸N. Walshe to Burghley, November 24, November 30, December — • MSS. Ireland.

⁵⁴⁹Captain Bouchier to Fitzwilliam, December 2, 5, 6: MS. Ibid.

⁵⁵⁰MS. Ibid.

deplorable, was now hopeless. Misfortunes gathered, one upon the other. He could get no fresh meat. His bread ran short. The contractors had been fraudulent, and had sent bad malt, by which the soldiers were poisoned. The horses were stolen or killed for food. Desertion, sickness, famine, together thinned his ranks; and three months after his landing, out of twelve hundred men, he had but two hundred left who were fit for duty.⁵⁵¹ "The Devonshire men," sent by Sir Arthur Champernowne, the countrymen of Drake and Hawkins, the very bone and sinew of the roving navy, forgot their nature in the Irish swamps. "The men of Devon," wrote Essex, "came here well appointed and likely to look at, but in their doings they are the worst I ever saw. Mutinous in camp, and cowardly in the field, when they saw likelihood of work, they began to steal away. Some I caught and hanged. The rest would rather starve than come to service. The gentlemen have sent me only such as they were glad to rid their country of. I am ashamed that England should breed such weakhearted men as come hither."⁵⁵²

Without waiting for Elizabeth's resolution, the Earl said decisively that he must abandon his grant. He was ruined, and he must endeavour to bear it. He could not keep his soldiers. They told him that they had joined him out of personal good-will, and would stay no longer than they pleased. "The war could only be carried on by the Governor of the realm, whom he would himself obey and serve as a private man."⁵⁵³

Never was illusion more rapidly dissipated. The Southern adventurers, had Carew not fallen across the Butlers, and had the rest been allowed to deal as they pleased with the Irish savages, might have effected considerable things. Encumbered with no high-minded sentiments, and bent only upon cultivating the soil and growing rich by the possession of it, they would have solved the Irish problem by destroying the Celts, as their descendants in every colony which they have formed have destroyed the native races who have refused to be subjugated.

But Essex was a dreamer and an enthusiast. He was like the great Manchegan whose adventures were growing at that same moment in the brain of Cervantes. If not in genius, yet in beauty of disposition, in

⁵⁵¹Captain Malby to Cecil, December 8: MSS. Ireland.

⁵⁵²Essex to the Council, December 11.

⁵⁵³Same to the Same, December 3: MSS. Ireland.

disinterested nobleness, and in the worldly ill-success which follows men of such natures and temperament as its shadow, he might have been compared to Cervantes himself.

Sir Thomas Wilford, who remained with him when others went, softened the account of the disaster by pointing out its causes, and could not restrain himself from expressing his admiration of the fortitude with which the Earl bore up against his failure.

"The Irish nation," he said, "is more enraged with the fury of desperation than ever I have known them heretofore. They suppose these wars are taken in her Majesty's subjects and not by herself. they are no rebels, and do but defend their goods. Our own people through long peace in England have lost the minds of soldiers, and are become weak in body to endure travail and miserable in mind to sustain the force of the enemy. And this, no question, doth grow of the fat delicate soil and long peace had in England, and therefore nothing more necessary for a prince that mindeth to keep his countries and dominions than some exercise of war. This people begin to know their own force and strength and have learnt the use and sorts of weapons, their places of strength and advantage, and therefore high time to expulse them for fear of utter ruin to the whole. My Lord, it is not a subject's purse and countenance must do this. It must be her Majesty's only. It were the greatest pity in the world that so noble and worthy a man as this Earl should consume himself in this enterprise. I know and perceive he shooteth not at the gain and revenue of the matter, but rather the honour and credit of the cause. If her Majesty did know his noble and honourable intent, having a body and mind invincible to endure all miseries and extremities, so well as we do know him, she would not suffer him to quail for half the kingdom of Ireland." ⁵⁵⁴

So the year 1573 ended in the universal destruction of the English power in Ireland. The Queen, unable to make up her mind to the expense of fresh exertions, acquiesced in what she could not prevent. As she had no longer any prospect of capturing Desmond she consented to pardon him; and she read the Irish one more page of the lesson most fatal in the end to their own welfare — that England might be defied with impunity. Fitzwilliam repeated his demand to be allowed to resign. "He had no soldiers, no money, no help, no favour. He was a poor refuse man thrown into his place to serve a

⁵⁵⁴Sir Thomas Wilford to Burghley, December 1, 1573: MSS. Ireland.

turn. He had done his best and could do no more, and he could only hope that his successor, whoever that might be, would be more fairly dealt with.”⁵⁵⁵

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⁵⁵⁵Fitzwilliam to the Council, December 23: MS. Ibid.